

GRAHAM'S MAGAZINE

1852

**Volume XL
No. 3 March**



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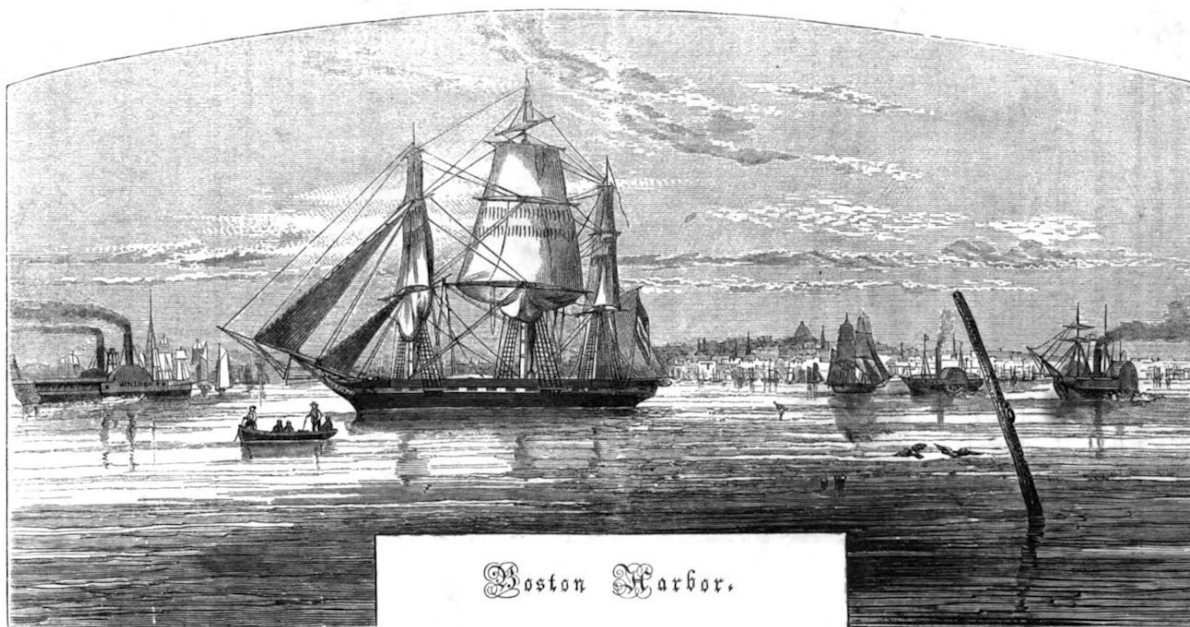
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A DACOTAH INDIAN COURTING.

Drawn by S. Eastman U.S.A. and Engraved expressly for Graham's Magazine by F. Humphry.



Boston Harbor.

GRAHAM'S MAGAZINE.

VOL. XL. PHILADELPHIA, MARCH, 1852. No. 3.



GRANNY'S FAIRY STORY.

(FOR THE YOUNG FOLKS.)

THERE was a young woman so kind and sweet-tempered that every person loved her. Among the rest, there was an old witch who lived near where she dwelt, and with whom she was a great favorite. One day this old witch told her she had a nice present to give her. "See," she said, "here is a barley-corn, which, however, is by no means of the same sort as those which grow in the farmer's field, or those we give to the fowls. Now you must plant this in a flower-pot, and then take care and see what happens."

"Thank you a thousand times," said the young woman. And, thereupon, she went straight home, and planted the barley-corn the witch had given her

in a flower-pot. Immediately there grew out of it a large, handsome flower, but its leaves were all shut close as if they were buds.

“That is a most beautiful flower!” said the woman, while she bent down to kiss its red and yellow leaves; but scarcely had her lips pressed the flower, than it gave forth a loud sound and opened its cup. And now the woman was able to see that it was a regular tulip, and in the midst of the cup, down at the bottom, there sat a small and most lovely little maiden; her height was about one inch, and on that account the woman named her Ellise.

She made the little thing a cradle out of a walnut-shell, gave her a blue violet-leaf for a mattress, and a rose-leaf for a coverlet. In this cradle Ellise slept at night time, and during the day she played upon the table. The woman had set a plate filled with water upon the table, which she surrounded with flowers, and the flower-stalks all rested on the edge of the water; on the water floated a large tulip-leaf, and upon the tulip-leaf sat the little Ellise, and sailed from one side of the plate to the other; and for this she used two white horse-hairs for oars. The whole effect was very charming, and Ellise could sing too, but with such a delicate little voice as we have never heard here.

One night as she lay in her bed, an ugly toad hopped into her through the broken window pane. It was a large and very hideous toad; and it sprang at once upon the table, where Ellise lay asleep under the rose-leaf.

“That would be, now, a nice little wife for my son,” said the toad, and seized, as she said it, the walnut-shell in her mouth, and hopped with it out through the window into the garden again.

Through the garden flowed a broad stream, but its banks were marshy, and among the marshes lived the toad and her son. Ha! how hideous the son was too; exactly like his mother he was, and all that he could say, when he saw the sweet little maiden in the walnut-shell, was “Koax! koax! breckke ke!”

“Don’t talk so loud,” said the old one to him, “else you’ll awake her, and then she might easily run away from us, for she is lighter than swans’-down. We will set her upon a large plant in the stream; that will be a whole island for her, and then she cannot run away from us; while we, down in the mud, will build the house for you two to live in.”

In the stream there were many large plants, which all seemed as if they floated on the water; the most distant one was, at the same time, the largest, and thither swam the old toad and set down the walnut-shell, with the little maiden upon it.

Early on the following morning the little Ellise awoke, and when she looked about her and saw where she was, that her new dwelling-place was surrounded on all sides by water, and that there remained no possible way for her to reach land again, she began to weep most bitterly.

Meanwhile the old toad sat in the mud and adorned the building with reeds and yellow flowers, that it might be quite grand for her future daughter-in-law, and then, in company with her hideous son, swam to the little leaf-island where Ellise lay.

She now wanted to fetch her pretty little bed, that it might at once be placed in the new chamber, before Ellise herself was brought there. The old toad bent herself courteously before her in the water, while she presented her son in these words—"You see here my son, who is to be your husband, and you two shall live together charmingly down in the mud."

"Koax! koax! breckke-ke!" was all that the bridegroom could find to say.

And, therewith, they both seized upon the beautiful little bed, and swam away with it; while Ellise sat alone upon the leaf and cried very much, for she did not like at all to live with the frightful toad, much less have her odious son for her husband. Now the little fishes which swam about under the water, had seen the toad, and heard, moreover, perfectly well all that she said; they, therefore, raised their heads above water, that they might have a look at the beautiful little creature. No sooner had they seen her than they were, one and all, quite moved by her beauty; and it seemed to them very hard that such a sweet maiden should become the prey of an ugly toad. They assembled themselves, therefore, round about the green stalk from which grew the leaf whereon Ellise sat, and gnawed it with their teeth until it came in two, and then away floated Ellise and the leaf far, far away, where the toad could come no more.

And so sailed the little maiden by towns and villages, and when the birds upon the trees beheld her, they sang out—"Oh, what a lovely young girl." But away, away floated the leaf always further and further. Ellise made quite a foreign journey upon it.

For some time a small white butterfly had hovered over her, and at last he sat himself down on her leaf, because he was very much pleased with Ellise, and she, too, was very glad of the visit, for now the toad could not come near her, and the country through which she traveled was so beautiful. The sun shone so bright upon the water that it glittered like gold. And now the idea occurred to her to loosen her girdle, bind one end of it to the butterfly, the other on to the leaf; she did this and then she flew on much faster, and saw much more of the world than she would have done.

But, at last, there came by a cock-chaffer, who seized her with his long claws round her slender waist, and flew away with her to a tree, while on swam the leaf, and the butterfly was obliged to follow, for he could not come loose, so fast and firm had Ellise bound him.

Ah! how terrified was poor Ellise when the cock-chaffer carried her off to the tree. But her sorrow over the little butterfly was quite as great, for she knew he must certainly perish, unless by some good accident he should chance to free himself from the green leaf. But all this made no impression upon the cock-chaffer, who set her upon a large leaf, gave her some honey to eat, and told her she was very charming, although not a bit like a chafer. And now appeared all the other cock-chafers who dwelt upon this tree, who waited upon Ellise, and examined her from top to toe; while the young lady-chafers turned up their feelers and said, "She has only two legs! how very wretched that looks!" and added they, "she has no feelers whatever, and is as thin in the body as a human being! Ah! it's really hideous!" and all the young lady-cock-chafers cried out, "Ah! it's perfectly hideous!" And yet Ellise was so charming! and so felt the cock-chaffer; but at last, because all the lady-chafers thought her ugly he began to think so too, and resolved he would have nothing more to do with her; "she might go," he said, "wherever she liked;" and with these words he flew with her to the ground, and set her upon a daisy. And now the poor little thing wept bitterly, to find herself so hideous that not even a cock-chaffer would have any thing to do with her. But, notwithstanding this decisive opinion of the young lady-cock-chafers, Ellise was the loveliest, most elegant little creature in the world, as delicate and beautiful as a young rose-leaf.

The whole summer through the poor little maiden lived alone in the great forest; and she wove herself a bed out of fine grass, and hung it up to rock beneath a creeper, that it might not be blown away by the wind and

rain; she plucked herself sweets out of the flowers, for food, and drank of the fresh dew, that fell every morning upon the grass. And so the summer and the autumn passed away. All the birds which had sung so sweetly to Ellise, left her and went away, the trees lost all their green, the flowers withered, and the great creeper which, until now, had been her shelter, shriveled away to a bare yellow stalk. The poor little thing shivered with cold, for her clothes were now worn out, and her form was so tender and delicate that she certainly would perish with cold. It began also to snow, and every flake which touched her, was to her what a great heapfull would be to us, for her whole body was only one inch long.

Close beside the forest in which Ellise lay, there was a corn-field, but the corn had long since been reaped, and now, only the dry stubble rose above the earth; yet, for Ellise was this a great forest, and hither she came. So she reached the house of a field-mouse, which was formed of a little hole under the stubble. Here dwelt the field-mouse warm and comfortable, with her store-room full of food for the winter, and near at hand a pretty kitchen and eating-room. Poor Ellise stepped up to the door and begged for a little grain of barley, for she had tasted nothing for the whole day.

“You poor little wretch!” said the field-mouse, who was very kind-hearted, “come in to my warm room and eat something.” And when now she was much pleased with Ellise, she added, “you may if you like, spend the winter here with me; but you must keep my house clean and neat, and tell me stories, for I am very fond of hearing stories.”

Ellise did as the field-mouse wished, and, as a reward for her trouble, was made comfortable with her.

“Now we shall have a visit,” said the field-mouse to her one day. “My neighbor is accustomed to pay me a visit every week. He is much richer than I am, for he has several beautiful rooms, and wears the most costly velvet coat. Now if you could only have him for your husband, you would be nicely provided for, but he does not see very sharply, that’s one thing. Only you must tell him all the best stories you can think of.”

But Ellise would hear nothing of it, for she could not endure the neighbor, for he was nothing more nor less than a mole. He came, as was expected, to pay his respects to the field-mouse, and wore his handsome velvet coat as usual. The field-mouse said he was very rich, and very well informed, and that his house was twenty times larger than hers. Well

informed he might be, but he could not endure the sunshine or the flowers, and spoke contemptuously of both one and the other, although he had never seen either. Ellise was obliged to sing before him, and she sang the two songs—"Chafers fly! the sun is shining!" and "The priest goes to the field!" Then the mole became very much in love with her because of her beautiful voice, but he took good care not to show it, for he was a cautious, sensible fellow.

Very lately he had made a long passage from his dwelling to that of his neighbor, and he gave permission to Ellise and the field-mouse to go in it as often as they pleased; yet he begged of them not to be startled at the dead bird which lay at the entrance. It was certainly a bird lately dead, for all the feathers were still upon him, it seemed to have been frozen exactly there where the mole had made the entrance of his passage.

Mr. Neighbor now took a piece of tinder in his mouth, and stepped on before the ladies, that he might lighten the way for them, and as he came to the place where the dead bird lay, he struck with his snout on the ground, so that the earth rolled away, and a large opening appeared through which the daylight shone in. And now, Ellise could see the dead bird quite well—it was a swallow. The pretty wings were pressed against the body, and the feet and head covered over by the feathers. "The poor bird has died of cold," said Ellise, and it grieved her very much for the dear little animal, for she was very fond of birds, for they sang to her all through the summer. But the mole kicked him with his foot and said, "The fine fellow has done with his twittering now! It must indeed be dreadful to be born a bird! Heaven be praised that none of my children have turned out birds! Stupid things! they have nothing in the wide world but their quivit, and when the winter comes, die they must!"

"Yes," returned the field-mouse, "you, a thoughtful and reflecting man, may well say that! What indeed has a bird beyond its twitter when the winter comes? he must perforce hunger and freeze!"

Ellise was silent; but when the others had turned their backs upon the bird, she raised up its feathers gently, and kissed its closed eyes.

"Perhaps it was you," she said softly, "who sang me such beautiful songs! How often you have made me happy and merry, you dear bird!"

And now the mole stopped up the opening again through which the daylight fell, and then accompanied the young ladies home. But Ellise could

not sleep the whole night long. She got up, therefore, wove a covering of hay, carried it away to the dead bird, and covered him with it on all sides, in order that he might rest warmer upon the cold ground. "Farewell, you sweet, pretty little bird!" said she. "Farewell! and let me thank you a thousand times for your friendly song this summer, when the trees were all green, and the sun shone down so warm upon us all!" And therewith she laid her little head on the bird's breast, but started back, for it seemed to her as if something moved within. It was the bird's heart; he was not dead, but benumbed, and now he came again to life as the warmth penetrated to him.

In the autumn, the swallows fly away to warmer countries; and when a weak one is among them, and the cold freezes him, he falls upon the ground, and lies there as if dead, until the cold snow covers him.

Ellise was frightened at first, when the bird raised itself, for to her he was a great big giant, but she soon collected herself again, pressed the hay covering close round the exhausted little animal, and then went to fetch the curled mint-leaves which served for her own covering, that she might lay it over his head.

The following night she slipped away to the bird again, whom she found now quite revived, but yet so very weak, that he could only open his eyes now and then, to look at Ellise, who lighted up his face with a little piece of tinder.

"I thank you a thousand times, you lovely little child," said the sick swallow, "I am now so thoroughly warmed through, that I shall soon gain my strength again, and shall be able to fly out in the warm sunshine."

"Oh! it is a great deal too cold out there," returned Ellise, "it snows and freezes so hard! only just stay now in your warm bed, and I will take such care of you!"

She brought the bird some water to drink out of a leaf, and then he related to her how he had so hurt his wing against a thorny bush that he could not fly away to the warm countries with his comrades, and at last had fallen exhausted to the ground, where all consciousness left him.

The little swallow remained here the whole winter, and Ellise attended to him, and became every day more and more fond of him; yet she said nothing at all about it to the mole or the field-mouse, for she knew well enough already that neither of them could bear the poor bird.

As soon, however, as the summer came, and the warm sunbeams penetrated the earth, the swallow said good-bye to Ellise, who had now opened the hole in the ground, through which the mole let the light fall in. The sun shone so kindly, that the swallow turned and asked Ellise, his dear little nurse, whether she would not fly away with him. She could sit very nicely upon the swallow's back, and then they would go away together to the green forest. But Ellise thought it would grieve the good field-mouse if she went away secretly, and therefore she was obliged to refuse the bird's kind offer.

"Then, once more farewell, you kind, good maiden," said the swallow, and therewith he flew out into the sunshine. Ellise looked sorrowfully after him, and the tears rushed into her eyes, for she was very fond of the good bird.

"Quivit! quivit!" sang the swallow, and away he flew to the forest.

And now Ellise was very mournful, for she hardly ever left her dark hole. The corn grew up far above her head, and formed quite a thick wood round the house of the field-mouse.

"Now you can spend the summer in working at your wedding-clothes," said the field-mouse, for the neighbor, the wearisome mole, had at last really proposed for Ellise. "I will give you every thing you want, that you may have all things comfortable about you, when you are the mole's wife."

And now Ellise was obliged to sit all day long busy at her clothes, and the field-mouse took four clever spiders into her service, and kept them weaving day and night. Every evening came the mole to pay his visit, and every evening he expressed his wish that the summer would soon come to an end, and the heat cease, for then, when the winter was here, his wedding should take place. But Ellise was not at all happy to hear this, for she could hardly bear even to look upon the ugly mole, for all his expensive velvet coat. Every evening and every morning she went out at the door, and when the wind blew the ears of corn apart, and she could look upon the blue heaven, she saw it was so beautiful out in the open air, that she wished she could only see the dear swallow once more; but the swallow never came; he preferred rejoicing himself in the warm sunbeams in the green woods.

By the time autumn came, Ellise had prepared all her wedding-garments.

“In four weeks your wedding will take place,” said the field-mouse to her; but Ellise wept, and said she did not want to have the stupid mole for a husband.

“Fiddle-de-dee,” answered the field-mouse—“Come, don’t be obstinate, or I shall be obliged to bite you with my sharp teeth. Isn’t he a good husband that you’re going to have? Why, even the queen hasn’t such a fine velvet coat to show as he has! His kitchen and his cellar are well-stocked, and you ought rather to thank Providence for providing so well for you!”

So the wedding was to be! Already was the mole come to fetch away Ellise, who, from henceforth, was to live always with him. Deep under the earth, where no sunbeam could ever come! The little maiden was very unhappy, that she must take her farewell of the friendly sun, which at all events she saw at the door of the field-mouse’s house.

“Farewell, thou beloved sun!” said she, and raised her hands toward heaven, while she advanced a few steps from the door; for already was the corn again reaped, and she stood once more among the stubble in the field. “Adieu, adieu!” she repeated, and threw her arms round a flower that stood near her, “Greet the little swallow for me, when you see him again,” added she.

“Quivit! quivit!” echoed near her in the same moment, and, as Ellise raised her eyes, she saw her well-known little swallow fly past. As soon as the swallow perceived Ellise, he too, became quite joyful, and hastened at once to his kind nurse; and she told him how unwilling she was to have the ugly mole for her husband, and that she must go down deep into the earth, where neither sun nor moon could ever look upon her, and with these words she burst into tears.

“See now,” said the swallow, “the cold winter is coming again, and I am flying away to the warm countries, will you come and travel with me? I will carry you gladly on my back. You need only to bind yourself fast with your girdle, so we can fly away far from the disagreeable mole, and his dark house, far over mountains and valleys, to the beautiful countries, where the sun shines much warmer than it does here; where there is summer always, and always beautiful flowers blooming. Come, be comforted, and fly away with me, dear, kind Ellise, who saved my life when I lay frozen in the earth.”

“Yes, I will go with you,” cried Ellise joyfully. She mounted on the back of the swallow, set her feet upon his out-spread wings, bound herself with her girdle to a strong feather, and flew off with the swallow through the air, over woods and lakes, valleys and mountains. Very often Ellise suffered from the cold when they went over icy glaciers and snowy rocks; but then she concealed herself under the wings and among the feathers of the bird, and merely put out her head to gaze and wonder at all the glorious things around her.

At last, too, they came into the warm countries. The sun shines there clearer than with us; the heavens were a great deal higher, and on the walls and in the hedges grew the most beautiful blue and green grapes. In the woods hung ripe citrons and oranges, and the air was full of the scent of thyme and myrtle, while beautiful children ran in the roads playing with the gayest colored butterflies. But farther and farther flew the swallow, and below them it became more and more beautiful. By the side of a lake, beneath graceful acacias, there rose an ancient marble palace, the vines clung around the pillars, while above them, on their summits, hung many a swallow’s nest. Into one of these nests the bird carried Ellise.

“Here is my house,” said he, “but look you for one of the loveliest flowers, which grow down there, for your home, and I will carry you there, and you shall have every thing you can possibly want.”

“That would be glorious indeed!” said Ellise, and she clapped her hands together for very joy.

Upon the earth there lay a large white marble pillar, which had been thrown down, and was broken into three pieces, but between its ruins there grew the very fairest flowers, all white, the loveliest you would ever wish to see.

The swallow flew with Ellise to one of these flowers, and set her down upon a broad leaf; but how astonished was Ellise when she saw that a wee little man sat in this flower, who was as fine and transparent as glass. He wore a graceful little crown upon his head, and had beautiful wings on his shoulders; and withal he was not a bit bigger than Ellise herself. He was the angel of this flower. In every flower dwell a pair of such like little men and women, but this was the king of all the flower angels.

“Heavens! how handsome this king is,” whispered Ellise into the ear of the swallow. The little prince was somewhat startled by the arrival of the

large bird; but when he saw Ellise, he became instantly in love with her; for she was the most charming little maiden that he had ever seen. So he took off his golden crown, set it upon Ellise, and asked what was her name, and whether she would be his wife; if so, she should be queen over all the other flowers—ah! this was a very different husband to the son of the hideous toad, and the heavy, stupid mole, with his velvet coat! So Ellise said yes, to the beautiful prince; and now, from all the other flowers, appeared either a gentleman or a lady, all wonderfully elegant and beautiful, to bring presents to Ellise. The best presents offered to her was a pair of exquisite white wings, which were immediately fastened on her; and now she could fly from flower to flower.

And now the joy was universal. The little swallow sat above in his nest, and sang as well as he possibly could, though at the same time he was sorely grieved, for he was so fond of Ellise that he wanted never to part from her again.

“You shall not be called *Ellise* any more,” said the flower-angel, “for it is not at all a pretty name, and you are so pretty! But from this moment you shall be called Maja.”

“Farewell! Farewell!” cried the little swallow, and away he flew again, out of the warm land, far, far away, to the little Denmark, where he had his summer nest over the window of the good man, who knows how to tell stories, that he might sing his Quivit! Quivit! before him. And it is from him, the little swallow, that Granny learnt all this wonderful history.

BELLE'S EYES.

THOSE eyes, they are so bright and blue,
They seem as if just bathed in dew,
And if they but reflect aright,
Thy heart must joyous be and bright,
Where cherished images must dwell,
Oh! number mine with thine, *ma Belle*.

“THE PAGE.”



COME listen, ladies! listen, knights!
Ye men of arms and glory!
Ye who have done right noble deeds,
Aye love the poet's story.
As minstrels love the warriors bold,
And joyfully sing their fame,
O'er warriors' hearts the poet's tale
Shall peaceful triumphs claim.

From distant lands Arion came,
From wandering far and long,
With gifts and gold—for princely hearts
Denied no gift to song.
The song that cheered the saddest wo,
The tale that sings of youth,
Flowing sweetly, flowing on,
Through labyrinths of truth.

Rich tributes had been poured on him,
Arion far renowned,
And fair and gentle loved the rule,
Of one by nature crowned.
But what can gifts and what can gold,
Or Fame's loud peal avail,
Wandering from his childhood's home,
His own Corinthian vale?

LINES
WRITTEN ON ST. VALENTINE'S DAY.

BY GEO. D. PRENTICE.

FAIR lady, on this day of love,
My spirit, like a timid dove,
Exulting flies to thee for rest,
And nestles on thy gentle breast.
Thou seemest of my life a part,
A haunting presence in my heart,
A glory in my day-dreams bright,
An angel in my dreams at night,
Like yon pure bow of airy birth
A vision more of heaven than earth.
Soft, lovely, beautiful, divine—
But wilt thou be my Valentine?

I've looked into thy deep eyes oft,
Where heaven seemed sleeping blue and soft.
I've gazed on all thy beauty long,
I've heard thy witching voice of song,
I've listened when thy deep words came
As if thy lips were touched with flame,
I've marked thee smile, I've marked thee weep.
I've blest thee in the hour of sleep,
I've felt thy heart beat wild to hear
Love's cadence stealing on thine ear,
And I have been supremely blest
When thou wast folded to my breast,
And thy dear lips were pressed to mine—
But wilt thou be my Valentine?

Dove of my spirit! gentle dove,
That bring'st the olive-bough of love
To me when waters vast and dark
Are tossing wild beneath my bark,
Sweet queller of my bosom's strife,
Blest haunter of each thought of life.
Dear brightner of my soul's eclipse,
Sultana of my longing lips,
Queen-fairy of my fairy dreams,
Young Naiad of my soul's deep streams,
Bright rainbow of life's stormy day,
Lone palm-tree of my desert way,
Soft dew-drop of my heart's one flower,
Young song-bird of my spirit's bower,
My star when all beside is dim,
My morning prayer, my evening hymn,
My hope, my bliss, my life, my love,
My all of earth, my heaven above,
On lightning pinions wild and free,
My panting spirit flies to thee,
And worships at thy burning shrine—
But wilt thou be my Valentine?

“What do the Birds say?”



Do you ask what the birds say? The sparrow, the dove,
The linnet, and thrush say, "I love, and I love!"
In the winter they're silent—the wind is so strong;
What it says I don't know, but it sings a loud song.
But green leaves and blossoms and sunny warm weather,
And singing and loving, all come back together.
But the lark is so brimful of gladness and love,
The green-fields below him, the blue sky above,
That he sings, and he sings, and forever sings he,
"I love my love, and my love loves me!"

LEORA.

A BALLAD OF SPAIN.

At her lattice sits Leora,
In the long and mellow June,
What time when whitely westward
Shines the round and pendent moon.

Sits she silent, sits she sadly,
With her head upon her hand,
Looking outward where the Ebro
Throws its ripples on the sand.

Never lighter blew the breezes
In the vales of Aragon,
Never smiled Hesperia's heavens
With more lovely glories on.

Such an evening 'tis as gladdens
Cavaliers of sunny Spain—
Such an evening 'tis when maidens
Recount their loves again.

Now more restless grows Leora,
Fair Leora, gentle maid,
With sweet eyes so dark and fervent,
And each tress of nightly shade.

Heaves her bosom fast and wildly
Like a billow snowed with foam,
For there's something boding tells her
That Almagro will not come.

Clouds are passing swiftly o'er her,
On her heart their shadows rest,
And the tear-drops from their fountains
Fall embittered to her breast.

Listens now she to the gallop
Of a steed adown the vale;
Now with hope her face is radiant,
Now with fear her cheek is pale.

But no lover rideth swiftly,
Swiftly to the trysting bower,
And Leora still is waiting
Through the long and dreary hour.

And the tears cease not to gather,
And the tears cease not to flow,
And she feels like one abandoned
On the haunted paths of wo.

Where a mountain streamlet gurgles,
From that watcher leagues away—
Where the hours amid the valleys
Listen to the waters' play—

Faithless Almagro is breathing
Vows of deeply passionate love,
To a maiden on his bosom
In the sweetness of a dove.

And he tells her how he never
To another gave his heart,
Till her innocence is fallen
In the meshes of his art.

Till another than the midnight
Throws a darkness o'er her soul,
Leaving there a troubled fountain,
Leaving there a broken bowl.

Softly sigh the sleeping branches
On the bosom of the breeze,
Sweetly stars are gazing downward
To earth's blue, unclouded seas:

And in fragrance dream the blossoms
Pure and taintless as before—
But heart-flowers have been gathered
That shall blossom nevermore.

Lowly westward walketh Dian,
On her watches with the night,
And the hours far have stolen
To the gateways of the light.

But, ah! wo is thee, Leora,
Though hopeless, hoping on,
Till Aurora up the Orient,
Rosy-fingered, leads the dawn.

But less wo is thee, Leora,
By thy lattice weary worn—
More's the wo for thee, Estella,
When thou wakest at the morn.

SPECTRAL ILLUSIONS.

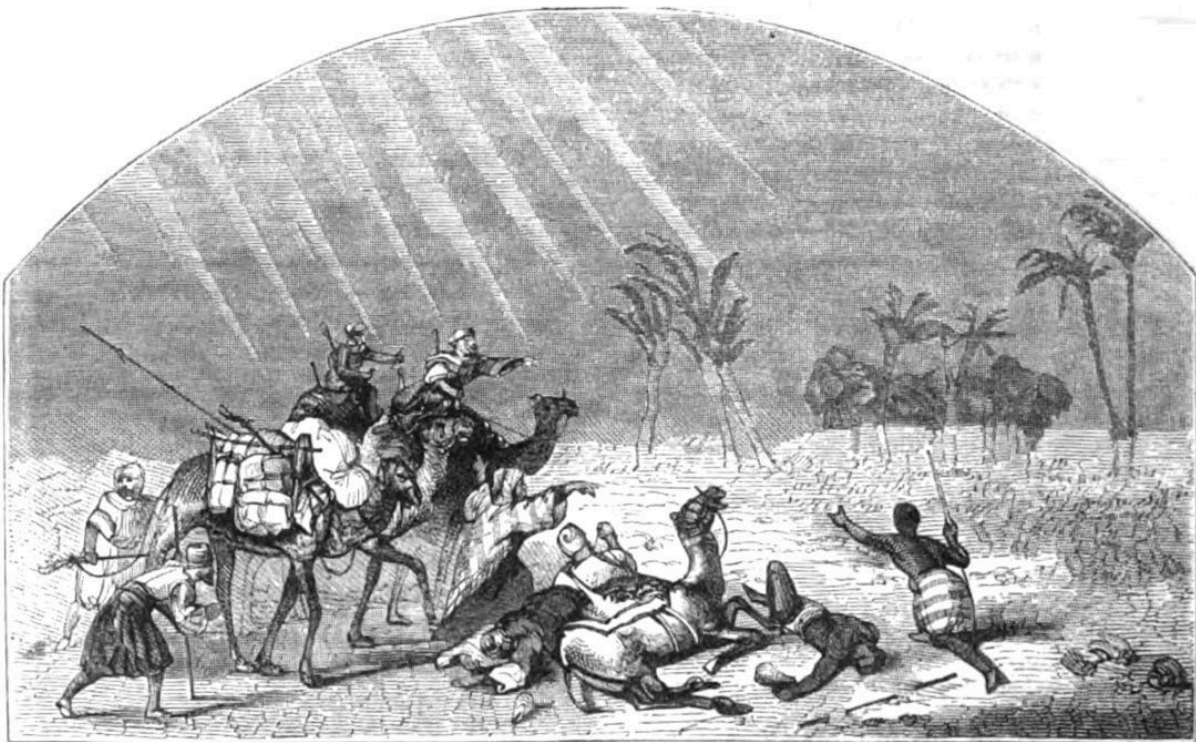
BY THOMAS MILNER, M. A.

A SERIES of curious and interesting phenomena, involving the apparent elevation and approach of distant objects, the production of aerial images of terrestrial forms, of double images, their inversion, and distortion into an endless variety of grotesque shapes, together with the deceptive aspect given to the desert-landscape, are comprehended in the class of optical illusions. Different varieties of this singular visual effect constitute the *mirage* of the French, the *fata morgana* of the Italians, the *looming* of our seamen, and the *glamur* of the Highlanders. It is not peculiar to any particular country, though more common in some than others, and most frequently observed near the margin of lakes and rivers, by the sea-shore, in mountain districts and on level plains. These phantoms are perfectly explicable upon optical principles, and though influenced by local combinations, they are mainly referable to one common cause, the refractive and reflective properties of the atmosphere, and inequalities of refraction arising from the intermixture of strata of air of different temperatures and densities. But such appearances in former times were really converted by the imagination of the vulgar into supernatural realities; and hence many of the goblin stories with which the world has been rife, not yet banished from the discipline to which childhood is subject,—

“As when a shepherd of the Hebrid Isles
Placed far amid the melancholy main,
(Whether it be lone fancy him beguiles,
Or that aerial beings sometimes deign
To stand, embodied, to our senses plain)
Sees on the naked hill, or valley low,
The whilst in ocean Phœbus dips his wain,
A vast assembly moving to and fro,
Then all at once in air dissolves the wondrous show.”

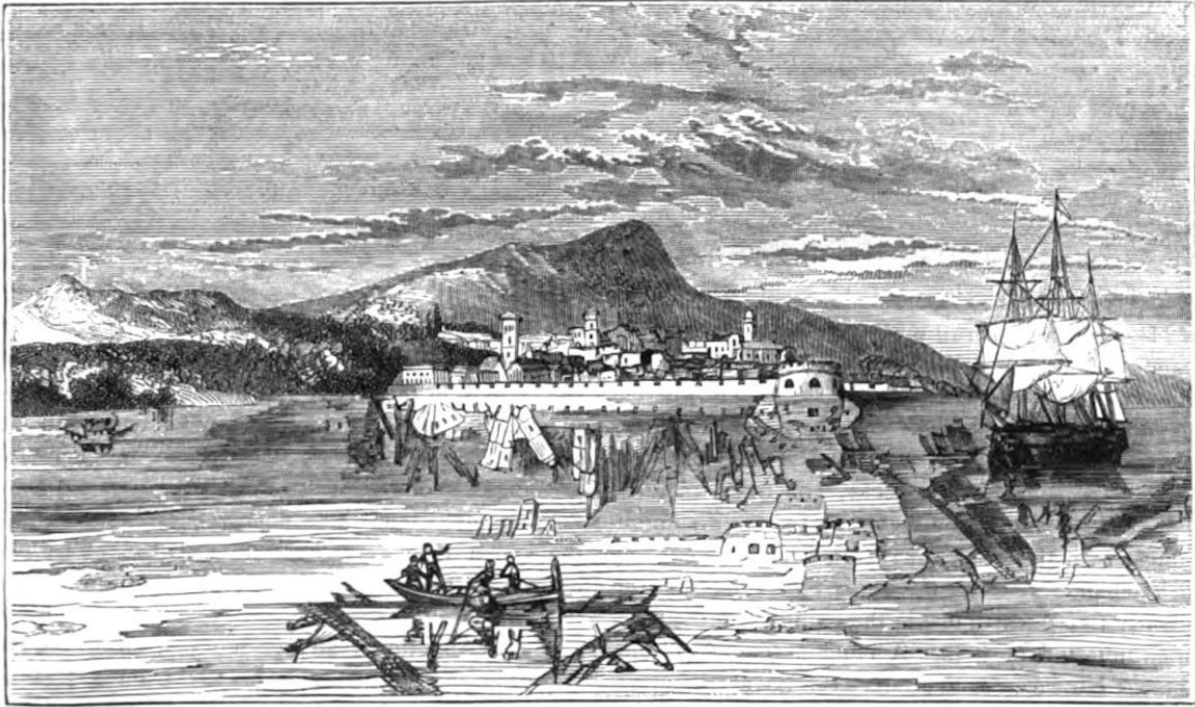
Pliny mentions the Scythian regions within Mount Imaus, and Pomponius Mela those of Mauritania, behind Mount Atlas, as peculiarly subject to these spectral appearances. Diodorus Siculus likewise refers to the regions of Africa, situated in the neighborhood of Cyrene, as another chosen site:—"Even," says he, "in the severest weather, there are sometimes seen in the air certain condensed exhalations that represent the figures of all kinds of animals; occasionally they seem to be motionless, and in perfect quietude; and occasionally to be flying; while immediately afterward they themselves appear to be the pursuers, and to make other objects fly before them." Milton might have had this passage in his eye when he penned the allusion to the same apparitions:—

"As when, to warn proud cities, war appears
Waged in the troubled sky, and armies rush
To battle in the clouds; before each van
Prick forth the airy knights, and couch their spears,
Till thickest legions close, with feats of arms
From either side of heaven the welkin rings."



The Mirage of the Desert.

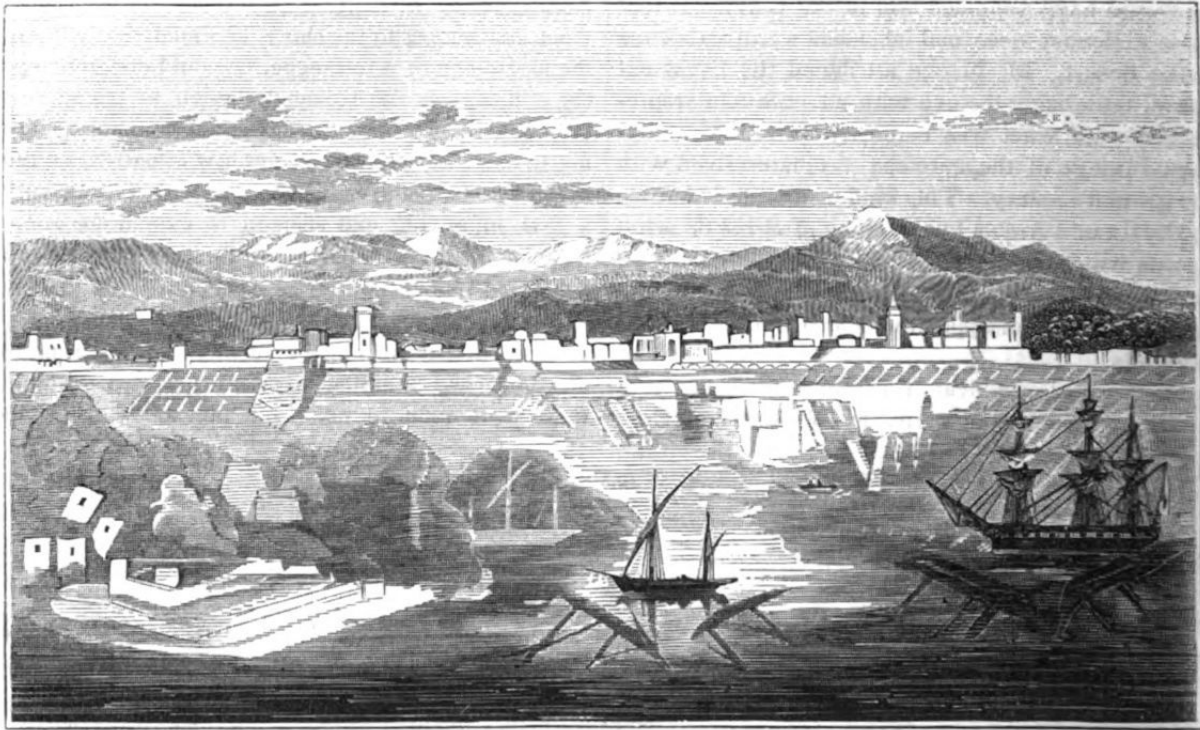
The mirage is the most familiar form of optical illusion. M. Monge, one of the French savans, who accompanied Buonaparte in his expedition to Egypt, witnessed a remarkable example. In the desert between Alexandria and Cairo, in all directions green islands appeared, surrounded by extensive lakes of pure, transparent water. Nothing could be conceived more lovely or picturesque than the landscape. In the tranquil surface of the lakes, the trees and houses with which the islands were covered were strongly reflected with vivid and varied hues, and the party hastened forward to enjoy the refreshments apparently proffered them. But when they arrived, the lake on whose bosom they floated, the trees among whose foliage they arose, and the people who stood on the shore inviting their approach, had all vanished; and nothing remained but the uniform and irksome desert of sand and sky, with a few naked huts and ragged Arabs. But for being undeceived by an actual progress to the spot, one and all would have remained firm in the conviction that these visionary trees and lakes had a real existence in the desert. M. Monge attributed the liquid expanse, tantalizing the eye with an unfaithful representation of what was earnestly desired, to an inverted image of the cerulean sky, intermixed with the ground scenery. This kind of mirage is known in Persia and Arabia by the name of *Serab* or miraculous water, and in the western deserts of India by that of *Tehittram*, a picture. It occurs as a common emblem of disappointment in the poetry of the orientals.



Atmospheric Illusion.

In the Philosophical Transactions for the year 1798, an account is given by W. Latham, Esq., F.R.S., of an instance of lateral refraction observed by him, by which the coast of Picardy, with its more prominent objects, was brought apparently close to that of Hastings. On July the 26th, about five in the afternoon, while sitting in his dining-room, near the sea-shore, attention was excited by a crowd of people running down to the beach. Upon inquiring the reason, it appeared that the coast of France was plainly to be distinguished with the naked eye. Upon proceeding to the shore, he found, that without the assistance of a telescope, he could distinctly see the cliffs across the Channel, which, at the nearest points, are from forty to fifty miles distant, and are not to be discovered, from that low situation, by the aid of the best glasses. They appeared to be only a few miles off, and seemed to extend for some leagues along the coast. At first the sailors and fishermen could not be persuaded of the reality of the appearance, but they soon became thoroughly convinced, by the cliffs gradually appearing more elevated, and seeming to approach nearer, that they were able to point out the different places they had been accustomed to visit, such as the Bay, the Old Head, and the Windmill at Boulogne, St. Vallery, and several other spots. Their remark was that these places appeared as near as if they were

sailing at a small distance into the harbor. The apparition of the opposite cliffs varied in distinctness and apparent contiguity for nearly an hour, but it was never out of sight, and upon leaving the beach for a hill of some considerable height, Mr. Latham could at once see Dungeness and Dover cliffs on each side, and before him the French coast from Calais to near Dieppe. By the telescope the French fishing-boats were clearly seen at anchor, and the different colors of the land on the heights, with the buildings, were perfectly discernible. The spectacle continued in the highest splendor until past eight o'clock, though a black cloud obscured the face of the sun for some time, when it gradually faded away. This was the first time within the memory of the oldest inhabitants, that they had ever caught sight of the opposite shore. The day had been extremely hot, and not a breath of wind had stirred since the morning, when the small pennons at the mast-heads of the fishing-boats in the harbor had been at all points of the compass. Professor Vince witnessed a similar apparent approximation of the coast of France to that of Ramsgate, for at the very edge of the water he discerned the Calais cliffs a very considerable height above the horizon, whereas they are frequently not to be seen in clear weather from the high lands above the town. A much greater breadth of coast also appeared than is usually observed under the most favorable circumstances. The ordinary refractive power of the atmosphere is thus liable to be strikingly altered by a change of temperature and humidity, so that a hill which at one time appears low, may at another be seen towering aloft; and a city in a neighboring valley, may from a certain station be entirely invisible, or it may show the tops of its buildings, just as if its foundations had been raised, according to the condition of the aerial medium between it and the spectator.



Fata Morgana at Reggio.

Of all instances of spectral illusion, the *fata morgana*, familiar to the inhabitants of Sicily, is the most curious and striking. It occurs off the Pharo of Messina, in the strait which separates Sicily from Calabria, and had been variously described by different observers, owing, doubtless, to the different conditions of the atmosphere at the respective times of observation. The spectacle consists in the images of men, cattle, houses, rocks, and trees, pictured upon the surface of the water, and in the air immediately over the water, as if called into existence by an enchanter's wand, the same object having frequently two images, one in the natural and the other in an inverted position. A combination of circumstances must concur to produce this novel panorama. The spectator, standing with his back to the east on an elevated place, commands a view of the strait. No wind must be abroad to ruffle the surface of the sea; and the waters must be pressed up by currents, which is occasionally the case, to a considerable height, in the middle of the strait, so that they may present a slight convex surface. When these conditions are fulfilled, and the sun has risen over the Calabrian heights so as to make an angle of 45° with the horizon, the various objects on the shore at Reggio, opposite to Messina, are transferred to the middle of the strait, forming an immovable landscape of rocks, trees, and houses, and a

movable one of men, horses, and cattle, upon the surface of the water. If the atmosphere, at the same time, is highly charged with vapor, the phenomena apparent on the water will also be visible in the air, occupying a space which extends from the surface to the height of about twenty-five feet. Two kinds of morgana may therefore be discriminated; the first, at the surface of the sea, or the marine morgana; the second, in the air, or the aerial. The term applied to this strange exhibition of uncertain derivation, but supposed by some to refer to the vulgar presumption of the spectacle being produced by a fairy or magician. The populace are said to hail the vision with great exultation, calling every one abroad to partake of the sight, with the cry of “Morgana, morgana!”

Father Angelucci, an eye-witness, describes the scene in the following terms:—“On the 15th of August, 1643, as I stood at my window, I was surprised with a most wonderful, delectable vision. The sea that washes the Sicilian shore swelled up, and became, for ten miles in length, like a chain of dark mountains; while the waters near our Calabrian coast grew quite smooth, and in an instant appeared as one clear polished mirror, reclining against the aforesaid ridge. On this glass was depicted, in *chiaro scuro*, a string of several thousands of pilasters, all equal in altitude, distance, and degree of light and shade. In a moment they lost half their height, and bent into arcades, like Roman aqueducts. A long cornice was next formed on the top, and above it rose castles innumerable, all perfectly alike. These soon split into towers, which were shortly after lost in colonnades, then windows, and at last ended in pines, cypresses, and other trees, even and similar. This was the Fata Morgana, which, for twenty-six years, I had thought a mere fable.”

Brydone, writing from Messina, evidently in a dubious vein, states:—“Do you know, the most extraordinary phenomenon in the world is often observed near to this place? I laughed at it at first, as you will do, but I am now convinced of its reality, and am persuaded, too, that if ever it had been thoroughly examined by a philosophical eye, the natural cause must long ago have been assigned. It has often been remarked, both by the ancients and moderns, that in the heat of summer, after the sea and air have been much agitated by winds, and a perfect calm succeeds, there appears, about the time of dawn, in that part of the heavens over the straits, a great variety of singular forms, some at rest, and some moving about with great velocity. These forms, in proportion as the light increases, seem to become more

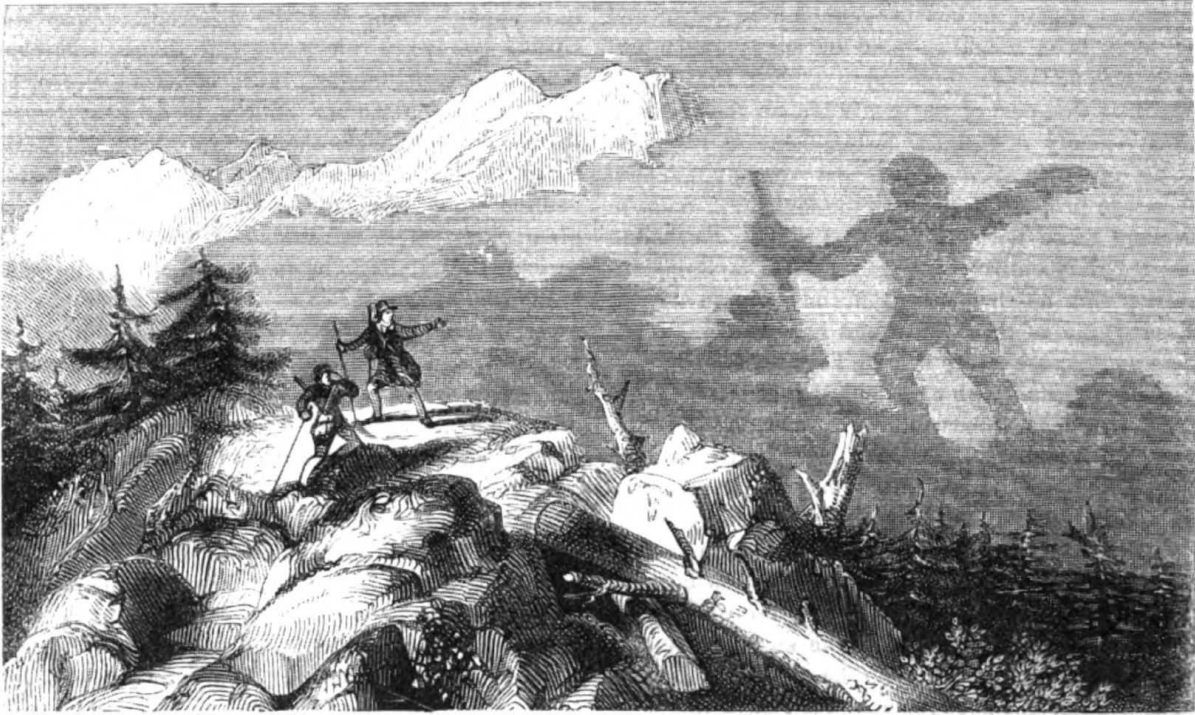
aerial, till at last some time before sunrise they entirely disappear. The Sicilians represent this as the most beautiful sight in nature. Leanti, one of their latest and best writers, came here on purpose to see it. He says the heavens appeared crowded with a variety of objects: he mentions palaces, woods, gardens, etc., besides the figures of men and other animals, that appear in motion amongst them. No doubt the imagination must be greatly aiding in forming this aerial creation; but as so many of their authors, both ancient and modern, agree in the fact, and give an account of it from their own observation, there certainly must be some foundation for the story. There is one Giardini, a Jesuit, who has lately written a treatise upon this phenomenon, but I have not been able to find it. The celebrated Messinese Gallo has likewise published something on this singular subject. The common people, according to custom, give the whole merit to the devil; and, indeed, it is by much the shortest and easiest way of accounting for it. Those who pretend to be philosophers, and refuse him this honor, are greatly puzzled what to make of it. They think it may be owing to some uncommon refraction or reflection of the rays, from the water of the straits, which, as it is at that time carried about in a variety of eddies and vortices, must consequently, say they, make a variety of appearances on any medium where it is reflected. This, I think, is nonsense, or at least very near it. I suspect it is something of the nature of our aurora borealis, and, like many of the great phenomena of nature, depends upon electrical cause; which, in future ages, I have little doubt, will be found to be as powerful an agent in regulating the universe as gravity is in this age, or as the subtle fluid was in the last. The electrical fluid in this country of volcanoes, is probably produced in a much greater quantity than in any other. The air, strongly impregnated with this matter, and confined betwixt two ridges of mountains—at the same time exceedingly agitated from below by the violence of the current, and the impetuous whirling of the waters—may it not be supposed to produce a variety of appearances? And may not the lively Sicilian imaginations, animated by a belief in demons, and all the wild offspring of superstition, give these appearances as great a variety of forms? Remember, I do not say it is so; and hope yet to have it in my power to give you a better account of this matter.”

Ingenious as Brydone was, he here indulges a most unfortunate speculation, which, had he enjoyed the good fortune of personally observing the phenomenon, most likely, he would not have proposed. It is

to be accounted for upon optical principles, which M. Biot, in his *Astronomie Physique*, thus applies, from Minasi's dissertation upon the subject:—"When the rising sun shines from that point whence its incident ray forms an angle of forty-five degrees, on the sea of Reggio, and the bright surface of the water in the bay is not disturbed either by wind or current—when the tide is at its height, and the waters are pressed up by the currents to a great elevation in the middle of the channel; the spectator being placed on an eminence, with his back to the sun, and his face to the sea, the mountains of Messina rising like a wall behind it, and forming the back-ground of the picture—on a sudden there appear in the water, as in a catoptric theatre, various multiplied objects—numberless series of pilasters, arches, castles, well-delineated regular columns, lofty towers, superb palaces, with balconies and windows, extended alleys of trees, delightful plains, with herds and flocks, armies of men on foot, on horseback, and many other things, in their natural colors and proper actions, passing rapidly in succession along the surface of the sea, during the whole of the short period of time while the above-mentioned causes remain. The objects are proved, by accurate observations of the coast of Reggio, to be derived from objects on shore. If, in addition to the circumstances already described, the atmosphere be highly impregnated with vapor and dense exhalations, not previously dispersed by the action of the wind and waves, or rarified by the sun, it then happens that, in this vapor, as in a curtain extended along the channel to the height of above forty palms, and nearly down to the sea, the observer will behold the scene of the same objects not only reflected on the surface of the sea, but likewise in the air, though not so distinctly or well-defined. Lastly, if the air be slightly hazy and opaque, and at the same time dewy, and adapted to form the iris, then the above-mentioned objects will appear only at the surface of the sea, as in the first case, but all vividly colored or fringed with red, green, blue, or other prismatic colors."

Aerial images of terrestrial objects are frequently produced as the simple effect of reflection. Dr. Buchan mentions the following occurrence:—"Walking on the cliff about a mile to the east of Brighton, on the morning of the 18th of November, 1804, while watching the rising of the sun, I turned my eyes directly to the sea, just as the solar disc emerged from the surface of the water, and saw the face of the cliff on which I was standing represented precisely opposite to me, at some distance from the ocean. Calling the attention of my companion to this appearance, we soon also

discovered our own figures standing on the summit of the opposite apparent cliff, as well as the representation of a windmill near at hand. The reflected images were most distinct precisely opposite to where we stood; and the false cliff seemed to fade away, and to draw near to the real one, in proportion as it receded toward the west. This phenomenon lasted about ten minutes, till the sun had risen nearly his own diameter above the sea. The whole then seemed to be elevated into the air, and successively disappeared. The surface of the sea was covered with a dense fog of many yards in height, and which gradually receded before the rays of the sun.” In December, 1826, a similar circumstance excited some consternation among the parishioners of Miqué, in the neighborhood of Poitiers, in France. They were engaged in the exercises of the jubilee which preceded the festival of Christmas, and about three thousand persons from the surrounding parishes were assembled. At five o’clock in the evening, when one of the clergy was addressing the multitude, and reminding them of the cross which appeared in the sky to Constantine and his army, suddenly a similar cross appeared in the heavens, just before the porch of the church, about two hundred feet above the horizon, and a hundred and forty feet in length, of a bright silver color tinged with red, and perfectly well-defined. Such was the effect of this vision, that the people immediately threw themselves upon their knees, and united together in one of their canticles. The fact was, that a large wooden cross, twenty-five feet high, had been erected beside the church as a part of the ceremony, the figure of which was formed in the air, and reflected back to the eyes of the spectators, retaining exactly the same shape and proportions, but changed in position and dilated in size. Its red tinge was also the color of the object of which it was the reflected image. When the rays of the sun were withdrawn the figure vanished.

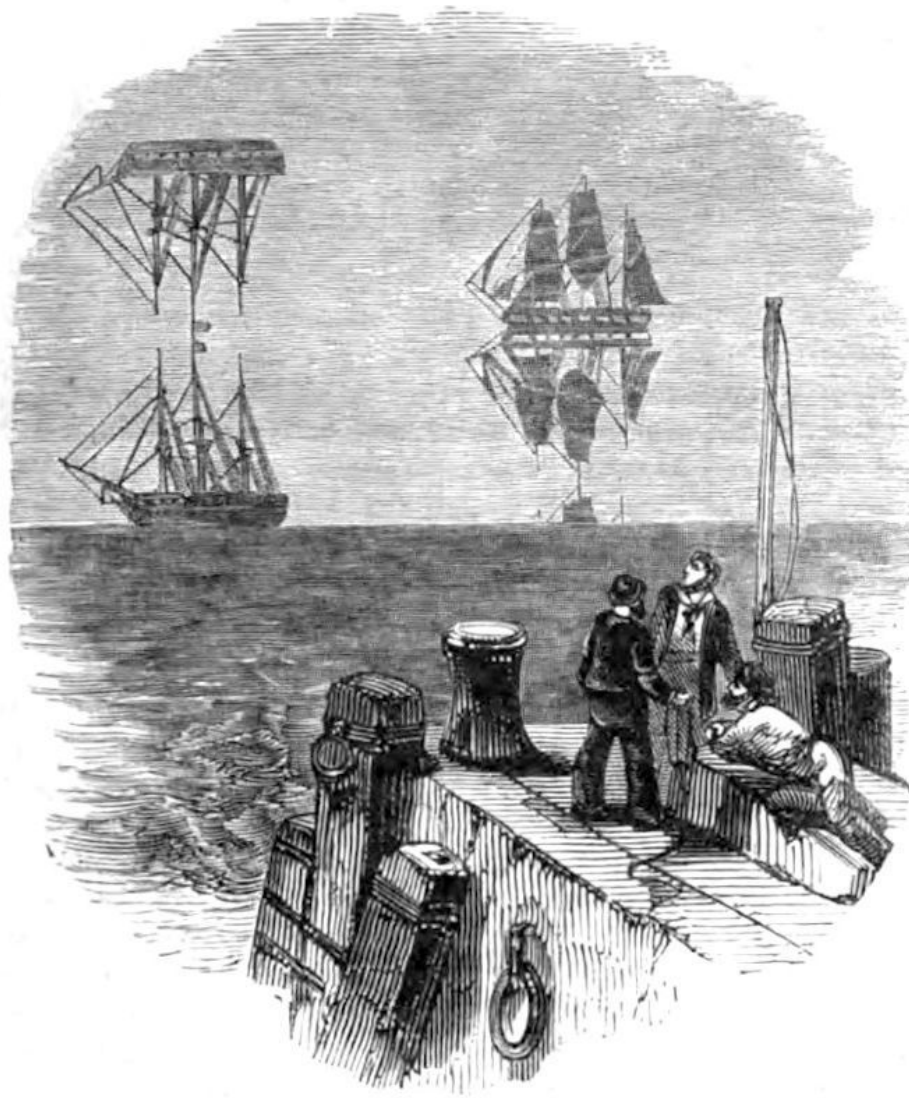


Spectre of the Brocken.

The peasantry in the neighborhood of the Harz Mountains formerly stood in no little awe of the gigantic spectre of the Brocken—the figure of a man observed to walk the clouds over the ridge at sunrise. This apparition has long been resolved into an exaggerated reflection, which makes the traveler's shadow, pictured upon the clouds, appear a colossal figure of immense dimensions. A French savan, attended by a friend, went to watch this spectral shape, but for many mornings they traversed an opposite ridge in vain. At length, however, it was discovered, having also a companion, and both figures were found imitating all the motions of the philosopher and his friend. The ancient classical fable of Niobe on Mount Sipylus belongs to the same category of atmospheric deceptions; and the tales, common in mountainous countries, of troops of horse and armies marching and counter-marching in the air, have been only the reflection of horses pasturing upon an opposite height, or of the forms of travelers pursuing their journey. On the 19th of August, 1820, Mr. Menzies, a surgeon of Glasgow, and Mr. Macgregor began to ascend the mountain of Ben Lomond, about five o'clock in the afternoon. They had not proceeded far before they were overtaken by a smart shower; but as it appeared only to be partial, they continued their journey, and by the time they were half way up,

the cloud passed away, and most delightful weather succeeded. Thin, transparent vapors, which appeared to have risen from Loch Lomond beneath, were occasionally seen floating before a gentle and refreshing breeze; in other respects, as far as the eye could trace, the sky was clear, and the atmosphere serene. They reached the summit about half-past seven o'clock, in time to see the sun sinking beneath the western hills. Its parting beams had gilded the mountain-tops with a warm glowing color; and the surface of the lake, gently rippling with the breeze, was tinged with a yellow lustre. While admiring the adjacent mountains, hills, and valleys, and the expanse of water beneath, interspersed with numerous wooded islands, the attention of one of the party was attracted by a cloud in the east, partly of a dark red color, apparently at the distance of two miles and a half, in which he distinctly observed two gigantic figures, standing, as it were, on a majestic pedestal. He immediately pointed out the phenomenon to his companion; and they distinctly perceived one of the gigantic figures, in imitation, strike the other on the shoulder, and point toward them. They then made their obeisance to the airy phantoms, which was instantly returned. They waved their hats and umbrellas, and the shadowy figures did the same. Like other travelers, they had carried with them a bottle of usquebaugh, and amused themselves in drinking to the figures, which was of course duly returned. In short, every movement which they made, they could observe distinctly repeated by the figures in the cloud. The appearance continued about a quarter of an hour. A gentle breeze from the north carried the cloud slowly away; the figures became less and less distinct, and at last vanished. North of the village of Comrie, in Perthshire, there is a bold hill called Dunmore, with a pillar of seventy or eighty feet in height built on its summit in memory of the late Lord Melville. At about eight o'clock of the evening of the 21st of August, of the year 1845, a perfect image of this well-known hill and obelisk, as exact as the shadow usually represents the substance, was distinctly observed projecting on the northern sky, at least two miles beyond the original, which, owing to an intervening eminence, was not itself at all in view from the station where the aerial picture was observed. The figure continued visible for about ten minutes after it was first seen, and was minutely examined by three individuals. One of these fancied that there was a projection at the base of the monument, as represented in the air, which was not in the original; but, upon examining the latter the next morning, the image was found to have

been more faithful than his memory; for there stood the prototype of the projection, in the shape of a clump of trees, at the base of the real obelisk.

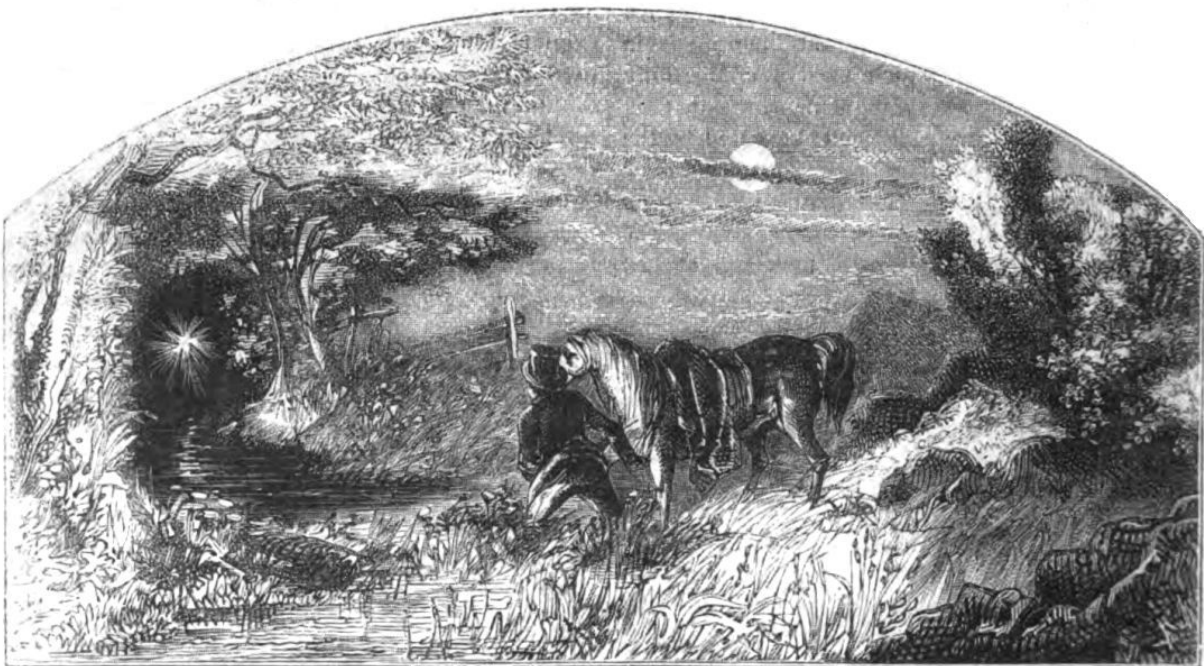


In northern latitudes the effects of atmospheric reflection and refraction are very familiar to the natives. By the term of *uphillanger* the Icelanders denote the elevation of distant objects, which is regarded as a presage of fine weather. Not only is there an increase in the vertical dimensions of the objects affected, so that low coasts frequently assume a bold and precipitous outline, the objects sunk below the horizon are brought into view, with their natural position changed and distorted. In 1818, Captain Scoresby relates that, when in the polar sea, his ship had been separated for some time from

that of his father, which he had been looking out for with great anxiety. At length, one evening, to his astonishment, he beheld the vessel suspended in the air in an inverted position, with the most distinct and perfect representation. Sailing in the direction of this visionary appearance, he met with the real ship by this indication. It was found that the vessel had been thirty miles distant, and seventeen beyond the horizon, when her spectrum was thus elevated into the air by this extraordinary refraction. Sometimes two images of a vessel are seen, the one erect and the other inverted, with their topmasts or their hulls meeting, according as the inverted image is above or below the other. Dr. Wollaston has shown that the production of these images is owing to the refraction of the rays through media of different densities. Looking along a red-hot poker at a distant object, two images of it were seen, one erect and the other inverted, arising from the change produced by the heat in the density of the air. A singular instance of lateral mirage was noticed upon the Lake of Geneva by MM. Jurine and Soret, in the year 1818. A bark near Bellerire was seen approaching to the city by the left bank of the lake; and at the same time an image of the sails was observed above the water, which, instead of following the direction of the bark, separated from it, and appeared approaching by the *right* bank—the image moving from east to west, and the bark from north to south. When the image separated from the vessel, it was of the same dimensions as the bark; but it diminished as it receded from it, so as to be reduced to one-half when the appearance ceased. This was a striking example of refraction, operating in a lateral as well as a vertical direction.

Ignis Fatuus. This wandering meteor known to the vulgar as the Will-o'-the-Wisp, has given rise to considerable speculation and controversy. Burying-grounds, fields of battle, low meadows, valleys, and marshes, are its ordinary haunts. By some eminent naturalists, particularly Willoughby and Ray, it has been maintained to be only the shining of a great number of the male glow-worms in England, and the pyraustæ in Italy, flying together—an opinion to which Mr. Kirby, the entomologist, inclines. The luminosities observed in several cases may have been due to this cause, but the true meteor of the marshes cannot thus be explained. The following instance is abridged from the Entomological Magazine:—"Two travelers proceeding across the moors between Hexham and Alston, were startled, about ten o'clock at night, by the sudden appearance of a light close to the road-side, about the size of the hand, and of a well-defined oval form. The

place was very wet, and the peat-moss had been dug out, leaving what are locally termed 'peat-pots,' which soon fill with water, nourishing a number of confervæ, and the various species of sphagnum, which are converted into peat. During the process of decomposition these places give out large quantities of gas. The light was about three feet from the ground, hovering over the peat-pots, and it moved nearly parallel with the road for about fifty yards, when it vanished, probably from the failure of the gas. The manner in which it disappeared was similar to that of a candle being blown out." We have the best account of it from Mr. Blesson, who examined it abroad with great care and diligence.



Ignis Fatuus.

"The first time," he states, "I saw the ignis fatuus was in a valley in the forest of Gorbitz, in the New Mark. This valley cuts deeply in compact loam, and is marshy on its lower part. The water of the marsh is ferruginous, and covered with an iridescent crust. During the day bubbles of air were seen rising from it, and in the night blue flames were observed shooting from and playing over its surface. As I suspected that there was some connection between these flames and the bubbles of air, I marked during the day-time the place where the latter rose up most abundantly, and repaired thither during the night; to my great joy I actually observed bluish-

purple flames, and did not hesitate to approach them. On reaching the spot they retired, and I pursued them in vain; all attempts to examine them closely were ineffectual. Some days of very rainy weather prevented further investigation, but afforded leisure for reflecting on their nature. I conjectured that the motion of the air, on my approaching the spot, forced forward the burning gas, and remarked that the flame burned darker when it was blown aside; hence I concluded that a continuous thin stream of inflammable air was formed by these bubbles, which, once inflamed, continued to burn, but which, owing to the paleness of the light of the flame, could not be observed during the day.”

The ignis fatuus of the church-yard and the battle-field arise from the phosphuretted hydrogen emitted by animal matter in a state of putrefaction, which always inflames upon contact with the oxygen of the atmosphere; and the flickering meteor of the marsh may be referred to the carburetted hydrogen, formed by the decomposition of vegetable matter in stagnant water, ignited by a discharge of the electric fluid.

CAMPAIGNING STORIES.

NO. II.—THE CAPTIVE RIVALS.^[1]

BY THE AUTHOR OF “TALBOT AND VERNON.”

(Concluded from page 212, Vol. XXXIX.)

PART III.

I have not seen
So likely an ambassador of love.
Merchant of Venice.

It gives me wonder, great is my content,
To see you here before me.
Othello.

THE sun had not yet climbed the hills on the east of the valley, when Harding set forth on his uncertain mission; and not one of the indolent people of the country was any where to be seen. The houses were all closed—no smoke issued from their rude chimneys—no sound or motion broke the stillness. Apart from its solitude, however, it was a beautiful scene. The haziness of the evening before was now gone—the valley was refreshed by the dew of the night; and the reviving influence of the cool morning seemed to have had its effect upon the inanimate as well as the animate. The slope of the hills on the north, where the first rays of the sun rested for hours before they touched the southern plateau, was dotted here and there by straggling goats, browsing listlessly upon the scanty vegetation; while lower down the valley and along the banks of the little river, numbers of cattle were either standing patiently around the inclosures or wandering slowly away toward the hills. The river, silvered by the morning light, wound thread-like down the valley toward the west, and was visible even to the turn of the mountain miles away, where it enters the labyrinth of ridges in the neighborhood of Parras. There were no waving fields of grain; but the hedges were all green and fresh; verdure was springing even at that season, where the ground had been cleared of its products; and the evergreen trees, and groves of oranges which dotted the land imparted an aspect of fertile beauty. The shadows of the rugged hills were traceable along the ground, so clearly that the line of separation could be followed through the fields—one-half in sunlight, half in shade—the former gradually encroaching on the latter. There were no birds to cheer the solitude with matin songs; but so peaceful was the scene that even their presence might have seemed unwelcome.

Harding gazed about him as he crossed the bridge as if in search of the road. There were two paths; one leading along the front of several *ranchos*, and apparently taking him directly to the point he wished to reach. The other led away to the left, sweeping round the fields and avoiding the houses, with the danger of meeting their inmates. It was the latter that the count directed him to take; but for some reason best known to himself he followed the first, without heeding De Marsiac's hail, and soon found himself riding slowly between two straggling rows of neat cottages. There was no one astir, however, and he had ridden nearly the whole length of the avenue without seeing any signs of life—when, judging himself to be out of view of *Embocadura*, he turned his horse in among the elms, and sprang to the ground.

Throwing his bridle-rein over a limb, he first carefully examined his pistols, and then loosening his sword in the scabbard, stepped out from the cover and approached the nearest cottage. It was not until he had knocked several times that any answer was returned. Then, however, the door was suddenly swung open, and he was confronted by one of those specimens of Mexican youth, whose faces combine in so remarkable a degree, great beauty with an expression of wicked cunning. He was a boy—perhaps eighteen years of age, with a slender figure, but evidently very active, and unless an exception to his race, capable of enduring great fatigue and privation. His eyes were dark as night, small, and keen; his nose thin and straight, his lips rather pinched, but red and clearly cut. The rest of his features were appropriate to these, and his complexion was rather lighter than the general hue of his people. He held a *lareat* coiled in his hand, and his goat-skin shoes were armed at the heel with enormous spurs.

“*Buenas dias, Señor,*” said he, in a clear, sharp voice, stepping back at the same time, in mute invitation to Harding to enter.

The latter returned the salutation and asked—

“On whose lands are these *ranchos*?”

“On those of La Señora Eltorena,” answered the boy, promptly.

“How far is it to Anelo?” he inquired.

“Twelve leagues, sir.”

Harding reflected for a moment, and then beckoned the boy aside. The latter gazed at him inquiringly; but drawing the door to, followed him to the

place where his horse was standing.

“You see that horse?” said he.

“I do,” answered the boy “and a very fine one he is, too.”

“Could you ride him to Anelo and back,^[2] to-day?”

“How much money could I get to do it?” asked the youth, eyeing the officer as if to measure his liberality.

“Twenty dollars,” Harding answered; “or, if you do not find me on your return, you may keep the horse.”

“Agreed,” said the boy, promptly. “I’ll set out now.”

Harding took a blank leaf from his pocket-book and wrote a note to the commandant of a detachment of Texan rangers, whom he knew to be then foraging at Anelo, and handed it to the boy.

“You must be back before midnight,” said he; “and you may ask for me at the *hacienda*. My name is Harding.”

“And mine is Eltorena,” said the youth. “I am six months older than Margarita, and entitled to the name by the same right.”

His eyes glistened as he spoke with an expression so devilish, that Harding was half inclined to take back the note and discharge him. But while reflecting upon the words of the boy, the latter, as if divining his half formed intention, suddenly put spurs to his horse’s flanks and bounded away. Harding watched him until he had crossed the river, and avoiding *La Embocadura* by a wide circuit, was fast disappearing among the groves to the east.

Concluding that if he had made a mistake it was now too late to amend it, he turned on his heel, and was about to pursue his way toward *Piedritas* on foot, when his attention was arrested by a voice pronouncing his name.

“Señor Harding, let me speak with you for a moment.”

He turned, and beheld a female in the very bloom of mature womanhood—tall, elegantly formed, and possessing a countenance of singular force and beauty. She was standing near the door at which he had knocked, and he had no difficulty in determining from the resemblance that she was the mother of his messenger. He advanced with the ordinary salutation, and followed her within the house.

"I am perfectly well acquainted," she commenced abruptly, without offering him a seat, "with the object of your visit to the *hacienda*. You are here to wed the daughter of the woman who calls herself the Señora Eltorena—"

"Calls herself!" repeated Harding.

"And you are doubtless like other men," she continued, without noticing the exclamation, "more attracted by the property than the bride. Now, I wish to warn you that this estate, with all that the late Colonel Eltorena owned, belongs to his son—and mine—the youth whom you have just sent away; and that I hold General Santa Anna's pledge to see him righted as soon as the army marches this way. So, if you marry her, it is with your eyes open."

"You are mistaken, madam," said Harding, after a pause given to surprise; "I am here on no such errand: I am, on the contrary," he added, with a smile, "only a humble ambassador, suing for the lady's hand in the name of another, more potent individual."

"In the name of the murdering thief, De Marsiac?" she exclaimed.

"Even so," Harding replied, "the very same, without mistake."

"You are a strange ambassador," she said, with a laugh. "But," she continued, resuming her somewhat wild manner, "I warn him through you, as I have done to his face, that the man who marries that woman's daughter, must take her portionless!"

"In that case," said Harding, with another smile, "I doubt whether the count will care to take her at all. But enlighten me about your son's title—it may be important to my principal."

Her story was not an uncommon one, though it took a long time in telling; for she dwelt with painful emphasis upon some parts, and talked so incoherently upon others, that Harding was confirmed in his suspicion that her mind was, upon that subject at least, quite unsettled. She had been induced by the late Colonel Eltorena to go to his house, as his wife, under a promise that the actual ceremony should be performed by the first priest who came from Monclova or Saltillo. It was a remote district in which they lived, and they might have to wait for months before the expected visit would be made; and knowing this, and at the earnest solicitation of her lover, she consented to an arrangement, which was not so uncommon as it should have been. Wherever the common law prevails as it does in the

United States, this would have been a legal marriage; and she solemnly protested that she so considered it upon the representation of the colonel himself. Two or three priests had passed that way within a few months; but upon various pretexts the ceremony was postponed.

At last, after about six months, the Colonel went to the city of Mexico on a visit, and returned with a wife! “The woman,” said the narrator, “who now calls herself La Señora Eltorena!” *She*, the deceived and betrayed, was generously offered an asylum in the *rancho*, where she had lived ever since; and six months after her ejection from the *hacienda* by “the proud English woman,” her son was born. For eighteen years she had been suing for her rights; but superior influence with the corrupt judges of that unhappy land had foiled all her efforts; and in the meantime, she had lived in plain view of the *hacienda*, determined never to lose sight of her object, until she saw her son in possession. She had never been inside of its walls: “but,” said she, “I *will* be there—and soon! May God give me revenge upon the sorceress, who stole away my rights!”

“It is a very hard case,” said Harding, when she had finished, “but I fear like many other wrongs, it has no remedy.”

“There is one remedy,” said she, significantly, “when all others fail.” And drawing aside the end of her *mantilla*, she disclosed the hilt of a long, keen dagger. She drew it forth, ran her finger along its edge, smiled faintly, and replaced it in its sheath.

“Well, well,” said Harding, turning away, “I am warned at all events, and will take care that the count is enlightened, also. I must speed upon my mission. Good morning.”

She made no reply, and he passed out, taking his way toward the *hacienda*, which lay in view, about a mile distant. Turning to the right, he soon reached the bank of the river, and followed its rapid but even current, which ran sparkling beneath the court-yard wall. It was yet quite early; and as he reached the front of the mansion, his fear, that as yet no one would be astir, was confirmed. Returning again to the margin of the stream, he commenced pacing up and down the sward under a row of elms, with the intention of awaiting the rising of the family. He had made but two or three turns, however, and had halted, gazing about upon the still morning scene, when he thought he observed something like drapery pass across the arches in the wall, through which the river entered the inclosure. He advanced

somewhat closer, and could distinctly see a pair of small feet tripping across the river on a footway made by placing large stones a step apart from bank to bank. He could not doubt that it was Margarita; but without going again to the front of the house, he knew of no means of ingress.

Casting his glance up and down the stream, to his delight, he discovered a small boat moored to the bank, and slowly swinging in the current. A moment sufficed to untie the rope which bound it, and in another, he was seated on its light planks, rapidly floating toward the arched passage. The waters, raised by the rains of the preceding day, left but scanty room beneath the masonry; but lying down in the bottom of the boat, and guiding her with his hands, he soon had the satisfaction to emerge within the inclosure. On rising again, he found himself between an extensive garden on one side and the offices of the mansion on the other. The former seemed to be a neglected wilderness of trees, and flowering plants and vines, but on reaching the footway over which the feet had passed, he discovered an opening to the labyrinth, in a broad, graveled walk, which wound away between rows of shrubbery, sparkling in the morning sunlight, and lost itself in the distance.

Turning the boat broadside against the stones, to prevent its floating away, he sprang to the bank and walked rapidly down the avenue. He discovered neither form nor sign of life for several minutes; but as he turned from the main walk into a smaller, which led away to the left, he saw directly before him, walking slowly toward the place where he stood, a young girl whose exquisite beauty well justified his eagerness. She was slightly above the medium height, slender, but well-proportioned, with a carriage erect and graceful. Her rich, brown hair was braided in masses over a forehead of the purest white, and drawn back loosely so as almost to hang upon her round, snowy neck. Her eyes were of the same color with her hair—a rich, dark brown; and their expression, though somewhat pensive, was yet sparkling and clear. A nose of the true Grecian model, a round, though not full chin, a small mouth with thin, curling lips, and cheeks now tinged by exercise in the cool morning air, completed a face which might well have attracted a man of less taste than the Count De Marsiac. To complete the picture, she had small, beautiful feet, such as a sultana might have envied; and her perfect, white hands, which now lay folded together in front, might have been a model for a sculptor. She wore a thin morning dress of the purest white, and as she walked slowly and unconsciously, it

waved like gossamer about her person—revealing, perhaps, too much of its contour to please our northern prejudices, but still adding to its exquisite attraction.

Harding's circumstances were so peculiar, that he was embarrassed for a moment, and could not determine how to meet her. She had not yet seen him, and acting upon the impulse of perplexity, he stepped within the cover of the shrubbery, and allowed her to pass without speaking. She went but a few steps, however, before he called—

“Margarita!”

She started at his voice, but turned and at once advanced to meet him. Her eyes sparkled with pleasure, too, as she did so, and the hand she extended to him trembled from emotion. Harding could not know her feelings, and he had reason to doubt her truth; but, though he could not tell what it was, there was something in her look and manner as she met him which made him forget all suspicion. He took her hand in one of his, and placing the other about her waist, drew her to him, and—the love of a former time was renewed!

“We meet once more,” he whispered; it was all he could say.

“I feared we were parted forever,” she said, disengaging herself from his embrace, but still leaning on his arm.

“I thought you had forgotten me,” continued Harding.

“I am not sure but I ought to have done so,” she replied, with a smile which revealed how little she meant what she said. “But how is it that you are here?”

“I had forgotten,” answered he; “I am here as an envoy from another, to ask your hand in marriage!”

“You!” she exclaimed, drawing away from him. “From whom?”

“From his highness,” answered Harding, laughingly detaining her, “Eugene Raoul, Count De Marsiac!”

She gazed at him in surprise for a few moments; and then, catching the light of his smile, folded her hands upon his shoulder, looked archly into his eyes and said—

“If the envoy does not deem my hand a prize high enough to justify his preferring a claim on his own behalf. I must even listen to the overtures of

his sovereign.”

“Then I must deliver my credentials,” said Harding, and drawing her to him, he kissed her upon both cheeks. “And now,” he continued, taking her hand, “my mission is ended; and in my own proper character I claim this hand as my own. Is it mine?”

“Forever,” she answered, and he was about to resume his “credentials,” when a rustling among the bushes attracted his attention; and before Margarita could disengage herself, Lieutenant Grant confronted them, and leveled a pistol at Harding’s breast!

“Traitor!” he shouted furiously; “you shall pay for this with your life!”

Margarita screamed loudly, and threw herself in front of her lover; but before Grant was aware of his intention, Harding drew his sword, and passing around her, threw himself upon him. He knocked the pistol into the air just as it exploded; and the next instant Grant was stretched upon the sward, bleeding profusely from a wound in the head given by the back of Harding’s sword! The latter drew the remaining pistol from the sash of the fallen lieutenant, and kneeling beside him raised him from the ground on his arm.

“Bring some water from the river,” he said to Margarita.

But as he looked up, he perceived that the party had been increased by one! A tall, handsome woman, of perhaps thirty-six, stood gazing sternly on the scene, while Margarita shrank back abashed. She had a face once evidently distinguished for its proud beauty, but now remarkable chiefly for the masculine strength of its expression. Her eye was of that deep blue, which oftener indicates coldness than tenderness; and her lips, now compressed and white, were full of fierce resolution. It was plain that a sneer was more natural to her than a smile, anger than affection. Her brow was high but narrow, and her nose a thin aquiline. It was not at all strange that she had been the dominant spirit in Colonel Eltorena’s household.

“What is this?” she commenced, in a voice of powerful compass, but no sweetness. “And who are you, sir, who dare to invade my private garden to brawl with my guests?”

“You know me full well, madam,” said Harding, irritated by her tone, “and I intend that you shall know me better. But this is no time to instruct you. Margarita, will you bring some water from the river?”

Margarita looked doubtfully at her mother; but at a wave of her hand, ran away toward the river. As she disappeared, her mother advanced closer to Harding, who was endeavoring to resuscitate Grant, and said—

“You are here, I suppose, sir, for the purpose of attempting to interfere with my domestic arrangements; but let me assure you that you shall hang to one of these trees rather than be even admitted within the house!”

“Your threats are brave enough, at all events,” said Harding, with a smile. “But do you not think it would better become a woman to assist me in a duty of humanity?”

“What does she know of humanity?” demanded a sharp female voice, close to the group; and on turning his head Harding saw the same woman, whose story of deception and betrayal had so much interested him two hours before.

“What do *you* here?” demanded the señora, with one of those scowling looks for which her face seemed made. “Must I have you, too, thrust from my gate!”

“*Your* gate!” hissed the woman, advancing nearer to the object of her hatred, and flashing insane glances from those wild, haggard eyes. “*Your* gate! Impostor, witch, begone! Must *I* have *you* thrust from *my* gate?”

There is something very appalling in the glance of an eye touched with insanity; and the Englishwoman shrunk from it, if not in fear, at least in dread. But, at the same moment, she saw Margarita returning with the water, and called to her—

“Go back, my daughter, and send some of the men here.”

“To thrust me forth from *your* gate, I suppose,” said the woman, advancing still closer, and fumbling with her right hand under the end of her mantilla.

“Yes,” said the señora fiercely; “will you go without violence?”

“No!” the maniac almost screamed. “*No!*” she repeated; and with the word, she suddenly drew her hand from its concealment, flourishing the dagger which she had shown Harding, and with a bound like that of a tiger, sprang upon her enemy and buried the steel in her heart! Harding dropped Grant, and rushed forward to prevent another blow, but his interference was too late! The señora screamed wildly, and with a convulsive gasp fell to the ground, quite dead!

Harding seized the arm of the murderess and easily wrested the dagger from her hand. Indeed, she made no resistance—the reaction of her excitement sapped away her strength; and, submitting without a word to all that Harding did, she seemed intent only upon the now fast stiffening corpse which lay before her.

“I am sorry for her,” she murmured; “I am sorry for her—but she would have it, and I cannot bring her to life.”

She burst into tears, and threw herself to the ground—uttering the most terrible imprecations of God’s vengeance upon herself, mingled with curses of the late Colonel Eltorena, and incoherent references to his perfidy. Harding was at a loss how to act—so strangely embarrassing was the wild scene in which he found himself.

The question was soon decided for him. He heard the approach of several armed men, walking with quick steps along the path, and, the next moment, Count De Marsiac suddenly entered the little area.

“Villain!” he exclaimed, striding toward Harding; “you have deceived me, and shall die the death!”

“Back, sir!” shouted the lieutenant fiercely, presenting the point of his sword. “If there is a greater villain than yourself here, the devil must be present in person!”

The count recoiled from the blade, and furiously ordered his men to fire upon the audacious American; but two of them, who had been busied with Grant, now sprang upon him from behind, and, after a sharp struggle, overpowered and bound him.

“I will dispose of you after awhile,” said De Marsiac, when he saw him *hors du combat*. “Leave him where he is,” he added to his men; and proceeding to give his orders with clearness and rapidity, the scene was soon broken up. Grant was restored to consciousness and again made a prisoner; the body of the señora was removed by the women summoned for the purpose, the murderess was taken into custody, and the whole party repaired to the house. Of this, De Marsiac at once took possession as if he were already its master; Margarita was confined to her own chamber, and Harding was thrust into a small, dingy room, and left alone, with those unpleasant companions, his own thoughts.

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- [1] The following extract from the letter of the author of the *Captive Rivals*, will account for the delay in finishing this story in the December number.—ED. GRAHAM.

Jacksonville, Ill. Dec. 12th, 1861.

G. R. Graham, Esq.,

DEAR SIR,—I send you, inclosed, the final number of the ‘*Captive Rivals*’—which has been by sickness, and other unavoidable causes, unreasonably delayed.

- [2] The reader must recollect that the leagues mentioned are Mexican.
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PART IV.

All in the castle were at rest;
When sudden on the windows shone
A lightning flash, just seen and gone.

ROKEBY.

'Tis to be wished it had been sooner done;
But stories somewhat lengthen, when begun.

BYRON.

It wanted yet an hour of noon, when, excepting the occasional clash of arms in the court-yard, where De Marsiac had quartered his men, all sounds in the mansion ceased. The room in which Harding found himself imprisoned, had but one small window, and this was protected by strong, vertical iron bars, in the fashion of the country. The only door opened upon a corridor, along the stone pavement of which the prisoner could distinctly hear the footsteps of a sentinel, approaching and receding, but never quite going beyond earshot. As if to secure him, beyond the possibility of escape, another armed man passed, from time to time, before the window, looking curiously in at each return, and never disappearing for more than five minutes. Harding, as the reader has perceived, was a decidedly brave man; but when he reflected upon the meaning of these precautions, and the character of the man into whose power he had fallen, he could not avoid some apprehension as to his fate. Fatigue, however, soon overcame his fears, and the drowsy monotony of noonday conquered his wakefulness. Seating himself in the deep window, he leaned his head against the bars and slept.

When he awoke, the sun was declining toward the horizon, and the shadows of the trees were lengthening along the hills. He aroused himself and looked about him. His window commanded a view of the garden, in which he had met Margarita, and a part of the river, along which he had entered. The waters had subsided since morning, and the arches under the wall were proportionably more open; but escape in this direction, even had he been able to break his prison, was cut off by two sentinels who stood

upon the river-bank, and never, for a moment, turned their eyes from his window.

None but those who are deprived of it, can fully appreciate the blessing of freedom; but even their hopelessness may be deepened, by the view of waving fields and clear sunlight, when they feel that it is not for them that they wave and shine. Harding turned away from the window, sick at heart, and with rapid and impatient strides paced up and down the narrow floor. As he passed the door for the fourth or fifth time, he heard voices without, as if in altercation, and the next moment, a heavy step coming along the corridor.

“What do you want here?” roughly demanded a voice, which Harding at once recognized as that of the count.

“I was taking the *Americano* something to eat,” timidly answered the smaller of the voices, before in altercation.

“Let him pass,” the count ordered the sentinel; and then added, aloud, as if on purpose to be heard within, “and tell the *Americano* that he had better eat heartily, for it will be his last meal!”

“*Si, señor,*” said the boy, and at the same moment the door was cautiously opened, so as to preclude all chance of escape, and the *peon* entered, bearing a small waiter, on which were placed some articles of food.

Harding turned away, in no mood for eating—though he had tasted nothing since morning. He had heard De Marsiac’s threat, and the character of his enemy left him little reason to doubt that he would put it into execution. He had hoped that his messenger would return from Anelo in time to save him; but now all prospect of that seemed cut off; for he knew that the count was not a man to delay when he had once taken his resolution. As this thought flashed across his mind, he wheeled suddenly round, determined to rush forth and try the chances of a fight; but before he could do so, the door was drawn violently to, and hastily bolted.

“The *señor* will eat something?” said the boy, timidly.

“Set it down, then, and begone!” answered the prisoner, pointing to a wooden bench at the side of the room.

“The count told me to say you had better eat heartily,” said the *peon*, “as this will be your last meal; and,” he continued, in a lower voice, pointing to a roll of bread, “you must break this bread, even if you don’t eat it.”

The gesture and tone attracted Harding's attention. He approached the bench and raised the roll, while the boy, repeating his injunction, went back to the door, and was cautiously let out. The lieutenant waited until the bolts were drawn again, and then broke the bread. A small slip of paper fell to the floor; and, on raising it, he found the following hopeful, though unsatisfactory words:

"Will you pay me the twenty dollars, or shall I keep the horse?"

"It would be cheaper," muttered Harding, perversely, "to let him keep the horse, if he has ridden him thirty leagues already. But," he added, a suspicion flashing across his mind, "that is impossible! I ought to have known the young scoundrel would betray me—and this is only a cruel *ruse* of De Marsiac!"

He turned the paper over as he spoke, and his eye caught these words written on the reverse:

"I will be with you by 9 o'clock—McCulloch."

"I did the boy injustice," was his first thought; "he shall have both the money and the horse." And seating himself on the bench, he followed the count's well-meant advice, and was soon refreshed by a hearty meal.

It is wonderful how much the state of the stomach has to do with the moods of the mind. Indeed, the two organs seem to be inter-reactive; and I believe some physiologists now contend, with great plausibility, too, that the brain is really the digestive organ. If this theory be true, mental distress must be only another name for *dispepsia*; and—though I have seen men who ate like anacondas, when under great affliction—I am strongly inclined to endorse the speculation. At all events, Harding was "a case, or subject, in point;" for, but a few minutes before, when he was apprehending many certain and uncertain evils, from the resentment of the count, he had not the least desire for refreshment; but, on the first glimpse of hope, he had an appetite like a soldier escaped from a beleaguered city. And, no sooner was the inner man replenished, than—on the aforesaid principle of inter-reaction—his spirits rose almost to the point of absolute content. Most axioms are tautological; but none is more so than that which asserts that "man is a *strange animal*." The word "strange" might be advantageously and conveniently left out.

So thoroughly had the important act of receiving his rations reinvigorated the captive, both corporeally and mentally, that, when he

resumed his walk up and down the floor, he dismissed all anxiety about his own fate, and began to speculate in reference to the condition of his fellow-prisoner, Grant. From regret that he had been compelled to strike him, his mind wandered to a more pleasing subject of contemplation—he began to long for some information about Margarita; how she was treated by the ruffian count, and, more particularly—for love is always egotistical—how she viewed *his* captivity; and finally, whether she had not forgotten her grief for her murdered mother, in devising means of giving him his liberty. These, or such as these, are often very pleasant fancies—the misfortune is, that, in most cases, they are *only* fancies, and are occasionally rather rudely dispelled.

So it was, at all events, with Harding; for, just as he had reached that supreme apex of egotism, to which lovers so easily attain—where one's mistress is not supposed to know that there is any thing, or anybody else in the world, about which, or whom, she *can* think—when he was recalled to more substantial realities, by hearing the count, in loud, stern tones, giving a rapid and ominous command.

“Close the gates and bar them—muster the company, with loaded muskets, and bring out the prisoners!” Such was the significant order of a man who was never known to stop at half-measures!

“McCulloch will be too late, at last!” exclaimed Harding, halting suddenly, and dashing his hand violently against the wall. The dinner had lost its virtues, for his heart sank even below its former point of depression. And, in truth, his apprehension was far from groundless. De Marsiac was incensed beyond bearing, by the consciousness that Harding had overreached him. His suspicions were first aroused by observing him take a road to *Piedritas*, different to the one he had pointed out. He had watched him until he halted among the elms, and had seen him dispatch the messenger for assistance. He was ignorant, however, of his point of destination—supposing that the nearest American force was at Monclova, about sixty leagues^[3] distant. This supposition would give him at least forty-eight hours, in which to prepare for the reception, should soldiers be sent, or, at least, to retreat into the mountains. The interview between Margarita and Harding, had also been watched by some one of the household; and when the count came in great haste after his prisoner, this unwelcome news had met him at the threshold. A man of his violent temper could not have

brooked this under any circumstances, least of all, when he possessed, as did the count, ample and ready means of vengeance.

While the unfortunate prisoner was running these comfortless circumstances over in his mind, the door was suddenly thrown open, and several men rushed upon him and threw him to the floor. Almost before he was aware of their object, his arms were drawn forcibly back and pinioned behind him. They then lifted him to his feet, and unceremoniously marched him out upon the corridor. Here he found Grant, securely pinioned like himself, and held by two *rancheros*, one on each arm.

"This is a pretty predicament you have brought us into," said the younger, sullenly; "We're to be shot, I suppose."

"Very probably," answered Harding, scarcely able to resist, even in that serious moment, an inclination to smile at Grant's disconsolate look. "But how came you here?"

"I escaped from *Embocadura* about the same time with you, and was in the garden to learn your treachery and—"

"And to get that blow on the head," interrupted Harding, feeling again an impulse to jest.

"I'll settle that score with you hereafter," said Grant, his eyes flashing fire.

"By 'hereafter,' I suppose, you mean in the next world," said Harding, with a bitter smile. "But, seriously, Grant, this is no time for the indulgence of such feelings; we have probably not long to live, and ought to be thinking of more important matters. I am heartily sorry for the blow, as well as for my insincerity—will you forgive it?"

"With all my heart," answered the other warmly; and each made a gesture, as if to join hands; but the cords bound them too closely.

"We can do but one thing, Grant," said Harding, with feeling, "and that is, die like Christian men—and brave men," he added, after a pause; "for these cursed *rancheros* ought not to see any weakness in Americans."

"They shall see none in me," said Grant, firmly, "though I do think it hard to be sacrificed in this way!"

"One of the chances of war, Grant—only one of the chances of war," said Harding, sturdily; and, at the same moment the count, for whom the men seemed to have been waiting, appeared on the corridor and waved his

hand. The files turned away with their prisoners, and marching around the building, soon gained the bank of the river. Here they halted again, awaiting the approach of the count, who, like most men when assuming a fearful responsibility, seemed to act with much less than his usual prompt rapidity. The sun had already set, and there was only left the short twilight of that latitude before the falling of night, which must suspend the bloody act, perhaps forever.

But a few minutes were lost, however, when De Marsiac came hastily round the building, accompanied by ten of his *rancheros* with trailed arms. At a gesture from him the prisoners' guards resumed their march, and crossing the river on the stepping-stones, before mentioned, soon gained the little open space where Harding had met Margarita. Selecting two trees which stood near each other, the count ordered his captives to be lashed securely to them; and then drawing his men some five paces off, gave the preliminary commands to a cold-blooded murder.

"Keep a strong heart, Grant," said Harding, endeavoring to sustain his younger comrade in the awful hour. "Don't let your courage fail now—it is too late!"

"This is a mere assassination," said Grant, grinding his teeth.

"And will be speedily avenged," added Harding, "more speedily than the vindictive scoundrel now thinks!"

De Marsiac caught these words, and paused. For a moment he seemed to hesitate whether to proceed. But his nature was too obstinate to admit more than a passing thought of change in his purpose; and without further noting the words of Harding, he resumed his attitude of command. While he seemed to hesitate, his men had brought their guns to the ground—and they were now to be brought up again by the successive movements of the manual. The delay arising from this cause, probably saved the lives of both the prisoners.

A quick, light footstep was heard rapidly approaching along the main walk, and a moment afterward, Margarita, accompanied by one of her women, rushed into the area and threw herself, without hesitation, between the prisoners and their executioners.

"Count!" she exclaimed, her eyes flashing fire, and her voice attesting the extremity of her emotion, "is this the way you keep your promises with

one to whose hand you aspire! Down with your arms, miscreants, and begone! *I am mistress here!*”

A slight sneer curled the haughty lip of the count; but, considering his vengeance snatched from him for the present, he gave his men the order to ground their arms, but to stand firm. Assuming, then, the most insinuating address in his power—and he was far from ungraceful—he approached the incensed girl, and drew her aside.

“Margarita,” said he, taking her hand, “you must pardon an act which is prompted only by love for yourself; and you must not judge too harshly of one who feels that the dearest price of earth has been unfairly snatched from his grasp. Both these men have been instrumental in blasting my hopes of obtaining this hand; I feel that while they live, I can never rebuild the vision I have indulged—perhaps their death may not assist me—but,” and he raised himself suddenly to his full height, and spoke in a deep, determined tone, the meaning of which she knew too well, “I shall at least be avenged!”

“What do you mean?” she asked, trembling.

“I mean,” he replied, calmly, “that since my hopes are wrecked at any rate, their death will give me revenge, without harm to my interests—*they must die!*”

“And dare you think that I would marry one whose hands were bloody with such a deed?” she asked, proudly.

“Listen to me,” said he, laying his hand on her arm; “my hands are not *now* bloody—yet you reject me. If I spare these men, you will reject me still—and I shall lose my revenge, and not gain your love.”

“Perhaps—” she commenced, but paused.

“If you will be mine,” he interrupted, perceiving that the moment had arrived, “both these men shall be sent back, unharmed, to the American army—and I shall be not only the happiest of men, for the requital of my love, but will also be saved, what I feel would be a great crime!”

“If you know it to be a great crime, why commit it?” she asked.

“Ah, Margarita! you little understand man’s feelings. But come,” he added, suddenly, “time presses—I cannot wait. You reject me—they must die!”

He turned away as he spoke, as if to resume his commands; but Margarita called him back.

“If I consent,” she commenced, with hesitation, “when will you demand the fulfillment of my promise?”

“*To-night*,” he replied; “so soon as Father Aneres can be brought from *La Embocadura*!”

“Why such haste?” she demanded. “Will not to-morrow be quite soon enough? Remember, my mother was only buried to-day!”

“A few hours can make no difference in that matter,” he replied, “but *might* in another view. I must have your hand *to-night*, or these men must die *now*.”

It was a terrible alternative. But Margarita had seen Harding’s messenger, and knew that McCulloch, with his Rangers, might be expected within three hours. The only question was, whether she could find excuses enough to delay the ceremony for that length of time. Could she do so, she was safe; but—and it was a terrible thought—should De Marsiac use his power to hasten it, she was lost! But, running over in her mind all the plausible reasons she might give for an hour’s delay, and especially reflecting upon the consequences of a refusal, she at length determined to consent.

“I can do no more,” she said.

“Then I understand you to consent?” he asked.

“I do,” she replied, “on the condition that you send these unfortunate men to their army immediately.”

“As soon as you are mine, they shall set out,” said the count; and Margarita was obliged to be satisfied with his pledge. He at once ordered the prisoners unbound, and taken back to their temporary prisons; and walking beside his intended bride, he followed the little procession to the house, and at once gave orders to summon the priest.

The presence of a clerical functionary, in the house of such a man as De Marsiac, was not so remarkable as at first view it would seem; for, independent of the almost complete degradation of that order in that part of Mexico, there was another reason for the opportune appearance of one of its members. The count, anticipating the possibility of gaining some advantage in the events about to happen, had manifested one of the most valuable characteristics of a great general—preparing himself to make the utmost of

whatever success might be given him. He had summoned Father Aneres to Embocadura, for the very purpose for which he now called him to Piedritas.

The *padre* exhibited the three peculiarities of the priesthood in that country, excepting, indeed, well-shaped hands and feet, they were the only remarkable points about him: he possessed a rotund corporation, a full nether lip, and a small, twinkling, black eye. He was above the ordinary level referred to, however, for the grossness of his aspect was rather that of easy self-indulgence, than of positive sensuality. Indolence filled up the space in him, which, in his brethren, it usually shared with a cruel and rapacious depravity.

He entered the *hacienda* within an hour after the dispatch of De Marsiac's messenger—a promptitude for which he received from none there, excepting the count, any of the good wishes usually bestowed upon such occasions on men of his profession. To Margarita, especially, his coming was unwelcome in a very high degree; for, though but an hour remained before the period fixed for McCulloch's arrival with his Rangers, this was space enough for one so determined as the count, and far too much for her to dispose of in specious delays.

This was soon manifested, indeed, by the unannounced entrance of De Marsiac, who demanded that the ceremony should proceed forthwith. She informed him that she had but now commenced her preparations; and rashly said, that she would be quite ready at the end of an hour.

“See that you are so, then,” said he, peremptorily; “for I will not be cajoled into another minute's delay. I shall be here again precisely at nine o'clock; and if you are not ready then, I shall shoot the prisoners, and compel you to redeem your pledge afterward.”

She was about to make an angry reply; but, reflecting that he was fully capable, if incensed more than he seemed already, of dragging her at once to the altar, she suppressed her indignation, and replied as calmly as possible—

“Do you not think, count,” said she, “that such language is unbecoming at such a time—and to me?”

“If,” said he, softening at once, approaching her and taking her hand, “if you treated me with the confidence which I feel I deserve, no one could be more gentle and affectionate than I would be. But you leave no room for gentleness. Even now, you are endeavoring to gain time in order that you

may be rescued by American soldiers. But—be at once undeceived—these soldiers cannot arrive here sooner than the day after to-morrow, and then they will find the place vacant.”

Margarita’s heart sank within her, though she had seen Harding’s messenger, and trusted his report. She knew not to what expedient one so adroit as her persecutor might resort, to delay the march of the rangers, or lead them astray; and her imagination at once conjured up twenty plans by which he might secure his object. She made no reply, however, other than to assert that he was mistaken in her motives, and request that he would leave her to her preparations.

“Very well,” said he, “I will return at nine o’clock.”

As soon as his step ceased to be heard, Margarita summoned the two confidential women who were most about her person, and a council was held upon the ways or means of escaping or gaining time. But, fertile as is woman’s wit, no feasible plan was suggested. Escape from the house was impossible, for the count had every avenue guarded; the priest was inaccessible, for he was completely under De Marsiac’s influence; even her own men could not be depended upon, for the few who were in the *hacienda* were overawed by the *rancheros* of her persecutor. The only alternative was to stand obstinately silent at the altar; and yet by this course, she inevitably sacrificed two lives—one of them dearer to her than her own. Her position was terribly embarrassing; for, if she should refuse to consent until her lover was murdered, she could not even then be sure that the count would not force her to yield afterward; making thus a bloody, and unavailing sacrifice.

In the midst of their deliberations—if a hopeless search after desperate expedients could be so called—a light knock was heard at the door, and on being opened, it admitted Harding’s trusty messenger, Margarita’s half-brother. He paused at the threshold and gazed about him. It was the first time he had ever been admitted into the private apartments of a place which he had been taught to consider his own, and the gleam of his dark eye would have betrayed his thoughts to any one less preoccupied than Margarita. The expression soon faded away, however, and without salutation he advanced to Margarita, and abruptly asked—

“Are you about to marry Count De Marsiac, willingly?”

“Why do you ask?” Margarita inquired.

“I wish to prevent it,” he replied calmly.

“How can you do so?”

“By gaining time, till the *Texanos* come,” he answered.

“If you can do this,” said Margarita, eagerly, “your reward shall even exceed your own expectations.”

“My reward does not depend upon you,” he coldly replied. “It is quite as much to my interest to prevent the marriage, as it can be to yours.”

“How can that be?” interposed one of the women.

“That will be explained hereafter,” the young man replied. “If you will follow my directions the marriage shall be prevented.”

“What do you wish me to do?” asked Margarita.

“Only to delay your preparations as long as you can, and if the Texans do not arrive before the hour—”

“Nine o’clock is the time,” interrupted Margarita, “and it wants but half an hour of it, now.”

“I know,” said the other, “but linger as long as possible. Do not tempt the count to any violence; when you can delay no longer, go to the altar, and you will understand what I mean.”

There was no alternative but to trust him; and Margarita did so the more willingly, because he dictated the only course she could see open to her—procrastination, in the hope of relief. His motives were plain enough, though she could not fathom them. He claimed the *hacienda* as his own, but he knew that if it once fell into the hands of a man, whose grasp was as tenacious as that of the count, his title would have but small chance of successful assertion, and he was therefore interested in preventing his union with Margarita.

In the mean time, the good Padre Aneres was seated in one of the southern wings of the *hacienda*, recruiting his energies, after an exhausting journey of two miles from *Embocadura*. The robes and appointments of his clerical office were arranged with a neatness which scarcely distinguished his personal appearance; for he was about to celebrate a sacrament, which he viewed as hardly less important than the last unction administered to the dying—to which, indeed, it furnished no indistinct parallel. Preparatory,

however, to the performance of the ceremony, he was fortifying himself with a liberal supply of delicate viands—that to which he applied himself most frequently being a large silver bowl of red Parras wine.

He had been thus agreeably occupied for half an hour or more after his arrival, and having recovered his breath, began to feel comfortable again, when a hasty but timid knock was heard at the door. The worthy *padre* pushed the bowl of wine a little farther from him, hastily swallowed the morsel in his mouth, and having settled himself in an attitude of meditation, gave a gentle invitation to enter. The door was pushed timidly open, and the young messenger presented himself, in most singular plight. His clothes were studiously disarranged; his hair was disheveled, and covered with dust and ashes, while his eyes gave signs of recent violent weeping.

“*Oh, padre!*” he exclaimed, in evident distress, throwing himself at the good Father’s feet. “*Peccavi! Peccavi!* I have sinned! I have sinned! O, Father! Hear me, and forgive.”

The worthy priest was startled at this exhibition of grief, so much more intense than he was accustomed to see; for the penitent beat his breast, and humbled himself upon his knees in the most abandoned manner.

“Calm yourself, my son,” said the pastor, “and remember that mercy may be extended to the guiltiest of mortals.”

“*Confiteor! Confiteor!*” rapidly continued the sinner. “*Oh, padre!* Pity and forgive! *Peccavi! Peccavi! O, Misericordia!*”

“Entrust your sin to the Representative of Heaven,” gently urged the Father, “and never despair of God’s mercy.”

“Not here! O, not here!” exclaimed the youth, springing to his feet and rushing to the door. “There are spies here—ears listening for the confession, which must be given to you alone.”

“Who dares to penetrate the secrets of the Confessional?” demanded the *padre*, his little black eyes twinkling with indignation.

“The count and his spies,” answered the youth. “We must leave the house—we must go forth into the night, for my soul is burthened with sin, and the load must be lifted. Come!” He seized the confessor by the robe and dragged him toward the door, sobbing “*Peccavi! Peccavi!*” all the time.

“But, my son,” hesitated the priest, “the count is—”

“Come—come—come!” repeated the penitent, impatiently; a part of his grief giving way before his haste to be absolved. “We can return before you will be wanted. I cannot endure to wait! O, pity and forgive!”

The good Father, like most indolent men, was very slow of decision at all times; and now he was carried away by the torrent of grief, and the impatience for absolution, which seemed to flow from the consciousness of some great crime. Half inclined to refuse, and yet too undecided to act with promptness, he suffered himself to be dragged from the room, and through the door into the open air. Here they were brought to a sudden halt: a *ranchero* stepped before them, and presented his musket. But such an indignity at once restored the Father to his dignity.

“Who dares to obstruct a son of the church in the discharge of his duty to Heaven?” he indignantly demanded. “Out of the way, false man of blood; and let the confessor and his penitent pass out from among the oppressors of God’s people!”

This vigorous speech was not particularly appropriate to the occasion, nor was it thoroughly understood by him to whom it was addressed. Neither was it such as was likely to move one of De Marsiac’s ordinary followers; for the *rancheros* generally stood more in awe of their leader’s displeasure, than of the wrath of Heaven; and it is probable that but few of the desperadoes would have hesitated to bayonet the Pope, himself, had the count so commanded. But this sentinel seemed to be of a more reverential nature; for no sooner did he recognize the priest and his companion, than he raised the point of his bayonet, shouldered his musket, and allowed them to pass.

This disobedience of his captain’s orders—remarkable for its want of precedent among De Marsiac’s banditti; was not the only singular circumstance about the accommodating sentinel, as the reader will soon observe. The young penitent disappeared among the shades of night with his confessor, whom he hurried on faster, probably, than he had ever walked before. He directed his course to a little group of *ranchos*, which stood directly south of the *hacienda*. Having entered one of these, and remained five minutes—it seemed that his sin was not long in the confessing or absolution, notwithstanding his overwhelming distress—for at the end of that time he issued forth *alone*, with a well-pleased smile upon his lip, and elasticity restored to his bearing. From the door of the *rancho* he took his

way north-ward again; verging obliquely to the right, however, until he reached the bank of the river, nearly a quarter of a mile east of the *hacienda*. At this point, a grove of small trees sheltered the bank, and through them passed the road up the valley to Anelo. The youth paused as he gained the shadows, and gave a low, clear whistle. It was answered from the river-bank; and in a moment afterward, a man emerged from the covert, and approached the messenger.

A whispered consultation ensued between the pair, but of brief duration; for Eltorena seemed in haste.

“Keep due south,” said he, as he prepared to return, “until you reach Martiniez’ avenue—then turn west, until you are opposite the south entrance, and approach cautiously.”

With those words he turned away; and retracing his steps with great rapidity, soon came in view of the sentinel, who had permitted him to pass.

“*Quien va la?*” hailed the latter, presenting his musket. But Eltorena only answered by a low whistle, and boldly advanced. As he approached, the sentinel again shouldered his piece, and a consultation ensued between *them*, also—the youth pointing out the direction which he had indicated to his confederate at the river, and then passing into the mansion. The sentinel resumed his pace up and down his post—pausing from time to time with his ear bent toward the east, as if waiting for some expected sound. But every thing was as still as a summer night in the north; and though the moon was now rising over the eastern hills, there was not a moving thing perceptible to the eye.

While these things were going on without, the hour appointed for the ceremony of marriage was fast approaching; and one of the parties, at least, was filled with anxious fears. Margarita had delayed her preparations as much as possible; but the assistance of her women, with which it would have been more politic to have dispensed, had, even against her will, so expedited them, that she was fully ready at the time. Nor, had it been otherwise, was the count disposed to permit any further procrastination; for, punctually to the minute, he knocked at her door, and, without waiting a summons to enter, threw it open and stepped across the threshold.

"I am glad to see you ready," said he, throwing as much kindness into his manner as his consciousness of wrong permitted. "Come, the chapel is prepared, and the *padre* awaits us."

"Count," said the intended bride, trembling with apprehension, but anxious to make another effort for delay, "cannot this ceremony be as well performed to-morrow? I do not like this indecent haste."

"It must be performed to-night—*now*," he replied calmly. "If you refuse, you know the alternative. I will not be trifled with."

"I am not trifling with you, indeed," said she hurriedly. "But reflect—my mother is scarcely cold in her grave!"

"The better reason why you should observe her wishes," De Marsiac replied. "I have considered all that, and find no reason to change my mind. If you intend to redeem your pledge at all, it is as well to-night as to-morrow. If you are willing to sacrifice your friends, *los Americanos*, your refusal to-night will only give me my revenge sooner!"

His course of argument was too direct and forcible to be oppugned; Margarita rose as its meaning reached her, and signified her willingness to go at once to the altar. The count turned to one of his followers and said—

"Go to Father Aneres, and tell him that we will be ready by the time he can reach the altar."

The man approached the door of the room where we have seen the good *padre* recruiting his exhausted strength. He was met at the door by young Eltorena, dressed in a white cassock, and holding a censer in his hand, as if in attendance upon the priest.

"The good Father," said the young man, "is in his closet, but will meet them in the chapel in five minutes."

The man returned to his master, and the procession at once marched toward the chapel. A room fitted up for this purpose is to be found in almost all the larger *haciendas* of that part of Mexico—its size and splendor depending upon the wealth and piety of the proprietor. That at *Piedritas* had been somewhat neglected of late, but was still a respectable chapel. It was separated from the priest's room—where Eltorena had sought the *padre*—by two partitions, between which was the private closet; and leading out of this was a door which opened behind the altar. It was through this door that Father Aneres was to enter for the performance of the momentous

ceremony. But the reader already knows that the good Father was not within, and therefore could not come forth.

The procession entered the chapel in the following order. The count, holding the unwilling hand of his trembling bride, was succeeded by the two women, accompanied by his trusty lieutenant, who was to “give the bride away.” Then came three files of *rancheros* with trailed arms—a desecration which the good Father, timid as he was, would not have permitted. Behind these, each between two soldiers, who jealously watched them, came Harding and Grant—borne in the procession, like the prisoners of ancient Rome, to grace the triumph of the conqueror! Then followed the remainder of the count’s band of free-companions, numbering, in all, about twenty. All the domestics of the family crowded in after, and the door was taken in charge by the trusty sentinel who had disobeyed his orders!

The count dragged his bride to the chancel-rail, and, leaving her there for a few moments supported by her women, took upon himself the duties of master of the ceremonies. He placed his two prisoners directly behind the bride, well guarded however, so that they would have the satisfaction of seeing without the power of interfering. Behind them he ranged his followers in a compact mass, and directing the *peons* to seat themselves in the rear, he ordered the sentinel to close the door, but not to leave it. Returning then to the chancel-railing, he resumed his place beside Margarita, and took her cold and trembling hand in his.

Although these dispositions consumed full ten minutes, when he returned to his place, the priest still delayed his coming. The count, however, fiery and impetuous as he was, waited patiently for a period quite as long; when, finding that the door still remained closed, he began to knit his brows and mutter angry threats. These signs encouraged Margarita, for they indicated delay, if not deliverance; and she had even the audacity to smile in De Marsiac’s face.

“Antonio,” said the latter furiously, “go to Father Aneres and tell him that we are waiting for him—*impatiently!*”

The man addressed sprang to the door and attempted to open it, but it did not yield to his efforts.

“It is fastened on the outside,” he said. But, at the same moment, the door behind the altar was heard to swing upon its hinges, and a slow, heavy step was placed upon the short stairway which led up to the platform.

“The old dotard is coming at last,” muttered the count, not observing the ominous report of his messenger. He laid aside his gold-laced cap, which hitherto he had kept upon his head, and resuming Margarita’s hand, placed himself before the railing and looked up.

It was not the priest who stood at the altar! A tall, heavily-armed man—evidently an American—rose suddenly from his cover, and, leveling a pistol at De Maniac’s breast, gave his war-cry of “*Texano! Texano!*” At the same moment the closed door was thrown open, and a band of near twenty men filed speedily in and brought their carbines to bear upon the *rancheros*—while a detachment, equally strong, rushed in from the priest’s room, and marched past their leader—who was none other than McCulloch of the Texan Rangers! A glance passed between Harding and Grant—each understood the thought of the other—and, as if by pre-concert, they broke away from their guards, sprang upon the count, and, before his men could interfere, dragged him, a prisoner in his turn, within the chancel! Scarcely giving him time to speak, two of the rangers hurried him away through the priest’s room, and delivered him in charge to the guard stationed at the door.

“Lay down your arms!” shouted McCulloch, through the din which now arose—chiefly from the domestics—“and every man’s life shall be spared. But the *ranchero* that holds his arms one minute, shall hang to the first tree that’s tall enough to stretch him.”

The word “*Texano*” had already half accomplished the conquest; the captivity of their leader weakened their resolution, and this threat, which every Texan was, in the estimation of a Mexican, fully capable of executing, completed the discomfiture. Each *ranchero* threw down his arms with an alacrity which seemed to indicate that they were growing hot in his hands, and the two detachments of rangers marched in and made them all prisoners, without the least resistance.

“There’s one good job well done, boys,” said McCulloch, “and all the better done because we have spilt no blood.”

Turning then to Harding, who was supporting Margarita upon his arm, while Grant stood moodily aside, he said—cordially receiving the hand extended to him—

“We were very nearly too late, at last—though, thank God! not quite. I had information from your messenger, since we entered the *hacienda*, that

the bandit, De Marsiac, designed to take your lives, even after he had obtained the hand which was to be their ransom.”

“I doubt not,” said Harding, frankly; “if my friend Grant and I see to-morrow morning, we shall owe the sight to your promptness in attending my call. You must be satisfied with our gratitude until the chances of war shall enable us to discharge the obligation in kind.”

“If the only mode of payment,” said the captain with a smile, “is rescuing me from a scrape like this, I hope you may never have a creditor more pressing than I.”

“I do not know,” said the ranger lieutenant, Gillespie, coming forward with the open manner of the soldier; “I think, if the prize, at the outcome, were as great as it seems to be in this instance, Captain McCulloch would have no special objection to dangers quite as imminent.”

He looked at Margarita as he spoke—for she still hung upon Harding’s arm. The captain laughed at what he considered a compliment both to himself and the lady; a round of introductions ensued, and congratulations, with jests and pleasant laughs—during which the prisoners were marched off and confined, and the *hacienda* reassumed its aspect of dreamy quiet.

“Gentlemen,” said Margarita, when a pause at last broke the round of felicitations, “you have ridden far and hard, and must be both fatigued and hungry. Will you not partake of some refreshment?”

“With the utmost pleasure,” answered McCulloch; “but I must first see my men quartered.”

“I have already given orders for their accommodation,” said Margarita. “Since I may soon be under their escort, it becomes me to consult their comfort.”

“Under their escort!” exclaimed Harding.

“Yes,” she replied. “Since my mother’s death this is no longer a fit residence for me. I have many relatives in Saltillo, and it is thither that I wish to go. When you return to the United States,” she added, in French, observing Harding’s doubtful look, “I shall be your companion—if you desire it.”

He could only reply by another look, of a different meaning, when McCulloch asked—

“What will become of the *hacienda* in your absence? I have seen too much of the steward system in this country, not to regret the absence of the proprietor from every fine estate.”

“I shall give it to one,” she replied, “who, though he already claims it unjustly, has, by his services this night entitled himself to even a greater reward. I mean the young man who led you hither.”

“And his mother,” suggested one of the women, who did not quite relish the generous proposition.

“She is a confirmed maniac,” said Margarita with a shudder, “and this is only a stronger reason why I should do as I say. She will be a burthen upon her son, and it is but just that he should have the means of supporting her.” This closed the discussion, and the party adjourned to supper.

On the following day the prisoners were mustered by the order of McCulloch—as they supposed, for the purpose of being treated as *their* countrymen had so often treated *his*; that is, being hung like traitors, or shot by platoons—but really for the purpose of being released. De Marsiac, however, as a man who might do the Americans some injury, was retained a prisoner of war. All the rest, much to their surprise, were dismissed with an *admonition* not to be found again in arms. The captain judged, very correctly, that taking their *parol* would be an unmeaning ceremony.

About an hour afterward, the cavalcade set out for Saltillo, by way of Anelo and Capellania—a long route which McCulloch’s orders compelled them to take. Margarita, with a generosity which my readers may be disposed to call romantic, but which was, after all, scarcely more than justice—had conveyed the *Hacienda de los Piedritas* to her half-brother, who had so richly deserved his reward. The sacrifice was small, too, for she had, still remaining, possessions ample even for that country of overgrown individual fortunes.

Three days brought them to the handsome city of Saltillo, where Margarita found a refuge among her many relatives. De Marsiac was reported at headquarters and sent to the rear; while Harding and Grant—wiser if not better men—rejoined their companies, and resumed their duties. The events of their captivity seemed to have cured the latter of the pleasant malady which had afflicted him; and the pair became, in a short time, as

inseparable as ever. They visited Margarita together, and though the younger winced a little, when by any chance the subject of his hallucination was referred to, on the whole he bore his disappointment with a good grace.

The battle of Buena Vista closed the campaign in that part of the country; and shortly afterward the regiment to which they were attached was discharged. Before their return home, however, the ancient rivals returned to Saltillo—where, in the handsome cathedral, Harding and Margarita were united in marriage. And, a pleasant memento of rather uncertain times, the officiating priest was the worthy Father Aneres, who had figured in the history of Harding and Grant while they were “*Captive Rivals!*”

[3] Mexican leagues—about one hundred and forty miles.

DEI GRATIA, REX.

BY W. E. GILMORE.

KING “by the grace of God!” where is the token
By which we know thy right it is to reign!
Jehovah’s will, of old, in words was spoken,
Who heard His voice thy sovereignty proclaim?

No! thou art king, *not* by “the grace of God,”
But usurpation only—guiltless he
That doth resist thy claims, and, though in blood
Poured out like water, rids the earth of thee!

OUR CHILDHOOD

BY JANE GAY.

How brightly did the summer's sun
Wake up the dewy morn,
And chase the misty shadows from
The cot where we were born;
It stood amid the peaceful hills
Where worldlings never rove,
The violet-spotted earth around—
The glorious sky above.

Two tall elms were its sentinels,
With arms uplifted high;
And these were all we needed, save
The watchers of the sky;
And while amid the thick, green leaves
The moonbeams dallied bright,
The stars looked down on us at play,
Oft on the summer night.

O, every month of childhood's years,
How well do I remember,
With all their smiles and fleeting tears,
From New Year's till December;
No care or burden had we then—
No life-lines on the brow;
We knew it not—I wonder if
We're any wiser now.

Were we not with ye, brothers, when
 With spade or hoe ye sped
To dig the homely artichoke
 From out its winter bed?
Or when, with boyhood's free, glad shout,
 Ye ran with pole and hook,
To draw the golden-spotted trout
 From out the alder-brook?

Ay, ay! and I must tell it, too,
 Ye'd *sometimes* play the churls;
And cry, when we would run away—
 “*Mother, call back the girls!*”
And then came tasks of knitting-work
 For us, and dreaded patch,
With sullen faces, till we thought
 To try a knitting match.

The summer days were ne'er too long
 For busy life like ours;
For every hill had berries then,
 And every meadow, flowers.
And joyfully, when school was done,
 We'd stay to glean our store;
For though we loved the school-book well,
 We loved the free hills more.

And very pleasant 'mid those hills
 September's sun did shine,
As we went forth to gather grapes
 From many a loaded vine;
And while October's gorgeous hues
 Of red and gold were seen;
We searched for chestnuts in the wood,
 Or pulled the winter-green.

And when November's winds came chill
 With icy sleet and rain,
We knew the old brown barns were filled
 With stores of golden grain;
And what cared we how bleak or cold
 The wintry storms might rise—
Our dreams were of Thanksgiving-days,
 And all their wealth of pies.

Though ye have left the homestead now
 Grave men to walk among,
Yet while our sire and grandsire live—
 BROTHERS, YE STILL ARE YOUNG!
Nor, sisters, is it time for us
 Life's lantern dark to trim,
Our own dear mother has not yet
 Sung her half-century hymn!

And while our childhood's guardians live
 To bless the passing years,
'Twere more than vain in sad regrets
 To waste Life's precious tears;
Yet if our summer sky is fair,
 And green our summer bowers,
We know that many walk the earth
 With sadder hearts than ours.

I'LL BLAME THEE NOT.

BY J. A. TINNON.

I'LL blame thee not—for I can love,
Another eye as bright as thine,
A form as fair, and ne'er regret,
This worship at a faithless shrine.
I'll blame thee not—love fond and true
May still be won in beauty's bowers,
Though I may never dare again,
To wear a wreath of fading flowers.

I'll blame thee not—for thoughts of love
And thee no more my bosom fill;
And of that dream there lingers scarce
One trace of its deep burning thrill.
I'll blame thee not—I smile to see
The golden vision pass away,
When its bright tints a mask have been
To hide a heart of common clay.

I'll blame thee not—for I, perchance,
May learn the trick of gladness well,
And none shall mark upon my brow
A trace of joy or pain to tell.
I'll blame thee not—for I will care
No more to bind a restive heart,
Though every joy my life can know
Should with its passion-dream depart.

LAW AND LAWYERS.

BY JOHN NEAL.

“Once more into the breach, dear friends:
Draw, archers, draw your arrows to the bends!”

WITH all my heart, Graham! But inasmuch as the lecture you want a copy of has never been reduced to writing, though portions have appeared from time to time in the newspapers of the day; and I have no notes worth referring to, I dare not pretend to give you the language I employ; for, between ourselves, that depends upon the weather and the House, to say nothing of my temper at the time. For example; if I see before me a goodly proportion of what are called the *learned*, or the *educated*, I never mince matters—I never talk as if butter wouldn’t melt in my mouth, but go to work with my sleeves rolled up, as if I heard a trumpet in the hollow sky. In other cases, where the great majority of my hearers happen to be neither learned nor educated—though there may be a sprinkling of both—I am apt, I acknowledge, to wander off into familiar every-day illustrations—perhaps into down-right story-telling, or what my brethren of the bar would be likely to denominate *unprofessional* rigmarole. But the substance of my preaching for many years upon this subject, and the “thing signified,” and the general arrangement, under all sorts of provocation, I think I may venture to promise you.

Bear in mind, I pray you, that phantoms under one aspect, may be more terrible than giants, cased in proof, under another. Every great mischief, being once enthroned or established, is a host of itself.

In the open field, lawyers are not easily vanquished—out-manœuvred or overborne. Walled about, as with a triple wall of fire—or *brass*?—high up and afar off, their intrenchments are only to be carried by storm. They must be grappled with, face to face. No quarter must be granted—for no quarter do they give—no mercy do they show, after their banners are afield.

“Up, guards! and at ’em!” said Wellington, at the battle of Waterloo; and so say I! whenever I see my brethren of the bar rallying for a charge.

They will bear with me, I hope—as I have borne with them for twenty-five years; for, while I complain of their unreasonable ascendancy throughout our land, of their imperious, overbearing, unquestioned domination, I acknowledge that, constituted as we are—WE, the People—we cannot do without them—and the more’s the pity. Law we must have, and with it, as if by spontaneous generation—lawyers, till Man himself undergoes a transformation, and his very nature is changed. Both are necessary evils—much like war, pestilence, and famine, or lunatic-asylums, poor-houses, and penitentiaries; or apothecaries’ shops, with their adulterous abominations; and every other substitute for, and abridgment of, human liberty, human happiness, the laws of health, or the instinct of self-reliance. If men will not do as they would be done by; if they will not be “temperate in all things”—then they deserve to be drugged, and blistered, and bled here by the doctors, and there by the lawyers, till they have come to their senses, or can no longer be dealt with profitably by either; for, although every man, according to the worthy Joe Miller, may be his own washerwoman—at least in Ireland—it is very clear that in this country, he might as well undertake to be his own jailer, as his own lawyer.

I would go further; for, like the illustrious Hungarian, I desire to conciliate and satisfy, not the few but the many; not only my brethren of the bar, but everybody else worth satisfying; I would even admit—and how could I well go further, and “hope to be forgiven?”—that, in view of Man’s nature, as developed by our social institutions, Law and Lawyers both, may be, and sometimes are, under special circumstances, not only a necessary evil, but a very good thing. *There!* I have said it—and let them make the most of it. I mean to admit all I can—and much good may it do them! But then, I would ask, if we may not have too much, even of a good thing?

I hold that we may; and I appeal for proof to the countless volumes of law which cannot be understood by any but lawyers; nor by any two of them alike, till every other word, perhaps, in a long paragraph has been settled by adjudication—two or three different ways—after solemn argument.

I appeal to what is called the administration of justice, by jury-trial, in our courts of law, where twelve ignorant, unreasoning men, got together,

nobody knows how—hit or miss—are held to be better qualified—being bound by their oaths to think alike in most cases, and to return a unanimous verdict, whether or no—than Lord Chancellor Bacon himself, or Chief Justice Marshall would be, to settle any and every question, however new, and however abstruse and complicated, upon every possible subject that may happen to be brought before them for the first time in all their lives! And this, without any previous knowledge on their parts, or any other preparation by the lawyers who are to enlighten them, than may have been made the night before, by “reading up,” or “stuffing” for the occasion.

I appeal, moreover, to the testimony of the sufferers themselves—*parties*, they are technically called—who, after being scorched, and sifted, and harassed, and pillaged, under one pretence or another, year after year, and within an inch of their lives; or driven well-nigh distracted by the vicissitudes and anxieties incident to every well-managed law-suit, where “good pickings” are to be had, or by that hope-deferred “which maketh the heart sick,” begin to get their eyes opened, and to see for themselves, and are sometime ready to acknowledge for the help of others, who are elbowing their way up—or down?—to see the elephant, that when they pass over the threshold of those gambling-houses, that are established by law, under the name of Courts of Justice, and put up their stakes, they will find three times out of four—perhaps nineteen times out of twenty—that when the raffle comes off at last—with the jury-box—it is to decide, not which of the two parties litigant—plaintiffs or defendants—but what third party—the lawyers—shall sweep the board.

And I might appeal to the swarming thousands of our younger professional brethren, who, ashamed to beg, afraid to steal, and too lazy to work, instead of following the business of their fathers, taking their places, and maintaining themselves honestly, give way to a foolish mother, or sister, or to some greater simpleton still more to be pitied, or to a most unhealthy ambition—that of being an *Esquire*, and a pauper, with very white hands, who, having studied law, will have to be provided for at last by marriage, or office; and with that view have literally taken possession of our high places, our kneading-troughs and our bed-chambers—after the fashion of their predecessors in Egypt.

Nay, more—I am ready to acknowledge, and I do for myself, my executors, administrators and assigns—or publishers—hereby

acknowledge, and I hope with no unbecoming nor uncourteous qualification, that, taken together, as a power, body, or estate, the Lawyers of our land are to the full as honest—and as trustworthy—by *nature*—as any other power, body or estate among us, of equal numbers, wealth, dignity, or intelligence; notwithstanding the opinion so generally entertained, and so often expressed, to their disadvantage, in the plays and farces, or newspapers and story-books of the day, (not always, nor altogether synonymous, I hope;) but no honester, and no more trustworthy; for, although I believe—and I mean just what I say—that no *great advocate*, in the popular sense of the words, can be an honest man, however conscientious he may be out of court, or in other business; and however anxious he and others may be to distinguish between the Advocate and the Man—as if a lawyer were allowed two consciences to practice with, and two courts—one above and the other below—to practice in; yet I believe that a great Lawyer, or Jurist, like Sir Matthew Hale, or Chief Justice Marshall, or Chancellor Kent, or any one of a score that might be named, or Judge Parsons, being translated to the bench, from the corrupting influences and stifling atmosphere below, may be a very honest man; just as I believe—and I don't care who knows it—that silver spoons and watches left within striking distance of an attorney at law—I am only supposing a case—may be safe, “notwithstanding and nevertheless.”

By *nature*, I say, and not by education, habit, or association at the bar. Away from the bar, I acknowledge the integrity of my brethren as equal to that of any other class whatever. And this being admitted—what more would they have? Would they claim to be honester and more trustworthy than any other class, either by education or nature?

But observe; though ready to acknowledge their honesty, by *nature*, as men; or rather, while I acknowledge that they are, to the full, as honest as other men are by *nature*—but no honester; and as trustworthy in all other relations, apart from law—as good but no better, I maintain that they are constantly exposed to such disqualifying temptations, and to such disastrous influences peculiar to their profession; that they have established a code of morals for themselves, as lawyers, which would not be allowed to them as citizens; and which, if openly avowed and persisted in, by brethren out of the profession, would be sure to send them to the penitentiary; that they have altogether too much power in this country—a power out of all proportion to their numbers, their talents, their intelligence, their virtues,

and their usefulness; and that, instead of being chosen for lawgivers throughout our land, in a proportion varying from three-fifths to nearly seven-eighths, in all our legislative bodies, they are the very last persons among us to be intrusted with the business of legislation—having a direct personal interest in multiplying our laws—in altering them—and in making them unintelligible to all the rest of the world.

Not satisfied with their pay, as legislators, for making the law, varying from two to ten dollars a-day—with washing and mending, where washing and mending are possible—they require, as lawyers, from twenty-five to one hundred dollars a-day for telling, or rather for guessing what it means.

And what is the result? Just this. That a privileged body, anointed for office and power, who, but for the blindness and prodigal infatuation of the People, would often be the nobodies of every productive or efficient class, are enabled to fare sumptuously every day, wear purple and fine linen—at the expense of others—all their lives long; and to carry off all the honors from every other class of the community. Think of this, I pray you; and bear with me, while I proceed with my demonstration.

That they have learned to reverence themselves, and all that belongs to them, I do not deny; but then, if it is only themselves, and not the image of God—if it is only what belongs to themselves and to their estate, or craft, as lawyers, and not as Men, they so reverence—in what particular do they differ from other self-idolators?

Are We, the People, to be concluded by their very pretensions? Are We to be estopped by the very deportment we complain of? Because they are exacting and supercilious, and self-satisfied, and arrogant, and overbearing, are we to be patient and submissive? Are we to be told, if not in language, at least by the bearing and behavior of these gentry, that, inasmuch as all men may be supposed to be best acquainted with themselves, therefore Lawyers are to be taken by others at their own valuation?

Let it be remembered that they who properly reverence themselves, always reverence others. But who ever heard of a Lawyer with any reverence—worth mentioning—for anybody out of the profession? This, to be sure, is very common with ignorant and presumptuous men. It is the natural growth of a narrow-minded, short-sighted, selfish bigotry. A mountebank or a rope-dancer will betray the same ridiculous self-complacency, if hard pushed. Were you to speak of a great man—Kossuth,

for example—in the presence of a fiddler, who had never heard of him before, he would probably crook his right elbow, and cant his head to the left, as if preparing to draw the long bow, or go through some of the motions common to all the great men he had ever been acquainted with, or heard of, or acknowledged, before he questioned you further.

It would never enter his head that a truly great man could be any thing but a fiddler; a Paganini dethroned perhaps—like Peter the Great in a dockyard—or that “any gentleman as was a gentleman,” could ever so far forget himself in *his* company, as to call a man great who was no fiddler.

“What do they say of me in England?” said the corpulent, half-naked savage that Mungo Park saw stuffing for a cross-examination under a bamboo tree in Africa.

Just so is it with our brethren of the bar. Law being the “perfection of Reason,” and her seat “the bosom of God,” they, of course, are the expounders or interpreters of both; a priesthood from the beginning, therefore, with the privilege and power of indefinite self-multiplication. The sum and substance of all they know, and all they care for under Heaven, if they are greatly distinguished, being Law, what else could be expected of them? If they are great lawyers they are never any thing else—they are never statesmen, they are never orators—they are never writers. Carefully speaking, Daniel Webster is not a great lawyer—nor is Henry Clay—nor was Lord Brougham; but they were advocates, and orators and statesmen. Sir James Scarlett and Denham were great lawyers, before whose technical superiority and sharp practice Lord Brougham quailed and shriveled in the Court of King’s Bench. But when they encountered each other in the House of Commons—what a figure the two lawyers cut, to be sure, in the presence of the thunderer! They were phantoms, and he the Olympian Jove. William Pinkney was a great lawyer; but for that very reason he was out of place in the Senate chamber, and made no figure there.

But even for this they have a justification—or a plea in bar. The law is a “jealous mistress,” we are told, and will endure no rival; a monarch “who bears no brother near the throne.” And well do they act upon this belief; and well do they teach it by precept and by practice; for few indeed are they, even among the foremost, who have gathered up, in the course of a long life, any considerable amount of miscellaneous knowledge, notwithstanding the reputation they sometimes acquire, in a single day, by their insolent

questioning of learned, shy and modest professional men, or experts, after they have once got them caged and cornered, and tied up hand and foot in a witness-box, and allowed to speak only when they are spoken to; there to be badgered for the amusement of people outside, more ignorant, if possible, than the learned counsel themselves; but incapable of seeing through the counterfeit, which, while it makes them laugh, makes the “judicious grieve;” and mistaking for cleverness and smartness the blundering audacity of an ignorant and garrulous, though privileged pretender, who does not know that it often requires about as much knowledge of a subject to propound a safe and proper question, as to answer it: nor that the veriest blockhead may ask twenty questions in a breath, which no mortal man could ever answer, and would not even try to answer, unless he were a still greater blockhead.

And now, having swept the stage fore and aft, and secured, as I trust, a patient hearing from the profession, let us go to work in earnest.

I maintain that among the popular delusions of the day, there is no one more dangerous nor alarming than that which leads our People to believe that they constitute a republic and that they govern themselves, merely because they are allowed to choose their own masters; *provided* they choose them out of a particular class—that of the lawyers.

At the opening of every great political campaign, we hear a great deal about the privileged classes; the ruffled-shirt and silk-stocking gentry: and sometimes men prattle about the aristocracy of talent, or the aristocracy of wealth—but who ever heard any complaints of our legal aristocracy—an oligarchy rather—for they make all the laws, they expound all the laws, and they hold all the offices worth having—in perpetuity.

And whose fault is it? If the People are such asses, why should they not be saddled and bridled, and ridden in perpetuity? It is their nature. They are prone to class-worship, and to family-worship—to self-depreciation, and to a most incapacitating jealousy of one another. Even in the day of the elder Adams, it was found that the office of a justice of the peace, like that of a legislator, was well-nigh hereditary in New England. Having anointed the father, how could they help anointing the son?—or the daughter’s husband, if the father had no son?

And now, let us look at the consequences. From Aristotle down to the last elementary writer on Government, it has been every where, and at all

times, acknowledged, that every possible kind of sway upon earth, between Despotism and Anarchy, may be resolved into three elements of power, differently combined, or combined in different proportions. These elements are: 1. The Legislative, or law-making power; 2. The Judicial, or law-expounding power; and 3. The Executive, or law-enforcing power.

Taken together we have what is called the Sovereign Power. The power of making laws, of saying what they mean, and of carrying them into execution being all that is ever needed for government.

And this, the Sovereign Power, may be concentrated in one person, whence we have the Czar, the Sultan, or the Autocrat; or it may be confined to a few—as in Sparta, or Genoa, or Venice, or Poland—constituting either an Aristocracy or an Oligarchy; or it may be distributed among the people equally, as at Rome or Athens at particular periods of their history, when they were a tumultuous unmanageable Democracy: or unequally, as in England, or in these United States, thereby constituting a Limited Monarchy, or a Representative Republic, pretending to a balance, by the help of a King or President, a House of Lords, or a Senate, and a House of Commons or a House of Representatives, and a Judiciary, more or less dependent upon the Executive.

Of all these different systems the worst by far is an Oligarchy—or the government of a privileged few—no matter whether elective and shifting, or permanent, provided that, as a body or estate, they are allowed by common consent to make the laws—to expound the laws—and to carry the laws into execution, by holding all the offices worth having, from that of the monarch or president, down to that of a clerk or sergeant-at-arms.

True it is, that by no human contrivance can the three elements of power above mentioned, be kept entirely separate—for they will run into each other—as where the Supreme Executive is allowed a veto, or required to sanction a law: and where the Senate, as a branch of the Supreme Legislative power, intermeddles with the appointing power of the Executive under the name of confirmation; and where the Supreme Judiciary, after being appointed by the Executive and confirmed by the Senate, are made dependent upon that other branch of the Supreme Legislative power for the payment of their salaries—the House originating all money bills and voting supplies—turn about, in their capacity of Supreme Judges, and are allowed

to unsettle, if they please, by their interpretation, whatever the Supreme Legislative power may choose to enact for law.

But although these three elements can never be wholly separated—it does not follow that men, who desire to be well-governed, should not try to separate them and to keep them separated as far as they can. Still less, that because they cannot be wholly separated, they shall therefore be encouraged to run together and to crystalize into a mischief that may never be resolved again but by the process of decomposition.

And now, I contend that, in effect, WE, the People of these United States, are governed by an Oligarchy; and that, by being allowed to choose our own masters—provided we choose them, or at least, a large majority of them, out of a particular class—we are blinded to the inevitable consequences: till we mistake words for things, and shadows for substances: and that our mistake is all the more dangerous and alarming that we cannot be persuaded to treat the matter seriously.

I contend, moreover, that, inasmuch as the Lawyers of our land make all the laws; and as Judges expound all the laws, and as office-holders carry all the laws into execution, therefore they constitute of themselves the Sovereign Power.

Are the facts questioned? In the Massachusetts legislature, we have had two hundred and sixty lawyers out of three hundred and fifty members; and in congress we had not long ago, the same number, two hundred and sixty lawyers out of two hundred and ninety-seven members—the balance being made up in this way. Manufacturers and farmers, fifteen: Merchants, one: Unknown, (being mechanics or preachers, or something of the sort,) twenty-one. Perhaps there may be some error here, as I find the only note I have upon the subject so blurred, that I am not sure of the figures; but the fact on which I rely is too notorious to be questioned. Every body knows that lawyers constitute a large majority in all our legislative bodies, and have done so for the last fifty years; and that they make about all the speeches that are made there, or supposed to be made there, and afterward reported by themselves for the newspapers. Can it be doubted therefore, that they as a body do in fact and in truth constitute our supreme legislative power—thereby absorbing to themselves just one third part, and by far the most important part of our whole sovereignty as a people.

As little can it be seriously questioned that, inasmuch as all our judges, from the highest to the lowest are lawyers; or ought to be, as they are always ready enough to acknowledge—they constitute the supreme judiciary; another third part of our whole sovereignty as a people.

And now let us see how the account stands with the Executive Power. Are not our presidents, and have they not been from the first—with only three exceptions out of twelve—lawyers? And our vice presidents; and all our secretaries of state; and most of our secretaries of war, and of the navy; and about all our foreign ministers; our chief clerks, our post-master generals; our collectors; our land agents; and even a large proportion of our foreign consuls—have they not always been, and are they not always with an ever increasing ratio—Lawyers? And if so, what becomes of the other third part of our whole sovereignty as a people—the Executive Power? It is in the hands of the lawyers; and as three thirds make a whole—out of the courts of law, I mean—does it not follow that the whole sovereign power of this mighty people—of this great commonwealth of republics—this last refuge of the nations is in the hands of our lawyers, hardly a fraction of the whole?

Oh! but we have nothing to fear. Lawyers are always at loggerheads. They are incapable of working together, even for mischief. Granted—and there, let me tell you is our only safety, and our only hope. But, suppose they should wake up to a knowledge of their own strength—and of our weakness—who shall say that they must always be incapable of conspiring together? And if they did—when should we begin to perceive our danger? Would they be likely to tell us before-hand? Or would they go on, year after year, quietly absorbing office, power, and prerogative, as all such bodies do; until they had become too strong for the great unreasoning multitude. With public opinion—with long established usage in their favor—with a sort of hallucination, hard to be accounted for in a jealous people; acquainted with history, what have they to fear? Neither overthrow nor disaster—till the people come to their senses and wake up, and harness themselves; and then, they are put upon trial, as with the voice of many thunders; and instantly and forever dethroned, as by an earthquake.

But you do not see the danger. Granted. And this very thing is what I complain of. Did you see the danger there would be some hope of you; and it would soon pass away forever.

But suppose we take another case for illustration. Suppose that three-fifths of all our law-makers were soldiers instead of lawyers. Suppose that all our judges from the highest to the lowest were soldiers; and that all our presidents, and secretaries, and foreign ministers, and collectors, and consuls—with here and there an exception—were all soldiers; most of them experienced soldiers—veterans; and the others, conscripts or new levies—what would be the consequences, think you? How long should we be at peace with the rest of the world? How long would Cuba, Mexico, or the rest of North and South America be unattempted? Would not our whole sea-coast, and all our lakes and rivers, and all our frontiers be fortified and garrisoned? Would there not be great armies constantly marching and counter-marching through our midst? Would not our very dwelling-houses and churches be wanted for barracks—and if wanted, would they not be taken by little and little?

Would not all our young men be mustering for the battle-field? Would not foolish mothers, and sisters, and sweet-hearts, be urging them to try for a shoulder-knot or a feather, as the only thing on earth to be cared for by a young man of spirit and enterprise?

Look at Russia. The military have dominion there—and all the rest of the world are slaves. The greatest men we have, not bearing a military title, would be overlooked by the emperor, while any thing in the shape of a general, though he never “set a squadron in the field,” and was never heard of beyond the neighborhood of a militia muster, would be fastened on horseback, and have thousands and tens of thousands, from the harnessed legions of the north, passed in review before him. What wonder that in such a country, the very nurses of the bed-chamber; yea, the very bishops of the land have military titles, and are regularly passed up through successive grades, from that of a platoon officer to that of a colonel, and perhaps to that of a field-marshal, by the emperor himself.

Yet soldiers are at least as trustworthy, are they not—as lawyers?

Take another case. It will not be denied, that physicians on the whole, are about as intelligent and trustworthy as lawyers. Now, let us suppose that, instead of being as in the Massachusetts legislature, eighteen to two hundred and sixty—in a body of two hundred and ninety-seven; they should happen to be two hundred and sixty physicians, to eighteen lawyers, and that in our other legislative bodies they should constitute a majority of the

members: that all our presidents, and secretaries, and foreign ministers, and chief clerks, and post-masters, and collectors, and consuls, were physicians; or as many as are now lawyers: and that all the laws were made subject to the decision of a bench of doctors, eminent for the knowledge of medicine, and for nothing else—what, think you, would be the situation of our people under such an administration? Would any mortal man dare to refuse any pill the president might offer? Would not our dwellings and churches be converted—not into barracks, but hospitals? Would not millions be lavished upon theories, and experiments, and preparations for pestilence? Would not the whole country be divided into contagionists, and non-contagionists—parties for, and parties against the yellow fever and the cholera? Would not platforms be established, and pledges required, and offices filled—here by the believers in allopathy, and there by the disciples of homeopathy? To-day, by the rain-water, screw-auger, and vegetable doctors; and to-morrow, by the unbelievers in lobelia, bella-donna, and pulverized charcoal, or infinitesimal silex? In a word, if the government were allowed to have its own way—and after they were established as the lawyers are now, how could you help it?—would not the president, and all his secretaries be obliged to prescribe for the sovereign people—or suffering people—gratuitously; and would not the whole country be drugged, and physicked, and bled and blistered—samewhat as they are now—and would not all our finest young men be rushing into the apothecary shops, and lying-in hospitals, and clinical establishments for diplomas—to qualify them for the business of legislation, and for holding office?

And again. Suppose we had as many preachers of the Gospel for lawgivers—for presidents, secretaries, ministers, etc., and for judges—what would be our situation? However they might differ among themselves upon the minor points of their faith and practice, would they not combine together? And would it not be their duty to combine, for the establishment of whatever opinion they might all, or a great majority of them, have agreed to uphold, as vital to Christianity? And how could we help ourselves? And what would become of our ambitious young men, or still more ambitious daughters? And what—I beseech you to think of this—what would become of the right we now claim of judging for ourselves upon all subjects, that in any way belong to our everlasting welfare? Yet these men are honest, and taken together, are they not as trustworthy and conscientious under all circumstances, think you, as our present masters, the lawyers? And if so,

would they—or would the physicians, or the soldiers be a whit more dangerous? Answer these questions for yourselves.

But I have not finished. I hold that the professional training of a lawyer disqualifies him for the very business, which might be entrusted with comparative safety to the soldier, the physician, or the preacher.

And wherefore? Because it substitutes a new law for the law of God. He that by his professional adroitness can secure the escape of the bloodiest and most atrocious criminal from justice, in spite of the clearest proof, obtains a reputation, and with it correspondent advantages in wealth, influence, and power, which under no other circumstances could he obtain. It is the worst cases, whether criminal or civil—cases which he gains in defiance of law, and against evidence—which give a lawyer reputation. To win a cause which every body says he ought to win, *that* never gives a man reputation, and is therefore committed to the nobodies below him. But, if there be a case beyond the reach of hope or palliation; clear and conclusive against the party, so that our very blood thrills when he is mentioned, and no human being supposes he can get clear; still if he does get clear—no matter how—by browbeating or bothering witnesses; by bamboozling the jury, and misrepresenting the evidence under the direction of the court; or by down-right bullying; the advocate is complimented by his brethren of the bar, and even by the bench; for his learned, ingenious, and eloquent, and faithful vindication of his client; and he goes forth, carrying with him these trophies,—and others, it may be—dabbled and stained with blood, like the murderer's knife, with “the gray hair stickin’ to the haft,” only to be retained in advance by every desperate ruffian, and every abandoned wretch, who may happen to hear of the result, and to have the where-withal to secure his timely co-operation.

Just observe how this affair is managed. If a father should give aid and comfort to a child, after she had been guilty of murder; if a husband should open his doors to a wife, or a daughter to her father, at dead of night; or furnish a horse, or money, or a mouthful of bread, or a cup of cold water, or the means of escape to a beloved brother, hunted for his life, with the avenger of blood at his heels, time was, when they were all accessories after the fact, and were treated as murderers or principals, whatever might be the offense, and put to death accordingly; and even yet, although that most barbarous law has undergone a few changes, so that in some portions of our

country, they who stand in the relation of husband and wife, or parent and child, may help one another when fleeing for their lives; yet no other man, woman, or child can do it, in the whole community, but at the risk of death or imprisonment for life—*except he be a lawyer*, and the prisoner's counsel. And then he may, and he not only may, but he is expected and required to do so: in other words, to aid and comfort, counsel and help the prisoner, heedless of all consequences, here and hereafter. And for this, he may receive the very gold which has been wrenched from the grasp of the murdered man; or the bank bills that are glued together by his heart's blood; and nobody shall dare to question his integrity, or to have any secret misgivings about his honesty or conscientiousness—if it can be helped.

Let me not be misunderstood. I do not deny that the worst of criminals are to be tried fairly. I acknowledge, moreover, that they cannot be tried fairly with men of the law against them, unless they have lawyers to help them: and that it is as much a part of the law that they shall be tried in a certain way, and proved guilty in a certain way, for the satisfaction of the world, as that they shall be punished at all; and that, if it were enough to be satisfied of another's guilt as a murderer, to justify us in putting him to death, without going through the regular forms of law, then might we run him up at the next yard-arm, or tree branch, or lamp-post; on happening to see the bloody act perpetrated with our own eyes.

But how should we know even in such a case, that “the man was not beside himself;” or that the homicide was not justifiable, or at least excusable? He may have acknowledged his guilt. And what if he has? He may have been mistaken; for such things have happened, and murders which never took place—though intended—have been acknowledged, and the missing parties have re-appeared after a long while, and explained the mystery. Or he may have been deranged; or being accused, and as it were enmeshed by a web of circumstances, he may have been led away like the son, who charged himself and his aged father, in Vermont, with the murder of a poor helpless creature, who was afterward found alive, by the instinct of self-preservation; hoping to lengthen, if not to save his life, at least until his innocence might be made to appear; and believing his father guilty.

To prove all these things there must be a trial, and a public trial; otherwise, whatever may be the result, he will not be *proved* guilty,

according to the law and the evidence; nor could he be justly condemned; and there would be no safety for others.

No matter how clear his guilt may be; nor how bad his character may be; the greater his guilt in the judgment of those who decide against him before trial, and without evidence upon oath, or sifting, or cross-examination—the more precious to him and to all, is the privilege of being put to death according to law. The fewer his rights, the more sacred they are. The more decided and overwhelming the evidence against him, the more necessary it is to wall him round about, as with a sword that turneth every way, against the influence of public opinion. It was in this way that the elder Adams reasoned, when he undertook the defense of the British officer, charged with the murder of Boston citizens, at the outbreak of the revolutionary war—and triumphed.

And how shall this be done without the help of a Lawyer? Law, living a science, complicated, and full of mystery and fear, how is the poor criminal to prepare himself? How is he to defend his few remaining rights? And how is he to bear up against the ponderous and crushing weight of public opinion? He cannot. The thing is impossible. He must have help; and that help must be a lawyer; and that lawyer must be not only faithful to him, but unable to take advantage of, or to betray him, if he would; otherwise the culprit will never trust him, and his life will be at the mercy of the prosecutor, generally chosen for his knowledge of the law, and for his adroitness in making “the worse appear the better reason.”

Well, then, a lawyer must be allowed to the greatest criminal—and the greater criminal he is, the more lawyers he ought to be allowed—if able to pay for them! or if the court, in consideration of his deplorable and hopeless guilt, or the atrocious character of the charge against him, be willing to assign them.

And now—being assigned, or otherwise engaged, what shall the *honest* lawyer do? He must be faithful to his client, happen what may—but is he required to lie for him? to foreswear himself? As “the indiscriminate defender of right and wrong,” to borrow the words of Jeremy Bentham, “seeking truth in the competition of opposite analogies,” according to Blackstone, shall he undertake to get the fellow clear—to bring him off—against law, and against evidence? If such be the meaning of that faithfulness to his client, what becomes of his faithfulness to God?—to his

fellow man—to himself? And yet, where is the great Advocate who does not glory in doing just this? and who has not gained his whole reputation by just such cases, and no others?

There stands the murderer, with garments rolled in blood. There stands his counsel, giving him aid and comfort, under the sanction of law, with his right hand lifted to Heaven, and swearing to a belief in the utter groundlessness of the charge, and calling upon Jehovah himself to witness for him, that he speaks the truth! Such things have happened, and are happening every day; and these honest lawyers are still suffered to go at large, unrebuked and unappalled: nay, worse—for by these very practices they get famous and grow rich and secure the patronage—that's the very word—the *patronage* of all the inexorable and shameless villains and cut-throats in the community.

But if the lawyer may not do these things *honestly*, what may he do for the help of his client?

He may lay his hand reverently upon the statute book. He may show that the law does not reach the case charged upon the prisoner at the bar, and that he must therefore go free—though his right hand be dripping and his garments be stiffened with blood.

He may show that the only witness against him is unworthy of belief, on account of self-contradictions, or utter worthlessness; or that he has become disqualified, by the commission of some offense that incapacitates him for life; and, by producing the record of his conviction, he may oblige the court to let the prisoner go free. All this he may do, and still be an honest man.

Yet more. Having satisfied himself of the innocence of the accused; or of the probability that the witnesses are mistaken, or dishonest, or that they have conspired together to destroy a fellow creature, doomed to death by public opinion without proof; he may put forth all his strength, and appear in “panoply complete,” heedless of all consequences, to save him—provided only that he sticks to the truth, and is honest in what he says or does. I care not how eloquent he may be, nor how able or ingenious—the more eloquent and able and ingenious the better, and I shall reverence him all the more as an Advocate and as a Man.

But I do insist upon it, that he shall not be allowed to forget every thing else—and every other obligation—and every other law, whether divine or human, for the sake of his client; and that if he does, he shall be held

answerable for the consequences, and be punished, as he deserves, with a burst of indignation—a general outcry of shame on thee for a traitor!—a traitor to thyself, to thy Maker, and to thy brethren at large, under pretence of being faithful to a murderer whom it would be death, perhaps, for his own mother to help or comfort in any way.

I would even allow him to urge upon the jury, not only in such a case, but in every case where the punishment might be death, to bear in mind, that no matter how perfectly satisfied they may be of the prisoner's guilt; still, if he has not been *proved guilty*, by unquestionable evidence, or by unimpeachable witnesses, according to law, they are bound by their oaths to return a verdict of *not guilty*; and if they do not, they themselves are guilty of murder.

Otherwise they would sanction the most dangerous of Lynch-laws; those which are executed under the forms of justice, and in mockery of all human right.

If *satisfied* of the prisoner's guilt, they must have seen the murder perpetrated with their own eyes; and they must have known that there was no excuse for it, and no palliation: and in that case, instead of relying upon questionable testimony from others, it would be their duty to leave the jury-box and go into the witness-box, and allow others to judge of the truth of their story, and of the soundness of their conclusions.

And I would allow the accused the benefit of every flaw on the statute, of every error in the forms of procedure, and of every *reasonable* doubt. I would even suffer him to array as many young and pretty women as he could entrap into the witness-box fronting the jury—although, perhaps, I might object to their appearing in tears or in mourning, like the Ionians and Greeks and Irish, lest, peradventure, the tables should be turned, as where an Irish barrister, pleading the cause of a little orphan, with the mother and all the rest of the family standing about with handkerchiefs to their eyes, held up the boy in tears. The jury, overcome with sympathy and compassion, were about rendering a verdict at once, and were only delayed by a question from the opposite counsel—"My little fellow," said he, "what makes you cry?"—"He *pinched me!*" was the answer, and a verdict was rendered accordingly—as the Irish only are allowed to do it—by *acclamation*.

And I should not stop here. I would go further. For the purpose of fixing forever and ever the responsibility of a decision upon each of the twelve jurymen—I would have them polled, and questioned separately, and man by man (if permitted by the law,) and not lump their verdict, as they generally do, hit or miss: and I would call upon each to remember that if he erred in pronouncing the judgment of death—of death here, and it might be of death hereafter, he alone would be accountable—for he, alone, might interpose if he would, and arrest that judgment of death, and send the prisoner back to his family—a living man: and I would so picture his own death-bed to every man of that jury, if I had the power, that he should hear himself shrieking for mercy, and see and feel and acknowledge by his looks, that if he betrayed the awful trust, or trifled with it, by deference to others, he himself would be a man-slayer, and utterly without excuse here and hereafter, in this world or the next.

All this I would do, or try to do: for all this might be done by the *honest* lawyer without a violation of God's law. But, as I have said before, I would not have him “play falsely,” nor yet “foully win.” I would not have him brow-beat nor entrap honest witnesses. I would not have him guilty of misrepresenting the evidence nor the law “with submission to the court.” I would not have the opposite counsel insulted, nor the bench quarreled with—if it could be helped—

“——For even in the tranquildest climes
Light breezes *will* ruffle the flowers sometimes.”

Nor everlasting speeches made, with continual asseverations and solemn appeals to the by-standers and the public; as if the question of life and death were a game of chess for the amusement not only of those who are engaged in it, but for all who may happen to be near and looking on at the time.

And I would have the dignity of the profession upheld by courtesy and gravity and self-possession—by varied learning—by the utmost forbearance—by very short speeches—by the greatest regard for truth, and by unquestionable conscientiousness under all circumstances.

Were this done, the Bar would be sifted and purged and purified to some purpose. Nineteen twentieths of the rabble rout who mistake themselves, and are mistaken by others for lawyers, would vanish from the face of the earth—and the profession would then be not only respectable, but worth

following; though, in my judgment, lawyers would still be the last among us to be intrusted with a disproportionate share of Legislative or Executive power; though, from the nature of things they would be likely to monopolize the whole Judiciary power.

That our leading Advocates will not relish this doctrine, I know. In theory, they may approve—but in practice, when they and their interest, and their professional pride are once engaged, they will never yield. Always taking it for granted that their client tells the truth—in proportion to the fee; and always determined to prevail, if they can, right or wrong, their reformation will depend, not upon themselves, but upon others—upon the People at large; for whenever the People say that a professional acquaintance with law shall be a disqualification for the business of law-making, and no great recommendation for office, then will the lawyers of our country begin to mind their own business, and cease to be mere politicians, clamoring, open-mouthed, for office all their lives long.

And here, lest I may forget them in the proper place, allow me to illustrate the disposition of the People to see fair play, by two or three—Joe Millers, which I never lose an opportunity of telling under this head. They show that my brethren of the bar sometimes get their “come ups” where they least expect it—and very much to the satisfaction of the multitude.

It is told of Jere. Mason, and of some forty others at home and abroad, that on being assigned for counsel to a sad wretch whose case he found to be hopeless, he went to his cell, and after hearing his story, became satisfied that the poor fellow would swing for it, if tried; and so, seeing a sort of window open, high up and far above the prisoner’s reach if unhelped, he suggested to him that there was a beautiful prospect to be seen from that window—perhaps “the high-road to England,” which the amiable Dr. Johnson said was the finest prospect a Scotchman ever sees—and then, seeing the prisoner’s eyes begin to sparkle, he offered himself as a sort of ladder or look out, and standing with his back to the wall, and letting the man climb over him, he never looked up till it was too late, and the man had disappeared—whereupon he returned to the court-room, and on being questioned, acknowledged that he had given the fellow the best advice he could—which advice must be a secret from everybody, since it was the privilege, not of the counsel, but of the client.

All this, you see, was according to law, if not in fact, at least in principle. A Lawyer might do this—and escape scot-free, as if it were only a good joke: while a brother of the prisoner, or a father, might have been sent to the scaffold.

Another, for the truth of which I *believe* I may vouch, because I had it, I think, from the lawyer himself, may serve to show that such faithfulness to clients may sometimes meet with an appropriate reward. A member of the Down East bar was called upon to save a man charged with passing a large amount of counterfeit money. After a long and severely contested trial, our “learned, eloquent, and ingenious” brother got him clear—chiefly by dint of protestation, coupled with a personal knowledge of the jury. On being discharged, the accused tipped him a wink in passing out, and our learned brother followed him to the lobby. There they stopped—the liberated man overwhelmed with thankfulness, and speechless with emotion; being a father, perhaps, with a large family, or a man of hitherto irreproachable character, who never knew how much he was to be pitied till he heard the speech of his lawyer. Unable to speak—he seized his hand—slipped something into it—and turned away, with a word or two, almost inaudible, about the inadequacy of the acknowledgment, and disappeared forever. Whereupon, our eloquent, able, and most ingenious friend, who was a little shy of opening the parcel in the presence of a bystander, withdrew to another part of the house, and ascertained—perfectly to his own satisfaction, he would have you believe—that he had been paid in the same sort of money which he had been laboring all day to show that the accused never had any thing to do with. And now, on the whole—was not this a capital joke?—a just retribution, and exceedingly well calculated to make a lawyer insist upon being paid before-hand, whatever might be the “contingent fee” afterward.

Once more—for I do not like being misrepresented in the newspapers upon this particular point—being sensitive perhaps about Joe Miller; and, for that reason, always acknowledging my indebtedness to him and to his fellow-laborers, the newspaper people, who never tell a story without spoiling it, or making it look strange: there is a story told in England, upon which a play has been founded, to this effect. A lawyer was called to see a man charged with sheep-stealing. After a brief consultation, he saw clearly that, upon the evidence before him, there was no possibility of escape. And then, too—probably—the wretch was very poor, being only a sheep-stealer,

and not a murderer, nor forger, nor house-breaker, nor highwayman, and of course, would have to be satisfied with poor counsel. Whereupon the learned gentleman thought proper to ask him if he had ever been deranged.

“*Deranged?*”

“Flighty—you understand?”

“Oh—yes—to be sure: all my family on my father’s side have been very *flighty*—very.”

“That’ll do, my friend; that’s enough. You are charged with stealing sheep—you know.”

The fellow began to roll his eyes and look savage.

“When you are called upon to plead—you know what that is?”

“To be sure I do.”

“Well, then, just plead to the indictment by saying *baa-aa!*”

So said—so done. The prisoner was arraigned. The indictment was read over to him very slowly as he sat with his head on one side, looking as sheepish as possible. And when they had got through, and he was called upon to say *guilty* or *not guilty*, he answered, by saying *baa-aa!*

The court being rather astonished, interfered, and told him what he was required to do; but still he answered nothing but *baa!* Read over the indictment again, said the judge, and read it very slowly. The clerk obeyed, and when he had got through, and was again required to say *guilty* or *not guilty*, he answered, as before, nothing but *baa-aa-aa!*

A jury was then impaneled to see if he stood mute “by the visitation of God.” After looking at his tongue—and his eyes—and feeling his pulse, they returned a verdict in the affirmative. The man was forthwith discharged; and the lawyer followed him out, and touching him on the elbow, held out his hand—*baa-aa-aa!*—*baa-aa-aa!* said the sheep-stealer—and vanished.

But enough on this point. If I were to write a book, I should not be able to do more than I have done already, so far as the legal and professional doings of my beloved brethren are concerned.

It remains now, that I should say something very briefly, of the disastrous consequences flowing from their political power.

In the first place, it lures all our young men—the silliest as well as the cleverest—who desire to live without work, and to be provided for at the public charge, to betake themselves to the law. It is not only the high-road—but the only high-road to political power. No other profession has a chance with that of the law; and everybody knows it and feels it when broad awake and thinking, instead of dozing. Hence the profession is overcrowded, over-burthened—overwhelmed—and literally dwarfed into comparative nothingness, apart from political power; having not a tittle of the social power it would be fairly entitled to if it were not so adulterated and diluted.

In the second place, we have that national reproach—the instability of our legislation—the perpetual change, that no sober-minded business-man is ever able to foresee or provide against.

And this I aver to be the natural, the inevitable consequence of having for our legislators, men who have a direct personal interest in multiplying or changing our laws, and in making them unintelligible to others.

Let us take one of our young attorneys, and follow him up, year by year, and step by step, to the Halls of Congress, and see how he gets there, and what he is bound to do—for he can do nothing else—after he gets there.

In the first place, it should be borne in mind, that the lawyers we send to our legislative bodies, are not often the able, nor even the ablest of their class—I speak of them as lawyers only, and not as Orators, or Statesmen, or Scholars. They cannot afford to serve the people for the day wages that your stripling, or blockhead of an attorney, who lives only from hand to mouth, would snap at. He who can have a hundred dollars for a speech, will never make speeches at two or three dollars a-day, in our State Legislatures, nor be satisfied with eight dollars a-day in Congress.

And these youngsters of the bar, these third and fourth-rate lawyers, who are held to be good enough for legislators, because they cannot support themselves by their profession, how are they trained for that business?

You first hear of them in bar-rooms and bowling-alleys; then at ward-caucuses; and then at all sorts of gatherings where they may be allowed to try themselves and their hearers; and then at conventions or town-meetings: and then, after being defeated half a dozen times, perhaps, till it is acknowledged that if they are not elected, they are ruined forever, they get pushed, head-foremost, into the State Legislature.

And once there, what shall they do?—how shall they manage to become notorious—or distinguished? They must contrive to be talked about in the newspapers; to be heartily abused by somebody, that they may heartily be praised by somebody else belonging to another parish. Their names at least will be mentioned, and grow more and more familiar every day to the public ear, until they become a sort of household words; or it may be a rallying cry, by the simple force of repetition, like proverbs, or slang-phrases. “Why do you take every opportunity of calling yourself an *honest* man?” said a neighbor to another of doubtful reputation. “Why, bless your simple heart,” was the reply, “don’t you see that I am laying a foundation for what is called public opinion; and that after a few years, when my character is fairly established, the origin of the belief will be forgotten.” So with your newspaper characters. Idols of the day—at the end of a few months, at most, they are dust and ashes; and the people begin to wonder at themselves that they should ever have been made such fools of.

But how shall they manage to be talked about in the newspapers, and most gloriously abused? There is only one way. They must make speeches—if they cannot make speeches, they may as well give up the ghost, and be gathered to their fathers; for most assuredly, (whatever may be their worth, or strength, or talents, in every other way,) if they cannot make speeches, not a man of them will ever be remembered—long enough to be forgotten. And they must make long speeches—the longer the better; and frequent speeches—the more frequent the better; and be their own correspondents and report themselves for the newspapers, with tart replies and eloquent outbreaks, and happy illustrations, never uttered, nor dreamt of till the unpremeditated battle was over, like some that were made by Demosthenes himself, years after the occasion had passed by, and there was nobody alive to contradict him; or like the celebrated oration of Cicero against Cataline.

But they cannot make speeches about nothing at all—at least such is my present opinion—it may be qualified hereafter, and I am well aware that common experience would appear to be against me, and that much may be said upon both sides, as well as upon neither side, in such a question. They must have something to work with—and to talk about: something, too, which is likely to make a noise out of doors; to set people together by the ears; to astonish them, and to give them a good excuse for fretting, and scolding, and worrying. In other words, they must introduce a new law—

the more absurd the better—or attack an old law, the older the better; and seek to modify it, or to change or repeal it.

And what is the result? Just this; that every Legislative Hall in the land, from the least to the greatest, from the lowest to the highest, becomes a debating-school; and the business of the whole Country is postponed, month after month, and year after year, to the very last days of the session, and then hurried through—just a little too late, wherever the national honor is deeply concerned, as in the case of French spoliations, and other honest debts owed by the Government to the People—with a precipitation so hazardous and shameful, that much of the little time left in future sessions must be employed in correcting the blunders of the past: and all for what?—merely that the Lawyers may be heard month after month, and have long speeches that were never delivered, or when delivered, not heard, reported piecemeal, and paragraph by paragraph, in perhaps two or three thousand newspapers—that are forgotten before the next sun goes down, and literally “perish in the using.”

Nor does the mischief stop here. The whole business of the country is hung up—and sessions protracted for months—and millions upon millions wasted year after year, of the people’s money, upon what, after all, are nothing more—and there could not well be any thing less—than electioneering speeches.

And then just look at the character of our legislation. Was there ever any thing to be compared with it, for instability, for uncertainty, for inadequacy, for superabundance, and for what my Lord Coke would call a “tending to infiniteness!” I acknowledge, with pride, that our Revised Statutes, all circumstances taken into consideration, are often quite remarkable for the common sense of their language, and for clearness—wherever common sense and clearness were possible under the established rules of interpretation. But generally speaking, what is it? “Unstable as water—thou shall not excel!” is written upon the great body of our statute law, year after year, and generation after generation.

And what are the consequences? Nations are “perplexed by fear of change.” Better stick to a bad law, than keep changing a good. The clock that stands still (to borrow a happy illustration) is sure to be right twice every twenty-four hours; while that which is always going, may always be wrong.

Let us apply this. We are now waiting and hoping for a change of the tariff: and the more general and confident the expectation of a change among business-men, whatever that change may be—up or down—higher or lower—the more certainly will it put a stop, or greatly embarrass for a time, the whole business of the country. And why? If it be generally believed that the tariff is to be lowered, the dealers everywhere begin to run off their stocks, to offer longer credits and better terms; and however unwilling, shrewd cautious men may be about over-purchasing with such a prospect before them, there will be found others, commercial gamblers, or trading adventurers, who always profit by such occasions to go ahead of their fellows; for what they gain is their own, and what they lose, is their creditors'. And universal overtrading is the consequence here—and stoppages there—till the mischief corrects itself or dies out. Business no longer flows in its accustomed channels. It has fallen into the hands of comparative stock-jobbers and lottery-dealers: and a general bankruptcy often follows.

But suppose the tariff about to be raised—and the belief to be universal. The ultimate consequences are the same, so far as the regular business of the country is concerned. Manufacturers and jobbers hold back; they refuse to sell on six months—they shorten the period of credit—and require acceptances in town—as being, on the whole, better than to demand higher rates in advance of old customers. Purchasers may be eager—but what can they do. They are obliged to wait—and live on from hand to mouth—till the question has been settled. And so with every other great leading law, affecting any great commercial, farming, or manufacturing interest of the country. The legislation of a land is a type of itself. How can our other great institutions be safe and lasting if our legislation be unstable?

That our legislation is unstable and changing and fluctuating, who will deny? What great system of national policy have we ever pursued steadily beyond the terms of two or three of our political chief-magistrates—a paragraph at most, in the long History of the World?

And how should it be otherwise? Lawyers with us are Conveyancers and Notaries and Special-Pleaders: and Conveyancers and Notaries and Special-Pleaders over sea are always, and in our country, almost always paid by the page; and a certain number of words, you know, constitute a page at law. Again—so sure is it that a lawyer shall not only be heard, but

paid for his “much speaking,” that I do believe people are often better satisfied to lose a case with a long speech, than to gain it by a short one. This may appear somewhat startling; but let us see if, on the whole, it be not substantially true and no paradox.

A man goes to consult a lawyer—you see how careful I am to distinguish between the two—and states his case. The lawyer hears him patiently through—having already touched the fee—and tells him, without opening a book, or lifting his spectacles, or moving from his chair, that the question lies in a nut-shell; and that if his view of the law should be sustained by the court, of which he cannot be sure, it may be settled easily and at once. Well—the case in due time goes up. The jury are empaneled; a great speech is brewing on the opposite side; you can hear the whiz of preparation in the very breathing of the Adversary; but up rises our friend—by the supposition a very clear-headed, able and honest lawyer—and so states the principle of law upon which he depends, that the court rules in his favor, no speeches are made, and the jury are discharged. And now comes the tug of war. The client begs a moment of the lawyer’s time, and asks what’s to pay: “Fifty dollars.” “*Fifty dollars!*—why, sir—pulling out his watch—you were not more than—” The lawyer bows, and on turning away with a stately air, as of one who truly respects himself, and will not suffer the dignity of the profession to be trifled with nor tarnished, is stopped by—“I beg your pardon, squire—there’s the money. Good morning.” And off goes the client, who has gained the cause, to complain of the lawyer for extravagance or extortion; saying that “the case was plain as a pike-staff—any body might have managed it—could have done it himself and without help—nothing but a word or two for the court—never opened his mouth to the jury—and then, whew! what do you think he had the conscience to charge? why, *fifty dollars!*—would you believe it! Very well—much good may the fifty dollars do him; it is the last he’ll ever see of my money, I promise you.”

And now let me suppose that, instead of going to the last mentioned, *honest* lawyer, he had gone to some other. He is heard, to be sure, but with visible impatience: he is continually interrupted and questioned and cross-questioned, by the half hour. The learned gentleman has a very large snuff-box on the table before him—two or three very large portfolios, and at least a wheelbarrow load of papers tied with red tape. He takes off his spectacles and snuffs, and wipes them with his glove and snuffs, and replaces them

and snuffs; now he lifts them and looks under them, and now he lowers them and looks over them steadfast and solemn, though troubled and perplexed, with his mouth screwed up, and making faces at his client all the time: he shakes his head and jumps up, and takes a pinch, and then shakes his head and sits down, and takes another pinch: with a huge pile of authorities before him, and ever so many lying open, and having secured a retainer, at last he tells his client to call on the morrow at 11¼ o'clock *precisely*. The client, awe-struck at the vastness of that legal erudition he has been favored with a few glimpses of, steals away on tip-toe, rubbing his hands with delight and astonishment, and talking to himself perhaps all the way down stairs and into the street. After three or four consultations the case comes on for trial. The Adversary goes at the jury head-first, with a speech varying from two hours to two days. Of course, it will require from two hours to two days to answer it—and every thing must be answered, you know, whether it has to do with the question or not—as in the passage between Tristram Bulges and John Randolph, about the buzzard, or bald-eagle, I forget which; for after all, there is no great difference between them, as I have heretofore found to my cost; or as in that between Webster and Hayne about poor Banquo's ghost, in the Senate chamber. And now, having insulted the witnesses, and the court, and the opposite counsel, and tired the jury by an everlasting speech, when they were already more than half asleep; or by arguing questions of law and fact wholly supposititious, for the benefit of his younger brethren and the by-standers—the case goes to the jury, under the charge of the court perhaps, and is lost. But who cares?—not the client; for when told that he has a hundred dollars to pay, instead of fifty as before, he calls it dog-cheap, and insists upon paying more, and why? Because *that* lawyer had made the case his own—and he goes about saying, “Didn't he give it to 'em!—bench, bar and jury!—didn't he acknowledge they were all a set of nincompoops!—and didn't he lather my adversary and my adversary's counsel, and all his witnesses, little and big, and especially the women and children, beautifully!—handsomely!—and isn't he the man, therefore, not only for my money, but for the money of all my acquaintances who may ever want a zealous and *faithful* lawyer to manage their business for them!”

This, though sufficiently absurd, I acknowledge, is nevertheless true: and happens continually at the bar. I do not say that in terms a client would prefer a long speech to a verdict; I only say that such is the fact, although he

may not always know it himself, in many a troublesome case. And so with litigants generally; having once entered the “sacred precincts” of a law-temple, and breathed the fiery atmosphere, and had their names called over in a crowded court-room, and thereby having become famous in their own little neighborhoods, and in the judgment of their friends and witnesses, people of large experience and authority, how are they ever afterward to forego the pleasure? If they win the first throw, of course they can afford to throw again: if they lose, they must throw again, the blockheads! to get back what they have lost, when, like other gamblers, they promise to stop.

Can it be wondered after all this, that words are multiplied in our laws, from sheer habit, as well as from a sort of professional pride, until a mere English reader, however familiar with the spoken language and with the best writers of the language, both at home and abroad, such as Bacon and Bolingbroke and Hooker and Swift, or Edwards, or Channing, or the writers of the Federalist, or Franklin, and half a hundred more I might mention, would be unable to make head or tail of one paragraph in three; and few men of business would be willing to hazard any considerable investment upon his own understanding or interpretation of any passage in any new law.

Talk of the dead languages! The deadest of all the languages I know, or ever heard of, is the language of the law! Ask our friend, the learned blacksmith, and I will abide by the answer. Nobody, not trained to the business of interpretation—as a dragoman—or lawyer, would ever think of trying to understand a new law without help. And even with help—it is a plague and a mystery till the true meaning has been settled—*settled!*—by adjudication: that is, by others in authority, the priesthood and the patriarchs, who, under the name of judges, are paid for all the thinking, as lawyers are paid for all the talking to no purpose, permitted at law: for, be it known to all whom it may concern, that is, to all the non-lawyers of our land, that no private interpretation *of law* is of any authority *at law*: nor is the right of private judgment recognized or allowed or tolerated or endured in courts of justice! You must believe at your peril. You must teach as you are taught; and grow to the opinions or moulds about you as a cucumber grows to a bottle; for such is the law, and with most of the profession, all the law, to say nothing of the Gospel; for that, perhaps, would be out of place here.

And now, inasmuch as almost every word of importance in our language has more than one meaning, it follows, that in proportion as you multiply words in a law, or in a legal instrument, you multiply the meanings, and the chances of mistake, and of course, I may as well say it, of litigation: and the mere habit of multiplying words as conveyancers and special-pleaders and speech-makers, being not only a professional habit, as every body knows, but characteristic of the profession, it may be, and often is, continued from habit, long and long after it may cease to appear advantageous or profitable; as in the business of legislation, or in dealing with a jury, where the lawyer is not paid by the page, but by the day or the trick. And why? Perhaps my friend Joe may be permitted to answer. A tailor, while cutting a coat for himself, was seen to slip a fragment of the cloth into his cabbage-drawer. Amazed at such a procedure, a new apprentice took the liberty of asking why he did it. "*To keep my hand in,*" was the answer.

Just so is it with the lawyer. He would use more words than are either necessary or safe, merely to keep his hand in, if for no other reason. Just compare a contract entered into between shipping-merchants for the sale of a cargo, or between other men of business, railroad contractors, or stock-dealers, involving the outlay of millions, perhaps, with a deed of trust drawn by a thoroughbred conveyancer, or with articles of co-partnership by any thing alive in the shape of an attorney-at-law, if you wish to see the difference between the language of lawyers, and men of business and common sense.

By this, I would not be understood to say that some lawyers are never needed for putting the language and meaning of parties into shape; nor that "I. O. U." would be a model for a charter-party, or a church settlement; for I acknowledge that the chief business of the world cannot be carried on *safely* without lawyers. I only say, that we have too many of them; and that they are encouraged to intermeddle more than is good for themselves, or us, with every sort of business and branch of the *Lex mercatoria*, and the *Lex non scripta*.

Another reason why the people are not allowed to have the laws of their own Country in their own language, but in that of the learned few—like the Bible for the Roman Catholics—notwithstanding the ridiculous parade of publishing all the laws in thousands of our newspapers in a year—a better

hoax, and a better joke by far than the celebrated bequest of a guinea, toward paying off the national debt of our mother country—that mother of Nations, so cleverly represented by Victoria, just now—is, that we may *not* be able to judge for ourselves; and that no *law* shall be of any private interpretation; for if it did, the people would soon be independent of most lawyers; and then, what would become of the superannuated, and the helpless, the fledglings, and the understrappers? They would have to rely for support in their old age upon the interpretation of themselves, and of their own cramped penmanship, instead of the legislative enactments.

But, say certain of my brethren, the law, after all, is a great science, and the profession worthy of profound respect. It is over-crowded to be sure; and some, it must be acknowledged, do not succeed at the bar, and after trying it for a while are obliged to leave it, or starve. Granted—but what does that prove? Can those who do not succeed be greater blockheads, or greater knaves than many others that do? And may it not be just possible, if they, who do not succeed in the profession are otherwise distinguished, that they had too much self-respect, or conscientiousness, or what may be called *honesty*? Thus much by way of a protestanda—or the “exclusion of a conclusion,” according to my Lord Coke.

And now, with all seriousness, what more shall be said? I have shown: 1.—That my brethren of the bar enjoy a very dangerous and altogether very disproportionate power as the law-makers, the law interpreters, and the law enforcers. 2.—That however honest they may be *by nature*; and however honest in all the other relations of life; and that they are so, I acknowledge with pleasure; yet, as Lawyers, they have a code of morals peculiar to themselves, making it their duty to league with knaves, and cheats, and murderers, and house-breakers, and to furnish them with aid and comfort, *for pay*; in other words, for *a share in their profits*, and this *duty* is of such a nature as to lead them continually astray, to blind their reasoning powers, to darken their consciences, until they are incapable of distinguishing between truth and falsehood, or right and wrong in the defense of their clients; and that under pretense of being *faithful* to them, they become after a while too unfaithful to everybody else, even to themselves, and to their Maker; and that *therefore* they are not trustworthy as legislators. 3.—That in consequence of their position as the holders of political power, too large a portion of our young men—our intellectual strength and hope, is diverted into that particular profession, to the injury of every other, and especially to

the business, and laboring, or productive professions. 4.—That another evil is our superabundant legislation—the instability of that legislation—the prodigious cost of so many debating societies maintained at the public charge, under pretence of law-making all over the land; whereby the public business of the whole country is delayed, month after month, and year after year; and sometimes never done—or if done at all, is done at last in such a hurry, and after such a slovenly fashion, that when the law-makers are called together again, a large portion of the little time they are enabled to set apart from electioneering, is spent in patching up and explaining the laws of a previous session; here, by taking a piece off the bottom and sewing it on the top, as the Irishman lengthens his blanket; and there, by taking out a piece of the same, to patch a hole with: and that *therefore*, notwithstanding a multitude of glorious exceptions to be found, year after year, in the senate chambers and representative chambers of our country, Lawyers are never to *be trusted in the making of laws*; and that, if it were not for the simple fact that, as judges, they are the only authorized expounders of the law, they ought not to be trusted even with the wording of a statute.

And now, what more? We are all ambitious—lawyers above all the rest of the world in this country. Not one but labors—if we may believe his mother and sister, or his betrothed—not one “but labors with the nightmare meanings of Ambition’s breast”—not one who does not feel—

“How hard it is to climb
The steep where Fame’s proud temple shines afar!”

and therefore it is, that the whole country is groaning under their oppression—over-burthened with law—and taxed, and trapped, and crushed, and trampled on by lawyers.

But, if instead of this unhealthy ambition—this boyish uneasiness and appetite for notoriety, which three times out of four will be satisfied with the title of esquire, there should arise the unconquerable spirit of one created for dominion, with the holy instincts of a reformer, and anxious from the first hour of his revealed strength, to be the friend of the Fatherless and the Widow, of the Wronged and the Suffering—the champion of the poor and the helpless—the refuge of the hunted and betrayed upon earth—let him devote himself to the study and practice of the law, and of nothing but the law, in its vast and magnificent comprehensiveness; let him

consecrate himself with prayer, and praise, and thanksgiving and sacrifice—let him go up to the temple with humility and reverence, and godly fear; and let him take possession “of the purple robe and diadem of gold,” as of right, and though his life may be a continual warfare, and he may die in the harness at last, and upon the battle-field, as Pinkney and Emmett, and others have died before him—for

“He, who ascends to mountain-tops shall find
The loftiest peaks most wrapped in clouds and snow,
Round him are icy rocks, and loudly blow
Contending tempests on his naked head.”

Yet will he die the death of the righteous, and never be forgotten: and whole communities will pass by his grave, generation after generation, saying to one another as if speaking of a personal friend, “that although he was a great man, and a great lawyer, and perhaps a statesman, he was a good neighbor, and a good citizen, a good husband and a good father; and *therefore* a good Christian, doing justly, walking humbly, and loving mercy to the last.”

And would not such a death, my dear G——, be worth living for? And such a reputation worth dying for?

ELPHOLEN. A FRAGMENT.

BY A NEW CONTRIBUTOR.

Where many cedars shade Igondo's shelf,
Like towering Dukes of Edom crowned with plumes;
Where seven rivers to an awful gulf
Fall, with much foam, from Himalaya's fooms;
And where, from Baal-Phaxi's caverned rooms,
Through ice-arched galleries pours tumultuous Ulf,
Are built across a swarthy savage glen,
The gates which bar the land of Elpholen.

Above all mountains, clouds, and smoking isles,
From one huge base three stately hills arise;
A wall extends from them a thousand miles,
Steep and unbroken, builded to the skies,
Higher than even the gray-winged condor flies;
And compasseth, with rocks and snowy piles
A table land, both wide and wonderful,
And only by that gated pass accessible—

Crossing a frightful plain which the sun scorches,
Which plain is full of chasms and trap-dykes,
Scoriæ, cinders, and dry river gorges,
With timber petrified, basaltic spikes,
And lava-ponds, with hard, black, stony surges
We reached the shaded pass below the peaks,
And paused to hear the roar of plunging Ulf,
And the seven rivers, far within the gulf.

Up that defile, with fear and silent wonder,
We rode; *our horses seemed but two small mice*.
The rivers in the gulf gave forth *large* thunder,
And rocks, above the clouds, fell, bounding thrice,
With uproar, from the grim cliffs, cracked asunder.
Aloft, like Anakim, with helms of ice
The mountains raised their huge Plutonic shoulders,
Clothed in Titanic mail of ore and boulders.

Three Prophets of grand stature and bald brows
Sat by the gates. *They were much older than*
The river Nile. One of deep eyes arose
And said: "Speak unto us what manner of man
Thou art, O, hero; if of some fierce clan
Hyperborean, or of pagan Huns?"
He of the icebergs spoke with rhetoric fit
In words and figures following, to wit;

.
The Prophet said, "Here shalt thou rest this night
While the sun sleeps in hollow Erebus;
And as the hours pass on in silent flight
All known philosophy will we discuss.
But thou, O wizard Etheuòlymus,
To Himmalaya's broken pinnacle
Fly with this young esquire, that he may see
All kingdoms on the continent that be."

Then, with the wizard in a flying mist,
I rose along the sides of that steep cone:
'Twas like an iron trunk of girdle vast;
The moon's full globe upon all cities shone;
Tyre, by the waters; glimmering *Ascalon*;
The City of the Magians, girt with fire;
And in the East we saw those mountain ranges
Which separate the Nile from sacred Ganges.

Alas! all earthly things have been revised
Even Learning's careful patron and Protector,
The Inquisition, is disorganized.

The world is round, and has a Radius Vector;
There's not a ghost on duty, nor a spectre;
Sinbad is dead, and almost any loafer
Can go, in steamers, round Cape Horn to Ophir.

Then, on the blackness of the Night's deep chasm,
The anchored earth lay, floating, like a floor:—
Beneath, the shadow and the veiled phantasm
Their local habitation had of yore;
But each veiled shadow, and each dreadful phasm
Rose with the night, above the western shore—
When, through the void, all flame and ruddy gold
The Day-god's cavalcade, descending, rolled.

Without the continent, old Ocean's torrent
Extended to the earth's remotest verge:
Both jovial Tritons, and the Powers abhorrent,
Were seized of provinces upon the surge;
And from Arcturus to the Southern gorge
Black tempests bearing old Eolus' warrant
Patrolled the seas in search of ships or steamers
Breaking the closes of the ocean emirs.

Through the dense night, archangels of strong wing,
From heaven roving, saw the earth's vast plane—
The kingdoms of the Pole, all glimmering—
The twisted rivers, and the enfolding main—
The shining gulfs which dent the Indian chain,
And smiled to see the hollow planets swing
Above that dim abyss within whose core
Were hooked the world's deep sunken anchors four.

Large breakers tumbling on the Arabian shoals,
With wooded regions by the Caucasian gaps—
The town of Ebony, the land of Gholes,
(Which are omitted in the modern maps)—
All these I saw; and hills with misty caps,
Where dwell the Glactophagi—blameless souls:
The wizard spoke—I was with awe oppressed:
The words like ghosts rose from his sounding chest—

“These mountains I have watched a thousand years;
And I *have writ one thousand solemn books:*
Who reads them shall be wise! Hell’s fiercest Peers
Have oft essayed to burst these bolted rocks;
And, under Baal-Phaxi’s deepest blocks,
Mines they have digged, and loaded, and exploded.
Yea, Mogophur, the Lord of Babylon,
Came with his captains and a countless rabble on—

“Of spearmen, chariots, and Tartarian riders,
Whose faces were the likeness of a flame,
And elephants crept through the pass like spiders,
And the whole College of Magicians came,
Who caused sharp earthquakes and much whizzing flame
By means of diagrams, and long dividers,
And thus exclaimed each iron-harnessed savage,
‘The unseen land of Elpholen we’ll ravage.’

“I did but ope one solemn book, and say:
‘O, ye Hydraulic Goblins of the mountains,
At once your tunnels, pumps, and flooms let play;
And loose old Himmalah’s rock-bound fountains.’
Then rivers of cold foam and spouting spray,
And cataracts which broke the cliffs away,
Burst from the mountains’ inner reservoirs.
’Twas very good to see those watery Druids
Destroy that haughty host, with roaring fluids!”

.

*But now, those noisy trumpeters, the Hours,
Blew the reveillé through the camps of morn:
Now storm-girt Taurus raised his icy horn,
Like blazing silver, o’er the mists and showers;
And sunlight struck the unclouded mountain towers,
Which ranged the circuit of that snowy wall:
We then rode down a chasm from the gates,
And entered Elpholen’s enchanted states.*

To a wild amphitheatre we rode,
Begirt with precipices. From an astounding
Cavern in the mountain-side, there flowed
A river deep and broad; but the surrounding
Dark hollows echoed not a single sounding;
For silently it moved—we *only heard*
At times the plunging of some dull cascade
Far up the tunnel, like a cannonade.

Full many other rivers cross those lands,
Some, from the eternal snows come pouring;
Some, roll around the chasms, in foaming bends;
Some, through the hills, a ragged highway boring,
Rush to the valleys, with an angry roaring,
And hurry onward to the ocean sands;
But many a cataract and runlet trickles
Down from the glaciers, making huge icicles.

*We moved along by wooded peaks and crags,
Carvéd with images and hieroglyphs,
Ruffling their scales and quills like golden flags,
And, pawing their odd cubs, the hippogriffs
Rolled in their nests, upon the shady cliffs;
And in the glens, both bears and royal stags,
With lazy lions, goats, and yawning leopards
Like cattle lay, and children were their shepherds.*

*Along through ancient forests, vast, and slumbrous,
Roes, of the mountain, grazed beside the springs,
And often rose some bird of plumage cumbrous
Unto the branches, folding his wide wings.
There, too, were tombs of certain wizard-kings—
Antediluvians of visage sombrous—
And holy men, before their moss-grown crypts,
Studied in awful Syriac manuscripts.*

*Beyond, there dwelleth an immortal folk,
About a stream, which to a lake enlarges:
Pine hills curve greenly round, and groves of oak,
Sometimes they rested on the river marges,
Sometimes they plowed the lake in hollow barges,
And sometimes, on the altars made sweet smoke,
Some painted pictures in their pleasant tents,
And many played on all stringed instruments.*

*But some rode up unto the gorgeous clouds
Around the necks of monstrous eagles clinging.
The people which do there have their abodes
Welcoméd them with flags, and wild bell-ringing;
With musical cannon from th' embrasures flinging
Puffs of white vapor, bombs, and rattling grape:—
The Goblin-populace of Cloud-land we
Could well behold:—Ah, they a brisk folk be!*

And caravans continually crossed the plains.
Camels and elephants innumerable—
With carriages, and pigmy oxen trains,
And scampering knights, in armor of black shell,
Lords, bearded patriarchs, and gay rabble,
And baggage-wagons full of chattering dames,
And mounted archers, shooting slender arrows,
Wound slowly round the curving river narrows.

But some came down the rivers on broad rafts;
With shells, and bells, and crooked bugles, waking
Numberless echoes on the rocks. The shafts
Of the forests stood, like champions unquaking,
Though many clamors, the old silence breaking,
Startled the musing Hermits. Now arose
The stars, and moon, and all the hosts of night:
We stood above a plain upon a height.

Three noble rivers, in the moonlight shining,
Sparkled from three defiles in East, and West,
And North—in silence to a blue gulf winding,
Which, by the distant mountains, lay at rest;
And there a city with a massive crest
Of turrets, overlooked that rock-bound sheet.
The rivers round it, in broad girdles pressed;
Bridges there were, and groves, and gardens meet;
And in the bay lay moored an idle fleet.

Unto that city did all people flow:
In the deep plain we saw their circular camps,
Like islands of an archipelago;
And as we looked, *a belt of fiery lamps*
Was wound around the crowning citadel;
Whereat each watching pilgrim said: “Full well
I know, that now within yon distant dell
The Lord of blessed Elpholen doth dwell.

“To him we will present our offering
Of fruits, and herds, and many precious ores,
Which rivers from the mountain-summits bring:—
Upon the gulf’s cool strand, and shady shores
Our ancient games we will perform long hours:
Then we will go again to our dear tribes,
And to our cattle in the pleasant meadows,
And dappled deer browsing in mountain shadows.”

That night we camped upon the sandy margent
Of an unknown sea; and when, behind sharp peaks,
The moon retired in her skiff of argent,
Then certain meteors filled the sky with streaks,
And diving, from the zenith-ridge divergent,
Through the purple heavens fell in flakes,
Which, as they struck the water, lost their light,
And grew a portion of its night.

Meanwhile we saw a corps of sentry ghosts,
Standing erect the farthest Eastern shore on,
And many thousand stars, above those coasts,
Flashed like the Arabic of a fiery Koran;
Then those great captains of the heavenly hosts,
Orion, Sirius, and Aldebóran,
On the dark field of Heaven took their stations;
And calmly wheeled the close-ranked constellations.

No outposts of the Morn marked the approach
Of the Hælios’ chariot; no gleams, or tinges
Upon the tent of Darkness dared encroach;
But sudden brilliance pierced its dusky fringes;
Wide swung the Morning’s gates upon their hinges;
Those burning horses, and that flaming coach
Sprang out upon the ocean, through the gateway:
Night struck her tattered tent, and vanished straightway.

A LIFE OF VICISSITUDES.

BY G. P. R. JAMES, ESQ.

[Entered according to Act of Congress, in the year 1852, by
GEORGE PAYNE RAINSFORD JAMES, in the Clerk's Office of the
District Court of the United States for the District of
Massachusetts.]

(Continued from page 147.)

A YOUNG DREAM.

MEMORY is certainly a very strange gift, or quality of the mind—or whatever else it may be rightly termed; for I am no philosopher, and but little acquainted with the technology of metaphysics. It seems often a capricious faculty, selecting its own objects, and amusing itself with them to the rejection of others. But I am not quite sure that this imputation upon memory is justified. I must admit that with myself, as I suppose is the case with others, when I try to recall the past, the lady often proves restive with me, and without any apparent cause, recalls all the particulars of certain scenes, and omits other passages of life close by them. Nor is this to be attributed always to the particular interest of the scenes she recalls; for some of them are quite unimportant, light, and even ludicrous, while things affecting one's whole destiny, if not utterly forgotten, are brought back but indistinctly. I suspect, however, that the fact is, memory is like a sentinel who will not let any one enter the treasury she guards without the countersign, even though it be the master of the treasure himself.

The objects and events that we remember best are, in fact, those for which we have learned the countersign by heart, and the moment that any accidental circumstance furnishes us with the pass-word, apparently forgotten, the door is thrown open, and we behold them again, somewhat

dusty perhaps, but plain and distinct. Acts never die. They at least are immortal; and I do not think they ever die to memory either. They sleep within, and it only requires to have the key to waken them. The time will come when all shall be awakened: when every door of the heart shall be thrown open, and when the spirits of man's deeds and thoughts will stand revealed to his own eyes at least—perhaps to be his bright companions in everlasting joy—perhaps his tormentors in the hell which he has dug for himself.

Often, often, as I look back in life, I see a cloud hanging over a particular spot in the prospect, which for days, sometimes for years, will hide all beyond. Then suddenly the lightest trifle—a casual word—a peculiar odor—the carol of a bird—the notes of some old melody, will, as with a charm, dispel that cloud—sometimes dissolving it in rain-drops—sometimes absorbing it in sunshine—and all that it concealed will burst upon the sight in horror or in loveliness. Even while I have been writing these few pages many things have thus been brought back to remembrance by the connection of one event with another, which seemed to have altogether passed away from memory when first I sat down to write. Now what is the next thing I remember; for the rest of our journey, after we left Juliers, has passed away from me?

I find myself on looking back, in a small, neat house, with a garden, and a little fountain in the garden, upon a sandy soil, and with a forest of long needle-leaved fir-trees stretching out to the westward. To the east there is a city of no very great extent, but still a capital, with a range of high hills running in a wavy line behind, and here and there an old ruined castle upon the lower points.

Before the city lies a wide plain, rich and smiling, full of corn-fields and vineyards, with here and there a curious-looking spire or a couple of dome-topped towers marking the place of a village or small town, and beyond the plain, glistening in a long, long wavy line of silver, glides a broad river—the mighty Rhine.

Oh! what sweet sunny lapses come cheering and softening the rapid course of life's troubled stream. There are several of those green spots of memory, as the poet calls it—these oases in the midst of the desert, even within my own remembrance. But on few, if any of them can my heart rest with as much pleasure as on the months we passed in that little cottage.

There were no events—there was no excitement—for me and Mariette, at least. I remember wandering with her about that sunny garden, playing with her in the cool, airy pleasure-house which stood in one corner, helping her to gather flowers to deck her mother's table, wandering with her through the forest beneath the green shade, with the dry, brown filaments of the fir crackling under our young feet. Here and there we would come to a place where oaks and beeches mingled with the pine and a thick growth of underwood narrowed our path; but as compensation, we were there sure to find a rich treasure of wild-flowers, more beautiful in our eyes than all the garden bestowed. Very often, too, in the clear May evenings we would sit under the little shabby porch of the house—Mariette upon my knee, with her arms clasped round my neck—and as the sky grew gray, and the stars began to peer and glimmer up above, would listen to the notes of the nightingale as he prolonged his song after all the forest choir had fallen into silence; and when some of those peculiar notes were coming which we love the best to hear, and Mariette knew that the delicious cadence was nigh at hand, she would raise her beautiful liquid eyes to my face, and whisper “hark” and gaze at me still as if to share my enjoyment, and to make me share hers.

Oh! how that child twined herself round my boy's heart. Dear, dear, dear Mariette. In all that I have seen in life, and strange and varied has that life been, I have never seen any thing that I loved as much as you. The first freshness of my thoughts—the first—the tenderest—the purest of my affections, were all yours!

But I took other tasks in hand. Good Father Bonneville resumed his lessons to me; but they were not very burdensome, and I began to teach Mariette. How this came about I must explain. Madame de Salins, who had borne up so well in times of danger and active exertion, became languid, inactive, sorrowful in the time of repose. She was evidently exceedingly anxious about something—often in tears—and often returned from the neighboring city where she went almost every day to seek for letters, with a look of gloom and disappointment. She began to teach Mariette something herself, however; for from various circumstances the dear child's instruction had been neglected. It was always a task to her, however, and her mind seemed wandering away to other things, till at length good Father Bonneville suggested that I would teach Mariette, and Mariette was delighted, and I rejoiced; and Madame de Salins, too, was very well

satisfied at heart, I believe. Every thing was speedily arranged, but Mariette and I set to work formally and in good order. The books, and the slate, and the pen and ink were produced at a fixed hour, and if it were fine weather, we sat in the little shabby porch—if it were raining, in the little room that looked upon it. Dear, stupid little thing! What a world of trouble she gave me. She did not half know her letters when I began to teach her, and was continually mistaking the P's and B's, and Q's and D's. R and S, too, were sad stumbling-blocks, and the putting letters together into syllables, together with pricking the page with a pin occupied a long time. Then she was so volatile too. When I was pouring forth my young philosophy upon her, and laboring hard to teach her the sounds produced by different combinations of letters, she would start up and dart out into the garden in chase of a butterfly, or tempted by a flower. Then, when she came back and was scolded, how she would coax and wheedle her soft young tutor, and kiss his cheek and pat his hair, and one way or another contrive to get the words "good Mariette" written at the end of every lesson to show her mother. I have got the book still, all full of pin holes, and strange figures scribbled on it with a pen; but not one lesson in it has not "good Mariette" written at the end, though Heaven knows she was often naughty enough to merit another comment. But I was a true lover even then, and perhaps loved the dear child's faults.

Moreover, at the end of that book of little reading lessons there is a page which I have kissed a thousand times since. It represents—and not very badly—Mariette as she appeared then with a little spaniel dog looking up in her face. Oh! how well I recollect when it was drawn. I could always handle my pencil well, though I don't know when I learnt to draw; but as we were coming near the end of the book, I promised Mariette if she would be a very good girl indeed, and get through the remaining lessons in a week, that I would draw her picture at the end with an imaginary dog which she was always to have at some indefinite period in the future; for she was exceedingly fond of dogs, and I believe the highest ambition of her heart at that moment was to have a spaniel of her own. Before Saturday night fell, the lessons were all done, and I was immediately reminded of my promise. We sat in the porch, with the western sky just growing purple, and I made her get up and stand at a little distance, and sketched her lightly with a pen and ink, and then at her feet, I drew from memory the best dog I could manufacture, with its ears falling back, and its face turned up toward her.

How delighted she was when she saw it, and how she clapped her little hands! It was all charming, but the spaniel above all, and I doubt not she was convinced that she should soon have a dog exactly like that. She ran with it, first to Father Bonneville, who was in the next room, and then to her mother, who was very sad that evening; but she kissed her child, and looked at the drawing, and dropped some tears upon it—the traces are there still.

Then Mariette came back to me, and thanked and embraced me, and declared that I was the dearest, best boy that ever lived, and that when she was old enough, she would draw me at the end of one of my books, with a great big dog as big as a horse.

This is all very trifling perhaps, and not much worthy of record, but in those trifling times, and those trifling things lie the brightest and the sweetest memories of my life. It was all so pure, so artless, so innocent. We were there in that little garden, as in a Paradise, and the atmosphere of all our thoughts was the air of Eden.

Such things never last very long. I reached my thirteenth birth-day there, and it was kept with kindly cheerfulness by Father Bonneville and Madame de Salins. Mariette I remember wove me a wreath of flowers, and put it on my head after dinner; but that was her last happy day for a long while. The next day Madame de Salins walked to the city as usual, and Father Bonneville went with her. They were long in returning; but when they did come back there was a sparkling light in the eyes of Madame de Salins which I little fancied augured so much woe to me.

“Come, Louis, come,” said Father Bonneville. “Madame de Salins has heard good news at length. She must set out this very evening for England. The carriage and horses will be here in an hour, and we must all help her to get ready.”

“And Mariette?” I asked, with an indescribable feeling of alarm. “Does she stay here?”

“No, my son, no,” replied Father Bonneville, almost impatiently. “She goes with her mother of course.”

Grown people forget the feelings of childhood, especially old people, and appreciate too little either the pangs or joys of youth. Blessed is the man who bestows a happy childhood upon any one. We cannot shelter mature life from its pangs and sorrows, but we can insure, if we like, that the brightest portion of the allotted space—the portion where the heart is

pure, and the thoughts unsullied—shall be exempt in those we love from the pangs, and cares, and sorrows which, so insignificant in our eyes, are full of bitter significance to a child.

Father Bonneville did not know how terribly his intelligence depressed my heart. He rejoiced in Madame de Salins' brightening prospects, although they deprived him of society that cheered and comforted. I was more selfish; I thought only that I was again to lose Mariette, and I grieved from my very heart. I would not disgrace the first manhood of my teens by bursting into tears, though the inclination to do so was very strong, and I assisted in the preparations as much as I could. But oh how I wished that some accident might happen to the horses before they reached our door, or that the carriage might break down—that any thing might happen which would give me one—but one day more. It was not to be, however: the ugly brutes, and the little less ugly driver, appeared not more than half an hour behind their time, the baggage was put up, and Madame de Salins proceeded to the door of the house. She embraced Father Bonneville tenderly, and then me, and taking a little gold chain which she had in her hand, and spreading it out with her fingers, she placed it round my neck, and I saw a small ring hanging to it, which I found afterward contained her own hair and Mariette's.

"Keep it, Louis, keep it always," she said. "I do not know when we shall meet again; but I pray God to bless you, dear boy, and repay you for all you have done for me and mine."

It was at that moment that the idea of a long separation seemed to strike Mariette for the first time. She burst into the most terrible fit of tears I ever saw, and when I took her in my arms she clung round my neck so tight that it was hardly possible to remove her. Madame de Salins wept too, but went slowly into the carriage, and Father Bonneville unclasping the dear child's arms carried her away to her mother's knee. I could bear no more, and running away to my own little room, gave way to all I felt; only lifting up my head to take one more look, when I heard the harsh grating of the carriage-wheels as they rolled away.

A SUMMARY.

I have often thought that it must be a curious, and by no means unimportant, or useless process, which the Roman Catholic is frequently called upon to go through, when preparing his mind for confession.

The above sentence may startle any one who reads these pages, and he may exclaim—

“The Roman Catholic!” Is not the writer—born in a Roman Catholic country, educated by a Roman Catholic priest, and with the force of his beautiful example to support all his precepts—is he not himself a Roman Catholic, or does he mean to say that he has never himself been to confession?

Never mind. That shall all be explained hereafter.

The process I allude to is that of making, as it were, a summary of all the acts and events, which have occurred within a certain period of the past, trying them by the test of reason and of conscience, and endeavoring to clear away all the mists of passion, prejudice, and error which crowd round man and obscure his sight in the moment of exertion or pursuit. Such is not exactly the task I propose to myself just now. All I propose to myself is to give a very brief and sketch-like view of the facts which occupied the next two or three years of my life. It will be faint enough. Rather a collection of reminiscences than of any thing else—often detached from each other, and never, I fear, very sharply defined. The truth is, events at that period were so hurried that they seemed to jostle each other in the memory, and often when I wish to render my own thoughts clear upon the particular events of the period, I am obliged to have recourse to the written or printed records of the events, where they lie chronicled in the regular order of occurrence.

I know that after Mariette’s departure, I was very sad and very melancholy for several weeks. Father Bonneville with all his kindness and tenderness, and with much greater consideration for the faults and weaknesses of others than for his own, did not seem to comprehend my sensations at all at first, and could not imagine—till he had turned it in his own mind a great many times, and painted a picture of it, as it were in

imagination, that the society of a little girl of six years old could have become so nearly a necessity to a boy of thirteen. He became convinced, however, in the end that I was, what he called “pining after Mariette.” He strove then to amuse me in various ways—occupied my mind with fresh studies—procured for me many English books, and directed my attention to the study of German, which he himself spoke well, and which I mastered with the ready facility of youth. We all know how children imbibe a language, rather than learn it, and I had not at that time lost the blessed faculty of acquisition.

All this had its effect, while I was busying my mind with other things—for I pursued every object with earnestness, nay with eagerness—I thought little of my loneliness, but often when my lessons were done, and I was tired of reading, and indisposed to walk, I would sit in our little garden, and looking round upon the various objects about me, would recall the pretty figure of my dear little lost Mariette dancing in and out amongst the trees and shrubs, and almost fancy I heard her sweet voice, and the prattle which used so to delight me, strangely mingled as it was, of the innocent frankness of her nature, and a certain portion of shy reserve, which had been forced into her mind by the various painful scenes she had gone through.

One evening as I was thus seated and looking out upon the road, which ran between our small house and the forest, I saw an old woman coming down from the high road which led to the town with a slow and weary pace. I should not have taken much notice of her, perhaps, had not her dress been very different from that of the peasantry in the neighborhood. It was a dress which awakened old recollections—that of the Canton in which I had been brought up, if not born. There was the white cap, with the long ears flapping down almost to the shoulders, and the top running up and curling over into a sort of helmet shape—Heaven only knows how it was constructed; but it was a very complicated piece of architecture. Then again there was the neat little jacket of dull colored gingham, and beneath it the short petticoat of bright red cloth, with the blue stockings, and the red embroidered clocks, and the high-heeled shoes with the silver buckles in them. She carried a good sized bundle in her hand, and held her head upright, though she was evidently tired. But as she came nearer, I saw a round, dry, apple-like face, with two sparkling black eyes and a nose of extensive proportions. I was upon my feet in one moment, and the next, good old Jeanette was in my arms.

I need not say how rejoiced I was to see her, or how rejoiced was also Father Bonneville, nor need I tell all her simple history since we had left her in France; nor how we wondered at her achieving so long a journey in perfect safety. Her account, however, showed how simple the whole process had been, though I do not mean to say that Jeanette put her statement altogether in the most simple terms. She was not without her own little share of vanity, innocent and primeval as it was. She did not, indeed, strive to enhance the value of her services and affection toward us, but she seemed to consider that she was magnified in abstract importance by dangers undergone and privations suffered. She told us how far she had walked on foot, where she had got a Diligence, where somebody had given her a ride in a cart, where she had got no supper, where she had got a good one, where she had been cheated of fifteen sous at least, and where the landlord and landlady were good honest people, and had treated her well for a reasonable remuneration. Her great difficulties had begun in Germany; the language of which land she understood not at all, but by dint of patient perseverance, and asking questions in French of every person she met—whether they understood that language or not—she had made her way at length to the spot which good Father Bonneville's last letter had indicated as his place of residence, not having gone, by the nicest calculation, more than eight hundred and seventy-four miles out of her way. She looked upon it as a feat of great importance, and was reasonably proud of it; but she thought fit to assign her motives for coming at all—although those motives were not altogether very coherent, nor did the premises invariably agree with the deductions. Indeed, Father Bonneville was a little shocked at some of the proceedings of his good housekeeper; for he had a great objection to using dirty arms against those who even used dirty arms against him. It seemed that after Jeanette had notified his absence to the municipality, his books, papers, and furniture had been seized for the rapacious maw of the public good. An auction had been held on the premises, and every thing had been sold; but Jeanette boldly produced a claim upon the effects of the absconding priest for a great arrear of wages, which she roundly asserted had never been paid. She brought forward the agreement between Father Bonneville and herself, in which the amount to be paid monthly was clearly stated, and as the commune could show no receipts it was obliged to pass the good housekeeper's account, and pay her the money out of the funds raised by the sale. Some laughed, indeed, and said that the good woman had

learnt the first grand art of taking care of herself, while others defended her on the ground that it was rather laudable than otherwise to pillage an aristocrat. They cited even the cases of Moses and Pharaoh, where the plunder of the Egyptians was not only lauded, but commanded. An old touch of religious fanaticism reigned in that part of the country, and men, even the most atheistical in profession and in action, which is still more, could quote Scripture for their purpose when it served their purpose.

We are told that the devil does the same—and I think it very likely.

The sum thus received from Jeanette—swelled by every item she could think of, was by no means inconsiderable; but she had not cheated a fraudulent and oppressive civic government for her own peculiar benefit. The sum which had been left her by Father Bonneville, and the wages which had been paid her, sufficed to maintain her for several months in Angoumois—in her frugal mode of living—and to carry her across the whole of France, leaving her with some dozen or two of livres at the time she reached us in Germany. The money which she had obtained from the commune, all carefully deposited in a canvas bag, she produced and placed in the hands of Father Bonneville, who, to say sooth, did not well know what to do in the peculiar circumstances of the case. Jeanette justified her acts and deeds toward the commune upon the same principle on which some members of the commune had justified her supposed acts toward Father Bonneville. She did not know much about spoiling the Egyptians indeed; but her mind was not sufficiently refined to see the harm of cheating cheats, or spoiling plunderers of part of their plunder.

I believe the good Father talked to her seriously on the subject when I was not present; but what became of the money I do not know. All I can tell, is, that the good Father never seemed to be actually in want of money, and that all those romantic distresses which hinge upon the absence of a crown-piece, were spared us even in our exile.

Time passed. Jeanette was fully established in her old post in the household, with the addition of another German maid-servant. The one whom she found with us was strongly imbued with despotic ideas; and was, for good reasons, unwilling to submit either to the orders of a foreign superior in her peculiar department, or to the inspection of accounts and prices which she soon found was to be established. Another German girl, consequently, was sought for and found, who being younger in age,

unhardened by experience, and of a diffident nature, willingly undertook to receive a dollar and a half a month, and do the harder work of the house under the orders of Jeanette, of which she did not understand one word.

Our peaceful state of existence, however, was not destined to be of very long duration. The successes of the allies, then combating the republicans of France, both on the northern and eastern frontier, insured us, for some time, tranquillity and safety. We heard of the defeat of the French army at Neerwinden, and the fall of Valenciennes and Condé, mixed with vague rumors of the defection of Dumouriez, and the flight of some of the most celebrated generals in the French army. These latter events gave great joy and satisfaction to Father Bonneville; for his hopeful mind looked forward to the re-establishment of law and order in his native country, and to the utter abasement of the anarchical party in France before the skill of Dumouriez, and the bayonets of the Austrians joined with those of all the well disposed and moderate of the land itself.

Many others shared in the same delusions; but the manifestoes of the Austrians, soon checked all enthusiasm, even on the part of the emigrants. No pretence was made of coming to support the loyal and orderly in the re-establishment of a monarchy, and a war of aggression and dismemberment was gladly commenced against France from the moment that Dumouriez's more generous—and I must say, more prudent schemes, were rendered abortive by circumstances.

Doubtless, this first raised some indignation in the bosom of Father Bonneville, who was of too true and really loyal a nature to see unmoved, his native land partitioned by the sword, upon any pretence or coloring whatever. I do not know why, but these matters did not appear to me in the same light. I thought the people of France had committed a great crime, and deserved to be punished, as if they were but one simple, individual man. I thought that all who were genuine loyalists or supporters of an orderly and constitutional system were guilty of a crime little less great than that of the anarchists, in their dastardly holding back when great questions involving the whole fate of France, hung upon the simple exertion of a well ordered body of the bourgeoisie; and I saw not why they should not be punished for their culpable negligence which was more disastrous in effect than all the virulence of the terrorists—I saw not why those who committed tremendous crimes under the name of justice should not be brought under the sword of

justice, and I looked forward, I confess, to a period of retribution with no little joy and satisfaction. It mattered not to me, in my ignorance of great affairs whether this was effected by the Austrians, the Prussians, or any other nation on the face of the earth, but France deserved punishment, and I hoped she might be punished.

The expectations of retribution were destined to be long unfulfilled. The manifestoes of the Allies acted with singular power and significance, producing combinations not at all expected. The royalists, the constitutionalists, who still remained in France, prepared to resist operations, the avowed object of which was the dismemberment of France itself, and not the restoration of a purified monarchy. They were willing to support even their mortal enemies within the land, in resisting the newly declared enemies of the whole land, who were advancing along two frontiers. The republicans were roused to the most powerful and successful exertions in order to repel a slow and cautious, but victorious enemy from their frontiers, and even the émigrés, who were scattered all along the banks of the Rhine, protested loudly against a scheme, which not only menaced the integrity of France as it then existed, but threatened to deprive the monarchy of some of its fairest provinces, if the legitimate line of their sovereigns should ever be restored.

No contrivance could have been devised so well calculated to reunite the greatest possible number of Frenchmen in opposition to a counter-revolution, and to render all others indifferent to the progress of the allied arms, as the proclamation of the Prince of Coburg. Some few, indeed, thought with me, but mine were doubtless boyish thoughts: for I have ever remarked that it is experience, and the hard lessons of the world, which bring moderation.

Father Bonneville seldom talked upon these subjects with me; for he had rightly no great opinion of my judgment in matters of which I could have had but a very vague knowledge, and he little knew how often and how deeply I thought upon such questions.

The siege and capture of Mayence, however: the inactivity of Custine, and the retreat of the whole of the French armies within the frontier line, seemed to insure to us perfect security, for a long time to come, in our calm and pleasant retreat upon the banks of the Rhine: when suddenly burst forth that wild and vengeful spirit of reaction which armed all France, almost as

one man, against attacks from without, and soon retrieved all she had lost under a weak government and inexperienced commander.

Toward the end of the year, our situation became somewhat perilous. After a long period of successes, the fruits of which were all lost by indecision or procrastination, the allied armies found themselves the assailed rather than the assailers, the conquered rather than the conquerors; and the fierce spirit of the Frank, the most war-loving, if not the most warlike, of all the nations of the earth was soon ready to carry the flaming sword into all the neighboring lands.

I have given this little sketch merely to connect the events together, without at all wishing to imply that I knew or comprehended all the facts at the time, or recollect them now, except with the aid of books. My own memories are very slight and merely personal. I remember lingering on for some months in that small house by the Rhine. I recollect the warm, bright summer sinking down into heavy autumn, and the year withering in the old age of winter. I recollect numerous reports and rumors, and gossip's tales, and—falsely than all—newspaper narratives, and printed dispatches, reaching us in our solitude, some of them exciting my wonder, and some of them my alarm, and then I recollect various passages of no great importance in a somewhat long journey, till I find myself in a quaint old town upon the border of Switzerland, near which the Rhine breaks over high rocks and forms the cascade of Schaffhausen.

This place is only notable in my memory for the beauty of the waterfall, which I have since seen surpassed in grandeur, but not in picturesque effect, and by one little incident which there brightened many an hour. One day, when we were there, a letter was delivered to Father Bonneville, in my presence, which he found to contain a small note addressed to me. It was the first letter I had ever received in my life, although I was now between fourteen and fifteen years of age, and the sensations which I experienced when it was placed in my hands, and I saw my own name on the back, were very strange. Imagination went whirling here and there, seeking to divine whence it could come. The mystery of my own strange, isolated existence—which was frequently present to my thoughts, was the first thing that fancy snatched at; but I did not remain long in uncertainty. The seal was soon broken, and I found a few lines in a round, childlike hand, very well

written, and very well expressed, with the name of “Mariette de Salins” at the bottom.

She told me that she wrote to show me, her dear instructor, how much progress she had made in her studies; and to tell me that although she had now a great number of companions, she loved me as well as ever, and better than them all. She bade me not forget her though she did not doubt that I had grown a great, tall man, and she was still but a little girl.

I cannot express how much pleasure this gave me; for I had been oppressed by the thought that in new scenes and new circumstances, all memory of her young companion would soon be obliterated in the mind of my little Mariette. That such had not yet been the case was in itself a pleasure; but I calculated sagaciously that the very fact of having to write to me, and to recall our youthful intercourse would renew all her recollections of the time we had passed together, and give memory, as it were, a new point to start from.

Our stay in Schaffhausen only continued a few months; for the progress of events in France, and the revolutionary spirit which began to effect other countries, left it hardly possible for emigrants to find any secure spot in Europe, except indeed in England, and thither Father Bonneville did not seem inclined to go. At Schaffhausen, however, I pursued my studies very eagerly, and had the opportunity of acquiring some knowledge of those manly exercises which I had never yet had any opportunity of practicing. There was a very good riding-school in the town, to which Father Bonneville sent me every day; and a French exile, celebrated for his knowledge of the sword exercise, had set up a fencing school, in which I soon became a favorite pupil. I was now a tall, powerful lad, and what between the continual exercise of the riding-school, and the Salle d’Armes, all the powers of a frame, naturally robust, were speedily developed. Previous to this time, I had stooped a little from the habit of bending over books and drawings; but my chest now became expanded, my step firm, and I acquired a sort of military air, of which, I need hardly say, I was very proud.

Thus passed four months and a few days; but rumors of the intention of the French to march an army up the Rhine, induced Father Bonneville to move our quarters, and about a fortnight before my fifteenth birth-day, we

traveled up to Constance, and then across what they call the *Boden See*—or lake of Constance, to the Vorarlberg.

CHANGING SCENES AND THOUGHTS.

We passed some time in Switzerland, wandering from place to place, and never remaining for above a few months in any. Though not very rich, we were never in want of money; but it seemed to me that Father Bonneville protracted his stay occasionally in different towns, waiting the arrival of letters, and I concluded—having now acquired some knowledge of the general affairs of life—that these letters contained remittances. Whence they came, or by whom they were sent, I did not know; for Father Bonneville transacted all his money affairs himself, but at the age of sixteen he began to make me a regular allowance, too much for what is usually called pocket-money, and enough to have maintained me in a humble mode of life, even if he had not paid the whole expenses of housekeeping. With this money, at first, I committed, as I suppose all boys do, a great number of follies and extravagancies. I bought myself a Swiss rifle, and became a practiced shot, not only in the target-grounds, but upon the mountains, and Father Bonneville, seeming now to judge that the education of my mind was nearly completed, encouraged me to pursue that education of the body in which the good old man was unable himself to be my instructor. The Swiss hunters, however, were good enough teachers, and I acquired powers of endurance very serviceable to me in after life. About this period, however, although I was full of active energy, and fond of every robust exercise, a new and softening spirit seemed to come into my heart. Vague dreams of love took possession of me, and pretty faces and bright eyes produced strange sensations in my young bosom. I became somewhat sentimental, bought Rosseau's *nouvelle Heloise*, and poured over its burning, enthusiastic pages with infinite delight. The beautiful scenery, which before had only attracted my attention by the effect of the forms and coloring upon the eye of one naturally fond of the arts, now seemed invested with new splendor, and the very air of the mountains fell with a sort of dreamy light, streaming from my own imaginations. I peopled the glens and dells with fair forms. I walked over the mountain-tops with

beautiful creations of fancy. My daily thoughts became a sort of romance, and many a strange scene was enacted before the eyes of imagination in which I myself always took some part, as the lover, the deliverer, or the hero.

Was my little Mariette forgotten all this time? Oh no! Although I could not give her features or her look to the pretty girls of the Canton with whom from time to time I dallied, yet I pleased myself by fancying that there was some trait of Mariette in each of them, and I do not recollect fancy ever having presented me with a heroine for my dreams in whose fair face the beautiful, liquid eyes of Mariette did not shine out upon me with looks of love.

I do not believe that amongst all the many books which have been written to corrupt the heart of man—and they are ten times in number, I fear, those which have been written to improve it—there is one to be found so dangerous to youth as the works of Rousseau. The vivid richness of his imagination, the strong enthusiasms of the man, and the indefinite insinuation of pernicious doctrines can be only safely encountered by reason in its full vigor, aided by experience. I happily escaped the contamination, but it was by no powers of my own. Father Bonneville found Rousseau lying on my table, and when I returned from one of my long rambles he sat down to discuss with me both the character of the man, and the tendency of his writings. He showed no heat, no vehement disapprobation of the subject of my study; but he calmly and quietly, and with a clearness and force of mind I have seldom seen equaled, examined the doctrines, dissected the arguments, tore away the glittering veils with which vice, and selfishness, and vanity are concealed, and left with too strong a feeling of disgust for the unprincipled author, for my admiration of his style and powers of imagination ever to seduce me again. I felt ashamed of what I had done, and when the good Father closed the book which he had been commenting upon, I rose, exclaiming, “I will never read any more of his works again.”

“Not so, Louis,” replied the good Father. “Do not read his works at present. Pause till you are thirty. Your reason may be active, and I believe it is; but the mind, like the body, only acquires its full vigor after a long period of regular exercise and training. You will soon have to mingle largely with the world, to share in its struggles, to taste its sorrows, and to

encounter its disappointments. You will see much of man and his actions. Mark them well. Trace them back to their causes. Follow them out to their consequences. It is a study never begun too soon, and about five or six-and-twenty, men who wish to found virtue upon reason, apply the lessons they have thus learned to their own hearts. If you do this, wisely and systematically, neither the works of Rousseau, nor of any other man will do you any harm. But here is another thing I wish to say to you, Louis. The income that is allowed you is intended to give you some means of practically learning to regulate your expenditure—to teach you, in fact, the value of money. This is a branch of study as well as every thing else, and each young man has to master it. At first, when he possesses money, his natural desire is to spend it upon something that he fancies will give him pleasure; it matters not what; and when he has wasted numerous small sums upon trifles which afford him no real satisfaction, he finds that there is some object far more desirable, which he has not left himself the means of obtaining. Then comes regret, and it is very salutary; for when the experiment has been frequently repeated, reason arrives at a conclusion, applicable, not only to the mere expenditure of money, but to the use of all man's possessions, including the faculties both of mind and body. The conclusion I mean, is, that small enjoyments often kill great ones."

That evening's conversation I shall never forget. It afforded me much matter for thought at the time, and I have recurred to it frequently since.

Another little picture stands forth about this time, clear and distinct upon the canvas of memory, and I strongly suspect that the fact I am about to mention had a great influence on my after life.

We were then at Zurich, and I had been out on one summer evening for a long ramble through the hills. When I re-entered the town, it was dark, and going into the house of which we rented a part, I found a stranger sitting with Father Bonneville. He was a very remarkable man, and you could not even look at him for a moment without being struck by his appearance. His dress was exceedingly plain, consisting of a large, black, horseman's coat, with a small cape to it, and a pair of high riding-boots; and round his neck he had a white cravat of very many folds, tied in a large bow in front. He was tall and well-proportioned, and of the middle age; but his head was the finest I think I ever beheld, and his face a perfect model of manly beauty. I shall never forget his eye—that eye so soon after to be

closed in death. There was a calm intensity in it—a bright, searching, peculiar lustre which seemed to shed a light upon whatever it turned to; and when, as I entered the room, it fixed tranquilly on me, and seemed to read my face as if it were a book, the color mounted into my cheek I know not why. He remained for nearly an hour after my arrival, conversing with my good old friend and myself in a strain of sweet but powerful eloquence, such as I have never heard equaled. During a part of the time the subject was religion, and his opinions, though very strong and decided, were expressed with gentleness and forbearance; for he and Father Bonneville differed very considerably. The stranger, indeed, seemed to have the best of the argument, and I think Father Bonneville felt it too; for he became as warm as his gentle nature would permit. In the end, however, the stranger rose, and laid his hand kindly in that of the good priest. “Read, my good friend,” he said. “Read. Such a mind as yours should not shut out one ray of light which God himself has given to guide us on our way. We both appeal to the same book as the foundation of our faith, and no man can study it too much. From the benefit I myself have received from every word that it contains, I should feel, even were there not a thousand other motives for such a conclusion, that there is something wrong in that system of religion which can shut the great store-house of light and truth against the people for whose benefit it was provided.”

The moment he was gone I exclaimed eagerly, “Who is that?”

“One of the best and greatest men in the world,” replied Father Bonneville, “That is Lavater.”

I would fain have asked more questions, but good Father Bonneville was evidently not in a mood for further conversation that night. The visit of Lavater had pleased him—had interested him; but things had been said while it lasted which had afforded him matter for deep thought—nay, I am not sure but I might say, painful thought. I could tell quite well by his aspect when there was any vehement struggle going on in the good man’s mind, and from all I saw I thought that such was the case now.

A few days after, he went to call upon Lavater, who was living in the same town, but he did not take me with him. Lavater came again and again to see him, and they had long conversations together, at some of which I was present, at others not; and still there seemed to be a struggle in Father Bonneville’s mind. He was very grave and silent, though as kind and as

gentle as ever—fell often into deep reveries, and sometimes did not hear when I spoke to him. At length, one day, when I returned somewhat earlier than usual from my afternoon rambles, I found him bent over a table reading attentively, and coming in front of him, I perceived not only that the tears were in his eyes, but that some of them had dropped upon the page. He did not at all attempt to conceal his emotion, but wiped his eyes and spectacles deliberately, and then laying his hand flat upon the page, he looked into my face, saying, “Louis, you must read this book; let men say what they will, it was written for man’s instruction—for his happiness—for his salvation. It contains all that is necessary for him; and beyond this, there is nothing.”

I looked over his shoulder and found that it was the Bible. “I thought I had read it long ago,” added Father Bonneville, “but I now find that I have never read it half enough.”

“I will read it very willingly, Father,” I replied, “but Father Mezieres to whom you sent me preparatory to my first communion, told me, that if not an actual sin, it was great presumption in a layman to read any part of it but the New Testament.”

“Mind not that, my son,” replied Father Bonneville. “It is hard to struggle with old prejudices; to root out from our minds ideas planted in our youth, which have grown with our growth and strengthened with our strength. But in this book there is life, there is light, and God forbid that any man should be prevented from drinking the waters of life freely.”

A faint smile came upon his face as he spoke, and after a moment’s pause, he continued, saying, “Do you know, Louis, I am going to become a boy again, and recommence my studies from a new point. Some months hence I will talk with you further, and every day in the mean time I will have my lesson.”

He had his lesson, as he said, each day; for he would sit for hours poring over either the pages of the Bible or some book of theology; but from that day I am quite sure that Father Bonneville was, at heart, a Protestant.

There is only one other incident worthy of notice which I remember in connection with the events of which I have just spoken. That was our separation from good Jeanette, who had hitherto been the companion of all our travels. For more than a month after our arrival in Zurich I remarked that she looked anxious and uneasy. She said nothing on the subject of her

own feelings, however, to me, but was less communicative and more thoughtful than usual, would be in the same room with me for a long time without speaking one word to him who was I knew the darling of her heart, and was more than once spoken to without appearing to hear.

At length one day when I entered Father Bonneville's room I found her standing before him; and heard her say as I came in, "I must go and see my lady. I am sure she is ill and wants help. I must go and see her. I have done nothing but dream of her every night."

"Well, Jeanette, well," replied he, "you must have your way; but you know not what you undertake. At all events you had better stay till some favorable opportunity can be found for sending you in safety."

Jeanette only shook her head, however, repeating in a low voice, "I must go and see my lady."

She remained with us two days after this interview, and I recollect quite well her coming into my room one night just as I was going to bed, and looking at me very earnestly, while I, with sportsman-like care, was cleaning my rifle ere I lay down.

"Ah, Monsieur Louis," she said in a somewhat sad tone, "you are growing a man quite fast, and I dare say, you will soon be a soldier; but do not get into any of their bad ways here; and never, never forget your religion. They turn older and wiser heads than yours or mine; but do not let them turn yours."

"No fear, I hope, Jeanette," I answered; "but what do you want, my dear old dame?"

"Nothing, nothing, but only to see what you are doing," she replied. "I see your light burning often late of nights, and I thought you might be reading bad books that craze many strong brains. Better clean a gun by far, Louis—only never forget your religion."

I smiled at her anxious care of one no longer a boy, little thinking that I was so soon to lose one so closely connected with every memory of my youth, but when I rose the next morning somewhat later than usual, Jeanette was gone; and all I could learn from Father Bonneville was that she had set out upon a long and difficult journey, the thought of which gave him much uneasiness.

THE PLEASURES OF BATTLE.^[4]

• • • • •

I was coming down the hill, and about five miles distant from the town, but my eyes had been rendered more keen by my hunter's sports, and I was quite sure that it was so. The glittering of arms, both upon the heights above the city, and in the valley on the other side of the river, was perfectly distinct. Yet so still and silent was every thing, that I could hardly believe two hostile armies were there in presence of each other. Not a sound broke the stillness of the mountain air. No trumpet, no drum was heard at that moment; and my companion, Karl, would not believe that what I said was true. Soon after, we dipped into one of those profound wooded ravines which score the side of the mountains, and the scene was lost to our sight; but as we crossed over one of the shoulders of the hill again, and were forced to rise a little, in order to descend still farther, the loud boom of a cannon came echoing through the gorges, like a short and distant clap of thunder. The moment after, the full roar of a whole park of artillery was heard, shaking the hills around; and when we topped the height, we could see a dense cloud of bluish smoke rolling along to well-defined lines below.

Karl paused abruptly, saying, "We are well here, Louis. Better stay till it is over. We can help neither party, and shall only get our heads broke."

Such reasoning was good enough for him—an orphan and tieless as he was—a mere child of the mountain; but I thought of good Father Bonneville, and told him, at once, that I should go on, and why. He would then fain have gone with me; but I would not suffer him; and leaving the chamois with him, I hurried as rapidly down as I could, taking many a bold leap, and many a desperate plunge, while the sound of cannon and musketry kept ringing in my ears, till I reached a spot where it was absolutely necessary to pause, and consider what was to be done next. I had come unexpectedly, not exactly into the midst of the battle that was going on, but to a point near that at which on the right of the French line, a strong body of infantry were pushing forward with fixed bayonets against an earthwork

cresting the plateau, well defended by cannon. The guns were thundering upon the advancing column at the distance of about three hundred yards upon my left, and the Austrian infantry were already within a hundred paces of the steep ascent, along the face of which my path led toward the town. I was myself upon a pinnacle of the hill, a little above either party, and my only chance of making my way forward, was by taking a leap of some ten feet down, to a spot where a *sapin* started from the bold rock, and thence by a small circuit, getting into the rear of the Austrian infantry. It was a rash attempt; for if I missed my footing on the roots of the tree, I was sure to be dashed to pieces; and I was somewhat incumbered by my rifle. I took the risk, however, and succeeded; and then hurried forward as fast as I could go. But now a new danger was before me—to say nothing of the murderous fire from the French battery—for by the time I had reached the point from which I could best pass into the suburb, the Austrian infantry had been repulsed for the moment, and were retreating in great confusion. I know not how to describe my feelings at that moment—afraid I certainly was not; but I felt my head turn with the wild bustle and indistinct activity of the scene. A number of men passed me, running in utter disarray. An officer galloped after them, shouting and commanding, for some time, in vain. At length, however, he succeeded in rallying them, just as I was passing along. The moment they were once more formed, he turned his eyes to the front, where another regiment, or part of a regiment, had been already rallied, and seeing me at some forty yards distance, he spurred on and asked me, in German, whether there was a way up the steep to the left of the line. Luckily, I spoke the language fluently, and replied that there was, pointing out to him the path by which I usually descended. Without paying any further attention to me, he hurried back to the head of his corps, and I ran on as fast as possible to get out of the way of the next charge. There was a little bridge which I had to pass, where not more than four or five men could go abreast, and over it a small body of Austrians were forcing their way, at the point of the bayonet, against a somewhat superior party of the French troops, who, in fact, were willing enough to retreat, seeing that a considerable impression had been made upon their right, and that they were likely to be cut off. At the same time, however, they would not be driven back without resistance, and several men fell. I followed impulsively the rear of the Austrians, where I observed one or two of the Swiss hunters appareled very much like myself, who were using their rifles, with deadly effect, amongst the officers

of the Republican army; nor was it to be wondered at, after all that had happened. I could not, however, bring myself to give any assistance, and kept my gun under my arm, with the belt twisted round my wrist.

As soon as the bridge was forced, the Austrians debouched upon the ground beyond with greater rapidity and precision than the French seemed to expect; and while their right retreated in tolerable order toward the heights, their left scattered in confusion, and sought refuge in the suburbs of the town. I took the same direction, and the first little street I entered was so crowded with fugitives, comprising a number of the townspeople, who, looking forth to see the battle, had been taken by surprise on the sudden rush of the French soldiers in that direction, that it was impossible to pass; and although I saw a sort of tumult going on before me, and heard a gun or two fire, I turned away down the first narrow street, only eager to be with my good preceptor, who lived in a little street beyond the third turning.

When I entered that street, the sun, a good deal declined, poured straight down it, and I could see two or three groups of not more than two or three persons in each, with the dress of the Republican French soldier conspicuous here and there. I ran on eagerly, and passed three persons all apparently struggling together. One was a woman, another a French soldier, and the third, who had his back toward me, so that I could not see his face, was endeavoring to protect the woman from violence, and seemed to me, in figure, very like Lavater. I should have certainly stopped to aid him; but there was another scene going on a little in advance, which left me no time to think of any thing else; but the moment I had passed, I heard a shot behind me, and then a deep groan.

I gave it no thought; for within a stone's throw I beheld an old man whose face and figure I knew well, brutally assaulted by one of the soldiers, and falling on his knees, under a blow from the butt-end of a musket. The next instant, the soldier—if such a brute deserved the name—drew back the weapon, and ere I could have reached the spot, the bayonet would have been through Father Bonneville's body. I sent a messenger of swifter pace to stop the deed. In an instant the rifle was at my shoulder, and before I well knew that I touched the trigger, the Frenchman sprang more than a foot from the ground, and fell dead with the ball through his head.

I paused not to think—to ask myself what I had done—to consider what it is to take a human life, or to fight against one's countrymen. I only

thought of good, kind, gentle Father Bonneville, and springing forward, I raised him from the ground. He was bleeding from the blow on the forehead, but did not seem much hurt, and only bewildered and confused.

“Quick, into the house, good Father,” I cried. “Shut the lower windows and lock the door.”

“Oh, my son, my son!” he exclaimed, looking at me wildly, “do not mingle in this strife!”

“Lavater is behind,” I said; “I must hasten to help him. Go in, and I will join you in an instant.”

“Did you do that?” he inquired, looking at the dead soldier, and then at the rifle in my hand.

“I did,” I answered, in a firmer tone than might have been expected, “and he deserved his fate. But go in, dear Father. I will return in a moment.”

I led him toward the door as I spoke, and saw him enter the house; and then ran up the street to the spot where I had seen the struggle I have mentioned. Two dead bodies were lying on the pavement. One was that of a young woman of the lower class, fallen partly on her side, with a bayonet-wound in the chest. The other was that of a man dressed in black, who had fallen forward on his face. I turned him over, and beheld the features of Lavater; I took his hand, and the touch showed me that death was there.

I had knelt while doing this, when a sudden sound made me attempt to rise—but I could not do so; for, while still upon my knee, I was struck by the feet of two or three men, cast back upon the ground, and trampled under foot by a number of Austrians in full flight. Every thing became dark and confused. I saw the long gaiters, and caught a glance of arms and accoutrements, and felt heavy feet set upon my chest, and on my head—and then all was night.

Although the weather was hot, and summer at its height, in that high mountain region the night was almost invariably cool. Probably that circumstance saved my life; for I must have remained, I know, several hours on the pavement untended, and perhaps unnoticed by any one. When I recovered my senses, it was nearly midnight, and then I found several good souls around me. One woman was bathing my head and chest with cold water, while a man supported my shoulders upon his knee. The first objects I saw, however, were three or four persons moving the body of the

woman, near whom I had fallen, to a small hand-bier. The body of Lavater was already gone.

“Look, look, he opens his eyes!” cried the woman who was tending me so kindly. “Poor lad! we shall get him round! Where will you be taken to, young man?”

I named faintly the house where we lodged, and then another woman, who was standing by, exclaimed, “Heaven! it is young Lassi! Better take him to the hospital.”

I tried in vain to inquire after Father Bonneville; for a faint, death-like sensation came over me, and I was obliged to let them do what they pleased with me. A blanket was soon procured, and placed in it, as in a hammock, I was carried up into the higher part of the town to the hospital, and there laid upon a bed, in a ward where some hundreds of wounded men were already congregated. A surgeon, with his hands bloody, an apron on, and a saw under his arm, soon came to me, and asked where I was wounded. I endeavored to answer, but could not make myself intelligible; and putting down the saw, he ordered me to be stripped, and examined me all over. Two of my ribs, it seemed had been broken, and my head terribly beaten about. Indeed, I was one general bruise. But my limbs were all sound, and in four or five days, although I suffered a great deal of pain, and the scenes which were going on around me were not calculated to revive the spirits of any one, I was sufficiently recovered to make inquiries for Father Bonneville, whenever I saw a new face, and to send a message for him to the house where we lodged, giving him notice that I was to be found at the hospital.

Father Bonneville himself did not appear, but our landlord came in his stead—a good, plain, honest man, of a kindly disposition. He told me, much to my consternation, that my good friend, as he called him, had been carried off as a prisoner by the Austrians, after they got possession of the town; that he was suspected of being one of the French Revolutionary Agents, and that most likely he would have been hanged at once, without the testimony of himself, our landlord, who had come forward to prove that he was a quiet, inoffensive man, who meddled not with politics in any shape, and would have gladly got out of the town, after the French occupation, had it been possible. This saved his life for the time; but the only favor that could be obtained was that the case should be reserved for further investigation. At the time he was carried away, Father Bonneville was perfectly ignorant of

my fate, the landlord said, and feared that I had been killed. The good man, however, promised that he would make every inquiry for my friend, and urged me, in the meantime, to have myself carried to his house as soon as possible. For more than a fortnight, during which time I was unable to quit the hospital, he came every day to see me, but brought no intelligence of Father Bonneville. At length he had me removed to his own house, and there he, and his good old wife, attended upon me with great kindness till I was quite well.

As soon as I could move about, the landlord told me that Monsieur Charlier, as he called him, had left with him a hundred louis d'ors for me, in case of my return. "And lucky he did so," added the old gentleman, "for the Austrians ransacked every thing in both your rooms, upon the pretence of searching for papers, and left not a bit of silver worth a batz that they could lay their hands upon."

Days passed—weeks, and yet no tidings could be obtained of good Father Bonneville; and thus was I left, ere I had reached the age of nineteen, to make a way for myself in life, with a small store of clothing, a few books, a ride, and one hundred louis.

[To be continued.]

- [4] Part of the manuscript, extending from page 56 to 61 is here wanting. As far as I can judge, the deficiency refers to a period of about 5 or 6 months, and I think the pages must have been destroyed by the writer
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A CHARM.

BY A. J. REQUIER.

I KNOW not why a touch can thrill
The soul, till it doth seem
A single drop would overfill
Her pleasurable dream.

I know not, yet such moments are
Of measureless delight,
When fancy flashes, as a star
That falleth through the night!

A weary night, a solemn night,
Is Life, so stern and slow,
And gentle forms like thine, the light
Which guides us as we go.

Then, say not, maiden—never say
Thy heart in like the snow,
Thine eyes have far too fond a ray,
That we should deem it so.

I, too, have sought, with studied art.
To stay the tides that speak,
But still, the struggle at my heart
Was written on my cheek.

And now, my tuneless measure talks
One of the lonely lays
Which haunt my spirit when it walks
The melancholy ways.

I sing, and singing dwell on thee—
The Pilgrim of a Star!
Who, straining, deems he yet can see
Some solace, though afar.

Oh! in such times my harp will break
Forth in a fleeting tone,
But, ere its echo dies, I wake,
To find—I am alone!

LIFE'S VOYAGE.

BY TH. GREGG.

A GALLANT bark is wildly tossing
Upon the briny wave,
Freighted deep with human treasure—
With earnest hearts and brave.
For many a day that bark is rolling
Over the trackless sea;
For many a day those hearts are beating—
Are beating to be free!

At length the shore is dimly looming
On the horizon's verge,
When that frail vessel boldly plunges
Unto the boiling surge.
A moment—and the ship is stranded!—
A number gain the shore—
Whilst others 'neath the boiling billows
Sink down for evermore!

'Tis thus Life's waves are ever bearing
Our fragile bark along—
Whether freighted with Sin and Sorrow
Or joyous Mirth and Song:
And thus the surges are ever beating
Against the wreck-strewn strand
That stays the tide of Life's rough Ocean
And bounds the Spirit-Land!

MILTON.^[5]

BY B. H. BREWSTER.

WE have had lying on our table, for some years, this beautiful edition of Milton's Select Prose Works, and we have often, while reading it, resolved to set about that which we have at last attempted. But we have been deterred not more by the importance of the subject, than by the recollection of the great spirits who have already earned rich harvests of applause in this field. The article by Mr. Macaulay, published in the Edinburgh Review, would seem to forbid further comment, where the critic has left his reader in doubt which most to admire, the splendor of his criticism, or the lofty grandeur of his original. Then, too, Mr. St. John, the editor of these neat and elegant volumes, has given a preliminary discourse, which displays a keen and warm admiration for these writings, expressed, in a fervid strain of noble eloquence, which inspires that gentle apprehension for the "bright countenance of truth," so soothing "in the quiet and still air of delightful studies."

In a fine London edition of the Prose Works of John Milton, published in the year 1838, there is a well written review by the editor, Mr. Robert Fletcher, in which he laments that some effort had not before been made to "popularize, in a *multum in parvo* shape, the prose works of our great poet." We have here an edition that completes his desires; an edition in which great judgment has been exercised in selecting, from various tracts, those portions likely to prove most agreeable to the public. While they give a proper conception of the opinions of Milton, they also contain some of the purest specimens of his style. Indeed, we think that some one of our own publishing houses would find it to their interest to bring out an edition of this work. The nice taste and the correct discrimination displayed in this selection would command for it a ready sale. It would be of great use to many, who know nothing of these writings, and of service to some, who, while they know of them, yet neglect and turn away from these rich well-springs of truth.

Like all great messengers, Milton was, while living, persecuted, and since his death has been the object of malignant hatred, by those whose place of abiding is fast by the “seat of the scorner.” He whose “words are oracles for mankind, whose love embraces all countries, and whose voice sounds through all ages,” has been slighted, misrepresented, abused, and reviled by those whose greatest glory should have been, that they were the countrymen of Milton—not Milton the poet—but Milton the statesman. He who wielded a pen that made Europe quake, and perpetuated political truths based upon eternal justice—truths that were to warm and kindle up mankind forever after in the pursuit of right against might.

Before we approach these fountains of living light, let us turn and see how it was that he, who had been educated in seclusion, and mingled with the scholars, the gentle and well-bred in his youth, did desert all, and peril his life in the wild tumult and hot strife of religious and political dissension, only that he might bear witness to the light that was in him.

John Milton was the son of John Milton, a scrivener of good repute, in the city of London. He was born in the year 1608, and was carefully educated under the supervision of his father, who was a man of refined taste. He was destined for the Church, and gave great promise of eminence; for he was an assiduous and diligent youth, and was noted for his complete learning and elegant scholarship, at the University of Cambridge, where he obtained his degrees. But he declined to take orders, and refused to subscribe to the articles of faith, considering that so doing was subscribing, slave.

In thus early displaying his independence of opinion in his religious belief, he did but follow the example set him by his father, while he obeyed the honest impulse of his nature; for his father had been disinherited by his grandfather for deserting the Roman Catholic faith.

Shortly after he left the University he retired into the country with his father, who had then relinquished business with a handsome estate; and while there he continued his studies, selecting no particular profession, but devoting himself to the cultivation of all.

It was in these years of sweet scholastic solitude, that he produced his *Mask of Comus*, than which there is not a nobler poem in any language. This brought him great fame among the polite and refined of the day, and was widely circulated for a while in manuscript; so that when he started on

his travels soon after this, (which was in 1638,) he carried with him letters commanding, in his behalf, attention from the most eminent men of the Continent.

He went first to France, and while in Paris was introduced by Lord Scudamore, the English ambassador, to Hugo Grotius, with whom he had a very interesting interview. From Paris he went into Italy, and coming to Florence, in that city he mingled freely with the refined and learned, and, by the elegant displays of his own accomplishments and learning, won the admiration and regard of all. The scholars and wits of that place vied with one another in entertaining him, and celebrated his many merits in their compositions.

With many of those brilliant spirits of that favored land he formed an intimacy, which was continued for years after his return home, as we find by his familiar letters. From Florence he traveled to Rome, and was there again treated with marked kindness and attention by Lucas Holstensus, the librarian of the Vatican, the Cardinal Barberino, and other persons of distinction in that famous city. From Rome he proceeded to Naples, and there made the friendship of the Marquis of Villa, a man of “singular merit and virtue,” and who was afterward celebrated by Milton in a poem, as he had been by Tasso, in his *Jerusalem Delivered*, and his *Dialogue on Friendship*. Happy and fortunate lot! thus to be the object of regard, and to have his merits recorded, and his virtues enshrined, for the admiration of posterity, in the works of these great poetic minds!

He had intended, after having thus visited the finest parts of Italy, to go over into Sicily, and thence to Greece; but the news from England of the difficulties between the Parliament and the King changed his mind, and he determined to return home, to mingle with his countrymen in their toil for freedom, thinking it unworthy of him to be loitering away his time in luxurious ease, while his native land was distracted, and his fellow men at home were battling in fierce strife for liberty.

He returned to Rome, notwithstanding the desire of his friends that he should remain away; for by the freedom of his speech when there he had aroused the vindictive feelings of many of his hearers. And to this he was no doubt provoked by having himself seen the dreadful persecution undergone in the prison of the Inquisition, by one of the finest scientific minds the world ever knew—by Galileo—whom he visited when

imprisoned for asserting the motion of the earth, and opposing the old notions of the Dominicans and Franciscans.

From Rome he went to Florence; and after being there a while he went to Venice, and from that port he shipped his books and music for England. He then took his route by Verona and Milan, and along the lake of Lemano to Geneva; and thence he returned through France the same way he came, and arrived safe in England after an absence of one year and three months, “having seen more, learned more, and conversed with more famous men, and made more real improvement than most others in double the time.”

On his return home, he again devoted himself to the solitude of his study, and to the teaching of several youths (among whom were his nephews) who were intrusted to his care; and in his own house he formed quite an academic institute, where his scholars, like the disciples of the philosophers of old, gathered around him, and by assiduity added to their stores of knowledge, while with his advice and counsel they were purifying and elevating their feelings.

In the year 1641, the nation was in great ferment with the religious disputes of the day, which were intimately connected with the chief political questions then agitated. This roused Milton, who was alive to the close association of the two subjects; and for the furtherance of his political designs, the support of liberty, he issued a powerful tract upon Prelatical Episcopacy. This served to work out a good end, and strengthen the cause of the liberalists. For this, as for other reasons of a like nature, he was prompted to write several other polemical tracts, during that year, and then he dropped the subject forever.

In 1643 he married, being then thirty-five years old. After a month his wife, by his permission, went to visit her relations; and when sent for by him—for reasons which are as yet unexplained—she refused to return, and dismissed his messenger with contempt.

He was deeply wounded by this treatment, and maintained toward her a dignified and resolute indifference. Mortified, and full of sorrow, he found relief in the contemplation of his very source of wo; and after reflection upon it, he projected and published his work upon Divorce, which is to this day one of the most famous works on the subject ever printed.

Affairs had now assumed a new aspect, and the Presbyterian party had, after a great struggle with Royalty, gained the ascendancy, and then ruled

supreme in the councils of the nation.

The King and his abettors were fighting in the field for that authority, they had before vainly endeavored to establish with the arm of civil power. The Presbyterians were now in their day of prosperity; they had been oppressed but were now triumphant. Adversity had not been of use to them. They did not learn charity, or humanity, from her lessons, but now exercised authority with a lordly air, and wielded the sword of State with presumptuous arrogance. Among other acts of great inconsistency and oppression, they established a supervision of the press under the control of an authorized licenser, and at the same time endeavored to suppress the freedom of speech. This base desertion of the principles for which they had contended, this mean exercise of authority in that, in which they had suffered the most, and against which they had clamored the loudest, excited Milton to the writing of the *Areopagitica*. This pamphlet was written by him upon this shameful abuse. He had before acted in concert with them, as the movement party of the day; but when they abandoned and treasonably betrayed the rights of Man, they left him where he had always been, standing on the rock of truth fast by his principles.

There is not a nobler vindication of the freedom of speech, and the liberty of the press, to be found any where, than in this pamphlet.

This book was published in 1644, and in this year he was reconciled to his wife, who sought him out, and unexpectedly to him fell at his feet, and with tears besought his love and forgiveness. In this, as in other instances, have we a strong evidence of the mildness and gentleness of his feelings; for although his resentment had been aroused by her wicked abandonment of him, yet when she returned home, repentant and in sorrow, he joyfully received her, and forgave all. Nay more, when defeat and route had fallen upon the royal standard, he generously took home her father, and his whole family—who were attached to the cause of the monarchy—protected them during the heat of his party triumph, and finally interested himself to secure their estates from confiscation, although they had in their days of prosperity prompted his wife to her disobedience and desertion of her republican husband; thus showing a high-heartedness which was above malice, and in keeping with and but a practical domestic application of the pure, upright faith professed by him, which was stern and unyielding in the pursuits of right, but humane and gentle in the use of power and advantage.

He was now an eminent man, and his bold pen had won for him a public fame and name. About this time he was well-nigh being swept into the mid current of popular politics, and it was contemplated making him the adjutant general, under Sir William Waller; but this design was abandoned upon the remodeling of the army, and he was left at his studies.

The king was imprisoned and tried, and then it was that the true faith and intentions of many were made clear. The Presbyterian party, who had professed democratic republicanism, while their hopes of office were high—like many in our own days, who, when they have attained their hopes, or been rejected by the people for better men, desert their cause, abandon their principles, while they hold on to their name, and fight under their old banners, that they may more surely but more basely injure truth—being now in the minority and out of power, became noisy in their lamentations over the king's fate, and endeavored by every means to prevent his execution, using all arguments, and stopping at nothing to undo what they themselves had brought about. For when they found that there was an unflinching determination of the democracy to punish this man for his enormities and wicked misgovernment.

“They who”—to use Milton's language—“had been fiercest against their prince, under the notion of a tyrant, and no mean incendiaries of the war against him, when God out of his providence and high disposal hath delivered him into the hands of their brethren, on a sudden and in a new garb of allegiance, which their doings have long since concealed, they plead for him, pity him, extol him, and protest against those who talk of bringing him to the trial of justice, which is the sword of God, superior to all mortal things, in whose hand soever, by apparent signs, his testified will is to put it.”

Upon the happening of this event, Milton published his “Tenure of Kings,” from which is quoted the above passage, so applicable in its spirit to our own times, so true of all political trucksters, who shout loudly for the democracy, while they have hopes of using and abusing it, but who basely betray its confidence and abandon it, whenever they are required to put in practice their own professions. This book was published 1649, and served very much to tranquilize and calm the public mind upon that which had passed.

After the establishment of the Commonwealth, he was called to the post of Latin Secretary, by the Council of State, which station he held till the Restoration. This was an office of great importance, inasmuch as all the public correspondence with foreign States devolved upon him. While holding this high and honorable public station, one so congenial with his feelings, and one for which he was so well fitted, he produced many state papers of great merit, and which contributed to advance the fame of the republic abroad.

Upon the execution of Charles Stuart, there was published a book which was styled “*Eikōn Basilikē*,” and which was pretended to have been written by the king, and left by him as a legacy and parting word to the world. It had a most unprecedented sale, owing to the curiosity excited by its appearance. As it was a work which was then likely to excite public sympathy, when public sympathy would be thrown away upon a bad and unworthy object, while at the same time it would abuse and mislead the public mind, the Parliament called upon Milton to write an answer to it, and to furnish an antidote for this lying poison, which it is well believed was never written by the king, but was manufactured and industriously circulated by the enemies of the people, and the friends of arbitrary power, with a hope that by its means they could unsettle the public mind, weaken the republic, and reestablish the tyranny.

Milton accordingly wrote his *Eikonoklastes*; and truly was he an image-breaker; for with merciless force he entered the temple, and with his own right arm shattered the idol that they had bid all mankind bow down before.

Charles the Second, who was then residing upon the Continent, hired Salmasius, a man of great learning, and the successor of the celebrated Scaliger, as honorary professor at Leyden, to write a work in defense of his father and of the monarchy. For this work Charles paid Salmasius one hundred jacobuses. In the execution of this book, Salmasius filled it pretty plentifully with insolent abuse of all the public men of the Commonwealth, and those prominent in the Revolution; both from a natural inclination, and according to directions. In this he was quite expert; for though he was a fine scholar and very famed for his learning, yet as it has been said of him — “This prince of scholars seemed to have erected his throne upon a heap of stones, that he might have them at hand to throw at every one’s head who passed by.”

Immediately upon the appearance of this book, the Council of State unanimously selected Milton to answer it; and he, in obedience to this call, prepared and published his *Defense of the People of England*, a work of great worth and power, and which was written at intervals, during the moments snatched from his official duties, when he was weakened and infirm. This book was read everywhere. Europe rang with it, and wonder at its force filled all minds.

By some it has been said that the Council presented him with £1000 as a reward, which was no mean sum in those days of specie circulation. But empty thanks were all that he received. Neither this nor any other of his writings ever obtained one cent for him from the public purse, as he asserts in his *Second Defense*. While Milton was thus receiving attentions from all quarters, it was much otherwise with his arrogant opponent; for he suffered not only by the severity of Milton's reply, but was slighted and treated ill by Christiana, Queen of Sweden, who had invited him to her court, among other learned men. Upon the reading of Milton's "*Defense*," she was so delighted therewith, that her opinion of Salmasius changed, and she became indifferent to him, which he perceiving, left her court, and retired to Spa, in Germany, where he shortly after died of chagrin.

Milton had been for many years suffering from a weakness in his eyes, arising out of his severe application to his studies. Year after year his sight became more and more dim, until his physicians warned him that unless he ceased his continual toil, he would become totally blind. This for a while he heeded; but the urgent call made upon him in the production of this answer to Salmasius, led him again to over-application, and he became wholly blind. Notwithstanding his blindness, he still continued the discharge of his official duties, and employed his leisure moments in the production of various other political tracts, in answer to the many abusive works issued by the royalists.

On the death of Oliver Cromwell, and the taking place of the difficulties that followed, he wrote a "*Letter to a Statesman*," [supposed to be General Monk,] in which he gave a brief delineation of a "*free Commonwealth, easy to be put in practice, and without delay*." Finding affairs were growing worse and worse, the people more and more unsettled, and that a king was likely to be reestablished, and the Commonwealth subverted, he wrote and published his "*Ready and Easy Way to Establish a Free Commonwealth*,"

and the Excellence thereof, Compared with the Inconveniences and Dangers of admitting Kingship in this Nation.” This short paper was published in 1659-60, and even after this he published his “Notes on a late Sermon entitled the Fear of God and the King, preached at Mercer’s Chapel, on March 25th, 1660, by Dr. Matthew Griffith,” the very year, and within a month of the Restoration; so that his voice was the last to bear witness against the overthrow of liberty and the restoration of tyranny.

Upon the return of Charles, he fled, and lay concealed, during which time his books, the *Eikonoklastes* and “Defense of the People of England,” were burned by the common hangman! An indictment was found against him, and a warrant for his arrest placed in the hands of the sergeant-at-arms. The act of indemnity was passed, and he received the benefit of it, and came forth from his concealment, but was arrested, and shortly after, by order of the House of Commons, discharged, upon his paying the fees to the sergeant-at-arms, who had endeavored to exact them from him, which he resisted, and appealed to the House. And thus, although a prisoner, he still displayed a determination and resolution to oppose that oppression in his own person, against which he had so stoutly battled for the whole people.

He now retired from public life forever; and when an offer was afterward made to him by the king, to return to his old post of secretary, he refused it, although pressed by his wife to accept it, and to her entreaties answered thus: “Thou art in the right; you and other women would ride in your coach; for me, my aim is to live and die an honest man.”

This offer has been denied by Doctor Johnson, in his life of Milton, and that, too, without sufficient foundation, for the contradiction is made without proof; and when Dr. Newton, in his admirable account of Milton, published in his splendid edition of the Poetical Works of Milton, confirms it, and asserts that these very words were from Milton’s wife only twenty years before the publication of his edition. The Doctor has in this, as in other instances, displayed a malicious desire to detract from his merits; his envy no doubt being excited by this unbending integrity of one, whose political opinions were serious enough in the Doctor’s eyes to affect even his merits as a poet. For this, as for other offenses, has he received again and again that censure which he so richly deserved; but from no one with more force than from Mr. St. John, in his able Preliminary Discourse to these volumes. We quote a passage.

“Another sore point with Johnson was, that Milton should be said to have rejected, after the Restoration, the place of Latin Secretary to Charles the Second. Few men heartily believe in the existence of virtue above their own reach. He knew what he would have done under similar circumstances; he knew that had he lived during the period of the Commonwealth, a similar offer from the Regicides would have met with no ‘sturdy refusal’ from him; he knew it was in his eyes no sin to accept of a pension from one whom he considered an usurper; how, then, could he believe, what must have humiliated him in his own esteem, that the old blind republican, bending beneath the weight of years and indigence, still cherished heroic virtues in his soul, and spurned the offer of a tyrant! Oh, but he had filled the same office under Oliver Cromwell!

“Milton regarded ‘Old Noll’ as a greater and better ‘Sylla,’ to whom, in the motto to his work against the restoration of kingship, he compares him, and evidently hoped to the last, what was always, perhaps, intended by the Protector, and understood between them, that as soon as the troubles of the times should be properly appeased, he would establish the Republic. In this Milton consented to serve with him, not to serve him; for Cromwell always professed to be the servant of the people. And after all, there was some difference between Cromwell and Charles the Second. With the former the author of *Paradise Lost* had something in common; they were both great men, they were both enemies to that remnant of feudal barbarism, which, supported by prejudice and ignorance, had for ages exerted so fatal an influence over the destinies of their country. Minds of such an order—in some things, though not in all, resembling—might naturally enough coöperate; for they could respect each other. But with what sense of decorum, or reverence for his own character, remembering the glorious cause for which he had struggled, could Milton have reconciled his conscience to taking office under the returned Stuart, to mingle daily with the crowd of atheists who blasphemed the Almighty, and with swinish vices debased his Image in the polluted chambers of Whitehall. The poet regarded them with contemptuous abhorrence; and, if I am not exceedingly mistaken, described them under the names of devils, in the court of their patron and inspirer below. Besides, even had they possessed the few virtues compatible with servitude, it would have been a matter of constant chagrin, of taunt and reviling on one side, and silent hatred on the other, to have brought together republican and slave in the same bureau, and to have compelled a

democratic pen to mould correct phrases for a despicable master. So far, however, was the biographer from comprehending the character of the man whose life he undertook to write, that he seems to have thought it an imputation on him, and a circumstance for which it is necessary to pity his lot, that the dissolute nobles of the age seldom resorted to his humble dwelling! The sentiment is worthy of Salmasius. But was there then living a man who would not have been honored by passing under the shadow of that roof? by listening to the accents of those inspired lips? by being greeted and remembered by him whose slightest commendation was immortality? Elijah, or Elisha, or Moses, or David, or Paul of Tarsus, would have sat down with Milton and found in him a kindred spirit. But the slave of Lady Castlemain, or the traitor Monk, or Rochester, or the husband of Miss Hyde, or that Lord Chesterfield, who saw what Hamilton describes, and dared not with his sword revenge the insult, might forsooth have thought it a piece of condescension to be seen in the Delphic Cavern in England, whence proceeded those sacred verses which in literature have raised her above all other nations, to the level of Greece herself!"

Upon his release from arrest he retired to the obscurity and solitude of his own dwelling, where he passed his time in the composition of his *Paradise Lost*, *Paradise Regained*, and *Samson Agonistes*. During this time he also produced a *History of Britain*, with several other prose works. In 1674 he expired, worn out with illness and a life of toil; he died without a groan, and so gentle and placid was his departure, that they who were round him did not perceive it.

Although all of his political writings were called forth by the events that were passing before him, and were for that reason local in their immediate application, yet they are so catholic and elemental in their spirit, that we can hardly believe that they were written in an age when feudal tenures were not abolished, and before any people had as yet secured their own freedom.

His *Areopagitica* was his first political work; and although it was written for a special purpose, and with a view to a then existing evil, it is still a pamphlet that might very well be published at this day, as the declaration of our opinions upon this subject of the liberty of the press.

The very motto of the book, taken from Euripides, and translated by himself, indicates the whole spirit and intent of it.

“This is true liberty when freeborn men,
Having to advise the public, may speak free,
Which he who can, and will, deserves high praise,
Who neither can, or will, may hold his peace;
What can be juster in a state than this?”

After discussing the real merits of the question then before him, he departs altogether from that topic; and as he always did, generously claimed the same right for mankind, that he had sought for Englishmen. And then it is he utters this fine sentence, which shows a noble enthusiasm in his cause, and a firm belief in its justice. “Give me the liberty to know, to utter, and to argue freely according to conscience above *all liberties!*”

After this work he wrote his “Tenure of Kings.” The design of this pamphlet has been already explained. We may judge of its liberal character by these few passages. At first he alludes to the treasonable desertion of principles by those, who were then turbulent for the king’s release, and who had mainly helped to provoke and carry on the war. Afterward he declares this general principle; “No man, who knows aught, can be so stupid as to deny that all men naturally *were born free*, being the image and resemblance of God himself.” And after this proclamation of that essential truth, he proceeds to analyze the history of society, and shows by reason, scriptural authority, general history, and the universal opinions of mankind, that all government proceeds from the people, is created by them for their comfort and good, and is subject to their control, whether it be patriarchal, despotic, or aristocratic; and that no king or potentate holds by any other authority than the consent of the people; which being withdrawn his rule ceases, and for his crimes his life may be forfeited—declaring that this must be so, “unless the people must be thought created all for him singly, which were a kind of treason against the dignity of mankind to affirm.”

And after all this he shows his charity for his fellow men, wherever they may be, by saying, “Who knows not that there is a mutual bond of amity and brotherhood between man and man all over the world; neither is it the English sea that can sever us from that duty and relation.” It is this sentiment, and such like this, that demands of us our admiration and regard for this purest of men.

In the same manner does he fight the same fight in his *Eikonoklastes*, and “Defense of the English People,” fearlessly breaking new ground in

behalf of the “Rights of Man,” as if he considered it to be his greatest glory to be the champion of his race, while he was defending his countrymen.

In the *Eikonoklastes*, after refuting the many lies uttered by the king’s lip-workers, he says, “It is my determination that through me the truth shall be spoken, and not smothered, but sent abroad in her native confidence of her single self, to earn how she can her entertainment in the world, and to find out her own readers.” Hearken then again to his words, which now, near two hundred years after they were published, come like a solemn and prophetic voice from out the writings of the old, blind republican.

“Men are born and created with a better title to their freedom, than any king hath to his crown. And liberty of person and right of self-preservation is much nearer, and more natural, and more worth to all men than the property of their goods and wealth.”

This is *our* truth, the corner-stone of our faith. Here we stand, and alone of nations have made this our practice, and thereby given a healthful example to all men. These things he believed, and, for the first time for ages, did he announce to the world those truths which were to unsettle tyranny and open the way to universal freedom.

When the king was about to return, he published “The Mode of Establishing a Free Commonwealth.” This was the last blast blown to rouse the people from their lethargy. With a prophetic energy did he predict the ills that would fall upon the nation, should the king again be established. How sadly have his words been realized in the gilded misery that now surrounds his country, where starving millions toil like beasts of the field to fatten a licentious and debased aristocracy!

In this book he told the people that “no government was nearer the precepts of Christ than a free Commonwealth, wherein they who are the greatest are perpetual servants to the public, and yet are not elevated above their brethren, live soberly in their families, walk the streets as other men, may be spoken to freely, familiarly, friendly, without adoration.” After extolling the excellent beauty of freedom, and exhorting them to stand by their rights, he thus concludes, with these passages so full of grand and pathetic eloquence.

“I have no more to say at present; few words will save us, well considered; few and easy things, now seasonably done. But if the people be so affected as to prostitute religion and liberty to the vain and groundless

apprehension, that nothing but Kingship can restore trade, not remembering the frequent plagues and pestilences that then wasted this city, such as through God's mercy we never have felt since; and that trade flourishes nowhere more than in the free Commonwealths of Italy, Germany, and the Low Countries, before their eyes at this day; yet if trade be grown so craving and importunate, through the *profuse living of tradesmen*, that nothing can support it but the luxurious expenses of a nation upon trifles or superfluities, so as if the people generally should betake themselves to frugality, it might prove a dangerous matter, lest tradesmen should mutiny for want of trading; and that therefore we must forego, and set to sale religion, liberty, honor, safety, all concernments, divine or human, to keep up trading. What I have spoken is the language of that which is not called amiss, "The Good Old Cause;" it seem strange to any, it will not seem more strange, I hope, than convincing to back-sliders. Thus much I should perhaps have said, though I was sure I should have spoken only to trees and stones, and had none to cry to, but with the prophet, 'O Earth, Earth, Earth!' to tell the very soil itself what her perverse inhabitants are deaf to; nay, though what I have spoke should happen, [which Thou suffer not, who didst create mankind free! nor Thou next who didst redeem us from being the servants of men!] to be the last words of our expiring liberty."

The political works of this great man have been diligently suppressed, and his political fame traduced; while they, who could not deny him merit, have been busy before the world in lauding him as a poet, thinking thus to lead men off from a knowledge of that wherein consisted his true greatness. We question much whether the dullest mind could read these books now, without being roused and filled with enthusiasm for this apostle of liberty, and for his cause.

In them he nobly vindicates the people and their rights. "The Good Old Cause," as he calls it, warms him up, and he writes with an exulting energy that would make your blood gush with delight. His opinions were not the distempered thoughts of a factionist. He never allowed his feelings to be warped by a selfish regard for party advancement. He knew no party, but generously devoted his whole soul to the cause of his country, and in defense of the rights of mankind. In his old age his greatest glory was, that he had always written and spoken openly in defense of liberty and against slavery.

The truths which he wrote in his matured years, as applying to the condition of his unfortunate country, were but repetitions of the faith of his youth, as he had powerfully expressed it in his *Comus*.

“Impostor, do not charge most innocent Nature,
As if she would her children should be riotous
With her abundance; she, good cateress,
Means her provision only to the good,
That live according to her sober laws,
And holy dictates of spare temperance:
If every just man, that now pines with want,
Had but a moderate and beseeming share
Of that which lewdly pampered luxury
Now heaps upon some few with vast excess,
Nature’s full blessings would be well dispens’d,
In unsuperfluous even proportion,
And she no whit encumbered with her store:
And then the giver would be better thanked,
His praise due paid; for swinish gluttony
Ne’er looks to heaven amidst his gorgeous feast
But with besotted, base ingratitude,
Crams and blasphemes his feeder.”

Even now, while we conclude these few pages our pen falters, and we feel disposed to abandon the task. His magnificence overpowers us. How can we point out the excellence of that which commands the admiration of all men, and is beyond the loftiest praise of the most eloquent? Again and again have we turned over the leaves of this work, with the intention of selecting passages worthy of comment and regard, and so thickly have they flowed in upon us, that page after page has been exhausted, and we had not finished. How idle, then, to select from these masterpieces of eloquence and storehouses of truth! How vain to dwell upon his merits, when every line of his splendid composition tells of his measureless learning and infinite purity of thought. His style, at once grand and simple, is happily suited to convey conviction to the mind, and inspire the soul with fervid energy.

While his works are filled with noble conceptions, clothed in language of corresponding state and grandeur, we nowhere find any attempt at fine

rhetoric for mere empty display. The whole subject sweeps on with solemn magnificence, but with no idle pomp. From the depths of his soul did he speak, and his words were as fire, scorching to his enemies, and life-giving and cheering to those who love “truth and wisdom, not respecting numbers and big names.”

The most inspiring view that can be taken of the soul of these writings is, that they are, even at this day, far in advance of the social condition that exists in this land of liberal and enlightened principles of government. The precepts by which he would wish us to be guided, are the pure and humane doctrines of the Savior of man. He did not fight only for the liberties of *Englishmen*, contending for *English* rights, citing the charters of *English* liberty—no, not he—all mankind were alike to him, and for *man* alone he spake. No such Hebrew spirit animated his noble soul.

He proclaimed the rights of man, as man, and asserted his rights, natural and social, without ever launching out into Utopian speculations and visionary conceptions, the practical utility of which no one can affirm, and the application of which would have worked out ills innumerable, rooting up and overthrowing ten thousand times ten thousand social rights, that had grown up with the state itself. He asserted abstractions; but with an intimate knowledge of men and their affairs, he steadily avoided violating those relative rights, to suddenly encroach on which would have been even as great a despotism as the rugged foot of feudal barbarity, with which his country had been oppressed.

From the generous and life-giving precepts of the Gospel did he draw his faith. He there learned charity for the misdoings of men, as well as belief in their power to resist evil and attain truth. He there learned love for mankind, as he imbibed a stern, unyielding hate for tyranny and hypocrisy.

No timid navigator, skirting along the shores and headlands, but a bold, adventurous spirit, he pushed forth upon a wild, tempestuous sea of troubles, with murky night of ignorance and superstition surrounding him. The “*Telemachus*” of Fénelon, might have been the “first dim promise of a great deliverance, the undeveloped germ of the charter of the code,” for the whole French people. But in these writings of Milton, we have a *full* and manly assertion of those rights and duties which all men owe one to the other, and all to society, and which are far, far beyond the simple truths conveyed in that beautiful and easy fiction.

Well might the French monarch have “the Defense” burned by the common hangman! Well might he for whom “a million peasants starved to build Versailles,” look down with horror and fear upon that work, for in it were truths which have roused up men to assert their rights. It was the vindication of a noble people, who had trampled under their feet the yoke that oppressed them, and had brought to punishment the tyrant who reigned over them. These works and the events that produced them have an interest to us. Englishmen may slight them, but we look on them with exultation—they are associated with our own history—they are connected with our own family legends—and as they record the mighty struggle of the mighty with the powers and principalities of this earth, they should be revered and held sacred by us; they should be our household companions, as they were of those men whose blood now warms the hearts of an empire of freemen, who boast their lineage from a prouder source than kings—the Puritans of New England. The men of that Revolution have never been fully understood. He who would wish to know the justice of their cause, let him read Milton, and let him read the real documents of the times. They have been abused and misrepresented by most historians. Mr. Bancroft, in his History of his Country, has comprehended these martyrs in the cause of democratic rights, and dared to tell the truth concerning them. They and theirs were the settlers of this country. From them came the mighty forest of sturdy oaks, which in years after were to breast the storm of royal oppression and wrath, in this their refuge; and from which tempest we—WE THE PEOPLE, came out gloriously triumphant!

Think not ill of them. Tread lightly upon their memories as you would upon their ashes. They who perished upon the scaffold—they who found a home here—they who died upon the field in England, or worn out with anxiety and public care, sank to rest forever in their homes—they who, like Cromwell, fought in the field and ruled in the council—and they who, like Milton, have proclaimed from the study that “*man is free*,” have earned names that time will brighten, and have stood by truths that will secure the affections of a world hereafter.

[5] Select Prose Works of Milton, with a Preliminary Discourse and Notes. By J. A. St. John. London: J. Hatchard & Son. 2 vols.

“BLESS THE HOMESTEAD LAW.”

BY L. VIRGINIA SMITH.

It was a summer morning. Soft the flame
Of the early sunlight up the zenith came,
Deep tinging with a golden-crimson hue
The clouds that floated o'er the welkin blue,
Or veiled the distant mountain. Far, and near,
From farm to farm the call of chanticleer
Rang like a clarion, shrilly sweet and long,
The robin red-breast trilled his matin song,
Hid in the high old maple, while around
From far, deep-waving grain-fields gayly sound
The carols of the bob-o-link. The bee
Was out among the blossoms, in his glee
To rouse them from their dreamings. Gracefully
The west-wind waved the weeping willow-tree
That drooped above the rivulet, or crept
Amid the branches of the elm that swept
A low-browed homestead. Ruby columbine,
Sweet honey-suckle, and the Indian vine,
Had veiled the rustic portico, and wild
Swayed o'er the casement, and the sunlight smiled
Through the low entrance. 'Twas a winsome place,
And like the sunny calm of some sweet face,
You would have thought in gazing on its rest,
That earth's frail children *sometimes* can be blest.
And yet misfortune found it;—see the group
Now gathered at the threshold, o'er them droop
Long, swaying branches, and the loving leaves
Lay their light fingers o'er the heart that grieves,

As if to soothe its sorrows. Agony
Lights up the darkness of the husband's eye,
He stands apart, his bearing calm and proud,
And yet his heart is burning 'neath a cloud
Of dread and misery. The young wife leans
By the old elm-tree, 'mid the passing scenes
Her heart is busy, for beside her stands
A lovely child, with snowy, dimpled hands
Clasping her mother's, while within the shade
Her baby brother on the greensward played.

The little maiden mused, a choking swell
Filled her young bosom, and the large tears fell
All silently, then her slow-lifting eyes
(Their blue depths troubled with a strange surprise)
Sought out her mother's;—tossing back her hair,
Her clear voice melted on the morning air;—

“We leave the homestead!—Say, dear mother, why?

Do not the birds and blossoms love us here?
Has any other home a clearer sky,

With brighter stars upon it? Mother, dear,
Shall we not sigh *there* for this old elm shade,
Where you and I and brother oft have played?

“We leave the homestead!—Oh! my father, tell,

Why turn we from the fields, and wood-paths dim,
Through which we wended as the Sabbath bell

Called us to worship, with its solemn hymn?
Shall we not sigh to pray where friends have prayed,
Or weep our loved ones in the church-yard laid?”

The haughty bosom of the strong man shook
With an internal tempest, and he took
Her tiny hand within his own; his pride
Was bending, and he earnestly replied:

“Why do we leave it?—’tis a tale too long,
And strange to fall upon *thy* heart, my child;

'Twould tell of dark misfortunes, pain, and wrong,
And wo, that seemed at times to drive me wild,
To make me doubt the path my fathers trod,
And that the poor man had indeed a God!

“But thou, my Ada, true and gentle bride,
Dost thou remember when thy violet eye
Looked first upon ‘Glenoran?’ All untried,
It seemed to thee a Paradise; ah! why
Am I myself its serpent and its bane,
To leave on all its bloom a deadly stain?

“Oh! could I only bear this all alone,
The grinding poverty—the lurking sneer—
All the poor debtor’s wretchedness—no moan
My soul would utter audibly, but here
My heart of hearts is crushed, my life of life,
They suffer also, child, and babe, and wife.

“We leave the homestead;—wanderers we go,
From friends, from kindred, and our native land—
My God! if *I* have merited such wo,
Have *these* deserved it at thy mercy’s hand?
Oh! let thy justice all my actions scan,
Yet leave one hope—to die an honest man.”

He drooped his head upon his bosom, bowed
With misery, and instantly the proud
Young wife was at his side; soft o’er his brow
Swept her white fingers, and her voice was low:

“Thy soul is dark, beloved, it fears for us—
Ah! only trust in God, as I in thee,
Lift up thy stately brow; to see thee thus
Is worse than all life’s agony to me.
Thou couldst have died for us, beloved, but we,
E’en when all hope is lost, will live for thee.

“They cannot separate our souls from thine,

They cannot part us wheresoe'er we roam,
Or place aught else within the sacred shrine,
Where dwell thy wife and children. Loved one, come,
Give me mine only *home* within thy heart—
I'll bear it with me—let us hence depart.”

It is the summer twilight. Dark the shades
Are falling through the forest everglades,
The winds are hushed, the lonely whip-poor-will
Sings his wild lullaby upon the hill,
A sighing murmur from the mountain-pines
Steals up valley, and the love-star shines,
All brightly in “Glenoran.”

Since the morn

Glad tidings visited those bosoms torn
With unavailing sorrow, now the “right”
To have a home was granted, and delight
Was blended into orisons. That line
Whose fiat echoes back a law divine,
Was made a statute, and sweet Ada saw
Her loved ones singing, “*Bless the Homestead Law!*”

THE MISER AND HIS DAUGHTER.

BY H. DIDIMUS.

THIS man came to Louisiana many years since, a silver-smith by trade, poor, and largely in debt. He was born in New York, and in that city worked industriously at the business to which he had been apprenticed, until a competency rewarded his labors, and wealth, which he had before little thought of, was brought near enough to his door to be both seen and desired. The hammer, the soldering-iron, and the file were now thrown aside, as instruments of a slow getting; and the head was taxed with schemes for the acquisition of sudden and great gains. At the close of two years he was a bankrupt. But he was not a man of half-measures; true courage he had enough of; and honesty has never been denied him; so, he called his creditors together, laid before them a statement of his affairs, surrendered all that he had, gave his notes for eighty thousand dollars, and departed, with nerves unshaken, and a will indomitable, in search of a new land and a new fortune.

When the ambition of wealth drew him from his work-shop, he carefully laid aside the tools of his trade in a stout oaken box, to be kept as mementoes of former labor; they were now all that remained to him, the only gift which he had asked, and would receive of creditors who were disposed to be generous. With them, at thirty-five years of age, he bid the North good-bye, went on shipboard, entered before the mast, in payment of a passage to New Orleans, and on his arrival there, at once hired himself into the service of a silver-smith, who has since ranked with the wealthiest of its citizens, and who has since met with ruin more disastrous than that which brought the best of his journeymen to his door.

John Cornelius, when you first scented the Mississippi marshes, and stepped from ship to shore with a debt of eighty thousand dollars upon your back, John Gravier had not wholly parted with that domain, which now forms the noblest portion of the second municipality. To one with a soul in his body, bent on money-getting, the track clear, the goal in view, to be won

with effort, eighty thousand dollars of debt is like weight to the race-horse—it is not best to run too light at the start. Your eye saw what John Gravier did not. You read the page written by the hand of God, legibly enough—the Mississippi with all its tributaries, rolling through lands of an unequalled fertility, and of every variety of clime, and you had faith. God's promises are certain. With the return of spring comes the flower, and with the breath of autumn comes the fruit; with the twinkling star comes rest, and with the rise of day comes light and labor; every mountain, every hill and valley, every plain and running-stream, river and ocean, speak of God's promises, and accomplish them. Read, and understand; this it is, which separates the man gifted from the common herd, who are born to toil for the benefit of the few.

John Cornelius read God's promises in the Mississippi, and went heartily to work. With him, there was no folding of the hands, no waiting on Providence; for he knew that the fable of Hercules and the wagoner was as instructive under a Christian, as under a pagan dispensation; so he girded up his loins, made sharp his sickle, and entered upon the harvest which was already ripe for the reaper. Economy is the handmaid of wealth, and penuriousness is economy's own daughter. John Cornelius took them both to his bosom, and for ten long years he lived upon one meal a day, and that a cold one. The larger portion of his monthly wages he hoarded up, and when the accumulations had become sufficient, remembering the promises of the Mississippi, he bought a lot of ground within the precincts of John Gravier's plantation; hoarded again, put a small wooden tenement upon the lot, rented, and was a landlord. Thus he went on, working, hoarding, with economy and penuriousness his whole household, penuriousness holding the upper hand; adding lot to lot, tenement to tenement, and lease to lease, until at the close of ten years, he found that God's promises written upon the Mississippi, were fulfilled and fulfilling; and he again laid aside the tools of his trade in a stout, oaken box, there to rest, as they do rest to this hour. He was rich; he had kept even pace with New Orleans, in its progress toward greatness; but, with his wealth had grown up a habit, the habit of penuriousness, which wealth only strengthened, as a child strengthens its parent. Habit moulds the soul, and fashions it to its will; habit makes the writer; habit makes the poet; of habit, are born the soldier, the statesman, and the scholar; habit created the arts, and all science; habit gives faith and

religion, and fastens every vice upon us; and habit made John Cornelius a miser.

SECTION II.

It was many years subsequent to the period at which Mr. Cornelius found it for his interest to retire a second time from the work-shop, and to devote himself exclusively to the management of his increasing rent-roll, and frequent investments in real property, and when, with the eighty thousand dollars of debt lifted from his shoulders, he stood erect, mighty in wealth, that he one day entered my office, and tendered me a counselor's fee.

Mr. Cornelius and myself were strangers to each other. I had occupied chambers in one of his houses for the past five years, but his collector arranged with me the terms of my lease, and received the quarterly rent; and as my landlord was faithful to his own interests, and as I was equally faithful to mine, no incident had transpired, growing out of our relations, to bring us together.

"I have for some time been a tenant of yours, Mr. Cornelius," said I, handing the gentleman a chair; "and I suppose that I may attribute this visit to a worthy desire on your part to become acquainted with one who, thus far, has exhibited no sign of an intention to quit."

"I am too old a man to wish for new acquaintances, Mr. Didimus; and had you referred my call to a knowledge of your reputation for attention to business, and a want of your professional services, you would have come much nearer the truth."

I thanked him, both for the compliment and his confidence; and requested a statement of his case.

"Time is money," said Mr. Cornelius; "and a few words shall not long detain either of us. In October last, a Mr. Andrews died; my debtor to the amount of twenty-five thousand dollars. The debt is secured by mortgage upon his house; but his widow comes in for twice the sum, in virtue of her paraphernal rights, and as her claim is older than mine, it will sweep away all, unless I can show that the marriage was void in law."

"In what respect, Mr. Cornelius?"

"Andrews had a wife living at the time of his second marriage."

“Had the second wife any knowledge of the fact before her cohabitation with the deceased, or at any period thereafter, prior to the springing of her claim, with the simultaneous mortgage which the law gives to married women and minors as their best security?”

“Perhaps not.”

“How much does the second wife claim?”

“Fifty thousand dollars.”

“What is the value of the succession?”

“The house may be worth twenty; and the house is all.”

“If you succeed, the widow is a beggar?”

“Yes.”

“Both law and justice are against you, Mr. Cornelius.”

“I am not here to learn what justice is, justice in the abstract, Mr. Didimus; I might travel far and not find it. Positive justice, the positive rules of the legislator, the justice of the law is that with which we have to do. There is no natural right to property. Property is a creature of the law. With one, it is just that the eldest born should take all; and with another, it is just that the succession should be equally divided between sons and daughters. Here, the youngest claims the largest portion; and there, the female is preferred to the male. Positive rules, the wisdom of many wise men, of many generations, do, with every people, both make and unmake the right and the wrong. The law is justice, and I ask what the law awards me. If the law gives to the wife a tacit mortgage to secure her paraphernal rights, the law also gives to me a judgment mortgage to recover my rights of contract. She must show a valid marriage; I must show registration. We stand upon the same platform; and if I prevail, it is because the law is with me. No injustice is done, Mr. Didimus. The widow cannot have what is not here; thank God, no injustice is done.” And the rich man, as he closed his defense, stretched out his hands clutchingly toward me, as if to take possession of the large sum of money which seemed passing beyond his grasp.

“Supposing all that you have advanced to be true, Mr. Cornelius; yet, as the widow in the case under consideration, married and cohabited with her late husband in entire ignorance of the fraud which had been practiced upon

her, the law, both in letter and spirit protects her; and I must respectfully decline any further action in the matter.”

Mr. Cornelius bid me good morning.

SECTION III.

Some few weeks subsequent to the interview just related, a lady habited in deep mourning called upon me, and put a large bundle of papers into my hands. It was the widow; and the papers were a statement of her husband's succession, much of his correspondence, evidences of her claim, and the usual copies, which had been served upon her, of a process which Mr. Cornelius had instituted under the advice of counsel more pliant, or wiser than myself.

"I know something of this already," said I, after having hastily glanced over the contents of the package.

"Indeed, then I am unfortunate, for you are retained upon the other side," said the lady.

"I might have been so, but declined; and, believing as I do that you are in the right, you will permit me to hope that you are not unfortunate."

"The past is dark enough," said she, "the future is with God alone."

"Mr. Andrews had a wife living at the time of your marriage with him."

"The evidence of that fact is in your possession."

"You received from your mother's succession fifty thousand dollars, which your late husband squandered."

"He was imprudent."

"Of your husband's first marriage you were ignorant, until after his decease?"

"That knowledge came to me a double sorrow, quick following his death; to me more terrible than death. Now, alone in the world, with none of my blood known to me, I come to you as my defender. The law is a stern master; sometimes blind. If I lose, I lose all, a beggar, with a name suspected, I can do little else than lie down and die!" and she covered her face with her hands, and sobbed aloud.

"Mr. Cornelius is honest," said I.

"Mr. Cornelius knows not my heart."

"He is rich."

“I would take nothing from his wealth. True, he is a man of large property, but my folly has, in part, brought this sorrow upon me; let the law judge between us, I will be content.”

“Now, madam, you show the right spirit, and my best endeavors shall be exerted in your behalf,” said I, as the lady rose, and gave me her hand at parting. “Wait, trust in your counsel; and if you lose, still wait, still hope; *for every thing is rewarded and avenged in time.*”

My fair client’s heart was too full to speak of gratitude; and I handed her to the door, and took leave of her in silence.

SECTION IV.

I returned to the papers and studied them, far into the night. There was the evidence of the fifty thousand dollars received; and there, too, was the evidence of the prior marriage—the first wife living at the time of the taking of the second. It was a sad tale, the story of that first wife; a tale of neglect, of desertion, of want and woe; a tale told in letters written from a far distant land, and blotted with many tears. I steeled my heart against it. How else could we of “The Profession” live? As the surgeon, compassionless, cuts with steady nerve through flesh, and bone, and marrow, and saves the life which pity would have lost; so we soon learn to close the heart to sorrow; to hear nothing, to see nothing but the interest of the client; to hope for nothing but his success—God protect us! Ever dealing with the passions and the vices of men; their unholy race after mammon; strifes by the way-side; plots and counter-plots; faith broken; trusts betrayed; snares for the unwary; the innocent duped; the unfortunate trampled upon; the hoary sinner honored—God protect us! Great wonder is it, that we do not loathe the very name of man! Poor woman! If she who assumed your name and state, and defiled the marriage bed, which with you alone was pure, was guilty, although ignorant, of a careless haste, the punishment has come, equal to the fault; and you, too, are avenged—even in time.

I often saw my client, during the period of one year, which elapsed between my retainer and the trial of the suit which she had engaged me to defend. She was young—she could not have been more than twenty—without children, and her beauty grew upon me every day. With a fine figure—not too light, but rather a little heavy, with the *embonpoint* of the widow—with features, which were the handsomer for being irregular, and eyes which spoke the sex with all its glory and its weakness. She interested something more than professional pride, or manly compassion in her favor. Her intellect, too, was brilliant and cultivated; and her manners most refined: certainly it would have been pardonable in a bachelor to have made her cause wholly his own. But there was a mystery woven into the history of her life, which she either could not, or was not pleased to remove. In one only, of the many papers and few family letters which she from time to time put into my hands, did I find any allusion made to her father. She never

herself voluntarily spoke of him; and whenever I questioned her upon the subject, she was evidently much troubled by my inquiries, and professed to be utterly ignorant of that side of her house. She had known her mother only under her maiden name, and had lived with her, in one of our northern cities in great seclusion, until she met with Mr. Andrews, married him, and removed to New Orleans. Shortly after her marriage her mother had died, bequeathing her fifty thousand dollars, the result of economy and business habits. What folly, what shame, what crime had given her birth, or had removed as beneath a cloud her father from her sight, she knew not; but her mother had often told her that she was born in honest wedlock, and that some day she should claim her own. She knew not the place of her birth, nor her mother's relatives, and stood as one without relationship in the world. How her heart yearned to find in other veins the blood which flowed in her own! At such times, when my questions had stirred the fountain of her tears, and the grief of desolation ran over, she would wring her hands in a passion of sorrow, and call upon heaven to give her knowledge—to give her father to her arms.

“Pardon,” she would murmur, “these exhibitions of my weakness; it is terrible not to know the father that begat you; terrible to hear want, even to destitution, knocking at your door.”

SECTION V.

The day fixed for the trial came. I felt prepared, strong at all points save one, that of my client's parentage. There was a suspicion about it which would not tell well with the jury. As to the law which governed the case, provided no knowledge of the first marriage were brought home to my client prior to the springing of her mortgage, I was sure of it; and I believe that no one of my brethren at the "Bar" would now dispute the correctness of my opinion. But the fact of knowledge, a jury might infer from very slight evidence, and my client's seeming bastardy and strange ignorance of her father, and of her mother even, beyond the certainty that she once lived and cared well for her young days, were better fitted to excite suspicion and clothe her in the garb of an adventurer, than to secure pity or be urged as arguments of innocence. This was the assailable point. I had thought much upon it, and had concluded that it was to be best defended by an open avowal, and a bold appeal to the more generous sympathies of our nature. Thus armed, I entered the court-room.

The court was upon the bench, and the opposite party, with his counsel, was there, ready, expecting the battle, and confident of a success which was to take from the widow all that she possessed. Mr. Cornelius was there. Tall and meagre in his person, with cheeks hollowed and hair whitened, by age and long continued labor and great self-denial, ending in extreme penuriousness, his eyes alone retained a show of the vigor of youth. Gray, cold and piercing, they rolled quickly and incessantly from side to side, as if every where and at all times in search of the yellow metal upon which his soul fed, and grew smaller and smaller, even to a pin's point. His brow was thickly furrowed with the lines of gain; but it was a noble one, and showed a strong intellect bound in chains of its own forging—enslaved to Mammon. Yes, John Cornelius cannot say, on that last day when rich and poor shall stand, equal at the feet and shoulders, before their common God, that he labored according to his light. Success in life, success in any department of the business of life, a success extended over a quarter of a century of years, presupposes intellect, and a great deal of it. A fortune may be won by the turn of a card, and a fortune may be lost as well; but that fortune which is gathered slowly and surely, the result of foresight, of a

deep knowledge of the ways of commerce, its growth, fluctuations and changes, of its adaptation to the wants of men and the humors of the times; the result of a providence which sees the coming storm and provides for it, which sees the prosperous breeze and catches it—such a fortune is the result of a strong intellect, equally with any greatness whatever. John Cornelius cannot say that he labored according to his light!

There he sat, and as he clutched, with his long, thin, bony fingers, at the papers which lay spread out upon the table before him, as if they were the stout line which was to draw unto him the gold he coveted, I thought of the story of the Rich Man and the Lamb, told in the olden writ.

My client was also beside me. Still habited in black—she might well mourn the wrong she had suffered, if not the man she had loved—the veil lifted from her face, a little pale with hope and sorrow, and a womanly modesty possessing in quick turn all her features.

She won the favor of the court; and the jury, as each was sworn and took his seat within the box, whispered compassion.

SECTION VI.

My adversaries saw, clearly enough, the ground upon which I stood, and the able junior counsel, in opening the case, with great art alluded to it, and fully shadowed forth the position in the defense which was to be most strenuously attacked. "The plaintiff's mortgage was undoubted; I had myself acknowledged it in the answer on file in the record; neither was the amount alleged by the defendant to have been received by her late husband from the succession of her mother to be disputed, the evidence was conclusive; but the marriage was illegal; that would hardly be questioned. Was the defendant in good faith at the time of its celebration? Was she in good faith when her late husband took possession of her mother's succession? Was she in such good faith as would secure to her the rights of a legal marriage? These were the questions to be answered, and he believed that the evidence which he was about to bring home to the knowledge of the jury, would answer them most emphatically in the negative. He then spoke of Andrews' long residence in New Orleans; of his many acquaintances there; of his well-known marriage with the daughter of a French Jew; of his desertion of his wife; of her return, with her aged father, to France; of the second marriage, hastily made up; of the plaintiff's sudden appearance in that city, claiming a position due alone to honesty, while Andrews spoke of her to his associates as his concubine; of the hints which she had received of the imposition she was striving to practice upon others, or which had been in reality practiced upon herself; and of the deaf ear which she ever turned to such warnings; of her feigned incredulity; and of the mystery which hung over and covered, with impenetrable darkness, the history of her birth. He closed with an appeal to the judgment of the jury—cautioned them against the blinding influence of the passions—spoke of the dangerous eloquence of a woman in weeds—besought them to keep their reason unclouded, and not suffer sympathy to work a wrong—and asked for justice, sheer justice, the justice of the law, that right might be vindicated without respect of persons."

The evidence went far to sustain the labored and wily exposition of the advocate. The first marriage; the desertion; Andrews' long residence in New Orleans; his numerous acquaintances, putting inquiry within the easy reach

of every one; his visit to the North; his early return accompanied by the defendant, who claimed the privileges and honors of a wife; his disclaimer of her right to such privileges and honors, repeatedly made to his associates; the many hints which the defendant had received from the well disposed and compassionate, as to her true position, early in her marriage; her confused replies, and faint and soon relinquished inquiries; her unwillingness to speak of her family, and studied silence whenever the subject was alluded to; the suspicion which rested upon her mother's name, and the existence of the first wife, living even at that time, in retirement and sorrow in one of the small towns in the north of France, all was proved by testimony which seemed fair enough.

John Cornelius' eyes glared gloatingly upon the gold already present to their sight, and he turned his hands one within the other, in the joy of the certainty of success.

SECTION VII.

I opened the defense. I saw a new countenance upon the twelve faces before me. There was now no pity, but distrust and a hardening of the heart, and opinion more than half made up. I walked warily, began afar off; called them honest—and so indeed they were—acknowledged the first marriage, acknowledged the first wife living, in sorrow and in want; acknowledged the plaintiff's mortgage; claimed nothing from sympathy for the poor, nothing from sympathy for the wronged widow, nothing from sympathy for the orphan; alluded to the thick shadows in which time and circumstances, and a probable wrong, had enveloped the mother's early life, and with which they had nothing to do; spoke of that mother's purity of conduct during a period of many years, of her industry, of her accumulation of wealth, of her care for an only child, her daughter and my client; of the daughter's peculiar position in society; of her young ignorance of the world; of her wide separation from Andrews' place of residence; of her indiscreet confidence when wooed, pardonable in one whose own life was to her a mystery; of the hints which she had received subsequent to her marriage, and of the suspicions which had been aroused, suspicions well answered and well put to rest by suggestions of the malice of her husband's enemies, and by trust in the man she loved, in the man into whose arms she had surrendered all—a trust most honorable in a woman. But where was the first wife? Why had she remained silent? Wronged, deserted, driven out, she must have been ready to give credence to any report in disparagement of her husband. Under such circumstances, hints and inuendoes in which the defendant could put no faith, could not satisfy her that she had been deceived. This was the position which we occupied; this was our defense. The evidence which I was about to introduce said all that I said, and into its keeping I willingly surrendered the property and the good name of the widow and orphan, whose cause is holy in the sight of God and of men. *Cum deceptis jura subveniunt.*

It was now for me to introduce the evidence on the part of the defense, and I did so in the order which reason at once suggests as the most natural and direct. First, of the marriage, which was not denied; then of the wife's inheritance, which Andrews had received, and of which the proof was too

full to be questioned; and then, as part of the *res gestæ*, letters written by Andrews at different periods, and in times of temporary absence, breathing confidence and love, and twice alluding to the suspicions which the idle gossip of his enemies had planted in the breast of his wife, and branding them as the offspring of an unfounded malice.

As I passed the papers to the clerk, I turned and looked upon Mr. Cornelius. His hands rested, clenched, upon his knees, but his eyes still reached for the gold which was fast receding in the distance. My client had, from the first, put off all womanly fear, and listened to the argument and watched the testimony with a clear brow, pale from resolution. Once, when the junior counsel in his opening speech, hinted at concubinage—a crime too frequent, too much bred into the customs of the city not to gain an easy credence—the blood mounted, suffused her temples, bathed her whole face in the ruddy light of a golden sunset, and then flowed back not to return again. Now, she was cool enough.

I next read letters from the mother, dated both before and after the daughter's marriage. They were written with great elegance and simplicity, and all started from the same point, and all came back to it again—a mother's care and unceasing anxiety for her daughter's physical health, for her mental improvement, for her moral purity. The court was touched; a manly sorrow sat, veiled, upon the hard features of the jury; the miser shook, like an aspen-leaf, through every limb. I paused—and then took up another, the last, written but a few days prior to the mother's death, the last words of that mother to her child, in life. Its manner, the solemn cadence of the periods, the matter, fell slowly and heavily upon the ear, like the thick breathings of one with whom the world has little more to do. The shadow rested upon the hand as it wrote. It was crowded with the griefs of many years. It spoke darkly of wrongs received; of a stern resolve; of labors endured, and endured joyously for the offspring of a love struck-down, and changed to very hate, even in the first hour of its young life; of one whose name her daughter's lips had never syllabled; of one living, prosperous in the world, the daughter's father and her husband. Wait, yet a little while, and she should know the blood which had begotten her, and claim her own—a rich inheritance equal with the noblest in the land. Alas! that waiting was to be too long! Death had sealed the mother's lips, and there sat the daughter, hunted, hunted like a hare by the hounds of the law.

My client covered her face with the folds of her robe.

“How does the mother sign herself?” asked the judge.

“Ann Chapman, may it please your honor.”

“Ann Chapman!” exclaimed John Cornelius springing to his feet. “Ann Chapman! Give me the letter.”

I put it into his hands. His eyes glanced at the date, and then rested, fixed, upon the signature. The pallor of the dead crept slowly over him; his arms gave up their strength and fell to his side, the paper dropped upon the floor. “Here, take it, take it,” he said, in a hollow whisper, looking straight out upon vacuity; “it is nothing, nothing, nothing.” Then turning to his counsel, he bid them enter a discontinue, and walked hurriedly out of court.

“This is a strange ending!” said the judge.

“My client is mad!” said the opposite senior counsel.

“Our client is mad!” echoed his junior, bundling up his papers with a piece of red tape.

“Mad or sane, gentlemen, it is a fit conclusion to what should never have been begun,” said I, taking the young widow under my arm and leading her away, much wondering at the abrupt termination of the suit.

“Do you think Mr. Cornelius has really gone mad?” she asked, looking up into my face with a tear upon her eyelids. It was one of sorrow, not joy; God bless her, she had forgotten her good fortune in sympathy for her oppressor.

“If to have a conscience is to be so,” I answered; and took leave of her at the door of her residence—at the door of the house we had battled for—so happy, that she tried and could not say, “I thank you.”

SECTION VIII.

I returned to my office in a very good humor with all the world. Upon my table I found a note from Mr. Cornelius, requesting me to call upon him at an early hour in the evening. "A compromise—no compromises, Mr. Cornelius. If you will, begin again; but the widow shall keep all, to the last farthing." And I dispatched a reply, saying I would be with him precisely at eight.

John Cornelius lived in the upper part of the city, in a very large and costly house, which had been built by a parvenu of sudden wealth. It covered, with the surrounding grounds, two-thirds of a square, and had been purchased by Mr. Cornelius at the sale of the parvenu's succession, rather on account of the land, than for any profitable use which he could make of the noble structure to which the land was appurtenant. The increasing commerce of the city had so surrounded it with warehouses and presses for cotton, as to render it impossible to find a tenant at even a three per cent. rent, so he moved into it himself, and, with one slave, lived there upon fifty cents a day. The spacious and unfurnished halls, dark, gloomy, venerable with dust, returned a hollow echo to my tread, as I entered at the appointed hour. I found the miser sitting at a small table, covered with papers, in the centre of a large room; the table and two chairs, that which he occupied and one reserved for myself, were all of furniture that it contained. He looked very pale, did not rise to receive me, but in silence waived his hand as an invitation to be seated. I obeyed, and waited for a declaration of the motives which had induced him to request my presence. But during the lapse of ten minutes he did not speak, so I drew his note from my pocket and pushing it toward him across the table, observed that my time was worth one dollar the minute.

"Your client is my daughter," said Mr. Cornelius.

"Your daughter! Then you are mad, sure enough!"

Mr. Cornelius gathered up the papers which lay upon the table before him and put them into my hands. They were, first, a certificate of his marriage with Ann Chapman, in the city of New York, on the ninth day of October, eighteen hundred and —; second, articles of separation entered into, and signed in duplicate, by both parties, just one year thereafter—

being done at New York on the ninth day of October, one thousand eight hundred and —; and last, several letters received by Mr. Cornelius from his wife's relatives at wide intervals, and at periods long subsequent to their stipulated divorce. The articles contained an acknowledgment on the part of Mrs. Cornelius of her having received twenty thousand dollars from her husband in full satisfaction of all claims upon him for support, and of her right of dower in his estate; the letters were written in answer to inquiries made by himself as to his wife's existence and condition in life, and all, without exception, expressed an utter inability to give him any information upon the subject.

“In eighteen hundred and —,” said Mr. Cornelius, “I visited the North, and there met with and hastily married Ann Chapman, then a young woman of humble parentage—not otherwise than my own—with much beauty, a moderate education, and a spirit which was equal to any fortune. My business called me to England, and upon my return I saw, or fancied that I saw, some change in her feelings toward me. She was honest, as honest as the light in which God robes himself; but the great disparity of our ages made me jealous of her affection; and as she was of a strong temper, not easily controlled, while I was in some degree unreasonable and exacting, we soon quarreled, made each other miserable, and, by mutual consent, separated. When I took leave of her, she put her hand in mine, and with a calmness which was terrible, called down every suffering upon her head if, with her assent, I should see her face again. She would go and hide her sorrow among strangers, and even the fruit of our short-lived love, which she then carried in her bosom, should not know me until grief and many years had ripened me for the grave. I returned to New Orleans; I returned to my labor and my money getting—and she, alas! she kept her purpose too well! Through many a long month, and through many a long year, have I repented of that folly, to find only at this hour the blood which is my own. I have heaped up gold and houses and lands—sir, my wife and daughter would have made me a better man.”

And he drew down his long silver locks over his face and covered it with his hands.

“Are you satisfied as to the identity; have you no doubts, Mr. Cornelius?”

He took a richly chased miniature from his bosom and bid me look at it.

“It is the mother as she was at twenty; it is the daughter of to-day.”

I started with surprise; it could not have been more like, had the young widow sat for it.

“The evidence is conclusive, Mr. Cornelius; and I will now take a fee upon the other side. Let us go at once to her house, and claim not only that, but its fair occupant also.”

“No, no, we must meet here. These walls know me; I am at home; and I must receive my daughter in my own house,” said Mr. Cornelius. “You are her best friend—hereafter you shall be mine; do you then call upon her, break this matter gently to her, and in the morning you will find me here, waiting your coming.”

“I will not tell her that I have found her father,” said I, “for that would be subjecting her nerves to two trials; and it might be that you would be compelled to go to her in the end, with a physician at your back. It is better that she should be made to expect one good fortune, and find another; so, I will tell her that you relented, discontinued your suit from sheer pity, and wish to make her a present equal in value to the amount which was involved in the dispute between you, as a small compensation for the trouble you have given her.”

“As you please,” said Mr. Cornelius, smiling, no doubt at the improbability of the story.

“Never fear, a woman’s faith is large enough to believe any thing,” said I, not wishing to be misunderstood; and the miser now rose, and accompanied me to the door.

SECTION IX.

In the morning, the young widow and myself walked slowly along toward her father's residence; I, more than half ashamed of the deception I had put upon her; and she, wondering at the fortune which had poured a golden shower into her lap, and framing thanks to be heaped upon the good man, who had threatened poverty only to bestow riches.

At the door she hesitated, and said that I must speak for her.

"Never mind," said I, "nature will put fit words into your mouth, and some things are best expressed by silence."

We entered—the widow hanging upon my arm; her whole weight was upon it—not very large, indeed—for she was ready to sink down, oppressed with a load of gratitude. John Cornelius sat where I had found him the preceding evening, at the little, table covered with papers, in the centre of the room, and with one vacant chair. Well, thought I, we shall not want a third. He rose with much coldness in his manner, bowed formally, took his daughter's hand, and assisted her to the vacant seat; he then gave me that which he had himself occupied.

"Madam," said he, after a short pause, and in a voice which seemed stoutly braced with resolution, and yet just ready to break down, "I have requested your presence here, in order that you might read these papers, for they somewhat concern you;" and taking up the certificate of marriage, and the articles of separation, he held them out toward her. She received them, with a word of thanks, thinking no doubt, that they were titles to the property which I had induced her to believe was to be bestowed upon her. As she read the articles, her color left her, and a cold sweat started from her brow and rolled down her face, and wet her garments. The certificate she carried twice to her eyes, and twice failed to read, but glared upon it like one who sees a vision in his sleep: the third time she read it aloud, screaming as if to make certain with her voice, what her eyes doubted.

"And this," shouted Cornelius, drawing the picture from his bosom and holding it up, her other self, before her.

"My God—my father!" she exclaimed, rising slowly, and pulling at her fingers; then swayed to and fro, uncertain of her step; leaped into the old

man's arms, fastened about his neck, and slept insensible, upon his bosom.

John Cornelius sank with his burden upon the floor, and wept, and sobbed like a child.

A broad, plain, gold ring rolled bounding to my feet. I picked it up. Within the circle were engraved two letters, "J. C." It was the bridal ring, a gift from her mother, as Ægeus gave his sword to Æthra, that the father might recognize his child, when in the fulfillment of time they should meet.

SECTION X.

Merry days these—happy days these—let us laugh and grow fat, for to-morrow we die. The miser's daughter had a hundred suitors, and well she might; for she was young, and beautiful, and pure. And was she not heir-apparent of millions? Good Lord! Good Lord! how they did amble, and trot, and show their paces, and protest, and pray, and besiege—all to no purpose! And those jurymen, too, who were baulked of their verdict, did they not open their eyes widely when the story was told them, and say that they knew it would be so? And the judge, did he not crack his joke with the junior counsel, and bemoan the young man's stars which had so betrayed his interest, and wagged his tongue with some venom in it, upon the losing side? And the counsel, senior and junior—did they not assume a show of wisdom, and say that from the beginning they had no confidence in the cause? A blind business was it with us all, when we undertook to mete out justice to father and daughter, with a seven-fold cloud before our eyes; and a blind business the law ever is.

Quid faciant leges, ubi sola pecunia regnat,
Aut ubi paupertus vincere nulla potent?
Ipri, qui cynica traducunt tempora cœna,
Nonnum quum nummis vendere verba solent.
Ergo judicium nihil est, nisi publica muges,
Atque equis, in caussa qui redet, emtor probat.

So sang Petronius, and so sing I.

SECTION XI.

The fair widow moved into her father's house, and carried joy with her, and smiles, and a new life. The dusty halls and silent chambers were soon made glad, and gave no echo back to the busy feet which beat their floors in measured tread to the sound of lutes. Men wondered at the miser's transformation, and the jolly sun, driving up the clear, blue, vaulted roof of the earth, looked in upon curtains, and mirrors, and rich carpets, and all the bought luxury of great wealth, and danced upon the draped walls, and laughed, and wondered too. But the change was of the surface. The miser loved his daughter with his whole soul; he loved gold with more than his whole soul—gold, his first love—and the daughter held a divided and an inferior empire in his affections. The miser loved his daughter as he best might, with his heart of shining metal, and he would have loved her had she been less than what she was; less beautiful, less worthy, less full of the love which flowed from her like a sea, and covered him, and he drank of it, a joy he had never known. He loved her, as the heir to his vast estates, as himself renewed, to bear his labor onward, to accumulate through still another span of life; and he showed her to the world, and took pride in this new glory, as a new title to his possessions, which was to carry them with himself, even beyond the grave.

I was often with them; I became almost an inmate of the house, subsequent to the events which I have just related—the father's legal adviser, the daughter's best friend. Mr. Cornelius did not weary of the empty bustle and noise of fashion with which his daughter's youth and brilliant position at once surrounded her; he seemed pleased with it, and often spoke of it as the proud homage which intellect, and nice honor, and high titles, and all the virtues, and all the prejudices of men, pay to wealth—and so, indeed, it was. With the daughter, these enjoyments soon palled. She had learned of sorrow from her birth, and had happily received from her mother a head too strong for turning; when, therefore, novelty wore away, and satiety began to usurp its place, she gradually withdrew from the press of company, and gave to her father those hours which others had before possessed. Although change had come over every thing else, Mr. Cornelius forbid its entrance into the one room reserved for himself; the

room in which he had received his daughter, with the little table and the two chairs standing in the centre, and its naked walls and bare door, which were to him as old acquaintances, and where, alone, he now felt fully at home. There they would often sit together in the deep hours of the night, and while she played with his white locks, and watched the beatings of his heart, to find it tuned to a music widely different from her own, and listened to his never-ending promises, and never-ending hopes of a wealth which was to make his only one, his jewel, a match which princes might envy, she became painfully conscious of her father's worldliness and debasing servitude to the hard earth. She saw that he lay prone, chained, bound down with clamps of iron, of silver, and of gold, and never raised his eyes to the upper light, or questioned of the day when he should be called to give an account of his stewardship. Then she would weep, and kiss her father, and talk of her mother who had passed away, and of another life, and hope that they might all meet in that better world; and the miser would stroke down her glossy hair with his trembling hands, and press her forehead to his lips, and call her a foolish girl, who troubled herself about matters with which she had nothing to do; and bade her go and dream of the glory to which he had raised her, and count her suitors, and be brave.

“More, more,” was the miser's unceasing cry; “all, all—I want all,” was the prayer which he put up, not to the Giver of all Good, but to his own will, which habit had enslaved, until use made servitude a happiness. And he worked on, ever gaining, ever adding, abstemious, pinching, self-denying, liberal only to his daughter, whom he could never see too richly clad, too sumptuously served—a costly toy to be stared at and admired. “She is my diamond,” he would say, “which I have chosen to plant in a rich setting.”

SECTION XII.

But the daughter grew, day by day, more thoughtful, denied herself more frequently to her followers, and was more and more often to be found sitting with her father, alone, at the little table, winning him from his labor. Mr. Cornelius was too much engrossed with the world, with money-getting, to observe the beginning and progress of the change in his daughter's manner, amusements, and way of life; and he soon learned to work on, with his child at his side, half unconscious of her presence, and yet alive to the pleasurable feeling that there was something near him which he much loved. I was not so blind. As month after month rolled away, I saw the shadow of a great melancholy creep slowly over her face, and deepen, and deepen, until it had imparted that exquisite softness to her beauty which is the surest symptom of decay. We see it in the flower; time gives it to all the works of man; and genius shows it, as the flame trembles, flickers, leaps upward, and goes out. The heart was sick; the spirit grew toward heaven. I had occasion, one evening, to be with Mr. Cornelius until a late hour, conversing about some matters in the courts which he had entrusted to my care; we had talked much, and the last watch was drawing to a close, when the door quietly opened, and his daughter entered, holding in one hand a light stool, and in the other a book. "The gentleman will excuse us for a moment," she said, addressing her father; then turning to me, she received me with her usual cordiality. "I have adopted a practice, of late, of reading a chapter to my father before retiring," she continued; "and you can remain, if you please, and join us in our devotions—surely, such worship can harm no one." And sitting down at her father's knees, she laid the holy volume in his lap, opened it, and read; while he bent over her until his silver locks mingled with the jetty tresses of her hair, and listened to her teaching—it was time, old, worn-out time, called to eternity by a sweet messenger from God. "There, that will do, my child; put up the book," said Mr. Cornelius, as his daughter's voice, losing its firmness, grew uncertain, and tears fell pattering upon the story she repeated: "certainly, certainly, it is not for me, in my old age, to learn of one so young." It was a simple tale, a touching parable, told by Christ; so appropriate as to require from me no further designation. "Why, what spirit has come over you of late—always

weeping!" said the old man, kissing the moisture from her eyelids. "What do you want? All that I have is yours. Now go—and see that you show a merry face in the morning." The daughter rose, and bid us good-night.

"Do you not think Anne has lost a little of her color—grown slightly pale, Mr. Didimus?"

I made known the fears which I had long entertained, and to which each day added a confirmation.

"My daughter's sick! sick at heart! Nonsense! What has she to be sick about? Are not my coffers open to her hand? What power of this earth is greater than her gold? Sick!—And yet, now I do remember, that for the past month, or more, no music has come into me, as it was wont, from her crowded rooms; no sounds of merriment, of joy, of the frivolity of fools, grating upon the ear of night; no cringing, no bowing low with doffed hat, and giving of God's health, as I pass in and out at my own door. Look to it: you are my daughter's best friend; question her; inquire out the secret sorrow which preys upon her mind—surely, money is a medicine for all the ills of life. She requires a change of place; these stuffed marts about us breed foul air; let her travel. Or, perhaps, she has again listened to the idle whispers of love, and conceals from me her weakness. Tell her, that although I would have her live with me during the short remainder of my life, yet she shall marry where she may choose; to give me a long line of heirs, rich, rich, through two centuries. Sick! why I was never sick!" And the miser bent over the little table, and returned to his calculations.

SECTION XIII.

The miser's history went on as before—still gaining, still adding; while the daughter's bloom passed slowly away. Her limbs lost their roundness, her face grew sharp and hollow, and grief sat ever upon it, until her friends had almost forgotten its former mirth and beauty, and were half persuaded that it had been always so. No questioning of mine would entice her to an explanation. "It is a matter with which you can have nothing to do. There is no remedy in your hands. Let me alone; I wrestle daily with my God." What could I say? I was silent; for it was indeed a matter with which I had nothing to do. Preach to the drunkard over his cups; to the gambler, when he wins; to the man whose garments are like unto his who came from Edom, red with the blood of men, and gain a soul for Heaven; but the miser, with one foot on Mammon, the other on the grave, never yet turned from his first love, or forgot the gods which his own hands have fashioned. John Cornelius became used to his daughter's declining health, and soon ceased to speak of it. Indeed, engrossed in his labors of accumulation, he began to think she was well enough, as well as she ever had been, and that the change, if change there was, was in his own eyes, which had, perhaps, grown somewhat dim with age. Poor Anne! she nightly sat at her father's knees, and nightly read to him, and he nightly praised her beauty, and called her a foolish girl, and kissed away her tears, and babbled of gold, till her heart withered within her, and she withdrew to dream of her mother, and a great joy, and to gather a new courage to begin again her ceaseless task, ever hoping, ever disappointed. Thus ran a year away.

SECTION XIV.

One bright morning in November, here the sweetest month of all the twelve, Mr. Cornelius called at my office, and informed me that his daughter had been sick, confined to her bed for the past two days, and had expressed a wish to see me. He said her indisposition was but slight, attributed it to some frivolous cause, and expressed a hope that it would soon pass off. I looked up into his face; he was honest; still blind to his daughter's decay; death stood palpably before him, robed in the freshness of youth. Death! How should he see death? Gold was ever in his thoughts; gold filled his vision; his taste, his scent were gold; and gold ran clinking into his ears: death had walked his house a year unrecognized.

I laid aside my papers, and accompanied Mr. Cornelius home. He passed into his own room, with the little table and the two chairs; I ascended to his daughter's chamber. What a mockery was there of all that this world loves so much, strives after, and wins, with loss of body and of soul! Upon a bed, canopied with rich stuffs of woven silk and gold, with curtains of satin, rose-colored, and tugged with tassels of silver, spread with the finest linen, and covered with flowers, worked upon a ground of velvet, lay Anne, the miser's daughter, pale and emaciated, and with her eyes, to whatever point they might turn, resting upon some new evidence of her father's wealth and worldliness, upon some new evidence of the cause of all her sorrow. Her physician stood at her bed-side; as I entered he raised his finger to his lips, and came to me. "She is passing away," he whispered. I approached the bed slowly, and on tiptoe. Anne felt my presence in the air, and turning her face toward me, held out her hand. I took it in mine. "I have called you," said she, in a voice scarcely audible, "to take leave of you. You have been my good friend since the day that we first met in your office; I a poor woman, striving for that which I have long since found to be of little worth; when I am gone, transfer your friendship to my father. Tell him where I may be found, and bid him there seek for me. Oh, God! how long have I wrestled with thee, in bitter prayer, for this favor; thou wilt not, in the end, deny it to me. Farewell! We shall meet again! I go to my mother. Now bring my father to me, and let us be alone together."

The physician pressed her hand in silence, turned to the wall, and went out. I followed, and we both hastened to call Mr. Cornelius. We found him counting over a bag of silver, which he had just received from a tenant.

“How is my daughter? Better—well?” he asked, still continuing to count, and to test the genuineness of the metal by ringing it upon the table.

“Sir—your daughter is dying.”

“Dying!” and the coin rolled merrily upon the floor. “Dying—doctor? Tut, tut. You jest.”

“Mr. Cornelius, your daughter wishes to speak with you, to give you her last words in life.”

“*Charlatan*—quack—driveler—you lie!” cried the miser with livid lips, starting to his feet, and shaking his clenched hands in the physician’s face. “Die!—my daughter shall not die—she cannot die—the children of the rich never die—what would you have? Gold!—here is a bill for fifty thousand—save my daughter—ay, I will make it a hundred thousand—but save my daughter—poor, poor, poor Anne!” and his head fell, and rested upon his breast. The old man stood before us motionless, transfixed with grief.

“Mr. Cornelius.”

“Oh, I am sick with much sorrow! Lend me your arm? Did you not say something of twenty per cent?”

I led him away to his daughter’s chamber. As we entered, her face was turned toward us.

“Who said that my daughter was dead?” asked Mr. Cornelius.

Anne feebly smiled.

“We shall all spring upward from the ground, winged; and with a power which will bear us swiftly to the throne, which endureth forever and forever.”

I hastened to bear her father to her bed-side. The last breath had parted from her lips, and as he questioned her, and she returned no answer; as he called to her, and she called not back again, he fell upon her, and his moan filled the room.

“Gone! oh my daughter; my jewel of great price—the heir to all my riches—my second life! Is the breath of man unbought! Can no one bribe death? Is there joy in the cold grave? O, come to me, my child, and sleep in

my bosom, and fare sumptuously every day.” And he drew much gold from his pockets, and heaped it upon the bed beside her, and wondered that she should die.

And the world wondered, also, that she should die. And idle curiosity poured in to look upon her dust; and was shocked, and shrugged its shoulders, and exclaimed—“what a pity! In the morning of life—and so rich!” And again the world forgot her year of mourning, and her gradual decay, and carried its thoughts back to the hours when that small, pinched face was radiant with health, and a new-found happiness; and laughter rang from those thin lips, and merriment sparkled in the closed eye, and whispered and coined suggestions, and said that “after all she was not the miser’s daughter, and had died suddenly with the coming of that certainty.”

Fools and Idiots! Is not the grave open to all? And did she not well to love her father’s soul better than his wealth? And did she not well to labor for it, unceasingly; and then, the crowning of that labor, to lie down and die?

SECTION XV.

The daughter of the rich man was carried to her grave upon the shoulders of the rich, followed by a crowd of worshipers; and as the body was borne into the Chapel of the Departed, and the procession flowed in, and filled the aisles, the choristers chanted the *Requiem* for the dead.

Dies iræ, dies illa
Solvat secium in favilla,
Teste David cum Sybilla.

“My daughter, oh! my daughter; why wouldst thou die?”

Quantus tremor est futurus,
Quando Judex est venturus,
Cuncta stricte discussurus.

“Return, oh! return, return again to me.”

Tuba mirum spargens sonum
Per sepulchra regionum,
Coget omnes ante thronum!

“and thou shalt make me what thou willest.”

Mors stupebit, et natura,
Cum resurget creatura,
Judicanti responsura.

“The shining gold is thine, and houses, and lands, and all the glory of life.”

Liber scriptus proferetur,
In quo totum continetur,
Unde mundus judicetur.

“My daughter, oh! my daughter, return again to me.”

Judex ergo cum sedebit
Quidquid latet apparebit,
Nil inultum remanebit.

“Thy suitors call thee; the music, the dance, the revelry of joy.”

Quid sum miser tunc dicturus?
Quem patronum rogaturus,
Cum vix justus sit securus?

“No voice, no word, no whisper for my ear.”

Rex tremendæ majestatis,
Qui salvandos salvas gratis,
Salva me, fons pietatis.

“Cold, cold, cold in death!”

Recordare, Jesu pie,
Quod sum causa tuæ viæ,
Ne me perdas illa die.

“Strike up—louder—louder yet.”

Quærens me sedisti lassus,
Redemisti crucem passus,
Tantus labor non sit cassus.

“She loved the noise of trumpets, of sounds harmonious, the bustle of the earth.”

Juste Judex ultionis,
Donum fac remissionis,
Ante diem rationis.

“Louder, louder—no voice, no word, no whisper for my ear.”

Ingemisco tamquam reus,
Culpa rubet vultus meus:
Supplici parce, Deus.

“Gone, gone—thus runs the world away!”

Qui Mariam absolvisti,
Et latronem exaudisti,
Mihi quoque spem dedisti.

“Poor, poor, poor Anne!”

Precos meæ non sunt dignæ,
Sed tu, bonu, fac benigne,
Ne perenni cremer igne.

“In the grave is sleep and rest.”

Inter oves locum præsta,
Et ab hædis me sequestra,
Statuens in parte dextra.

“Cold sleep, cold rest.”

Confutatis maledictis,
Flammis acribus addictis,
Voca me cum benedictis.

“Pass on, sweet spirit, to thy waking; if waking there may be.”

Oro supplex, et acclinis;
Cor contritum quasi cinis,
Gere curam mei finis.

“Our father, which art in heaven.”

Lacrymosa dies illa
Qua resurget ex favilla.

“Hallowed be thy name.”

Judicandus homo reus.
Huic ergo parce Deus.

“Amen.”

We buried Anne, and upon the tablet which marks the place where she is laid I caused to be cut her last words—“We shall spring upward from the ground, winged, and with a power which will bear us swiftly to the throne which endureth forever and forever.”

THE DESERTED.

BY MISS MATTIE GRIFFITH.

Why didst thou leave me thus? Had memory
No chain to bind thee to me, lone and wrecked
In spirit as I am? Was there no spell
Of power in my deep, yearning love to stir
The sleeping fountain of thy soul, and keep
My image trembling there? Is there no charm
In strong and high devotion such as mine
To win thee to my side once more? Must I
Be cast forever off for brighter forms
And gayer smiles? Alas! I love thee still.
Love will not, cannot perish in my heart—
'Twill linger there forever. Even now
In our own dear, sweet sunset time, the hour
Of passion's unforgotten tryst, I hush
The raging tumult of my soul, and still
The fierce strife in my lonely breast where pride
Is fiercely struggling for control. Each hue
Of purple, gold and crimson that flits o'er
The western sky recalls some by-gone joy,
That we have shared together, and my soul
Is love's and memory's.

As here I sit
In loneliness, the thought comes o'er my heart
How side by side in moonlight eves, while soft
The rose-winged hours were flitting by, we stood
Beside that clear and gently-murmuring fount
O'erhung with wild and blooming vines, and felt
The spirit of a holy love bedew

Our hearts' own budding blossoms. There I drank
The wild, o'er-mastering tide of eloquence
That flowed from thy o'erwrought and burning soul.
There thou didst twine a wreath of sweetest flowers
To shine amid my dark brown locks, and now
Beside me lies a bud, the little bud
Thou gav'st me in the glad, bright summer-time,
Telling me 'twas the emblem of a hope
That soon would burst to glorious life within
Our spirit's garden. The poor fragile bud
Is now all pale and withered, and the hope
Is faded in my lonely breast, and cast
Forever forth from thine.

They tell me, too,

My brow and cheek are very pale—Alas!
There is no more a spirit-fire within
To light it with the olden glow. Life's dreams
And visions all have died within my soul,
And I am sad and lone and desolate;
And yet at times, when I behold thee near,
A something like the dear old feeling stirs
Within my breast, and wakens from the tomb
Of withered memories one pale, pale rose,
To bloom a moment there, and cast around
Its sweet and gentle fragrance, but anon
It vanishes away, as if it were
A mockery, the spectre of a flower;
I quell my struggling sighs and wear a smile;
But, ah! that smile, more eloquent than sighs
Tells of a broken heart.

'Tis said that thou

Dost ever shine the gayest 'mid the gay,
That loudest rings thy laugh in festive halls,
That in the dance, with lips all wreathed in smiles,
Thou whisperest love's delicious flatteries;
And if my name is spoken, a light sneer
Is all thy comment. Yet, proud man, I know

Beneath thy hollow mask of recklessness
Thy conscious heart still beats as true to me
As in the happy eves long past. Ah! once,
In night's still hour, when I went forth to weep
Beneath our favorite tree, whose giant arms
Seemed stretched out to protect the lonely girl,
I marked a figure stealing thence away,
And my poor heart beat quick; for oh! I saw,
Despite the closely-muffled cloak, 'twas thou
Then, then I knew that thou in secrecy
Had'st sought that spot, like me, to muse and weep
O'er blighted memories. Thou art, like me,
In heart a mourner. In thy solitude,
When mortal eyes behold thee not, wild sighs
Convulse thy bosom, and thy hot tears fall
Like burning rain. Oh! 'twas thy hand that dealt
The blow to both our hearts. I well could bear
My own fierce sufferings, but thus to feel
That thou, in all thy manhood's glorious strength
Dost bear a deep and voiceless agony,
Lies on my spirit with the dull, cold weight
Of death. I see thee in my tortured dreams,
And even with a smile upon thy lip,
But a keen arrow quivering deep within
Thy throbbing, bleeding heart. Go, thou may'st wed
Another; but beside the altar dark
My mournful form will stand, and when thou see'st
The wreath of orange blossoms on her brow,
Oh! it will seem a fiery scorpion coiled
Wildly around thine own.

I'm dying now;
Life's sands are failing fast, the silver cord
Is loosed and broken, and the golden bowl
Is shattered at the fount. My sun has set,
And dismal clouds hang o'er me; but afar
I see the glorious realm of Paradise,
And by its cooling fountains, and beneath

Its holy shades of palm, my soul will wash
Away its earthly stains, and learn to dream
Of heavenly joys. Farewell! despite thy cold
Desertion, I will leave my angel home,
Each gentle eve, at our own hour of tryst,
To hold my vigils o'er thy pilgrimage,
And with my spirit's-pinion I will fan
Thy aching brow, and by a holy spell,
That I may learn in Heaven, will charm away
All evil thoughts and passions from thy breast,
And calm the raging tumult of thy soul.

THE LOST DEED.

A LEGEND OF OLD SALEM.

BY E. D. ELIOT.

(Concluded from page 195.)

MR. FAYERWEATHER and Madam were seated at breakfast before a blazing fire, one very cold morning in January. John had already finished, and had gone to Mr. Wendell's office, in which he was studying his profession. Vi'let following Scipio, who had entered with some warm toast, came up to the table and said—

“It's a terrible cold morning, Misser Fayerweather—I 'spect Primus han't got no wood—he'd only jist three sticks yesterday; he's sick with the rheumatis, too—mayn't Scip carry him over some?”

This meant not wholly for the benefit of Primus, but also as a wholesome discipline of Scip himself, whose health Vi'let thought in danger for want of exercise. Scip glouted at her but did not dare speak.

“Yes, carry him over a good load Scipio, the moment you have swallowed your breakfast. Such a morning as this without wood.”

Madam added—“And you shall carry him some stores to make him comfortable. That makes me think of poor Cluff—I am afraid he is out of every thing by this time—he must have suffered last night. I ought to have seen to him before—poor creature! how could I have neglected him so? I might have known it was coming on cold, from its being so warm yesterday.”

Mr. Fayerweather endeavored to persuade her that Cluff could scarcely have consumed the provisions she sent him on Christmas, but she continued to reproach herself until he told her that he was obliged to go out in the sleigh as soon as breakfast was over, and that he would go down himself and see that the old man was comfortable and was well taken care of.

The worthy gentleman finished his meal and the sleigh was ordered out, but the hard cough of the old horse as the cutting air struck him on being led out of his warm stable, reached his kind master's ear and found its way to his heart.

"Poor old Moses!" he said, "it would be hard to take you out such a day as this, it might be your death—I'll walk. I shall be all the better for it." So saying, he lost no time in hurrying on his roquelaure, and set out on a brisk pace, to avoid the expostulations of his wife, who had gone to look out some flannels to send Primus. As he passed by Mr. Wendell's, his niece having seen him from the window, was at the door to accost him.

"Why, uncle! where are you going this bitter morning? Do come in."

"Don't stop me now, child, I'm in haste; perhaps I'll drop in as I come back," he said; then as he shook his finger at little Will, who was hanging on his mother's apron, he gave them both a look so brimful of kindness and affection and something beyond both, as went to her very heart. That look Amy never forgot.

The cold was intense, but Mr. Fayerweather proceeded on his way. The air felt like solid ice to his face, where it was not entirely muffled with the roquelaure, the cape of which was soon thickly frosted with his breath. Some shivering, blue-nosed school-boys made their manners as they passed. "Run quick, my boys," he said, "or old Jack Frost will have fast hold of you. See that you keep a warm school-room to-day." A pipkin of water was thrown after them from a shop door—it was that of Nanny Boynton's new residence—it froze as it fell, and rattled like pebbles on the snowy crust. When he reached the market-place (it was not a market-day,) one solitary load of wood was on the stand. As Mr. Fayerweather came up, the patient beasts which drew it, turned up their broad faces and looked wistfully at him beneath the wreaths of snow formed by their breath as it issued from their nostrils. The owner was thrashing himself very energetically with his arms, to induce a sensation of warmth. Mr. Fayerweather bought the wood and told the man to carry it up to his house and tell madam he sent him, this being tantamount with telling him to go and make himself comfortable by a good fire, with a good luncheon for himself and his cattle. Mr. Fayerweather then proceeded on his way. Dr. Holly's thermometer stood at 18 below 0.

The table was laid for dinner when he returned home. His wife met him with as severe reproaches as she knew how to frame, for walking out on such a day.

“Don’t scold, my dear,” he replied, good-humoredly, “you are growing a perfect shrew, I declare. If you take to scolding, I shall certainly take to drinking. I am going to take some brandy now.” Then he went to the buffet, and taking from a liquor chest which stood in the lower part of it, a case-bottle of brandy, that had reposed there undisturbed, time out of mind, and unstopping it, he continued:

“I found Cluff very comfortable, in no want of any thing. I went to two or three other places, but hadn’t time to call and see Judith as I intended—but let us have dinner, for my walk has made me so hungry I could eat a trooper, horse and all.”

Madam went into the kitchen herself to hasten in dinner. She remained a moment, to see Vi’let dish up the turkey, and was, with her own hands, adding more spice to the gravy, when the sound of some heavy body falling, hurried her back to the parlor, followed by all four servants. She found her husband extended on the floor. She flew to assist him, supposing he had been tripped up accidentally by the carpet, but he was without sense or motion. “Quick, run for the doctor, Scip, he’s faint;” and madam took the sal volatile from her pocket to apply to his nostrils. Vi’let looked at him and felt his pulse, then clasping her hands, exclaimed—

“God Almighty, mistress!” She suddenly checked herself, and told Flora and Peter to run for Mrs. Wendell and Madam Brinley.

Dr. Holly on his arrival found madam in strong convulsions, requiring both her sister and niece to hold her, while Mr. Wendell and John, assisted by Vi’let, were endeavoring to revive Mr. Fayerweather, who was still on the floor. On examining him attentively, the Doctor shook his head hopelessly, but made an immediate attempt to take blood from the arm. It was in vain—Mr. Fayerweather was dead. His death, Dr. Holly gave it as his opinion, was accelerated by exposure to the cold and the long walk, the disease being a hardening of vessels about the heart; adding that if he could have taken the brandy (which stood on the table in a tumbler, apparently untasted,) it might have saved him. The grief of the family and friends of the excellent man may be imagined, but cannot be dwelt upon here.

The funeral was the longest that ever had been known in Salem, for never was any inhabitant of it more beloved and respected. As soon as madam was sufficiently composed, after the funeral, the ebony cabinet was searched and a will was found, dated the day before George's departure. It gave the widow the homestead, which had become very valuable, together with the whole of the property she had brought; after several bequests, a large one to Mr. and Mrs. Wendell jointly, the remainder of the property was divided between the two sons. Mr. Wendell was named as executor. The estate was perfectly clear and unincumbered and little time was requisite to settle it.

A few weeks subsequent to the funeral of Mr. Fayerweather, the inhabitants of Salem were called together by an alarm of fire; an occurrence so very unusual as well as alarming, that it caused a great stir and commotion in the quiet and orderly town. The fire broke out in the office of the Register of Deeds, but was soon put out, doing, as was at first supposed, but little damage. Upon examination, however, it was discovered that several books of valuable records were destroyed, and others much injured. Mr. Wendell having ascertained that the one containing the copy of the Boynton quit-claim of the Fayerweather property was among the burnt, as well as that of a date many years prior, thought best to lose no time in having these important documents newly registered. Accordingly he looked into the cabinet, which had been put into his possession, for the originals.

Upon a thorough search with John Fayerweather, no trace of these papers was to be found in the cabinet; nor, to the astonishment and consternation of both, in any desk, trunk, drawer or closet in the premises of the deceased. The only conjecture madam or John could form in regard to the disappearance of these papers was, that either through accident or mistake, they had been left in their original place of deposit, and were now in the elder son's possession in the little trunk. In the first vessel which sailed for London, therefore, intelligence was dispatched to Mr. Haliburton of the melancholy death of his old friend, and of the missing papers, that he might find means to convey notice to George, sooner than could be done from Salem.

The destruction of the records came to the knowledge of Jemmy Boynton as soon as to that of Mr. Wendell, and the delay of the latter to have the deeds recorded anew, did not escape her notice. Jemmy was ever

on the alert to seize upon every circumstance which might possibly involve the risk or loss of property to others, in the well-grounded hope, which he rarely failed to realize, of in some way or other turning it to his own benefit. Accordingly the old fox was not slow to suspect some substantial reason for such delay or apparent neglect on the part of so careful a man of business as Mr. Wendell was well-known to be, and he did not stop till he had found out the true cause. To arrive at certainty, he thought it would be best to make a visit of condolence to the widow, judging from her well-known simplicity, she would give him all the information he desired. And he was not mistaken.

He took care to make his visit at a time when he felt pretty sure Madam Fayerweather would be alone. It was on a fine morning in June that Jemmy sallied forth. He had dressed himself in the best his wardrobe afforded; a suit of fine claret-colored broadcloth, which had been left in pawn to him years before by a needy French prisoner on his parole, and which had never been redeemed; a white satin waistcoat, grown somewhat yellow with age, and white silk hose with gold clocks, fitting tight to his spindle legs; all belonging to the same pledge. Possibly the finery of the jaunty Frenchman might have inspired him with some undefined notions of gallantry; for Jemmy was going to make a call upon a rich widow just six months in weeds. But if any airy visions fluttered about his heart and occasioned the smirk upon his withered physiognomy as he bent his way to her house, they were speedily put to flight on entering the parlor of madam, who manifested such unqualified discomfiture on seeing him, that the compliment which he had been framing during his walk, perished before its birth, and he felt called upon to account for his visit by the phrase of condolence he had previously conned over with much care.

“Madam, I come to condole with you on your bereavement—’twas a sorrowful bereavement.”

The tears came into the eyes of the widowed lady, but she felt so much relieved at finding Jemmy was not come to demand possession of the estate, as she at first had supposed, but was only making a friendly call in kindness, that it was not in her nature to take it otherwise than kindly. Her countenance resumed its usual benevolent expression, though much saddened of late, as she thanked him and inquired after “Miss Nancy’s health.”

“Thank ye kindly, madam, Nanny’s but poorly with the rheumatis; she sends her humble sarvice to you, and hope I see you well.” Then Jemmy proceeded in his most insinuating manner, to ask if there was nothing that he or Nanny could do to “sarve” her, and really appeared so friendly, that madam was taken by surprise, and out the secret came; for she thought it would be a fine opportunity to ask him for a new quit-claim of the whole property, which, from the great good-will he manifested, she could not doubt he would readily give.

His object so fully attained, Jemmy, in his elation became airy, and at length quite softened to the tender. Placing his brown forepaws upon his knees, he looked down upon his golden clocks, which he thought had helped him to win the day, and evading madam’s request, he turned the subject to her husband’s death.

“Your worthy spouse, madam, died of an arterplax, (apoplexy?) I take it—a-a-hm—well.” The compliment was now revived. “A fat sorrow is better than a lean one—he’s left you well to do in the world, and sich a parsonable woman as you will find enough ready to supply his place.”

The smirk which had been frightened away on his entrance, again returned to adorn his lantern jaws, giving Madam Fayerweather, in indignant amazement, some reason to imagine he contemplated offering himself as a candidate for the place he alluded to, with small doubts of being a favored one. She rose, and all the Borland blood mounted to her face. The bell-rope was jerked with a violence wholly unnecessary, for Scipio made his appearance before the bell could sound in the kitchen; he and Vi’let having, on Jemmy’s first entrance, stationed themselves in the passage between the parlor and kitchen, and had heard through the keyhole all which had passed. The guest, however, thought good to make a precipitate retreat without waiting for the ceremony of being shown the door. As he passed by the side-gate, Vi’let stood ready to salute him with a ladleful of some liquid, taken from a kettle on the kitchen hearth, which all the plates and dishes, as they had come from the table, had passed through to restore them to their native purity, leaving behind them their impurities floating on the top; and as the rich compound splashed over the skirts of his coat and his silken hose, with gold clocks, she cried after him:

“You want to take Misser Fayerweather’s place, do ye! ye old skinflint—well, see how you like a sup of Vi’let’s broth.”

Stung with his unceremonious dismissal; his legs smarting with the scalding liquor, Vi'let's insult was more than he could bear. Turning round in a rage, he called out, doubling up his fist and shaking it at her—

“Tell your proud jade of a mistress she wont hold her head so high long, on other people's ground! And as for you! ye nigger”—he made use of an epithet which would not appear polite here—“I'll have you up to the whipping-post!”

Vi'let answered him with a scornful laugh, as she slammed the gate after him. Poor madam was overwhelmed with mortification and chagrin at her own folly, of which she was fully sensible as soon as she had committed herself.

As Jemmy proceeded home, his keen sense of indignity wore off in the exulting thought of vengeance in full prospect. He and his precious sister, however, had one great drawback to their satisfaction; the necessity of opening their purse-strings sufficiently wide to draw therefrom a fee large enough to induce any man of the law to undertake the case against Mr. Wendell, who was regarded throughout the province as the head of the profession. But a lawyer was at length found at the distance of twenty miles, who was willing to engage in the cause for a moderate share of the profits, if successful, and to lose his fee if not; and the trial was prepared to come on at the annual November court.

It occasioned a great sensation at the bar, from the amount of property involved, and the respective characters of the plaintiffs and defendant; the latter being Mr. Wendell, as executor to the deceased. He determined to plead the cause himself, assisted by a friend as junior counsel. At the first trial, little difficulty was found in having it postponed a year, to give time to hear from Captain Fayerweather; much to the disappointment of the plaintiffs.

The most intense anxiety was now felt by the Fayerweather family, and all connected with it, to hear from George; but as it was known he was to embark from Europe on a voyage of discovery in the South sea, small hopes were entertained of receiving letters from him for many months.

To return to a more pleasing subject—Judith was the darling of all. As her character became more matured with her person, both increased in loveliness, and both received a new charm from the cultivation of her intellect, which proved of no common order. George's presents to her were

chiefly of books; for though his active life prevented him from being a great reader himself, the whole atmosphere in which he had been born and educated, the circle of which he was the pride when at home, being intelligent, he was anxious that deficiency in this point should not be found in Judith. No deficiency of any kind, however, was discovered in her by his family. John regarded her with an affection scarcely less than George's; and though the idea of supplanting his brother, or of Judith's ever being more to him than a sister, never crossed his mind, he formed no other attachment.

Captain Stimpson, now grown somewhat stiff in his limbs, gave up his lookout in the cupola to Judith, and was at some expense to have it fitted up for her with cushions and curtains, and a spy-glass for her particular use. Her sleeping apartment opened directly at the foot of the stairs which led to it; and here with her books and her Eolian harp, she passed all the time which she felt to be exclusively her own. Her prospect was that of the harbor, opening into the ocean, under every aspect a noble one—with Baker's island, and its light-house in the distance, on one side, and several hamlets at different distances on the other; the town, with its then few streets and scattered dwellings, and the level country beyond. The view offered little of the beautiful, the romantic or the picturesque; but all that was wanting its fair beholder's imagination could supply; and it may be questioned whether a view of the bay of Naples even, with all its magnificence of scenery, could give rise to conceptions of more beauty in some minds, than were formed in Judith's by the ordinary one of Salem harbor.

Time went on, and it was now near the end of the summer preceding the November, when the cause was to come on at the Ipswich court. Letters had twice been received from Captain Fayerweather, but of a date prior to his leaving Europe, and arrivals were looked for every day, which were expected to bring answers to the information that had been dispatched to him of all which had occurred to his family since his departure. One fine evening, Judith, having finished all her domestic tasks for the day, below stairs, ascended to her observatory, thinking she should not be missed; her father having set out on his daily visit to the rope-walk—*en amateur*, for the captain had retired from business—her grandfather was quietly reposing in his chair, and her mother holding sweet communion with her dearly beloved Nanny Dennis—Mrs. Brayton.

On reaching her airy retreat, the fair maiden took the spy-glass, and adjusting its tube, strained her vision over the ocean, hoping to espy the mast of some vessel coming into port. In vain—the curve of the wide horizon was unbroken even by a speck. A gentle sigh escaped her as she spoke; “Not yet; well, it must come before long.” She then took her book, and was soon luxuriating in the fairy-land of poetry. From time to time her eyes wandered from the page, to cast themselves over the expanse of waters before her, glowing beneath the sky of twilight, and scarcely dimpled by a breath of wind, as the tide still advanced to fill the broad basin, and broke in low ripples on its now brimming edge.

Darkness at length came on, and being no longer able to distinguish its characters, she laid aside her book, and turned her eyes and thoughts to the scene without. Insensibly almost to herself, her ideas arranged themselves in measure, and she repeated in a low whisper:

“The winds have folded their tired wings
And sunk in their caves to rest;
The Evening falls, for Day is gone
Far down in the purple West.”

She stopped, feeling almost like a culprit detected in some flagrant misdemeanor; but as new images rose in her mind unbidden, and seemed to plead for a permanent existence, she continued,

“And yonder the star of Evening gems
The brow of the pale young Moon
That journeys on in sadness and tears,
To finish her course so soon.”

Gathering courage, she proceeded:

“She’s gone—and deep the falling shades
Close over the quiet plain;
While shore and hamlet, and grove and field,
Resign them to Night’s calm reign.”

Thinking whether she should ever dare confess her enormity to George, she went on:

“The ocean’s dark breast is dimly seen
By the stars as they glimmer near,
Where the waves dash low—while a far-off roar
From the distant beach^[6] I hear.

A spark from yon low isle in the East,
Now twinkles across the bay!
And now it steadily flames, to guide
The mariner on his way.

Oh, dear to me is thy distant beam!
Lone dweller of the night waves.”—

“Judy! Judy!” roared her father’s voice, “come down directly!—here’s letters from Captain Fayerweather.”

She sprang, and was down stairs, almost before the last syllable had left her father’s lips. He stood with the packet in his hand, which he told her came by the way of Beverly. On carrying it to the light, it was discovered to be directed to John Fayerweather. Judith felt something a little like disappointment, though she had no reason to expect it would be directed to herself. “But how was she to get her own letter to-night—if there was one for her.” This, if not on her lips, was in her thought.

Her father took the packet from her hand; “Here, I’ll take it up in town myself; I should like to be the one to give it to them, and you shall have your own letter to-night.” Without waiting for an answer, off he set, and his sturdy stump—stump—stump, was heard the whole length of the street, until he turned the corner. Judith almost quarreled with the feeling of delicacy which had forbade her accompanying him.

The town clock struck ten as Captain Stimpson reached Paved street, and with a louder and quicker stump—stump—stump, he hastened on. Just before he reached the Fayerweather mansion, he met Mr. and Mrs. Wendell coming from thence, and on learning his errand, they turned back with him. The eagerness with which John seized the packet, and the beating of the heart which all felt as they gathered round him while he opened it, may be readily imagined. It contained but two letters, his own and one to Judith. He handed the latter to her father, who immediately departed with it.

The first opening of John's letter proved a bitter disappointment to all, for the date was only a week subsequent to that of the packet, which had been last received. In that one George had not written to his brother, and to supply the omission, he appeared to have seized upon another opportunity which occurred directly after, by a different route. This letter was a very long one, and bore marks of the strong affection which subsisted between the two brothers. One passage in it, however, had a strong negative bearing upon the lost papers. It ran thus: "My father's little trunk, which I took with me, to hold the letters I expected to receive from home, is still *empty*; not one have I received since I left Salem." This, Mr. Wendell said, was *prima facie* evidence that the deeds were not in their original place of deposit.

The next morning another thorough search was made, which proved as fruitless as the preceding ones, leaving Mr. Wendell and John in a state of perplexity scarcely to be imagined; the former, however, resisting all internal misgivings as to the final issue of the cause, and maintaining his conviction that the papers would be found in time to be produced on the trial. Captain Fayerweather was not expected home until the next spring. Throughout the whole affair his mother had discovered a strength of mind scarcely expected from her, and assisted in all the researches with great energy. A spirit had been roused in her by Boynton's insult, as she felt it, which proved a radical cure for all disorders on her nerves; she never had a fit of hysterics after.

The autumn advanced, but brought no new arrivals. November came, the court sat at Ipswich, and the cause of Boynton versus Wendell was third on the list. The anxiety of all concerned may be imagined. It would scarcely be supposed that at this time an object could exist of sufficient interest to divert, for a moment, the thoughts of Madam and John from the issue of this trial, which might, and the probability was now strong that it would, drive them from the home of their happiest days, with the loss of an estate, half of which had been twice paid for. Such an object was, however, found in old Jaco. He had been declining for some time, and all the care of the family had been directed to keeping him alive until his master's return. As the weather grew colder, Vi'let had been prevailed upon to allow him to stay in the kitchen; and much softened in her nature by her master's decease, she made a bed for him behind the settle, and gave him warm milk several times a day with her own hand, without once debating the question

of his having a soul, and the sinfulness of making him comfortable, if he had not, as she might have done years ago.

One afternoon, some days before the cause was to be tried, John received a hurried note from Mr. Wendell, who was at Ipswich on business; the note was dated the day before, and expressed some fears, which he had never allowed to appear before, as to the issue of the trial. "His hopes," the note said, "still predominated, but he thought it would be best for John not to allow his mother to be buoyed up by them, but to endeavor to prepare her for the worst." The student, with a heavy heart, left the office and went home to seek his mother. He felt relieved on finding she had lain down after dinner, and had at length fallen asleep, after having passed several wakeful nights. He would not awaken her, but went out to see old Jaco.

The poor brute lay panting, and was now evidently drawing near his end. At John's approach he turned his head toward him, feebly wagged his tail, and gave a low whine. After a while he rose on his feet, and staggered to the door, which John opening, the dog made out to reach the middle of the yard, when he fell and lay gasping. His master bent over him, and gently patting him, spoke soothingly; at which Jaco opened his eyes and made a feeble attempt to lick the kind hand which caressed him. At this instant a light breeze swept by; and as John felt it wave the hair on his brow and flutter for a moment on his cheek with the feeling of the balmy spring, it was singularly associated with recollections of his brother, whose image it brought to his side with all the vividness of reality. As, like a light breath, it passed to Jaco, the dying animal started suddenly and rose on his haunches, snuffed eagerly in the air three times—stopped—then gave one long-protracted howl, when he fell, quietly stretched himself out to his full length—and poor Jaco lay stiffening in death. John watched him for a minute or two, when a low sob might have been heard from him as he turned away, and took his course through the garden and fields to the water side.

Judith, on this afternoon, felt a weight on her spirits, wholly unknown to her before. She could not entirely conceal her depression from her parents, and they were not surprised at it, in the present juncture of affairs in the Fayerweather family. She, however, could not have given this as the cause of her depression, had it been inquired of her, for this day her mind had been less occupied with the trial, and its probable issue, than it had been for a week previous, and she felt unable to account for the sadness which

oppressed her. Her father, at length, went out to see if he could not pick up some news, and Judith, after in vain attempting to rally herself, went up to her little cupola.

She looked from her window, but the aspect of all without seemed in accordance with her feelings. The sky of one leaden hue, looked as if no sun had ever enlivened it, and the sea beneath of a darker shade, heaved and tossed as if sullenly brooding over some storm in recollection. The wind whistled through the bare branches of the trees before the house, and drove a few withered leaves to and fro on the terrace, then found its way within doors, and moaned through the passages. Some groups of boys, as they went from house to house, to gather a few pence for their bonfire (it was the fifth of November), at another time, might have seemed to add some little liveliness to the scene; but to Judith, their voices as they reached her ear from below, had a melancholy tone, as they chanted their rhymes, and the tinkling of their little bells sounded doleful.

She placed her harp in the window; for a minute or two the strings were silent, and she repeated her accustomed little invocation—

“Ye winds that were cradled beyond the broad sea,
Come stoop from your flight with your errand to me;
And softly the strings of my harp as ye blow,
Shall whisper your tidings of weal or of wo.”

The wind appeared to answer her summons but fitfully at first, the strings jarring without music, as it swept over them. The blast increasing in strength, the tones became for a while loud, harsh, and discordant; then, as it blew more steadily, they gradually blended into harmony, and at length, sent to her ear a strain of such deep melancholy, as struck despair into her heart. Suddenly there was a crash, succeeded by the *tolling of a distant bell*. So profound was the illusion of the spell-bound hearer, that she did not perceive the snapping of a string, which, by the striking of its loose fragment over the others, produced the sounds so full of wo, to her saddened spirit. They ceased, and the harp was silent.

Again its tones were heard, faintly, and as from afar; but gradually drawing nearer, as a gentle gale passed over the chords to the dejected girl. It fluttered round her, soft as the breath of a summer evening, kissed her fair brow and delicate cheek, and waved each golden curl which hung round her

white throat, while a solemn strain arose, and softening by degrees to a melody of more than earthly beauty, as it seized upon her entranced senses, dispelled every cloud from her spirits, and poured into her soul peace and joy. Then as the breeze which bore it appeared to depart, and wing its way back over the ocean, the tones seemed to syllable the word, farewell, repeated each time with more sweetness, until the sounds were lost in distance. When Judith descended, her parents were rejoiced to see the dark shade dispelled from her brow.

Mr. Wendell sat up late on the preceding night, preparing a defense in a case, in which all the vigor of a powerful intellect was called forth, aided by profound legal learning. He retired to rest, weary, but not dispirited, confident that a few hours repose would fully restore him. But after sleeping heavily until late the next morning, he awoke, not refreshed with slumber, as was his wont, but feeling a languor wholly unknown to him before. He, however, would not succumb to the feeling, but rose, determined to conquer it; took a walk, and used violent exercise, which was of benefit, for when he returned he ate his breakfast with a good appetite, and then sat down to examine his notes. The seat of his indisposition was now apparent, for on his first attempt to read, he felt a pressure on his brain, and a confusion of ideas, which rendered his mind wholly incapable of following any train of argument, and scarcely able to take in the sense of what he had written. The only course now remaining to him, he adopted, which was to leave this case in the hands of the junior counsel, to have it, if possible, continued over to the Spring term; after doing which, he mounted his horse and proceeded homeward, leaving word that he would return in time for the Fayerweather case. For the first time in his life he felt gloomy and depressed. The exercise of riding was grateful to him, and he felt refreshed. After riding an hour or two, his spirits rose to their accustomed buoyancy, though his ideas still remained confused, when he attempted to pursue a train of thought.

He arrived in Salem about three o'clock in the afternoon—the same afternoon the poor dog Jaco died. At he was proceeding through the main street, or reaching the one which turned down to the wharves, his horse suddenly snorted and became restive. He patted and soothed his old servant, and then looked round to discover the occasion of so unwonted a freak, when he saw a powerfully built man in the garb of a seaman, who appeared to be advancing toward him. He stopped his horse with great difficulty, and

the stranger came within a few yards of him. What was his surprise and joy on seeing George Fayerweather?

His exclamation was stopped short by the horse giving a plunge, which, if Mr. Wendell had not sat well in his saddle would have thrown him. Captain Fayerweather's countenance discovered marks of alarm and distress as he drew nearer, and while he spoke to Mr. Wendell, the horse snorted and again plunged fearfully, and at length reared, and stood nearly upright; but his master sat firm as if glued to the saddle, while he listened to George's hurried account of where the deed was. As Captain Fayerweather finished, he turned away quickly, and the animal again put his fore-feet to the ground. As Captain Fayerweather turned the corner, Mr. Wendell called after him, and then finding all endeavors to make the horse follow him, vain, he dismounted and gave the bridle into the hands of a man whom he knew, and who at this juncture came up. He then turned the corner too, but George was gone. His communication, however, in spite of the restiveness of the horse, had reached the ears of Mr. Wendell, and now absorbed all his faculties, as he hastened home with a rapid pace.

On this afternoon, Mrs. Wendell sat at work in her parlor, her mind full of the event of the trial, and revolving over many plans for her aunt, on its now probable issue. She was thinking over her Aunt Brinley's proposal, that the three families should make but one, and should occupy her house, which was sufficiently large; when some one opened the front door, and came immediately into the room. It was her husband, looking excessively pale, and his whole appearance betokening hurry and agitation. Scarcely heeding her, he went to a large closet in the room, where he kept books and papers, and where her uncle's ebony cabinet was placed.

To her questions of surprise and alarm she could only obtain in reply—

“I cannot answer you now, my love, wait.”

He went to the cabinet, and proceeded to take out the three small drawers of the centre, which he placed on the floor, and then narrowly examined the vacancy they left. Unable to restrain her curiosity, she looked over his shoulder. As he knelt, he just made out to discover a small projection at the back, to which he applied two of his fingers, and the whole partition slipped down, and discovered a narrow cavity in the very centre of the cabinet. Two papers appeared, tied together with red tape; one of which was discolored as if with age. He clapped his hands with a joy strangely

contrasted with his pallid countenance, and both exclaimed at once—she with a scream—“Here they are! the deeds! the deeds! found at last!”

Mr. Wendell then mentioned to his wife his meeting with George, who he supposed had just landed; and might have gone to see Judith before he went home. Mrs. Wendell expressed her joy at her cousin’s return, and then again remarked her husband’s paleness, and anxiously inquired the cause; but he made light of it.

“O, I am well enough,” he said, “but I sat up late last night—and perhaps,” he said, with a faint smile, “it was the fright my horse gave me, while George was speaking. He nearly threw me, and prevented my saying a word until George was gone—but I must return immediately to Ipswich; these papers must be produced in court to-morrow. I little thought when I came away, of returning in such triumph; but, good-bye, my love; I cannot stop a moment;” and off he hurried.

Mrs. Wendell immediately flew into her aunt’s, whom with John she found in utter ignorance of George’s return. When informed of it, and of the discovery of the lost papers, her joy almost overcame her. In her impatience to see him, she thought Judith was almost unkind to detain him so long.

“She might come with him,” she said, and John started up, and set off to bring them both. On his way, he met Captain Stimpson, who, he found, had neither seen nor heard any thing of his brother, though just returned from home. He, however, was laden with tidings of high import, and was coming up in town to tell his news.

A vessel had that afternoon put in at Beverly with government dispatches; and staying only long enough to send them on shore, had set sail for Quebec. The dispatches were of so much importance, that an express was immediately sent off with them to Boston, and it was supposed they were the forerunners of peace. The vessel was expected to return to Salem in a month. This was the rumor which Captain Stimpson brought, for it was but a rumor, of which every one down in town was full; but of which, no one appeared to know either the origin or grounds. The name of the vessel, or of its master, could not be ascertained. The worthy relator accompanied John home, and the four there assembled, concluded with one voice, and almost one feeling of deep disappointment, that the Captain of the vessel must have been George, and that being under orders to proceed to Quebec, with the least possible delay, he would not trust himself to come home, or to

see Judith, for fear of being detained too long. His not explaining himself to Mr. Wendell was accounted for, Mrs. Wendell said, by the restiveness of the horse, which probably did not allow him to say more than was barely sufficient for the finding of the papers.

The next day, the cause at Ipswich was decided at once, by Mr. Wendell's producing the deeds. And heavy were the costs which fell upon the plaintiffs; their counsel retaining no recollection—there being no witnesses to it—of the agreement to lose his fees, should he fail to gain the cause; he expressing at the same time a high-minded indignation at having been taken in to engage in a case, in which so much knavery was concerned.

“Poor Jaco! I 'clare it makes me sithe to think on him.” And Vi'let sighed audibly, when Peter removed his mat from the kitchen. Poor Jaco's remains were respectably interred in the garden, under his absent master's favorite tree, with a stone to mark the spot, setting forth his useful life and many virtues.

Pleasantly passed the month in Paved street, in anticipation of George's return: the smiles returning to his mother's countenance, which had seldom visited it since his father's death. And pleasantly glided by the hours to Judith; but how—in her eyrie, watching the waves which were soon to bear her lover to her, and invoking the winds to speed his course? Not she—she taxed herself with selfishness, in having already spent so much time, engrossed by her own feelings, and not in administering to the happiness of others; and she resolutely determined not to go up into the cupola, take the spy-glass into her hand, nor even to consult the golden fish, which surmounted the highest peak of Captain Brayton's house as a weathercock—which latter she could do by only looking out of the east-room window—until she had made up for lost time, and finished several pieces of work she had on hand.

Mr. Solomon Tarbox, seeing there was no hope for him with Judith, had paid his addresses to Miss Ruthy Philpot, the daughter of a ship-chandler in the neighborhood, and their nuptials were near at hand. Judith had set up a patch-work quilt in the summer, as a bridal present.

“And it was high time it was completed,” she said. So every afternoon, after her household cares for the day were over, she sat herself at her patch-work in the sitting-room, and with her lively chatter shed the sunshine of

her own happy spirits over her parents and grandfather. At the end of three weeks the quilt was completed.

“And a beauty it was,” Ruthy said, when Judith surprised her with it, and taking it from the arms of the boy who brought it, unfolded it before her admiring eyes. “And the pattern of the quilting, too, in shells—so much genteeler than herring-bone—it was the handsomest present she had had yet; but her thanks should be paid when Judith should be in the same case; which would be before long, no doubt.”

As Judith returned home, how beautiful every thing appeared to her. The first snow had fallen the night before, and spread over the ground its pure white mantle, the hue of her own bright spirit; and blithe as a young snow-bird she flitted along, so lightly, that one had almost wondered to see the print of her fairy foot. As she looked up into the clear blue sky, how could she help the dazzling of her eye by the golden fish, when it was directly before her, and the sun shone full upon it; and how was it possible for her not to see that it’s head pointed due east? At the sight, who can tell what sudden thought sent a brighter flush to her cheeks, already glowing with spirits and exercise, and quickened her footsteps homeward? On reaching the house, before disarraying herself of her scarlet cloak, she bounded up to her cupola, and took the spy-glass into her hand.

The glass was adjusted to her eye, and slowly turned to every point of the eastern horizon; but the line marking the meeting of the bright blue heaven and the dark blue sea remained whole and unbroken. But no!—is not that a speck? It is—and it increases and nears! Her start sent the glass from her hand; when again adjusted, she could plainly perceive three masts rising from the waves; and now the swelling sails emerge, and now the dark hull.

“Judy! do you see that sail?” called Captain Stimpson from below, in the voice of a speaking-trumpet.

“I do, sir,” answered Judith from aloft. And now the whole ship was visible, gracefully moving over the waters, and proudly and beautifully she bore herself. The father and daughter watched her progress from the first speck they could discern in the bay, until she cast anchor in the harbor, Mrs. Stimpson having indulgently delayed tea for them, to which they now sat down; it being so dark they could see no longer. After tea, Judith sat down to her work, and endeavored to be tranquil. “It was wholly uncertain,” she

said to her father, “whether this were Captain Fayerweather’s vessel or not;” and she really tried to persuade both him and herself, that she thought in all probability it was not. Her ears, however, would perversely listen to every noise from without, which her imagination mischievously converted into the voices of the busy crew from the vessel, plainly distinguishing a well-known one among them, though far out in the harbor. Captain Stimpson was sure it was the vessel, and that they should see George that evening; and so thought Mrs. Stimpson. Their daughter very undutifully said, “It was not at all probable, even if he had come—and she felt almost sure he had not—that he would be willing to leave his mother so soon, even if she would let him.”

The evening wore on, and the little group were undisturbed. Judith could not repress a gentle sigh at thinking how rightly she had judged. Her father at length started up, and said, “He’d make certain whether the chap had come or not;” and accordingly put on his galoches, and was going for his cloak—(his daughter usually brought it for him, but she did not do it just then)—when footsteps were heard on the terrace. Judith disappeared from the room. There was a loud knock at the door, and Captain Stimpson went to it. On his opening it, Mrs. Stimpson heard his hearty and vociferous, “How are you, my lad?” and hastened to give her welcome with voice, hand, and tears, to the tall, stout man whom her husband ushered in. Her joyful greeting was received in silence, and with no answering marks of recognition.

“This cannot be Captain Fayerweather,” she said, turning to her husband.

“Captain Fayerweather? No, madam, my name is Brown,” said the stranger, gravely. He seated himself, as invited, and there was a pause which neither Captain nor Mrs. Stimpson felt able immediately to break. At length the stranger said, “I am mate of the Dolphin, Captain Richard Seaward, master; and he desired me to tell you, he would himself have brought the intelligence I am to give you, but he is sick, and was obliged to take to his bed as soon as he came ashore.” Mr. Brown stopped and cleared his voice.

He resumed. “You took me for Captain Fayerweather; what I have to say is concerning him. Captain Fayerweather took passage from London in the Dolphin; and he told Captain Seaward that he had just arrived from the

Cape of Good Hope, where he had found letters from home, which rendered it necessary that he should return with all possible dispatch; and that finding a vessel at the Cape ready to sail for London, he had left his own, which had a consort, to the charge of the second officer and an experienced crew, to proceed into the Pacific, and had taken passage in the one to London, hoping there to find some opportunity of going to America. We set sail from London on the third of November—”

Captain Stimpson interrupted him. “On the third of November, did you say—and with Captain Fayerweather on board? That can’t be true, sir—he was here on the fifth.”

The stranger answered gravely, “Sir, the business Captain Seaward sent me upon, is any thing but trifling. The Dolphin certainly sailed from London the third of November, and with Captain Fayerweather on board; all the crew will testify to this. But did I understand you rightly to say, he was here on the fifth? How—at what time? Who saw him—did you? There must have been some mistake.”

Captain Stimpson, much surprised, replied, “I did not see him myself, but his cousin, Squire Wendell, did. He met him in the street between three and four in the afternoon. There could have been no mistake, for he told the squire something of great importance to his family, that nobody but himself could have known. The vessel we supposed he came in, put in at Beverly; she staid only long enough to deliver some dispatches for government, and sailed directly for Quebec, intending to return here in a month. We supposed fully that your vessel was the one, and we were expecting Captain Fayerweather when you came.”

While the captain spoke, Mr. Brown showed marks of astonishment and agitation. He was silent a few moments, though his lips moved, and he appeared to be making some calculations. At length he spoke, in a voice apparently from the depths of his chest, slowly and distinctly, but turning pale as he proceeded. “On the fifth of November, two days sail from London, about eight o’clock in the evening, which, allowing for difference of longitude, corresponds to between three and four here, in a raging storm, Captain Fayerweather fell from the mast-head into the sea, and was lost!”

Judith’s shriek was heard from the inner-room, but before her parents could reach it, she had fallen senseless on the floor. Her father took her in his arms, while her mother bathed her temples. On reviving, she held up her

clasped hands imploringly to her mother, and asked if she had heard aright, and if her ears had not deceived her. Poor Mrs. Stimpson was incapable of answering her, excepting by tears; and her father could only clasp her more closely. "Oh! he's gone then;—let me go, too;" and she struggled to free herself. "But where! where shall I go?—what shall I do? Why did you bring me to?—it would have been better for me to have died. I do not wish to live! Why did you not let me die? I will die!—I will not live!"

Her father now blubbered outright. "And would you leave your poor old sir, and your ma'am, that have their lives bound up in you, and that would die, too, without you? Have you no love left for them?"

"I do love you both," she cried; "but now—oh, George! I wish I was in the depths of the sea with you."

"Hush! sinful child," sternly said her grandfather, who had left his chair and now stood before her, his trembling, withered hand held up in reproof; "receive this dispensation of the Lord as a massy; he has taken from you your idol, that was a robbing him of your heart; turn to him on your bended knees, and implore His pardon for your sin."

As she heard him, she appeared by a strong effort only, to suppress a scream. "Oh! spare me now, grandfather," she cried; and she threw herself on the floor, where she lay with her arm over her face, whilst sobs convulsed her whole frame.

"You are too hard upon her, grandsir," cried her mother, with some asperity, and smarting for her child; "you forget she is young flesh and blood; but you are such a saint, and you live so much for another world, that you make no allowance for a poor young creature's feelings in this, when her heart is almost torn out of her body."

"Child," said the old man, trembling, "you ere cutting on me with a sharp knife! I, a saint! oh, you don't know nothing of the wickedness of this old heart; that it was my own sinfulness I was a rebuking, when I was so harsh with this dear child; for I confess it—and it is with shame and confusion—that I have thought more of her being among the grand of the airth, of her riding in her chariot, dressed in vain attire of silks and satins, and adorned with pairls and jewels of fine goold, than of the welfare of her immortal soul. And I verily believe," he continued, the tears which had long been strangers on his usually placid face, now running down his furrowed cheek, and his whole countenance working with distress, "I verily believe

for my sin, this has fallen upon us all; and oh! that this old white head had it all to bear.”

Mrs. Stimpson was entirely subdued by this humble confession of her father-in-law, whom she had always regarded as so near perfection, and so much above all human weakness, that her affection for him had been chilled by a feeling partaking of awe. “Oh, grandsir!” she said, “how cruel I’ve been to you; but I never knew how tender-hearted you were before.”

“No, child, you have always been good to me,” returned the old man; “and better than I deserve; but let us pray that this affliction may be sanctified to us all, and wean us from the perishing things of this air—myself above all, who can’t have much longer to stay; and this dear child, that she may feel it as a golden thread a drawing on her easy like to heaven.” He then knelt down, his son and daughter-in-law by his side, and offered up an humble and fervent prayer over Judith, who was lying before them.

Meanwhile the paroxysms of her grief appeared to abate by degrees, and during her grandfather’s prayer her lips moved as if accompanying him; her sobs became less frequent, and at length were heard no longer; her slow and regular breathing showing that she had fallen into a profound sleep. Her father brought a pillow and tenderly placed it beneath her head. She slept heavily for more than an hour, when, it being long after midnight, her parents, fearing she would take cold, removed her into their own bed—this room being their sleeping apartment in the winter season. As she moaned on being disturbed, her mother soothed and caressed her; and then placing herself by the side of her child, she folded her in her arms, and lulled her to sleep, as if again an infant, while her father placed himself in the easy-chair, and watched until sleep overpowered him.

The next morning, as the anxious parents were bending over their darling, she opened her eyes, and a beautiful smile spread itself over her features. “Oh! I have seen him to-night,” she said, “and he was among the blessed; he told me to live for your sake and his mother’s, and he would watch over me until we met in heaven.” When thoroughly awakened from her dream, she looked fondly on her father and mother, and clasping the hands of both, said, “Oh! how wicked and ungrateful I was to you last night! Can you forgive me? and henceforth I will only live to please you, and will have no wish but yours.”

“You, dear child, you never did any thing but please us; you never had any other wish but ours,” both answered with streaming eyes.

Judith then arose and dressed herself; her trembling limbs and pale countenance sufficiently betraying the shock her frame had received. She went out of the room and busied herself even more than was her wont in domestic details, and throughout the day endeavored by redoubled attention and affection to her grandfather, to make amends to him for her impatience the night before.

The fine weather of the preceding day had been succeeded in the night by a driving snow-storm, which had increased to such violence by morning, as to prevent any communication with the Fayerweather family during the day. Toward evening the wind shifted to the south, bringing a rain which lasted till the next day, melting the great quantity of snow which had fallen, and rendering the streets impassable. Judith’s sense of duty, aided by active and unremitting occupation, had so far enabled her to struggle against any further indulgence of her grief. Her parents were surprised at the composure she maintained, while she sat down this afternoon, as was frequently her wont, on a low stool by her grandfather’s side. She had a large basket by her, filled with new cloth of different kinds, which her mother and she had cut out, and had already begun to make into various articles, in preparation for her own housekeeping. She selected a damask table-cloth from the basket, and turning the hem, began to sew. After taking a few stitches, her wonted smile flitted over her countenance and raised her drooping eyelids; her dimples began to play, and her voice broke forth, like the first robin of the spring, in a lively little Scotch song.

The sound of her own voice in singing restored her to her recollection—she threw down her work and exclaimed with a scream, “What am I doing?” then laid her head sobbing on her grandfather’s knee. “Oh, grandfather! I cannot help it,” she cried.

“Don’t try to help it, dear,” said her mother, her own eyes streaming; “you have put force enough upon yourself.”

The old man placed his withered hands fondly upon her head, and said —

“Yes, weep, my child, for you may; but not without hope; He that wept at the tomb of Lazarus sees you, and in his own good time will turn your weeping into joy.”

The unusual sound of wheels was at this moment heard, and the Fayerweather chariot drove up to the terrace. Dr. Holly and Mrs. Wendell alighted, but Judith feeling herself unable to meet them, retreated from the room before they were ushered in. Mrs. Wendell was so much overcome, that for a few moments she was unable to speak, and it fell to Dr. Holly to tell their errand. He made very particular inquiries in regard to Judith's health, and how she had sustained the shock of the late afflictive intelligence, and then proceeded to mention that Madam Fayerweather was in a very alarming state, having neither changed her position, eaten or slept, since the evening before the last, and that he had accompanied Mrs. Wendell to see if Miss Judith could feel herself equal to returning with them, in the hope that the sight of her might have a favorable effect on madam, in whom if a change could not speedily be induced, he felt himself called upon to say, the worst might be apprehended.

Mrs. Stimpson immediately replied—"She would answer for her daughter, that she would feel it a solace to her own feelings to see Madam Fayerweather, even if she could not be instrumental in restoring her."

Mrs. Wendell then said—"The sight of Judith would, if any thing could."

Mrs. Stimpson left the room, and in a few minutes returned with her daughter. At sight of Mrs. Wendell, who fondly kissed her, Judith's tears burst forth, but she made no hesitation in accompanying her home. As the chariot drove through the street the contrast of her present feelings with those with which she had passed it two days before, struck her forcibly, but she resolutely turned her thoughts from herself to the stricken one whom she was going to see. When they arrived at the house, John came out and assisted them to alight; he pressed Judith's hand but could not speak. Dr. Holly was desirous to try his experiment without delay; they therefore proceeded immediately to the apartment of his patient.

On seeing Madam Fayerweather Judith's strength suddenly failed her and she came near falling; but recollecting how much might depend on her retaining in some degree her self-possession, she made a strong effort over herself, and went forward to the easy-chair, where sat the bereaved mother. The latter was, in truth, not an object to be looked upon without emotion, even by a stranger.

So rigid and motionless was her countenance, that it appeared as if changed into stone; her eyes were fixed; and her hair which, before this last blow, had retained all its gloss and beauty, was turned to an ashen hue, giving a strange and unearthly appearance to her pallid features.

“Sister,” said Madam Brinley, who sat by her, “here’s your dear child, Judith—will you not look at her and speak to her?”

Judith, from a sudden impulse, threw herself on her knees before the bereaved mother, clasped both her hands in her own and bathed them with her tears, but endeavored in vain to speak. Sobs were heard from all present. Madam raised her head, and as she did so, her eyes falling upon Judith, immediately showed a sense of her presence; their fixed and glassy look was changed to one of intelligence, the muscles around her mouth then moved, and she appeared as if endeavoring to articulate. At length she spoke, but in a voice hollow and strange—“We’ve had sad tidings, my child!”

Her whole countenance now appeared working; the frozen fountain of her grief was at length softened, and burst forth in a torrent of tears and sobs and groans.

In the state of exhaustion succeeding this outbreak, she was prevailed upon to take some food which Judith brought her; after which she fell asleep and was carried to her bed, from which she did not rise for several weeks. She had suffered a severe paralytic shock, which affected her limbs and speech for many months, though she finally recovered. Judith, in the meanwhile, divided her time between this, her second mother, and her own family.

What were the sensations of Mr. Wendell on hearing the appalling tidings, that at the moment in which his senses had figured to him George Fayerweather face to face, and whose voice he still felt burnt as it were into his brain—at that very moment, thousands of miles distant, the spirit of his young friend was in the act of departing in a death so fearful! Had such an incident been related to Mr. Wendell, from a source however authentic, he would either have totally disbelieved it, or have considered it an instance of singular coincidence of an illusion, occasioned by bodily indisposition, occurring at the same moment with the death of another at a great distance.

But the feeling which even now raised the hair on his head, which curdled his blood and blanched his cheek anew at the bare recollection of that meeting, as it recalled sensations which his mind was too intent upon its important subject to heed at the time, gave the lie to his reason whenever he attempted so to argue.

Mr. Wendell, however, never spoke upon the subject himself, and by the family it was avoided altogether; each one feeling it of too awful and sacred a nature to admit, not only of discussion, but even of allusion to it in conversation. But as might be supposed, so remarkable an occurrence occasioned no little sensation throughout the town and its neighborhood. It was noted down, with its date, in many a private memorandum as the extraordinary event of the year in which it happened, with remarks upon it, either devout or philosophical, or both, according to the different characters of the minds which severally dictated them.

When all danger for the life of Madam Fayerweather was over, and Judith ceased to have in her an immediate object of care and anxiety, her own health, no longer sustained by extraordinary stimulus to exertion, at length gave tokens of the injury it had itself received. She fell into a state of languor and debility, which threatened to end in consumption, had not her strength of mind, aided by a deep sense of religion, enabled her to exert all her energies to struggle against the foe and finally to subdue it—her own melancholy. Her religious duties, those which she owed to her parents and those to society, she had always faithfully discharged, and now finding them insufficient to engross her mind and prevent it from preying upon itself, she had recourse to the cultivation of her taste and the higher powers of her fine intellect. In this she was assisted by John, already an elegant scholar, and she became a highly accomplished woman, as well as the most beautiful in the province.

Time passed on, and in its course saw Mr. Wendell presiding on the bench as chief-justice, his place as head of the bar filled by John Fayerweather.

It is not surprising that years of devotion from the latter, combined with all the affection of his mother for her departed son, now resting on Judith, should at length have prevailed upon her to be united to them by stronger ties; after having refused many offers, and among the first, one from Mr.

Lindsey, who had returned to America as soon as the intelligence of George's death reached him.

In Judith's becoming the wife of John, there was no infidelity in either to the memory of his brother; it was cherished by both during life, and by each in the heart of the other.

[6] Nahant beach, the roar of which is distinctly heard in Salem on a still evening.

THE BABES OF EXILE.

BY EFFIE FITZGERALD.

“To roam o’er heaving waters bright,
By heaven’s own moonbeam’s made
To find our own a path of light,
Where all beside is shade.”

Fond babes of exile we here claim thine eye,
To cheer thy sadness in this exile drear;
We raise the veil of memory with a sigh,
And seek our welcome in a silent tear.

We fain would come with sunlight on our wings,
For our sweet embassy is one of love;
We hurl no stone from out our baby-slings,
Save that commission come, too, from above.

Souls sunk in ice-holes, or in gilded shine,
May call us wild, fantastic, if they will;
We know our birth-place was another clime—
We come a different mission to fulfill.

We dare the smoke-wreath on the crater’s verge;
We look, undaunted, on the lava-flame;
From the tornado’s whirl we safe emerge;
To thee we come, in gentle childhood’s name!

Enough of tempest—earthquake—has been thine;
Enough of grief has dimmed thy sky-ward eye;
We come to pour the fragrant oil and wine;
We come to bless, and be blest, ere we die.

Die? No! We take from thee an angel-wing;
We fly—we mount—away from earth we soar;
Keep thy gaze upward from the mountain-spring,
Wrapt in white mist-robcs we move on before.

Or if despair thy strong-heart will assail,
Beneath the oaks, in the old wind-flower grove,
We light to kiss thy shadow, lone and pale.
And bid thee turn thy drooping eye above.

This our pure mission—babes of memory!
Give us thy blessing ere these lives depart;
These shadowy forms, all consecrate to thee—
That faintly breathe the incense of the heart.

We heed no danger in a path like this:
A Faith that with the Good was ne'er at war;
We know Earth's sorrows pilot Heaven's bliss—
Keep, then, thy gaze upon the cloud and star.



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BEAUTY'S RETREAT.

A LEGEND OF GRANADA.

[WITH A STEEL ENGRAVING.]

BY HENRY WILLIAM HERBERT.

IT was the evening of a sultry summer's day, while the sun was yet hanging suspended, as it were, in a wreath of lustrous, gauzy vapor scarce a hand's-breadth above the horizon. The skies were perfectly cloudless; and, but for that rich, golden haze which floated in the west about the sloping day-star, there was not a speck of mist to be seen over the whole expanse of the firmament, which, glowing, as it was, with the warm light of that soft southern region, resembled more a vault of exquisitely shadowed gems than the unfathomable depths of ether. All to the westward, the horizon was deluged with a flood of golden glory, too soft to be called intense, yet so vivid that the eye could scarcely brook it; melting as it streamed upward toward the zenith, by imperceptible degrees, into the radiance of the living sapphire; and thence deepening, through the azure tints of the Lapis Lazuli, into the darkest cærulean blue to the eastward, against which rose distinct, glittering with the last reflected sunbeams, the distant summits of the Cordoran mountains. Above these, soaring slowly upward, and momentarily gathering fresh brilliancy as the sun faded in the west, the full, round moon had already risen, with the evening-star at her side, a diamond spark beside an orient pearl.

Nor was the earth below less gracious than the heaven above it; for the scene, over which that cloudless sun was setting so serenely, was no other than the lovely vegas of Granada, watered with its sparkling rivulets, tributaries to the broad and fair Xenil; waving with its almost tropical luxuriance of foliage, odorous with the sweets of ten thousand gardens—verily the paradise of earth surrounding, as with a girdle of immortal beauty, the loveliest of earthly cities, crowned by the wonder of wonders,

the glorious Alhambra. So much has been already written in many tongues, both in prose and verse, of the glories of this inimitable spot—still inimitable, even under the indolent and careless culture of the Spaniard, yet how unlike to what it was under its Moorish masters—above all so eloquently has it been described by the graceful pen of Irving, that all the details of its scenery, nay! of its architecture and internal decorations, are, it may be presumed, as familiar to the mind of the reader, as many places which he has actually seen with his own eyes. To dwell longer, therefore, on the features of that sweet, mountain-girdled plain on which the sunbeams lingered, as though they loved it, would be superfluous at least, if not impertinent. Not so, to depict one who gazed across that plain under that lovely sunset, soft herself as the genial clime, serenely bright as the calm eventide—the Lady Ayesha, a princess of the unmixed race, a visitor from the distant walls of Mequíñez to the kindred royalty, which in the person of the unfortunate but as yet unconquered Boabdil, still sat sublime on the fairy towers of the Alhambra.

She sat alone in a small octagonal apartment in the very summit of one of the loftiest of the palace turrets, overlooking and commanding a view so extensive, that the eye swam dazzled or ere it reached the hills, which bounded it on every side. Walled, vaulted, floored with pure snow-white marble, all wrought and pierced with that exquisite arabesque tracery, which made the cold, hard stone resemble the finest and most delicate lace-work; lighted on each of its eight sides by a tall window, headed by the peculiar horse-shoe arch of Moorish architecture, and surrounded a little lower down the turret by a balcony, filled as a hanging garden with every loved and lovely plant and flower, no happier retreat could be devised for Southern beauty; none half so beautiful, half so luxurious, is dreamed of in her most voluptuous musings by the most famed fair one of our utilitarian days and country.

Notwithstanding the extreme height of the tower, which rose full a hundred feet above the inferior buildings of the royal residence, it yet possessed its fountain, fed from a reservoir in the roof, itself supplied by the aid of machinery from the sources of those silver rivulets of the Xenil and Darro, which might be seen glittering in the level plain almost a thousand feet below; and the constant merry splash of its sparkling waters, as they leaped and fell in a shower of diamonds into their alabaster basin, together with the waving of the broad, fan-like palm-leaves in light coming air

around the open casements, and the rich clusters of clematis, passion-flower and jessamine which hung their blossoms around every traceried column, rendered it difficult to conceive that so great a distance intervened between that bower of beauty and the solid earth, with all the choicest charms of which it was environed and invested.

Half-seated, half-reclining on a broad, low step of marble, which ran all around the apartment, covered with rich cushions and foot-cloths of brocade, such as would now be cheaply purchased at its weight in gold, with her shoulders supported by the low parapet of the window immediately behind her, gazed the Lady Ayesha over the glimmering landscape, all as she untwined with the rosy, henna-tinted tips of her small, slender fingers the thick plaits of her luxuriant raven hair. For in truth, and for once, the epithet *raven* was not misapplied to those soft, silky, glistening masses, which were not of the cold and hueless black, but of that nameless and indescribable hue which is never seen but in the hair of women of Moorish or Irish blood—and in the latter probably as originated of the former—black indeed, but black warmed and glowing with a rich metallic purplish lustre, unlike any thing on earth but the changeful hues that dance on the dark plumage of several of the feathered tribes. But though her long, languid eyes of that perfect almond form, so much prized by the beauty-loving Moors, fringed with lashes so long and dark as to require no aid of that Arabian dye to set off the liquid lustre which they curtained, were riveted with a serene and steady fixedness on a remote spot in the plain, it was by no means evident that they took note of that on which they lingered; nor did she even appear conscious of her occupation, as wave after wave of her soft tresses fell disentwined into her lap. For there was too much of tranquillity, approaching even to abstraction, in the fixedness of her eye, in the statue-like immobility of her perfectly regular features, and in the whole pose of her figure, to accord with any thoughts so frivolous as those of the mere decoration of the person, how beautiful soever it might be.

As one gazed on her—had there been any there to gaze—it was impossible not to perceive that, within that fair form and under those impassive features, there was—what with Oriental women is not at all times the case—a sentient and intellectual soul, and that soul at this time engrossed in some deep and powerful strain of meditative thought.

And oh! how beautiful she was. The perfect oval of her regular face, the straight, Grecian outline of her chiselled features, the dark clearness of her pure, transparent complexion, through which, though ordinarily colorless, every transient motion of the blood mantled in crimson, the slender, yet exquisitely rounded figure, the soft curves of her plump and shapely arms, were all as nearly perfect as mortality can approach to perfection.

The dress, moreover, which she wore—as far removed as possible, by the way, from the ungraceful and hideous monstrosity which a set of crazy notoriety-mongers have been striving to introduce among us as the costume of Oriental ladies—set off her foreign-looking charms by its own foreign eccentricity, no less than by the barbaric splendor of its materials.

A low, flat Fezzan cap of rich crimson velvet, superbly embroidered in gold and pearls, was set lightly, a little on one side, upon her luxuriant black tresses, and from it depended a long tassel, exquisitely wrought of grains of native gold and seed-pearls, down to her left shoulder, contrasting in strong relief the glossy darkness of the hair, by the brilliancy of its white and gold. Immense pendants of pearl hung from the roseate tips of each small ear, and a string of the same inestimable gems, not one of them inferior in size to a large currant, formed four distinct necklaces upon her chest, beside a fifth and longer coil, which hung down almost to her waist. A *jellick*, as it was called, or, as we should term it now, a chemisette of the finest Indian muslin, wrought as its name indicates at Mosul on the Tigris, embroidered with threads of gold, alone covered her glowing bosom; but above it she wore an open, sleeveless Dymar of gorgeous green brocade, with hanging filigree buttons of gold; and shrouding all her lower limbs, to the very tips of the small, slippered feet, as she lay half-crouched on her divan, an under robe or tunic of blush-colored Persian silk with broad, perpendicular stripes of dead gold, the sleeves of which, close to the elbow, fell thence downward, open like those of the modern gown worn by bachelors of arts. No appearance of trowsers, no marked cutting line, nothing tight or definite or rigid, nothing harsh, stiff or masculine was to be discovered on the nearest scrutiny. A superb Cashmere shawl was wound about her waist at the junction of the under robe and chemisette, and its loose ends blended admirably with the floating draperies and harmonized with the wavy ease which was the principal characteristic of the dress, the attitude, the pose, the woman.

To complete the picture, a Moorish Bernoose, or mantle of scarlet woolen, almost as fine as gauze, with borders of golden lace, lay heaped behind her; and nestled in its folds, a filigree jewel-case with boxes and bottles of perfumes and cosmetics, and half-open drawers of glittering gems and ornaments befitting her high rank; while on the parapet, beside her head, stood a huge vase of superb porcelain filled with the dark, glossy leaves and snow-white blossoms of the gold-eyed lotus, the perfume of which would have been too strong for endurance but for the free circulation of the balmy air on every side, and the cool freshness of the dashing water, which mingled with its overpowering fragrance and dissipated its intensity.

Such was the Leila Ayesha, the daughter of the Sultan of Mequíñez, the great Muley Abderahman, the best and bravest of his race; who in this, almost the last extremity of his kinsman, Boabdil of Granada, had sent an embassy with compliments and splendid gifts, accompanying and conveying his fair child, the best loved of all his children, on her visit to the heroic mother of the last Moorish king of Granada.

By many, however, of those who might be supposed the best informed on state affairs, both of those at Mequíñez and those at Granada, it was whispered that, under the cover of a mere complimentary embassy and friendly visit something of deep policy, and that of the highest import to both sovereigns, was intended. Indeed it was the general opinion that the object of the Sultan of Morocco in thus sending his fair daughter—in whom it was well-known that wise and enlightened prince placed far more confidence than is usually extended to the sex among the Moors—was to bring about, should it be pleasing to the beautiful Ayesha, a union between the two royal houses, in which case he would himself come to the aid of Granada with such a force of Moslem, backed by such hordes of the wild Berbers as Ali Ibn Tarih himself never led to conquest—such, in a word, as should soon compel the proud and encroaching Ferdinand to look to the safety of his own throne and the integrity of his own dominions, rather than to the invading of the dominions of his neighbors.

Be this as it may, it was all a new world to the Leila Ayesha, for the Moors of Spain during their many centuries of occupation, aggrandisement and decline, had adopted many ideas, many customs from their Christian neighbors, at one time their foes, at another in long intervals of truce, their neighbors and almost their friends.

Nor had the Spaniards failed in the same degree to profit by the vicinity of the intellectual, polished and industrious Moors, until the bigotry of these and the fanaticism of those had given way to more rational and intelligent principles, and the two nations met, whether in war or peace, on a common ground of mutual self-respect and decorum.

Thus the Moors had not only laid aside long since their fanatical war-cry of "The Koran or the Sword!" but had adopted many of the usages of chivalry, no longer holding the Christians as dogs, and slaughtering them without quarter given or taken, but setting them at honorable ransom, and even treating them while prisoners on parole as guests on terms of equality, entertaining them at their boards, and holding sacred to them all the rights of hospitality.

In no respect, however, had a wider change occurred in the habits of the nation than in the treatment of their women, who, although not certainly admitted to the full liberty of Christian ladies, were by no means immured, as in their native land, in the precincts of the Harem, "to blush unseen, and waste their sweetness on the desert air," but were permitted, still under the guardianship of duennas, and with their trains of Indian eunuchs, and further protected by their veils from the contamination of unholy glances, to be present at festivals, at tournaments, nay! even at banquets, when none but the members of the family or guests of high consideration were expected to be present.

It is not, by the way, a little singular that almost in exact proportion as the Moors enlarged the liberty of their women, by the example of the Spaniards, did the Spaniards contract that of their own bright-eyed ladies, by the example of the Moors; and for many years the rigor of the Spanish duenna was scarcely inferior to that of the Raid of a Moorish harem, or the ladies under charge of the one much more obvious to the gaze of the profane, than the beautiful slaves of the latter.

Did not, therefore, the beautiful Leila Ayesha rejoice and exult in the comparative freedom which she enjoyed among the liberal Moors of Spain, which as fitted to enjoy as the favorite child of a wise father, enlightened far beyond the prejudices of his nation or his time? In his own younger days he had been a traveler, had visited Venice and even Madrid, in both of which cities he had been a sojourner in the character of ambassador, and had thus, like the wily Ulysses, "seen the cities of many nations and learned their

understandings.” Their languages he spoke fluently: he even read their works, and, although a sincere and faithful Mussulman, he had learned to prize many of the customs, to appreciate the principles, and in some instances to adopt in his heart at least the practices of the Christians.

Too wise openly to offend the prejudices of his people—and nothing would have done so, more decidedly or more dangerously than any infringement of the sanctity of the harem—he had not dared, absolute as he was, to grant to his daughter that full liberty founded upon the fullness of trust which he had learned to admire in Venice. Still he had done all that he could do without offending prejudices or awakening angry opposition. He had made Ayesha, from her earliest years, the companion of his leisure hours; he had educated her in all that he himself knew, he had consulted her as a friend, he had confided in her as a human soul, not treated her as the mere pet and plaything of an hour.

And now as she grew up from an engaging child to a fair marriageable maiden, accomplished, intellectual, thoughtful, not an irresponsible being, but a responsible human creature, with the beauty, the impulsive nature, the passionate heart of the Moorish girl, but with the reason, the intellect, the soul of the Spanish lady—Muley Abderrahman, who was waxing into years, began to doubt whether he had done wisely in training up the child of Mequíñez, the offspring of the desert, to the arts, the accomplishments, the hopes, and the aspirations of the free Venetian *dama*—began to look around him anxiously to see where he might bestow the hand of her whom he had learned to cherish and esteem even above his people or his power. He saw none, on that side of the Mediterranean, with whom she could be other than a slave—the first and mistress of the slaves, indeed, but still one of them—a beautiful toy to be prized for beauty, while that beauty should yet endure; if faded, to be cast aside into the sad solitude of neglect for a newer plaything, perhaps to be imprisoned—as a discrowned and discontented queen, and therefore dangerous—in some distant and dim seraglio on the verge of the great burning desert.

And was this a fate for the bright, the beloved, the beautiful, the sage Ayesha?

Thence was born the idea of the embassy to Boabdil. He knew the kings of Granada civilized and cultivated far before those of Tetuan or Tafilet, or even Mequíñez or Mecca—he knew that they had adopted, in many

respects, the usages of the Christian cavaliers, and not least among these, their chivalrous courtesy and graceful respect for the fair sex—he knew them powerful and wealthy, and possessed of a land the fairest on the face of the earth, the glorious kingdom of Granada. At this time, although the war had commenced between Ferdinand and the Moorish princes, which was to terminate at no very distant day in the total overthrow of the Saracenic empire in Spain, it as yet lagged indecisively along, with no preponderance of this or the other force; nor could there be any doubt that a declaration on the part of the Sultan of Mequíñez, backed by the reinforcement of a Moorish and Berber, and an active naval warfare along the coasts of Spain, would not only secure Granada from any risk of dismemberment, but even wrest a permanent acknowledgment and durable peace from the Christian kings of the Spanish provinces.

Boabdil was at this time formally unwedded, although, like every other prince or magnate of his people, he had his wives, his concubines, his slaves innumerable. He was notoriously a leaner to the soft side of the heart, a fervent admirer of beauty, and was, moreover, a kind-hearted, gracious and accomplished prince. That he would be captivated by the charms of the incomparable Ayesha, even apart from the advantages which her union would bring to himself and to his people, could not be doubted; and should such an union be accomplished Muley Abderrahman felt well assured that he should have obtained for the darling of his heart all that he desired, freedom of life, a suitable partner, and security for her enjoyment of all her cherished tastes and respected privileges.

Still Muley Abderrahman, wiser than any Moslem father of that age, wiser than most Christian parents of any age, was not inclined to set down his own idea of what should be her good, with his absolute yea! as being her very good. He had, strange thing for a Moor! an idea that a woman has a soul—strange and unorthodox thing for a father! an idea that his daughter had a heart; and that it might not be such a bad thing after all for her ultimate happiness that her heart should be in some degree consulted.

She went, therefore, fancy free and untrammelled even by the knowledge of her father's wishes, on a visit to her kinsfolk of Granada, entirely unsuspecting that any secret of state policy was connected with the visit to that land of romance and glory, of beauty and adventure, which was to her one long holyday. Of all her train, indeed, there was but one who was

privy to the Sultan's secret wishes old Hadj Abdallah Ibn Ali, the eldest of the sovereign's councillors, like some, himself a traveler, and like himself, imbued with notions far more liberal than those of his time or country. To him it was entrusted, therefore, while seemingly inattentive to all that was passing, to observe strictly every shadow which might indicate whence the wind was about to blow—to take especial note of Boabdil's conduct and wishes, and, above all, to omit no opportunity of discovering how the fair Ayesha might stand affected toward her royal cousin.

Gaily and happily had passed the days, the weeks, the months—it was still truce with the Spaniard, and days and nights were consumed in tilts, in tournaments, in hawking-parties on the beautiful green meadows of the Vega, beside the bright and brimful streams, adjuncts so necessary to that royal pastime, that it was known of old as the “Mystery of Rivers”—hunting-parties in the wild gorges of the Alpuxawa mountains, banquets at high noon, and festivals beneath the glimmering twilight, beneath the full-orbed moon, that life was, indeed, one long and joyous holyday. Boabdil was, in truth, of a man a right fair and goodly specimen—tall, finely formed, eminently handsome, graceful and affable in manners, kindly in heart and disposition, not untinctured with arts and letters, nor deficient in any essential which should become a gentle cavalier—as a monarch, when surrounded by his court, and seated in his place of state in the Hall of Lyons, of a truth he was a right royal king—as a warrior, in the tilt-yard his skill, his horsemanship, his management of all weapons, were the admiration of all beholders. In the field his gallantry and valor were incontestable. What, then, was wanting that Boabdil was not a perfect man, a real cavalier, a very king? Purpose, energy, will—will that must have its way, and cannot be denied, much less defeated.

A prince of a quiet realm, in tranquil times he had lived honored and happy, he had been gathered to his fathers among the tears of his people, he had lived in the memory of men as a good man, an admirable king, the father of his people.

Fallen upon evil times, thrust into an eminence for which he not only was, but felt himself to be unfit, unequally matched against such an enemy as Ferdinand, the one weak point outweighed all the fine qualities and noble virtues; and he lived, alas! to be that most miserable, most abject of all human things, a dethroned, exiled, despised king!

And did Ayesha, from beneath the screen of girlish levity, while seemingly steeped to the lips in the rapturous enjoyment of the liberty, the life of the present moment, did Ayesha see and foresee all this? At least, when Hadj Abdallah Ibn Ali wrote to his friend and patron the Sultan, and that but shortly after their arrival, that Boabdil was so evidently and obviously enamored of his mother's lovely guest, that he would not only too eagerly court the alliance, backed as it was by advantages so kingly, but that he verily believed he would woo her to his throne, were she the merest peasant's child. He wrote nothing of Ayesha!

Again he wrote that he could not doubt she had perceived her royal cousin's love, and that her manner toward him was so frank, so free, so unrestrainedly joyous and confiding, that he was well assured that all went well, and that she returned the affection of Boabdil, and rejoiced in his love.

But Muley Abderrahman, shook his head and knit his brow, as he read the letter, and muttered through his thick moustache, "Ay! he is a good man—a good man is the Hadj Abdallah, and a wise one, but he knows nothing of a woman's heart—how should he?"

When he sent the next dispatches to his old friend and counsellor, there was a brief private note attached. "Is the Leila Ayesha," he asked, "never grave, never abstracted, never shy, and almost sad—does she never flee from the gayety of the festival, the tumult of the chase, into privacy and solitude—does she never fail to hear when addressed, to see when encountered—does she never weep nor sigh when alone—in a word, is she in nowise changed from what she was at Mequíñez?"

And the reply came, "Never. Wherefore should she? Is she not the apple of all eyes, the idol of all hearts? Her laugh is as the music of the soul, her eye-glance the sunbeam that enkindles every heart. She is the star of the Alhambra, the loadstone of the king's soul. Wherefore should she weep or sigh? I have questioned her handmaids—never! Yes—the Leila Ayesha is changed. In Mequíñez, she was as a sunbeam thrown on still waters. Here in Granada, she is the sunbeam thrown on the dancing fountain, reflecting happy light on all around her. In Mequíñez, she was as a sweet song-bird, feeding her soul on her own harmonies in silence. Here in Granada she is as the sweet song-bird, enrapturing all within her sphere by the blithe outpourings of her joyous melodies. Yes—the Leila Ayesha is changed. My

Lord Boabdil loves the Leila Ayesha; the Leila Ayesha knows it, and is glad.”

Then Muley Abderrahman shook his head, and pondered for a while, and muttered—

“She loves him not—She loves him not. The Hadj Abdallah is good and wise with the wisdom of men—but of the hearts of women, he knows nothing—how should he? for he never saw a woman.”

And the old king, far distant, saw more of what was passing in the fair girl’s heart than the wise councillor who was present—but he judged it best to tarry and abide the event—and he tarried, but not long.

Had he been present on that sultry summer’s evening, and looked upon his lovely child as she sat gazing out in such serenity of deep abstraction over the sunny Vega—over the fragrant orange groves and glowing vineyards, toward the glistening hill-tops of the Spaniards—his question would have answered itself, and at the first glance he would have seen that she loved.

The child had discovered that it had a heart—the creature had divined that it had an immortal soul—the child had become a woman—a very woman.

With all a woman’s smiles and tears,
And fearful hopes and hopeful fears,
And doubts and prayers for future years.

Leila Ayesha loved—but whom? At least not Boabdil! Happily, not Boabdil.

Even as she gazed, the orb of the gorgeous sun sank behind the distant hills, and at once—clear, shrill, and most melodious—up went the voice of the Muezzins, from every minaret throughout the gorgeous city, “To prayer, to prayer. There is no God but God, and Mahomet is his prophet. Faithful, to prayer, to prayer!”

And instant at the cry every sound ceased through the royal residence—every sound through the splendid city—every sound through the wide Vega. Every turbaned head was bowed in prayer, and a sabbath stillness seemed to consecrate the bridal of the earth and sky.

Ayesha rose from her divan, and while her lips murmured the words of devotion, and her fingers ran rapidly over the beads of her Comboloic or Moorish rosary, a strange, faltering flush ran over her fair brow. Her orisons ended, she caught some of the spray of the fountain in the palm of one of her fairy hands, and scattered it thrice over her long, dark tresses, on which it glistened in the soft moonbeams; for the moon now alone occupied the heavens, on the fragrant hills of the black hyacinth.

Again she resumed her attitude on the divan, but not her occupation; for the mood of her mind was altered, and for a while she hummed the burthen of an old, melancholy Moorish ballad—an old Moorish love-song, the words of which corresponded in no small degree to our own, “Oh! willow, willow”—since the proverb still holds good of burned Morocco or bright Spain, as of green, merry England—

“For aught that I did ever hear—
Did ever read in tale or history,
The course of true love never did run true.”

Ere long from the city gates far distant was heard the din of martial music—first, the deep clang of the kettle-drums and atabals alone, and the clear flourish of the silver trumpets which announced the presence of the king, and these only at intervals above or between the trampling of hoofs, the clash of armor, and the cheering of an excited multitude. Anon nearer and nearer came the sounds, with the clash of cymbals and the soft symphonies of lutes, and the clear, high notes of flutes and clarionets among the clangor of the trumpets, and the brazen rattling of the drums.

Nearer and nearer yet—and it is now at the Alhambra gates.

She started to her feet, and leaned far out of the embrasure commanding all the city, but her eye marked one object only, the royal train filing into the palace gates, from the royal sports on the Vega ended—and in that train, on but one person.

It was no turbaned head or caftaned form on which that ardent eye was fixed, now kindled into all a Moresca’s ecstasy of passion; it was on a tall Spanish crest and lofty plume. And, as if by a secret instinct, as her gaze was bent downward to the horse-shoe arch of the Alhambra gate, his glance soared upward to the airy turret’s top, and readily detected what would have

escaped a less observant watcher, the dark eyes of his fair Ayesha gleaming through the palm-leaves and passion-flowers; their passionate fire half quenched by the tears of tenderness and hope.

His Ayesha—his—the Conde of Alarcos, proudest grandee of Spain—the favorite child of the Spaniard's deadliest foe, the Sultan of Morocco.

The Hadj Abdallah Ibn Ali's next dispatch contained much important tidings concerning a twenty years' truce to be concluded between the King Boabdil, of Granada, and the King Ferdinand, of Spain—and much graver gossip of the noble Conde of Alarcos, Ferdinand's ambassador; of his high feats of arms, and gentle feats of courtesy—of how all the court admired him, and how the Lady Ayesha shunned him, and how she was less frequent at the falconry, less frequent at the chase, less frequent at the festival, less frequent at the royal banquets—and how her hand-maidens reported that their mistress sighed all the time and often wept, and sat long hours gazing upon nothing, and played no more upon her lute, nor sung the songs of Islam—and how she was—he feared—ill at ease, and pining for her native land.

And when Muley Abderrahman read the letter he shook his head, and muttered—

“Ay, she loves now, but it is the wrong one—a Nazarene, a dog,” and he tore his beard and wept. That night a royal courier rode hard from Mequíñez to Saleè, and the next day a fleet galley scoured the way across the narrow seas to the fair shores of Granada.

The embassy should return at once to Mequíñez. Now hour of delay—too late.

The embassy had returned the preceding day, but it was the Spanish embassy: and it had returned, not to Mequíñez, but to Cordova. And ere his master's mandate had stricken terror to the soul of the Hadj Abdallah, the Spanish bells were chiming for the wedding of a Moorish maiden, now a Christian bride; and the Leila Ayesha, of Mequíñez, was the wife of the noble Conde De Alarcos: nor have I ever heard that she rued either of the changes.

Again Muley Abderrahman tore his beard, and this time from the very roots. But his wonted philosophy still consoled him, and after a little while he muttered—

“Allah, assist me, that I thought myself so wise—yet know not the heart of a woman! How should I?”

WRITE THOU UPON LIFE'S PAGE.

BY GRENVILLE GREY.

LEAVE thou some light behind thee,
Some mark upon thine age;
Let not a false fate bind thee—
Write thou upon life's page,

Some word of earnest meaning,
Some thought, or else some deed,
On which thy brother leaning,
Unto better may succeed.

For none may tell what beauty,
What endless good there lies,
In some little nameless duty,
Whose remembrance never dies.

Leave thou some light behind thee,
Some token of thy way;
Let not a false ease bind thee—
Thou art not wholly clay.

There is something noble in thee,
Let it speak and not be mute;
There is something that should win thee
From a kindred with the brute.

Thou art not, oh! my brother,
Wholly impotent for good;
Thou may'st win or warn another
From the wrongs thou hast withstood.

Leave thou some trace behind thee—
In life's warfare, go, engage;
Let no more a false fate bind thee—
Write thou upon life's page.

LINES ON A VASE OF FLOWERS, (FOUND UPON MY DESK.)

BY ESTELLE ANNA LEWIS.

I CAME upon these simple flowers
As something I revere;
They grew in Love's enchanted bowers—
And love hath placed them here.

I kiss their cheeks of virgin bloom,
I press their dewy lips,
While my wrapt soul of their perfume,
Inebriated sips.

I look into their violet eyes,
And feel my heart grow calm,
And fancy I'm in Paradise,
Inhaling Eden's balm.

There in ecstatic dreams I rove
Among celestial bowers,
Weaving a garland for my Love,
Of beatific flowers.

DEATH.^[7]

BY SAMUEL HENRY DICKSON, M. D.; PROFESSOR IN THE MEDICAL COLLEGE OF
SOUTH CAROLINA.

As the word Life is employed in a double sense to denote the actions or phenomena by which it is developed, and the cause of these phenomena, so the old English word Death is used familiarly to express two or more meanings. The first of these is the transition from the living to the lifeless or inanimate state—the act, that is, of dying; the second, the condition of an organized body which has ceased to live, while organization yet remains, and symmetry still displays itself, and the admirable structure of its parts is not yet destroyed by decomposition, or resolved into the original and primary elements from which it was moulded,

“Before Decay’s effacing fingers
Have swept the lines where beauty lingers.”

We occasionally speak of “dead matter” in the sense of inorganic; but this is merely a rhetorical or metaphorical phrase. That which has never lived cannot properly be said to be dead.

In the following essay, I shall use the word chiefly in the first of the senses above indicated. It will often be convenient to employ it in the second also; but in doing so, I will be careful so to designate its bearing as to avoid any confusion. The context will always prevent any misunderstanding on this point.

Death may be considered physiologically, pathologically, and psychologically. We are obliged to regard it and speak of it as the uniform correlative, and indeed the necessary consequence, or final result of life; the act of dying as the rounding off, or termination of the act of living. But it ought to be remarked that this conclusion is derived, not from any understanding or comprehension of the relevancy of the asserted connection, nor from any *à priori* reasoning applicable to the inquiry, but

merely *à posteriori* as the result of universal experience. All that has lived has died; and, therefore, all that lives must die.

The solid rock on which we tread, and with which we rear our palaces and temples, what is it often when microscopically examined, but a congeries of the fossil remains of innumerable animal tribes! The soil from which, by tillage, we derive our vegetable food, is scarcely any thing more than a mere mixture of the decayed and decaying fragments of former organic being; the shells and exuviae, the skeletons and fibres and exsiccated juices of extinct life.

The earth itself, in its whole habitable surface, is little else than the mighty sepulchre of the past; and

“All that tread
The globe are but a handful to the tribes
That slumber in its bosom. Take the wings
Of morning, and the Barcan desert pierce,
Or lose thyself in the continuous woods
Where rolls the Oregon, and hears no sound
Save his own dashings—yet, the dead are there;
And millions in these solitudes, since first
The flight of years begun, have laid them down
In their last sleep: the dead reign there alone.”

Four millions of Egyptians cultivate the valley of the great river on whose banks, amidst the fertilizing dust of myriads of their progenitors, there are calculated still to exist, in a state of preservation, not less than from four hundred to five hundred millions of mummies. The “City of the Tombs” is far more populous than the neighboring streets even of crowded Constantinople; and the cemeteries of London and the catacombs of Paris are filled to overflowing. The trees which gave shade to our predecessors of a few generations back lie prostrate; and the dog and horse, the playmate and the servant of our childhood, are but dust. Death surrounds and sustains us. We derive our nourishment from the destruction of living organisms, and from this source alone.

And who is there among us that has reached the middle term of existence, that may not, in the touching phrase of Carlyle, “measure the

various stages of his life-journey by the white tombs of his beloved ones, rising in the distance like pale, mournfully receding milestones?”

“When Wilkie was in the Escorial,” says Southey, “looking at Titian’s famous picture of the Last Supper in the refectory there, an old Jeronymite monk said to him, ‘I have sat daily in sight of that picture for now nearly threescore years; during that time my companions have dropped off one after another—all who were my seniors, all who were my contemporaries, and many or most of those who were younger than myself; more than one generation has passed away, and there the figures in the picture have remained unchanged. I look at them, till I sometimes think that *they* are the realities, and we but shadows.’ ”

I have stated that there is no reason known to us why Death should always “round the sum of life.” Up to a certain point of their duration, varying in each separate set of instances, and in the comparison of extremes varying prodigiously, the vegetable and animal organisms not only sustain themselves, but expand and develop themselves, grow and increase, enjoying a better and better life, advancing and progressive. Wherefore is it that at this period all progress is completely arrested; that thenceforward they waste, deteriorate and fail? Why should they thus decline and decay with unerring uniformity upon their attaining their highest perfection, their most intense activity? This ultimate law is equally mysterious and inexorable. It is true the Sacred Writings tell us of Enoch, “whom God took and he was not;” and of Elijah, who was transported through the upper air in a chariot of fire; and of Melchisedek, the most extraordinary personage whose name is recorded, “without father, without mother, without descent: having neither beginning of days, nor end of life.” We read the history without conceiving the faintest hope from these exceptions to the universal rule. Yet our fancy has always exulted in visionary evasions of it, by forging for ourselves creations of immortal maturity, youth and beauty, residing in Elysian fields of unfading spring, amidst the fruition of perpetual vigor. We would drink, in imagination, of the sparkling fountain of rejuvenescence; nay, boldly dare the terror of Medea’s caldron. We echo, in every despairing heart, the ejaculation of the expiring Wolcott, “Bring back my youth!”

Reflection, however, cannot fail to reconcile us to our ruthless destiny. There is another law of our being, not less unrelenting, whose yoke is even harsher and more intolerable, from whose pressure Death alone can relieve

us, and in comparison with which the absolute certainty of dying becomes a glorious blessing. Of whatever else we may remain ignorant, each of us, for himself, comes to feel, realize and know unequivocally that all his capacities, both of action and enjoyment, are transient and tend to pass away; and when our thirst is satiated, we turn disgusted from the bitter lees of the once fragrant and sparkling cup. I am aware of Parnell's offered analogy—

“The tree of deepest root is found
Unwilling most to leave the ground;”

and of Rush's notion, who imputes to the aged such an augmenting love of life that he is at a loss to account for it, and suggests, quaintly enough, that it may depend upon custom, the great moulder of our desires and propensities; and that the infirm and decrepit “love to live on because they have acquired a habit of living.” His assumption is wrong in point of fact. He loses sight of the important principle that Old Age is a relative term, and that one man may be more superannuated, farther advanced in natural decay at sixty, than another at one hundred years. Parr might well rejoice at being alive, and exult in the prospect of continuing to live, at one hundred and thirty, being capable, as is affirmed, even of the enjoyment of sexual life at that age; but he who has had his “three sufficient warnings,” who is deaf, lame and blind; who, like the monk of the Escorial, has lost all his cotemporaries, and is condemned to hopeless solitude, and oppressed with the consciousness of dependence and imbecility, must look on Death not as a curse, but a refuge. Of one hundred and thirty-three suicides occurring in Geneva from 1825 to 1834, more than half were above fifty years of age; thirty-four, from fifty to sixty; nineteen, from sixty to seventy; nine, from seventy to eighty; three, from eighty to ninety; in all sixty-five. The mean term of life in that city being about thirty-five to forty, this bears an immense proportion to the actual population above fifty, and exhibits forcibly an opposite condition of feeling to that alleged by Rush, a weariness of living, a desire to die, rather than an anxiety, or even willingness to live.

I once knew an old man of about one hundred and four who retained many of his faculties. He could read ordinary print without glasses, walked firmly, rode well, and could even leap with some agility. When I last parted

with him, I wished him twenty years more; upon which he grasped my hand closely, and declared he would not let me go until I had retracted or reversed the prayer.

Strolling with my venerable and esteemed colleague, Prof. Stephen Elliott, one afternoon, through a field on the banks of the river Ashley, we came upon a negro basking in the sun, the most ancient-looking personage I have ever seen. Our attempts, with his aid, to calculate his age, were of course conjectural; but we were satisfied that he was far above one hundred. Bald, toothless, nearly blind, bent almost horizontally, and scarcely capable of locomotion, he was absolutely alone in the world, living by permission upon a place, from which the generation to which his master and fellow-servants belonged had long since disappeared. He expressed many an earnest wish for death, and declared, emphatically, that he “was afraid God Almighty had forgotten him.”

We cannot wonder, then, that the ancients should believe, “Whom the gods love, die young,” and are ready to say with Southey, himself, subsequently, like poor Swift, a melancholy example of the truth of his poetical exclamation,

“They who reach
Gray hairs die piecemeal.”

Sacred history informs us that, in the infancy of the world, the physiological tendency to death was far less urgently and early developed than it is now. When the change took place is not stated; if it occurred gradually, the downward progress has been long since arrested. All records make the journey of life from the time of Job and the early patriarchs, much the same as the pilgrim of to-day is destined to travel. Threescore and ten was, when Cheops built his pyramid, as it is now, a long life. Legends, antique and modern, do indeed tell us of tribes that, like Riley’s Arabs and the serfs of Middle Russia, and the Ashantees and other Africans, live two or three centuries, but these are travelers’ stories, unconfirmed. The various statistical tables that have been in modern times made up from materials more or less authentic, and the several inquiries into the general subject of longevity, seem to lead to the gratifying conclusion that there is rather an increase of the average or mean duration of civilized life. In 1806, Duvillard fixed the average duration of life in France at twenty-eight years;

in 1846, Bousquet estimates it at thirty-three. Mallet calculated that the average life of the Genevese had extended ten years in three generations. In Farr's fifth report (for 1844), the "probable duration," the "expectation of life" in England, is placed above forty; a great improvement within half a century. It is curious, if it be true, that the extreme term seems to lessen as the average thus increases. Mallet is led to this opinion from the fact, among others, that in Geneva, coincident with the generally favorable change above mentioned, there has not been a single centenarian within twenty-seven years; such instances of longevity having been formerly no rarer there than elsewhere.

Birds and fishes are said to be the longest lived of animals. For the longevity of the latter, ascertained in fish-ponds, Bacon gives the whimsical reason that, in the moist element which surrounds them, they are protected from exsiccation of the vital juices, and thus preserved. This idea corresponds very well with the stories told of the uncalculated ages of some of the inhabitants of the bayous of Louisiana, and of the happy ignorance of that region, where a traveler once found a withered and antique corpse—so goes the tale—sitting propped in an arm-chair among his posterity, who could not comprehend why he *slept* so long and so soundly.

But the Hollanders and Burmese do not live especially long; and the Arab, always lean and wiry, leads a protracted life amidst his arid sands. Nor can we thus account for the lengthened age of the crow, the raven, and the eagle, which are affirmed to hold out for two or three centuries.

There is the same difference among shrubs and trees, of which some are annual, some of still more brief existence, and some almost eternal. The venerable oak bids defiance to the storms of a thousand winters; and the Indian baobab is set down as a contemporary at least of the Tower of Babel, having probably braved, like the more transient, though long-enduring olive, the very waters of the great deluge.

It will be delightful to know—will Science ever discover for us?—what constitutes the difference thus impressed upon the long and short-lived races of the organized creation. Why must the fragrant shrub or gorgeous flower-plant die immediately after performing its function of continuing the species, and the pretty ephemeron languish into non-existence just as it flutters through its genial hour of love, and grace, and enjoyment; while the banyan, and the chestnut, the tortoise, the vulture, and the carp, formed of

the same primary material elements, and subsisting upon the very same resources of nutrition and supply, outlast them so indefinitely?

Death from old age, from natural decay—usually spoken of as death without disease—is most improperly termed by writers an euthanasia. Alas! how far otherwise is the truth! Old age itself is, with the rarest exceptions, exceptions which I have never had the good fortune to meet with anywhere—old age itself is a protracted and terrible disease.

During its whole progress, Death is making gradual encroachments upon the domain of life. Function after function undergoes impairment, and is less and less perfectly carried on, while organ after organ suffers atrophy and other changes, unfitting it for the performance of offices to which it was originally designed. I will not go over the gloomy detail of the observed modifications occurring in every part of the frame, now a noble ruin, majestic even in decay. The lungs admit and vivify less blood; the heart often diminishes in size and always acts more slowly, and the arteries frequently ossify; nutrition is impeded and assimilation deteriorated; senile marasmus follows, “and the seventh age falls into the lean and slippered pantaloons;” and, last and worst of all, the brain and indeed the whole nervous tissue shrink in size and weight, undergoing at the same time more or less change of structure and composition. As the skull cannot contract on its contents, the shrinking of the brain occasions a great increase of the fluid within the subarachnoid space. Communication with the outer world, now about to be cut off entirely, becomes limited and less intimate. The eyes grow dim; the ear loses its aptitude for harmony, and soon ceases to appreciate sound; odors yield no fragrance; flavors affect not the indifferent palate; and even the touch appreciates only harsh and coarse impressions. The locomotive power is lost; the capillaries refuse to circulate the dark, thick blood; the extremities retain no longer their vital warmth; the breathing slow and oppressed, more and more difficult, at last terminates forever with a deep expiration. This tedious process is rarely accomplished in the manner indicated without interruption; it is usually, nay, as far as my experience has gone, always brought to an abrupt close by the supervention of some positive malady. In our climate, this is, in the larger proportion, an affection of the respiratory apparatus, bronchitis, or pulmonitis. It will, of course, vary with the original or constitutional predisposition of the individual, and somewhat in relation to locality and season. Many aged persons die of apoplexy and its kindred cerebral maladies, not a few of

diarrhœa; a winter epidemic of influenza is apt to be fatal to them in large numbers everywhere.

When we regard death pathologically, that is, as the result of violence and destructive disease, it is evident that the phenomena presented will vary relatively to the contingencies effective in producing it. It is obviously out of place here to recount them, forming as they do a vast collection of instructive facts, the basis indeed of an almost separate science, Morbid Anatomy.

There are many of the phenomena of death, however, that are common to all forms and modes of death, or are rarely wanting; these are highly interesting objects of study in themselves, and assume a still greater importance when we consider them in the light of signs or tokens of the extinction of life. It seems strange that it has been found difficult to agree upon any such signs short of molecular change or putrefactive decomposition, that shall be pronounced absolutely certain, and calculated entirely to relieve us from the horrible chance of premature interment of a body yet living. The flaccidity of the cornea is dwelt on by some; others trust rather to the *rigor mortis*, the rigid stiffness of the limbs and trunk supervening upon the cold relaxation which attends generally the last moments. This rigidity is not understood or explained satisfactorily. It is possible that, as Matteucci has proved, the changes in all the tissues, chiefly chemical or chemico-vital, are the source from whence is generated the “nervous force” during life; so, after death, the similar changes, now purely chemical, may, for a brief period, continue to generate the same or a similar force, which is destined to expend itself simply upon the muscular fibres in disposing them to contract. There is a vague analogy here with the effect of galvanism upon bodies recently dead, which derives some little force from the fact that the bodies least disposed to respond to the stimulus of galvanism are those which form the exceptions to the almost universal exhibition of rigidity—those, namely, which have been killed by lightning, and by blows on the pit of the stomach. Some poisons, too, leave the corpse quite flaccid and flexible.

The researches of Dr. Bennett Dowler, of New Orleans, have presented us with results profoundly impressive, startling, and instructive. He has, with almost unequalled zeal, availed himself of opportunities of performing autopsy at a period following death of unprecedented promptness, that is,

within a few minutes after the last struggle, and employed them with an intelligent curiosity and to admirable purpose.

I have said that, in physiological death, the natural decay of advancing age, there is a gradual encroachment of death upon life; so here, in premature death from violent diseases, the contrasted analogy is offered of life maintaining its ground far amidst the destructive changes of death. Thus, in cholera asphyxia, the body, for an indefinite period after all other signs of life have ceased, is agitated by horrid spasms, and violently contorted. We learn from Dr. Dowler that it is not only in these frightful manifestations, and in the cold stiffness of the familiar *rigor mortis*, that we are to trace this tenacious muscular contraction as the last vital sign, but that in all, or almost all cases we shall find it lingering, not in the heart, anciently considered in its right ventricle the *ultimum moriens*, nor in any other internal fibres, but in the muscles of the limbs, the biceps most obstinately. This muscle will contract, even after the arm with the scapula has been torn from the trunk, upon receiving a sharp blow, so as to raise the forearm from the table, to a right angle with the upper arm.

We also learn from him the curious fact that the generation of animal heat, which physiologists have chosen to point out as a function most purely vital, does not cease upon the supervention of obvious or apparent death. There is, he tells us, a steady development for some time of what he terms "post-mortem caloricity," by which the heat is carried not only above the natural or normal standard, but to a height rarely equalled in the most sthenic or inflammatory forms of disease. He has seen it reach 113° of Fahr., higher than Hunter ever met with it, in his experiments made for the purpose of exciting it; higher than it has been noted even in scarlatina, 112°, I think, being the ultimate limit observed in that disease of pungent external heat; and far beyond the natural heat of the central parts of the healthy body, which is 97° or 98°. Nor is it near the centre, or at the trunk, that the post-mortem warmth is greatest, but, for some unknown reason, at the inner part of the thigh, about the lower margin of its upper third. I scarcely know any fact in nature more incomprehensible or inexplicable than this. We were surprised when it was first told us that, in the Asiatic pestilence, the body of the livid victim was often colder before than after death; but this, I think, is easily understood. The profluvia of cholera, and its profound capillary stagnation, concur in carrying off all the heat generated, and in preventing or impeding the development of animal heat. No vital actions, no changes

necessary to the production of caloric, can proceed without the minute circulation which has been checked by the asphyxiated condition of the subject, while the fluids leave the body through every outlet, and evaporation chills the whole exposed and relaxed surface. Yet the lingering influence of a scarcely perceptible vitality prevents the purely chemical changes of putrefactive decomposition, which commence instantly upon the extinction of this feeble resistance, and caloric is evolved by the processes of ordinary delay.

In the admirable liturgy of the churches of England and of Rome, there is a fervent prayer for protection against “battle, murder, and sudden death.” From death un contemplated, unarranged, unprepared for, may Heaven in mercy deliver us! But if ever ready, as we should be for the inevitable event, the most kindly mode of infliction must surely be that which is most prompt and brief. To die unconsciously, as in sleep, or by apoplexy, or lightning, or overwhelming violence, as in the catastrophe of the Princeton, this is the true Euthanasia. “Cæsar,” says Suetonius, “finem vitæ commodissimum, repentinum inopinatumque pretulerat.” Montaigne, who quotes this, renders it, “La moins préméditée et la plus courte.” “Mortes repentinae,” reasons Pliny, “hoc est summa vitæ felicitas.” “Emori nolo,” exclaims Cicero, “sed me esse mortuum nihil estimo.”

Sufferers by various modes of execution were often, in the good old times of our merciless ancestors, denied as long as possible the privilege of dying, and the Indians of our continent utter a fiendish howl of disappointment when a victim thus prematurely escapes from their ingenious malignity. The *coup de grace* was a boon unspeakably desired by the poor wretch broken on the wheel, or stretched upon the accursed cross, and forced to linger on with mangled and bleeding limbs, amidst all the cruel torments of thirst and fever, through hours and even days that must have seemed interminable.

The progress of civilization, and a more enlightened humanity have put an end to all these atrocities, and substituted the gallows, the garrote, and the guillotine, which inflict deaths so sudden that many have questioned whether they necessarily imply any consciousness of physical suffering. These are, however, by no means the most instantaneous modes of putting an end to life and its manifestations. In the hanged, as in the drowned, and otherwise suffocated, there is a period of uncertainty, during which the

subject is, as we know, recoverable; we dare not pronounce him insensible. He who has seen an ox “pithed” in the slaughter-house, or a game-cock in all the flush and excitement of battle “gaffed” in the occiput or back of the neck, will contrast the immediate stiffness and relaxation of the flaccid body with the prolonged and convulsive struggles of the decapitated bird, with a sort of curious anxiety to know how long and in what degree sensibility may linger in the head and in the trunk when severed by the sharp axe. The history of the guillotine offers many incidents calculated to throw a doubt on the subject, and the inquiries of Seguret and Sue seem to prove the existence of post-mortem passion and emotion.

Among the promptest modes of extinguishing life is the electric fluid. A flash of lightning will destroy the coagulability of the blood, as well as the contractility of the muscular fibre; the dead body remaining flexible. A blow on the epigastrium kills instantly with the same results. Soldiers fall sometimes in battle without a wound; the impulse of a cannon-ball passing near the pit of the stomach is here supposed to be the cause of death. The effect in these two last instances is ascribed by some to “a shock given to the semilunar ganglion, and the communication of the impression to the heart;” but this is insufficient to account either for the quickness of the occurrence, or the peculiar changes impressed upon the solids and fluids. Others are of opinion that the whole set of respiratory nerves is paralyzed through the violent shock given to the phrenic, “thus shutting up,” as one writer expresses it, “the fountain of all the sympathetic actions of the system.” This hypothesis is liable also to the objections urged above; and we must acknowledge the suddenness and character of the results described to be as yet unexplained, and in the present state of our knowledge inexplicable.

On the field of battle, it has been observed that the countenances of those killed by gun-shot wounds are usually placid, while those who perish by the sword, bayonet, pike, or lance, offer visages distorted by pain, or by emotions of anger or impatience. Poisons differ much among themselves as to the amount and kind of suffering they occasion. We know of none which are absolutely free from the risk of inflicting severe distress. Prussic acid gives perhaps the briefest death which we have occasion to observe. I have seen it, as Taylor states, kill an animal, when applied to the tongue or the eye, almost before the hand which offered it could be removed. Yet in the case of Tawell, tried for the murder of Sarah Hart, by this means, there was

abundant testimony that many, on taking it, had time to utter a loud and peculiar scream of anguish: and in a successful attempt at suicide made by a physician of New York city, we have a history of appalling suffering and violent convulsion. So I have seen in suicide with opium, which generally gives an easy and soporose death resembling that of apoplexy, one or two instances in which there were very great and long-protracted pain and sickness.

Medical writers have agreed, very generally, that “the death-struggle,” “the agony of death,” as it has long been termed is not what it appears, a stage of suffering. I am not satisfied—I say it reluctantly—I am not satisfied with these consolatory views, so ingeniously and plausibly advocated by Wilson Philip, and Symonds, Hufeland and Hoffman. I would they were true! But all the symptoms look like tokens or expressions of distress; we may hope that they are not always such in reality: but how can this be proved? Those who, having seemed to die, recovered afterward and declared that they had undergone no pain, do not convince me of the fact any more than the somnambulist, who upon awaking, assures me that he has not dreamed at all, after a whole night of action, and connected thought and effected purpose. His memory retains no traces of the questionable past; like that of the epileptic, who forgets the whole train of events, and is astonished after a horrible fit to find his tongue bitten, and his face and limbs bruised and swollen.

Nay, some have proceeded to the paradoxical extreme of suggesting that certain modes of death are attended with pleasurable sensations, as for instance, hanging; and a late reviewer, who regards this sombre topic with a most cheerful eye, gives us instances which he considers in point. I have seen many men hung, forty at least, a strangely large number. In all, there were evidences of suffering, as far as could be judged by external appearances. It once happened that a certain set were slowly executed, owing to a maladroit arrangement of the scaffold upon which they stood, which gave way only at one end. The struggles of such as were half supported were dreadful, and those of them who could speak earnestly begged that their agonies should be put an end to.

In former, nay, even in recent times, we are told that pirates and robbers have resorted to half-hanging, to extort confession as to hidden treasure. Is

it possible that they can have so much mistaken the means they employ as thus to use pleasurable appliances for the purposes of torture?

The mistake of most reasoners on the subject, Winslow and Hufeland more especially, consists in this, that they fix their attention exclusively upon the final moments of dissolution. But the act of dying may be in disease, as we know it to be in many modes of violence, impalement, for example, or crucifixion, very variously protracted and progressive. "Insensibly as we enter life," says Hufeland, "equally insensibly do we leave it. Man can have no sensation of dying." Here the insensibility of *death completed*, that is, of *the dead body*, is strangely predicated of the moribund while still living. This transitive condition, to use the graphic language of the Southern writer whom we have already more than once quoted, is "a terra incognita, where vitality, extinguished in some tissues, smouldering in others, and disappearing gradually from all, resembles the region of a volcano, whose eruptions subsiding, leave the surface covered with cinders and ashes, concealing the rents and lesions which have on all sides scarred and disfigured the face of nature."

Besides this, we have no right to assume, as Hufeland has here done, the insensibility of the child at birth. It is subject to disease before birth; as soon as it draws a breath, it utters loud cries and sobs. To pronounce all its actions "mechanical, instinctive, necessary, automatic," in fact, is a very easy solution of the question; but I think neither rational nor conclusive. If you prick it or burn it, you regard its cries as proving sensibility to pain; but on the application of air to its delicate and hitherto protected skin, and the distension of its hitherto quiet lung, the same cry, you say, is mechanical and inexpressive. So Leibnitz explained, to his own satisfaction, the struggles and moans of the lower animals as automatic, being embarrassed with metaphysical and moral difficulties on the score of their intelligence and liability to suffering. But no one now espouses his theory, and we must accept, whether we can explain them or not, the facts that the lower animals are liable to pain during their entire existence, and that the heritage of their master is, from and during birth to the last moment of languishing vitality, a sad legacy of wo and suffering.

Unhappily we may appeal, in this discussion, directly to the evidence of our senses, to universal experience and observation. Who can doubt the tortures inflicted in tetanus? to alleviate which, indeed, I have more than

once been solicited for poison. Does not every one know the grievous inflictions of cancer, lasting through months and years, and continuing, as I have myself seen, within a short hour of the absolute extinction of life, in spite of every effort to relieve it? The most painful of deaths apparently is that which closes the frightful tragedy of hydrophobia, and patients, to hurry it, often ask most urgently for any means of prompt destruction. But these more intense and acute pangs are not the only form of intolerable agony. Unquenchable thirst, a dreadfully progressive suffocation, confusion of the senses and of thought—these are inflictions that nature shudderingly recoils from, and these, or their manifestations, are scarcely ever wanting on the death-bed.

If any one should ask why I thus endeavor to prove what it is revolting to us all to believe or admit, I answer—first, that truth is always desirable to be known both for its own sake and because it is ever pregnant with ultimate benefit and utility. More than one moribund has expressed to me his surprise and horror—shall I say disappointment too? at finding the dark valley of the shadow of death so rough and gloomy and full of terrors. Is it not better that we should be as thoroughly and adequately prepared for the stern reality as may be, and that we should summon up all the patience and fortitude requisite to bear us through? When the last moment is actually at hand, we can safely assure our friends that they will soon reach a state of rest and unconsciousness, and that meanwhile, as they die more and more, they will less and less feel the pain of dying. Secondly, by appreciating properly the nature and amount of the pangs of death, we shall be led to a due estimate of the demand for their relief or palliation, and of the obligation incumbent on us to institute every proper effort for that purpose with zeal and assiduity. He who believes with Hufeland, that the moribund is insensible, is likely to do little to solace or comfort him.

There are doubtless instances of death entirely easy. “I wish,” said Doctor Black, “I could hold a pen; I would write how pleasant a thing it is to die.” Dr. George Fordyce desired his youngest daughter to read to him. When she had been reading some time, he called to her—“Stop; go out of the room; I am going to die.” She left him, and an attendant, entering immediately, found him dead. “Is it possible I am dying?” exclaimed a lady patient of mine; “I feel as if going into a sweet sleep.” “I am drowsy, had I better indulge myself?” asked Capt. G. On my giving him an affirmative answer, he turned, and sank into a slumber from which he awoke no more.

It is indeed pleasant to know that examples occur of this unconscious and painless dissolution; but I fear they are comparatively rare exceptions to a natural rule; and I regard it as the duty of the medical profession to add to the number by the judicious employment of every means in our power.

And this leads me to a brief consideration of the question so often pressed upon us in one shape or another by the friends of our patients, and sometimes by our patients themselves: If the tendency of any medicinal or palliative agent be to shorten life, while it assuages pain, has the physician a right to resort to it? Even in the latter stages of some inflammatory affections, loss of blood, especially if carried to fainting, will arrest the sharp pangs, but the patient will probably die somewhat sooner: shall we bleed him? Large doses of opium will tranquilize him, or render him insensible; but he will probably sink somewhat earlier into the stupor of death. Shall we administer it, or shall we let him linger on in pain, merely that he may linger? Chloroform, ether, and other anæsthetics in full dose inspired render us insensible to all forms of anguish, and make death as easy, to use the phrase of Hufeland, as being born! Shall we allow our agonized moribund to inhale them? Used in less amount, a degree of relief and palliation is procured, but at the risk of exhausting or prostrating more promptly the failing energies of the system. Shall we avail ourselves of their anæsthetic influences, or are they forbidden us, either absolutely or partially?

These are by some moralists considered very delicate questions in ethics. Desgenettes has been highly applauded for the reply he made to Bonaparte's suggestion, that it would be better for the miserable sick left by the French army at Jaffa to be drugged with opium: "It is my business to save life, not to destroy it." But, in approving the physician, we must not harshly condemn the commanding officer. When we reflect on the condition of the men whom the fortune of war compelled him to abandon, and the certainty of a horrible death to each victim from wasting disease or Turkish cruelty, a rational philanthropist might well desire to smooth their passage to the grave.

During the employment of torture for the purposes of tyranny in Church and State, a physician or surgeon was at hand, whose whole duty it was to suspend the process whenever it became probable that nature would yield under its pressure, and the victim would escape through the opening, glad

gates of death. It was then esteemed an act of mercy to give, or permit to be given by the executioner, a fatal blow, hence called emphatically and justly the *coup de grace*. In the terrible history of the invasion of Russia by Napoleon, we shudder to read that, after their expulsion from Moscow, the French soldiers, in repassing the fields of battles fought days and even weeks previously, found many of their comrades, there wounded and left, still dragging out a wretched and hopeless existence, amidst the corpses of those more fortunately slain outright, and perishing miserably and slowly of cold and hunger, and festering and gangrenous wounds. One need not surely offer a single argument to prove, all must feel and admit that the kindest office of humanity, under the circumstances, would have been to put an end to this indescribable mass of protracted wretchedness by the promptest means that could be used to extinguish so horrible a life.

A common case presents itself from time to time to every practitioner, in which all hope is avowedly extinct, and yet, in consonance with uniform custom, stimulants are assiduously prescribed to prolong existence in the midst of convulsive and delirious throes, not to be looked on without dismay. In some such contingencies, where the ultimate result was palpably certain, I have seen them at last abandoned as useless and worse, in order that nature, irritated and excited, lashed into factitious and transitory energy, might sink into repose; and have felt a melancholy satisfaction in witnessing the tranquillity, so soft and gentle, that soon ensued; the stormy agitation subsiding into a calm and peaceful decay.

Responsibility of the kind I am contemplating, often indeed more obvious and definite, presses upon the obstetrician, and is met unreservedly. In embryulcia, one life is sacrificed in the hope and with the reasonable prospect of saving another more valued: this is done too sometimes where there is an alternative presented, the Cæsarian section, which destroys neither of absolute necessity, but subjects the better life to very great risk.

Patients themselves frequently prefer the prompt and more lenient motives of death which our science refuses to inflict. In summing up the motives of suicide in one hundred and thirty-one cases, whose causes are supposed to be known, Prevost tells us that thirty-four, more than one-fourth of the whole number, committed self-murder to rid themselves of the oppressive burden of physical disease. Winslow gives us an analysis of thirteen hundred and thirty-three suicides from Pinel, Esquirol, Burrows,

and others. Of these, there were but two hundred and fifty that did not present obvious appearances of bodily ailment; and although it is not stated how many of them sought death voluntarily as a refuge from physical suffering, it would be unreasonable to doubt that this was the purpose with a very large proportion. I am far from advocating the propriety of yielding to this desire or gratifying the propensity; nay, I would, on the other hand, earnestly endeavor to remove or repress it, as is now the admitted rule.

I hold fully, with Pascal, that, according to the principles of Christianity, which in this entirely oppose the false notions of paganism, a man “does not possess power over his own life.” I acknowledge and maintain that the obligation to perform unceasingly, and to the last and utmost of our ability, all the duties which appertain to our condition, renders absolutely incompatible the right supposed by some to belong to every one to dispose of himself at his own will. But I would present the question for the serious consideration of the profession, whether there does not, now and then, though very rarely, occur an exceptional case, in which they might, upon full and frank consultation, be justified before God and man in relieving, by the efficient use of anæsthetics, at whatever risk, the ineffable and incurable anguish of a fellow-creature laboring under disease of organic destructiveness, or inevitably mortal; such, for example, as we are doomed to witness in hydrophobia, and even more clearly in some instances of cancerous and fungoid degeneration, and in the sphacelation of organs necessary to life, or parts so connected as to be indispensable, yet not allowing either of removal or restoration?

I have left myself scarcely time for a few remarks upon death, psychologically considered. How is the mind affected by the anticipation and actual approach of death? The answer will obviously depend upon and be influenced by a great diversity of contingencies, moral and physical. The love of life is an instinct implanted in us for wise purposes; so is the fear of pain. Apart from this, I do not believe, as many teach, that there is any instinctive fear of death. Education, which instills into us, when young, the fear of spectres; religious doctrines, which awake in us the terror of “something after death;” conscience, which, when instructed, “makes cowards of us all;” associations of a revolting character—

“The knell, the shroud, the mattock, and the grave—
The deep, damp vault, the darkness, and the worm;”

these startle and appal us.

“Man makes a death that nature never made,
Then on the point of his own fancy falls.
And feels a thousand deaths in fearing one.”

We sympathize duly with every instinct of nature; we all feel the love of life, and accord readily in the warmest expression of it; but we recoil from every strong exhibition of the fear of death as unreasonable and dastardly.

When Claudio reminds his noble sister that “death is a fearful thing,” she replies well—“and shamed life a hateful!” But when he rejoins—

“The weariest and most loathed worldly life
That age, ache, penury, and imprisonment
Can lay on nature, is a paradise
To what we fear of death;”

we anticipate her in bidding him “Perish! for a faithless coward, and a beast.”

In the same contemptible and shrinking spirit, Mæcenās, in a passage from Seneca—

“Vita, dum superest bene est
Hunc mihi vel acuta
Si sedeam cruce, sustine.”

Among hypochondriacs, we often meet with the seemingly paradoxical combination of an intense dread of death unassociated with any perceptible attachment to life; a morbid and most pitiable condition, which urges some to repeated, but ineffectual attempts at suicide. I know not a state of mind more utterly wretched.

Both these sentiments, whether instinctive or educational, are, we should observe, very strikingly influenced by circumstances. Occasionally,

they seem to be obliterated, or nearly so; not only in individuals, but in large masses, nay, in whole communities; as during great social convulsions; through the reign of a devastating pestilence; under the shock of repeated disorders of the elements; as in earthquakes, volcanic eruptions, storms, and inundations; in protracted sieges, and in shipwrecks. The Reign of Terror produced this state of feeling in France, and thousands went to the scaffold indifferently, or with a jest. Boccaccio and others have pictured the same state of undejected despair, if such a phrase be permitted, in which men succumb to fate, and say, with a sort of cheerful hardihood, "Let us eat and drink, for to-morrow we die," losing thus all dread even of the plague. Pliny the younger, in his flight from Mycena, under the fatal shower of ashes from Vesuvius, heard, amidst the darkness, the prayers of wretches "who desired to die, that they might be released from the expectation of death." And Byron, in his magnificent description of the shipwreck, in *Don Juan*, tells us—

"Some leaped overboard with dreadful yell,
As eager to anticipate the grave."

Shakspeare's Constance, in her grief, draws well the character of death, as—

"Misery's love,
The hate and terror of prosperity."

A woman who has lost her honor; a soldier convicted of poltroonery; a patriot who sees his country enslaved; a miser robbed; a speculator bankrupt; a poet unappreciated, or harshly criticized, as in poor Keats's case —

"Strange that the soul, that very fiery particle,
Should let itself be snuffed out by an article"—

all these seem to loathe life, or, at any rate, lose much of their fondness for it. It is curious to remark, too, how little, as in the last-mentioned instance, will suffice to extinguish, abruptly or gradually, this usually tenacious instinct. A man in York cut his throat, because, as he left in writing, "he was tired of buttoning and unbuttoning." The occurrence of a loathsome but

very curable disease in a patient of mine, just when he was about to be married, induced him to plunge among the breakers off Sullivan's Island, on one of the coldest days of our coldest winter. A Pole in New York wrote some verses just before the act of self-destruction, implying that he was so weary of uncertainty as to the truth of the various theories of the present and future life, that he "had set out on a journey to the other world to find out what he ought to believe in this."

We are always interested in observing the conduct of brave men, who exhibit a strongly-marked love of life, with little or no fear of death. Danton, Camille Desmoulins, and Herault Sechelles, who commenced their revolutionary career as reckless as they seemed ferocious, having attained elevation, acquired wealth, and married beautiful women, became merciful and prudent. Hunted in their turn by the bloodhounds of the time, they made the most earnest endeavors to escape, but displayed a noble courage in meeting their fate when inevitable.

It is a trite but true remark, that men will boldly face one mode of death, and shrink timidly from another. A soldier, whom discipline will lead without flinching "up to the imminent deadly breach," will cower before a sea-storm. Women, even in the act of suicide, dreading explosion and blood, prefer poison and drowning. Men very often choose firearms and cutting instruments, which habit has made familiar.

If the nervous or sensorial system escape lesion during the ravages of disease, the conduct of the last hour will be apt to be consistent with the previous character of the individual. Hobbes spoke gravely of death as "a leap in the dark." Hume talked lightly of Charon and his ferry-boat. Voltaire made verses with his usual levity—

"Adieu, mes amis! adieu, la compagnie!
Dans deux heures d'ici, mon âme aneantie
Sera ce que je fus deux heures avant ma vie."

Keats murmured, poetically, "I feel the flowers growing on my grave." Dr. Armstrong died prescribing for a patient; Lord Tenterden, uttering the words "Gentlemen of the Jury, you will find;" General Lord Hill, exclaiming "Horrid war!" Dr. Adams, of the Edinburgh High School, "It grows dark; the boys may dismiss!" The last words of La Place were, "Ce

que nous connaissons est peu de chose; ce que nous ignorons, est immense!”

The history of suicide, of death in battle, and of executions, is full of such instances of consistent conduct and character. Madame Roland desired to have pen and paper accorded to her, at the “Place de la Guillotine,” that she might, as she phrased it, “set down the thoughts that were rising in her mind.” Sir Thomas More jested pleasantly as he mounted the scaffold. Thistlewood, the conspirator, a thoughtful man, remarked to one of his fellow-sufferers that, “in five minutes more, they would be in possession of the great secret.” When Madame de Joulanges and her sisters were executed, they chanted together the Veni Creator on their way from the prison to the fatal spot. Head after head fell under the axe, but the celestial strain was prolonged until the very last voice was hushed in the sudden silence of death.

The delirium of the moribund exhibits itself in diversified and often contrasted manifestations. Symonds looks upon it as closely analogous to the condition of the mind in dreaming. A popular and ancient error deserves mention, only to be corrected; that the mind, at the near approach of dissolution, becomes unusually clear, vigorous, and active.

“The soul’s dark cottage, battered and decayed,
Lets in new light through chinks which Time has made.”

Excitement of the uncontrolled imagination, as in dreams, and other modes of delirium, is frequently mistaken for general mental energy; some suggested association arouses trains of thought that have made deep traces in the memory; scenes familiar in early childhood are vividly described, and incidents long past recalled with striking minuteness. All physicians know the difference familiarly presented in diseases, some of which specifically occasion despondency and dejection of spirits, while others render indifferent or even give rise to exhilaration. The former constitute a class unhappily numerous. Cholera, which at a distance excites terrors almost insane, is usually attended with a careless stolidity, when it has laid its icy hand upon its victim. The cheerful hopefulness of the consumptive patient is proverbial; and in many instances of yellow fever, we find the moribund patient confident of recovery. These are the exceptions, however; and we cannot too often repeat that the religious prejudice which argues

unfavorably of the previous conduct and present character from the closing scene of an agitating and painful illness, or from the last words, uttered amidst bodily anguish and intellectual confusion, is cruel and unreasonable, and ought to be loudly denounced. We can well enough understand why an English Elizabeth, Virgin Queen, as history labels her, could not lie still for a moment, agitated as she must have been by a storm of remorseful recollections, nor restrain her shrieks of horror long enough even to listen to a prayer. But how often does it happen that “the wicked has no bands in his death;” and the awful example of deep despair in the Stainless One, who cried out in his agony that he was forsaken of God, should serve to deter us from the daily repeated and shocking rashness of the decisions against which I am now appealing.

Some minds have seemed firm enough, it is true, to maintain triumphantly this last terrible struggle, and resist in a measure at least the depressing influence of disease. Such instances cannot, however, be numerous; and we should be prepared rather to sympathize with and make all due allowance for human weakness. I have seen such moments of yielding as it was deeply painful to witness, at the bedside of many of the best of men, whose whole lives had been a course of consistent goodness and piety, when warned of impending death, and called on to make those preparations which custom has unfortunately led us to look upon as gloomy landmarks at the entrance of the dark valley.

One of these, from youth to age a most esteemed and valued member of one of our most fervent religious bodies, with sobs and tears, and loud wailing, threw the pen and paper from him, exclaiming, over and over again, “I will not—I cannot—I must not die.” Like the eccentric Salvini, of whom Spence tells us that he died, crying out in a great passion, “*Je ne veux pas mourir, absolument;*” and Lannes, the bravest of Bonaparte’s marshals, when mortally wounded, struggled angrily and fearfully, shouting with his last breath, “Save me, Napoleon!”

But I recoil from farther discussion of a topic so full of awe and solemn interest, and conclude this prosaic “Thanatopsis” with the Miltonian strain of Bryant, who terminates his noble poem, thus styled, in language worthy of the best age and brightest laurel of our tongue:—

“So live, that, when thy summons comes to join
The innumerable caravan, that moves
To the pale realms of shade, where each shall take
His chamber in the silent halls of death,
Thou go not like the quarry slave at night,
Scourged to his dungeon; but, sustained and soothed
By an unfaltering trust, approach thy grave,
Like one who wraps the drapery of his couch
About him, and lies down to pleasant dreams.”

[7] From *Essays on Life, Sleep, Pain, etc.*, just published by
Blanchard & Lea, Philadelphia.

TO A FRIEND IN THE SPIRIT LAND.

BY L——, OF EASTFORD HERMITAGE.

Time passes wearily with me
Since thou hast joined the spirit throng;
I miss thy laugh that rang with glee—
The music of thy voice and song;
And though each day I meet bright eyes,
That look with tenderness on mine,
And cheeks that with the coral vies,
And tones that seem almost divine,
Still they can wake no gentle chord
To vibrate deeply in the heart;
For each bright glance and gentle word,
Must fail to charm while we're apart.
Then speed thee, Time, upon thy way.
Swift on thy fleeting pinions soar;
And hasten on that blissful day,
When we shall meet to part no more.

THE PHILADELPHIA ART-UNION.

WHILE other Art-Unions throughout the country are falling into disrepute, that of Philadelphia seems to be rising in favor.

This cannot be owing to the absence of discouragements. Like all similar institutions, it suffered severely from the pressure of the money-market during the last six months of the year 1851. It found, in common with others, that money was not forthcoming for the promotion of art, when it commanded from one to two per cent. a month on 'change—that men could not, or would not buy pictures, when they were obliged to strain every nerve to save themselves from bankruptcy.

Besides the serious loss of revenue arising from this source, the Philadelphia Art-Union lost by fire its two most valuable steel plates, just at the moment when it was about to reap from them a golden harvest. These splendid plates, "Mercy's Dream," and "Christiana and her Family," which had cost the society several thousand dollars, and which were unquestionably among the most attractive prints ever issued in this country, were entirely destroyed in the conflagration of Hart's buildings in this city.

It is not, therefore, mere good luck, nor the absence of discouraging circumstances, that has given the Philadelphia Art-Union its present condition of success. This success is based on the principles of its organization, which differ materially from those of other kindred associations.

In the first place, though located nominally in Philadelphia, and having its Board of Managers here, it is really an Art-Union for every place where it finds subscribers. Its prize-holders may select their prizes from any gallery in the United States, or may order a picture from any artist of their own selection. This puts it entirely out of the power of the Board of Managers, even if they had the inclination, to exercise favoritism toward any particular clique of artists, or to practice any kind of fraud or trickery either in the purchase or the valuation of pictures.

Secondly, and for the very reason just assigned, the Philadelphia Art-Union enjoys in a high degree the confidence of the artists themselves. They know by experience that its free gallery is the means of selling a large

number of pictures, besides those which are ordered in consequence of the annual distributions. They know also that in order to sell their pictures, or to obtain orders for painting, they have not to cater to the fancies or caprices of a small clique of managers, but to appeal to the public at large, depending solely upon the general principles of their art. In other Art-Unions, the managers themselves select and buy the pictures that are to be distributed as prizes. Hence they are almost invariably regarded with jealousy by every artist who does not receive from them an order—that is, by at least nine-tenths of the whole body. The artist sees, however, that the Philadelphia Art-Union does not admit of any favoritism of this kind. Its very plan renders the thing impossible. If any particular artist finds that among the prize-holders, no order or purchase has come to his studio, he may see in it evidence perhaps that he has not pleased the public taste, but no evidence of partiality in the Board of Managers. So far as their operations are concerned, they give to all competitors “a fair field and no favor”—and this is all that the artist asks.

That this view of the subject is the true one, and that the artists themselves so view it, has been conclusively shown by their action on the occasion of the losses of the institution by the late fire. The artists of Philadelphia, on hearing of this disaster, called a meeting, of their own accord, and passed a series of resolutions, approving in the most unqualified manner both the plan and the management of the institution, and agreeing severally to paint a picture of the value of at least fifty dollars, and to present the same to the Art-Union. Several other gentlemen, amateurs and patrons of art, stimulated by this generosity, joined them in the enterprise, and already about fifty valuable prizes have been thus guaranteed.

It is obvious that they have entered upon this matter in a generous spirit, with that animation and hearty good-will which spring naturally from the circumstances. Every one at all conversant with art or artists, knows how much the excellence of a picture, its very life and soul—all, in fact, that distinguishes it as a work of art, or raises it above a mere piece of mechanism—depends upon the feeling of the artist while creating it. The noble enthusiasm with which the artists have entered upon the present arrangement, is the best guaranty that the Art-Union will have from each painter one of the happiest efforts of his genius—something done under the direct influence of inspiration. Indeed, we happen to know that several of our most eminent artists intend to lay themselves out on this occasion—

resolved to show what artists are, and what they can do, for an institution which commands their confidence.

Mr. Rothermel has signified his intention to paint a picture worth \$500; Mr. Paul Weber a landscape worth \$500; Mr. A. Woodside a picture worth \$500; Mr. Scheussele a Scriptural subject worth \$250; Mr. Sully a picture worth \$100; Mr. Joshua Shaw a landscape worth \$75; and several others have promised pictures at prices varying from \$50 (the minimum) to \$75, \$100, \$150, etc. The names of the other artists and amateurs who have offered original pictures of this description, are Rembrandt Peale, James Hamilton, Isaac L. Williams, Wm. A. K. Martin, Wm. F. Jones, Wm. E. Winner, Leo. Elliot, F. de Bourg Richards, George C. White, John Wiser, J. K. Trego, George W. Holmes, Geo. W. Conarroe, John Sartain, Alex. Lawrie, Jr., Samuel Sartain, G. R. Bonfield, S. B. Waugh, W. T. Richards, Aaron Stein, R. A. Clarke, W. Sanford Mason, J. R. Lambdin, G. C. Lambdin, J. Wilson, May Stevenson, I. W. Moore, T. H. Glessing, W. H. Wilcox, Thomas A. Andrews, George F. Meeser, James S. Earle, Edward F. Dennison, George W. Dewey, James L. Claghorn. Others will, no doubt, be added to the list.

About fifty splendid original works of art, ranging in value from \$50 to \$500 each, have thus been placed absolutely at the disposal of the Board of Managers, and have been by them specifically pledged to the subscribers at the next distribution.

Besides this, Mr. Rothermel has just finished for the Art-Union a great historical painting of Patrick Henry making his celebrated revolutionary speech before the Virginia House of Burgesses. This picture is undoubtedly Mr. Rothermel's master-piece. He has thrown into it all the fire of his genius, all the ardor of his patriotism, all the accumulations of his knowledge and skill as one of the practiced and leading historical painters of the day.

The historical scene which Mr. Rothermel has commemorated in this painting is the passage of Patrick Henry's resolutions on the Stamp Act in the House of Burgesses, in the year 1765. The passage of these resolutions was the first bold note of defiance that was uttered on this side of the Atlantic. The manner in which they were carried through the House is thus described by his biographer:

“It was, indeed, the measure which raised him [Mr. Henry] to the zenith of his glory. He had never before had a subject which entirely matched his genius, and was capable of drawing out all the powers of his mind. It was remarked of him, throughout his life, that his talents never failed to rise with the occasion, and in proportion with the resistance which he had to encounter. The nicety of the vote, on the last resolution, proves that this was not a time to hold in reserve any part of his forces. It was, indeed, an Alpine passage, under circumstances even more unpropitious than those of Hannibal; for he had not only to fight, hand to hand, the powerful party who were already in possession of the heights, but at the same instant to cheer and animate the timid band of followers, that were trembling, and fainting, and drawing back below him. It was an occasion that called upon him to put forth all his strength; and he did put it forth, in such a manner as man never did before. The cords of argument with which his adversaries frequently flattered themselves that they had bound him fast, became packthreads in his hands. He burst them with as much ease as the unshorn Samson did the bands of the Philistines. He seized the pillars of the temple, shook them terribly, and seemed to threaten his opponents with ruin. It was an incessant storm of lightning and thunder, which struck them aghast. The faint-hearted gathered courage from his countenance, and cowards became heroes while they gazed upon his exploits. It was in the midst of this magnificent debate, while he was descanting on the tyranny of the obnoxious act, that he exclaimed in a voice of thunder, and with the look of a god, ‘Cæsar had his Brutus—Charles the First his Cromwell—and George the Third—’ ‘Treason!’ cried the Speaker. ‘Treason! treason!’ echoed from every part of the house. It was one of those trying moments which is decisive of character. Henry faltered not for an instant; but rising to a loftier attitude, and fixing on the Speaker an eye of the most determined fire, he finished his sentence with the firmest emphasis—‘*may profit by their example. If this be treason—make the most of it!*’ ”

The exact moment of time which Mr. Rothermel has seized for his painting, is when the last words which we have quoted, (“*If this be treason—make the most of it!*”) are dying away upon the ear. The impassioned orator stands erect and self-possessed, his open hand aloft, as though a thunder-bolt had just passed from his fingers, and his eye were quietly awaiting the issue, in the conscious strength of a Jupiter Tonans.

Foremost in the foregoing is Richard Henry Lee. Lee sees, by a sort of prophetic intuition, the full import of this inspired oratory. His very face, under the magic of Mr. Rothermel's genius, is a long perspective of war, desolation, heroic deeds, and the thick-coming glories of ultimate civic and religious liberty.

Peyton Randolph, also in the foreground, is a most striking figure. So is Pendleton, so is Wythe, so is Speaker Robinson. Indeed, every inch of canvas tells its story. The spectator, who knew nothing of the scene or of its actors, would instantly and involuntarily become conscious that he was present at some great world-renowned action.

But in dwelling upon this fascinating topic, we have been unconsciously carried away from our main point. This great painting, which was executed by Mr. Rothermel for the Art-Union, at the price of one thousand dollars, but which, by its extraordinary excellence, has already acquired a market value far beyond that sum, *is to be drawn for among the other prizes at the next annual distribution.*

Every subscriber, moreover, secures for himself a copy of the engraving of this great picture, which the Managers have contracted for in a style of surpassing beauty. The picture itself, and the engraving of it, will form an era in the history of American art, as the subject itself did in the history of American Independence.

Besides this, all the money obtained from the subscribers, after paying for the engraving and other incidental expenses, is to be distributed, as heretofore, in money-prizes for the purchase of other works of art, at the option of the prize-holders.

Of the general beneficial influence of Art-Unions, at least of those conducted on the plan of that in Philadelphia, we have not the shadow of a doubt. We are happy, however, to quote a couple of passages quite in point. The first is from the *North British Review*.

"We believe that by a judicious distribution of engravings more may be done for the culture of the public taste than by any other means whatsoever. One thoroughly good engraving, fairly established and domiciled in a house, will do more for the inmates in this respect, than a hundred visits to a hundred galleries of pictures. It is a teacher of form, a lecturer on the beautiful, a continually present artistic influence. Nor do we see any reason why the same system should not be extended to casts, which might be taken

either after the antique, or some thoroughly good modern sculptor, such as Thorwarldsen. If such a system were carried out, matters might soon be brought to a state in which there should scarcely be any family which did not possess within its own walls the means of forming a taste, and that a genuine and a high one, both in painting and sculpture.”

The second passage is still more to the point. It is from our contemporary, the *Saturday Courier*.

“This Institution, [The Philadelphia Art-Union,] by its Free Gallery, and by its being a centre of action for artists and amateurs, is continually operating in a silent but most perceptible manner upon public taste. Every visit to the Free Gallery, every picture sold from its walls, every picture which it is the means of calling into existence, every print which it sends abroad into the community, is so much done toward the promotion of a popular taste for what is refined and elegant, and a consequent *distaste* for what is coarse, illiberal, and depraved. Every man in the community has an interest—not merely a moral, but a pecuniary interest—in the promotion of a popular taste for the Fine Arts. It is a part of the moral education of society, which, like all other good popular education, adds at once to the value and the safety of every man’s property.”

REVIEW OF NEW BOOKS.

Lectures on the History of France. By the Right Honorable Sir James Stephen, K. C. B., LL. D.; Professor of Modern History in the University of Cambridge. New York: Harper & Brother. 1 vol. 8vo.

Sir James Stephen is the writer of a number of essays in the Edinburgh Review, which, at the time they appeared, were mistaken by some readers as the productions of Macaulay. There were no real grounds for such a supposition, as Stephen's mind has hardly a single quality in common with Macaulay's, and the resemblance of his style to that of the historian of the Revolution is of a very superficial kind. Stephen, like Macaulay, is a writer of clear, clean, short, compact sentences, and deals largely in historical allusions, parallels and generalizations, but his diction has none of Macaulay's rapid movement, and his knowledge betrays little of Macaulay's "joyous memory." Stephen's mind is large and rich in acquired information, but it is deficient in passion, and its ordinary movement is languid, without any of Macaulay's intellectual fierceness, eagerness and swift sweep of illustration and generalization, and without any of Macaulay's bitterness, partizanship and scorn of amiable emotions. Stephen, indeed, if he be a mimic, mimics Mackintosh rather than Macaulay, and in charity, in intellectual conscientiousness, in courtesy to opponents, in all the benignities and amenities of scholarship, and also in a certain faint hold upon large acquisitions, he sometimes resembles without at all equaling him. The reader is continually impressed with his honesty and benevolence, with his continual clearness and occasional reach of view, and with his graceful mastery of the resources of expression; but to continuous vigor and vividness of conception and language he has no claim.

The present volume, a large octavo of some seven hundred pages, is evidently the work of much thought, research and time, though the author regrets that he was compelled to prepare his lectures without adequate preparation. They were delivered at the University of Cambridge, Stephen

occupying in that institution the professorship of history. He succeeded, we believe, William Smythe, a dry, hard and pedantic, though well read professor, whose lectures on history and on the French Revolution are the most uninteresting of useful books. Stephen is almost his equal in historical knowledge, and his superior in the graces of style and in the power of making his knowledge attractive. His work, indeed, though it can hardly give him the reputation of a great historian, is altogether the best view of French history in the English language, and is an invaluable guide to all who wish to gain a thorough acquaintance with France in her historical development. It gives the causes of the decline and fall of the various dynasties of her government, the character of her feudal system, the steps by which her government became an absolute monarchy, and the differences between the absolute monarchy of Henry IV. and Louis XIV. The lectures on the anti-feudal influence of the municipalities, of the Eastern Crusades, of the Albigensian Crusades—the masterly view of the position occupied by the Parliaments, the Privileged Orders and the States General, in relation to the Monarchy of France—and the expositions of the sources and management of the revenues of the nation, are all eminently lucid and valuable, and without any of the ostentatious brilliancy and paradoxical generalization which are apt to characterize the French historical school, are really modest contributions to the philosophy of history.

Sir James Stephen, in the course of his narration and dissertations, furnishes us with some elaborate delineations of character. That of Cardinal Richelieu is especially good. After saying of him that he was not so much minister as dictator, not so much the agent as the depositary of the royal power, he adds that, “a king in all things but the name, he reigned with that exemption from hereditary and domestic influences which has so often imparted to the Papal monarchs a kind of preterhuman energy, and has so often taught the world to deprecate the celibacy of the throne.” His character, as a despotic innovator, is also finely sketched. “Richelieu was the heir of the designs of Henry IV. and ancestor to those of Louis XIV. But they courted, and were sustained by, the applause and the attachment of their subjects. He passed his life in one unintermitted struggle with each, in turn, of the powerful bodies over which he ruled. By a long series of well-directed blows, he crushed forever the political and military strength of the Huguenots. By his strong hand the sovereign courts were confined to their

judicial duties, and their claims to participate in the government of the state were scattered to the winds. Trampling under foot all rules of judicial procedure and the clearest principles of justice, he brought to the scaffold one after another of the proudest nobles of France, by sentences dictated by himself to extraordinary judges of his own selection; thus teaching the doctrine of social equality by lessons too impressive to be misinterpreted or forgotten by any later generation. Both the privileges, in exchange for which the greater fiefs had exchanged their independence, and the franchises, the conquest of which the cities, in earlier times, had successfully contended, were alike swept away by this remorseless innovator. He exiled the mother, oppressed the wife, degraded the brother, banished the confessor, and put to death the kinsmen and favorites of the king, and compelled the king himself to be the instrument of these domestic severities. Though surrounded by enemies and by rivals, his power ended only with his life. Though beset by assassins, he died in the ordinary course of nature. Though he had waded to dominion through slaughter, cruelty and wrong, he passed to his great account amid the applause of the people and the benedictions of the church; and, as far as any human eye could see, in hope, in tranquillity and in peace. What, then, is the reason why so tumultuous a career reached at length so serene a close? The reason is, that amid all his conflicts Richelieu wisely and successfully maintained three powerful alliances. He cultivated the attachment of men of letters, the favor of the commons, and the sympathy of all French idolaters of the national glory.”

In some admirable lectures on the Power of the Pen in France, Stephen gives fine portraits of Rabelais, Montaigne, Calvin and Pascal. One remark about Calvin struck us as especially felicitous. Speaking of him as writing his great work in Geneva, he says—“The beautiful lake of that city, and the mountains which encircle it, lay before his eyes as he wrote; but they are said to have suggested to his fancy no images, and to have drawn from his pen not so much as one transient allusion. With his mental vision ever directed to that melancholy view of the state and prospects of our race which he had discovered in the Book of Life, it would, indeed, have been incongruous to have turned aside to depict any of those glorious aspects of the creative benignity which were spread around him in the Book of Nature.”

The most valuable chapters in the volume are perhaps those which relate to the character and government of Louis XIV. The absolute monarchy established by him is thoroughly analyzed. Among many curious illustrations of that tyranny and perfidy which this great master of king-craft systematized into a science, Stephen translates from his “Memoires Historiques” a series of maxims, addressed to the Dauphin, for his guidance whenever he should be called upon to wear the crown of France. Louis’s celebrated aphorism, “I am the state,” is in these precious morsels of absolutism expanded into a rule of conduct. We quote a few of them, as, to republican ears, they may have the effect of witticisms:

“It is the will of Heaven, who has given kings to man, that they should be revered as his vice-regents, he having reserved to himself alone the right to scrutinize their conduct.”

“It is the will of God that every subject should yield to his sovereign on implicit obedience.”

“The worst calamity which can befall any one of our rank is to be reduced to that subjection, in which the monarch is obliged to receive the law from his people.”

“It is the essential vice of the English monarchy that the king can make no extraordinary levies of men or money without the consent of the Parliament, nor convene the Parliament without impairing his own authority.”

“All property within our realm belongs to us in virtue of the same title. The funds actually deposited in our treasury, the funds in the hands of the revenue officers, *and the funds which we allow our people to employ in their various occupations*, are all *equally* subject to our control.”

“Be assured that kings are absolute lords, who may fitly and freely dispose of all property in the possession either of churchmen or of laymen, though they are bound always to employ it as faithful stewards.”

“Since the lives of his subjects belong to the prince, he is obliged to be solicitous for the preservation of them.”

“The first basis of all other reforms was the rendering my own will properly absolute.”

Some of his remarks on treaties, from the same volume, convey a fair impression of the king’s good faith to his allies. All mankind knows that he

was in conduct a measureless liar and trickster, and that no treaty could hold him; but it is not perhaps generally known that he generalized perfidy into a principle, and had no conception that in so doing he was violating any moral or religious duty. He thus solemnly instructs the dauphin—

“In dispensing with the exact observance of treaties, we do not violate them; for the language of such instruments is not to be understood literally. We must employ in our treaties a conventional phraseology, just as we use complimentary expressions in society. They are indispensable in our intercourse with one another, but they always mean much less than they say. The more unusual, circumspect and reiterated were the clauses by which the Spaniards excluded me from assisting Portugal, the more evident it is that the Spaniards did not believe that I should really withhold such assistance.”

The Podesta's Daughter, and other Miscellaneous Poems. By George H. Boker. Author of "Calaynos," "Anne Boleyn," "The Betrothal," etc. Philadelphia: A. Hart.

Mr. Boker is ever a welcome visitant among the regions of literature. The present volume is understood to be composed of those lighter efforts of his muse which have engaged his attention at intervals between the composition of his larger works, "Calaynos," "Anne Boleyn" and "The Betrothal." Some of these minor poems have already seen the light, under the auspices of our leading magazines; but by far the greater part of the book is fresh, and all of it bears evidence of that genuine inspiration, and that high finish, without which the author never appears before the reading public.

"The Podesta's Daughter" is an Italian tale or legend, thrown into that dramatic form for which Mr. Boker has shown such a remarkable gift. The story is very briefly this. A lowly maiden is loved and wooed by one far above her in life, a son of the neighboring duke. The father and brother of the maid, believing the high-born youth to be merely selfish and insidious in his offers of love and marriage, seek to rescue her from what appears to them a fatal snare, and persuade her to reject his addresses and even pretend to be affianced to another, a country hind in her own walk in life. The young and uncalculating noble, stung to the quick by her apparent

preference of a rival so utterly unworthy of him and of her, suddenly abandoned his home and castle, and engaged during all the prime and meridian of his days in distant foreign wars. In the evening of life he returns, alone and almost a stranger, to the scenes of his youth. On approaching his castle, he falls in with an old man, the "Podesta," by whom he is not recognized. In the dialogue between them, the Podesta, being questioned by the apparent stranger, tells the story of himself and family, and especially of his "daughter," by whose untimely grave they are standing. She died of a broken heart, after the abrupt departure of the young duke, years ago. It is the old story. True love, not left to its native instincts, but thwarted and driven devious by the manœuvres of the suspicious. Though Italian in manners, and dramatic in form, it is a true story of the heart. It is told with infinite skill, and must win for its author a bright addition to the chaplet which already surrounds his brow.

The first scene in the "Podesta's Daughter," is a good instance of the quiet ease with which Mr. Boker makes an actor bring out the points of a story, so that the reader is at once posted up to the very moment of action.

SCENE—*Before and within the gate of an Italian Churchyard. Enter (as if from the wars,) DUKE ODO, VINCENZO, and a train of men-at-arms.*

Duke Odo (dismounting.)

Hark you, Vincenzo; here will I dismount.
Lead on Falcone to the castle. See
He lack no provender or barley-straw
To ease his battered sides. Poor war-worn horse!
When last we galloped past this church-yard gate,
He was a colt, gamesome and hot of blood,
Bearing against the bit until my arm
Ached with his humors. Mark the old jade now—
He knows we talk about him—a mere boy
Might ride him bare-back. Give my people note
Of my approach, and tell them, for yourself,
I will not look too strictly at my house:
An absent lord trains careless servitors.
I wish no bonfires lighted on the hills,
No peaceful cannon roused to mimic wrath;
Say, I have seen cities burn, and shouting ranks
Of solid steel-clad footmen melt away
Before a hundred pieces. Say I come for rest,
Not jollity; and all I seek
Is a calm welcome in their lighted eyes,
And quiet murmurs that appear to come
More from the heart than lips.

The manner in which the intimacy began between the young count and the Podesta's daughter, Giulia, is described in a passage remarkable equally for its simplicity and its beauty. It is a good specimen also of the author's power of nicely discriminating character.

Count Odo—mark the contrast—so we called,
Through ancient courtesy, the old duke's son—
Came from the Roman breed of Italy.
A hundred Cæsars poured their royal blood
Through his full veins. He was both flint and fire;
Haughty and headlong, shy, imperious,
Tender, disdainful, tearful, full of frowns—

Cold as the ice on Ætna's wintry brow,
And hotter than its flame. All these by turns.
A mystery to his tutors and to me—
Yet some have said his father fathomed him—
A mystery to my daughter, but a charm
Deeper than magic. Him my daughter loved.

.
My functions drew me to the castle oft,
Thither sometimes my daughter went with me;
And I have noticed how young Odo's eyes
Would light her up the stairway, lead her on
From room to room, through hall and corridor,
Showing her wonders, which were stale to him,
With a new strangeness: for familiar things,
Beneath her eyes, grew glorified to him,
And woke a strain of boyish eloquence,
Dressed with high thoughts and fluent images,
That sometimes made him wonder at himself,
Who had been blind so long to every charm
Which her admiring fancy gave his home.
Oft I have caught them standing rapt before
Some barbarous portrait, grim with early art—
A Gorgon, to a nicely balanced eye,
That scarcely hinted at humanity;
Yet they would crown it with the port of Jove,
Make every wrinkle a heroic scar,
And light that garbage of forgotten times
With such a legendary halo, as would add
Another lustre to the Golden Book.
At first the children pleased me; many a laugh,
That reddened them, I owed their young romance.
But the time sped, and Giulia ripened too,
Yet would not deem herself the less a child:
And when I clad me for the castle, she
Would deck herself in the most childish gear,
And lay her hand in mine, and tranquilly
Look for the kindness in my eyes. She called

Odo her playfellow—"The little boy who showed
The pictures and the blazoned hooks,
The glittering armor and the oaken screen,
Grotesque with wry-faced purgatorial shapes
Twisted through all its leaves and knotted vines;
And the grand, solemn window, rich with forms
Of showy saints in holyday array
Of green, gold, red, orange and violet,
With the pale Christ who towered above them all
Dropping a ruby splendor from his side."
She told how "Odo—silly child! would try
To catch the window's glare upon her neck,
Or her round arms," and how "the flatterer vowed
The gleam upon her temple seemed to pale
Beside the native color of her cheek."
Prattle like this enticed me to her wish,
Though cooler reason shook his threatening hand,
And counseled flat denial.

But by far the finest poem in this collection is the "Ivory Carver." In the prologue to this poem,

Three Spirits, more than angels, met
By an Arabian well-side, set
Far in the wilderness, a place
Hallowed by legendary grace.

By this retired fountain the spirits enter into a discussion concerning the condition and prospects of their protégé man. Two of them are evidently croakers. To them the world seems, as to any moral progress, stationary, if not actually retrograding. They are almost indignant that the Lord does not consign the planet with its inhabitants at once to perdition. But the third spirit, a superior intelligence,

One, chief among the spirits three,
Grander than either, more sedate,
Wore yet a look of hope elate,
With higher knowledge, larger trust
In the long future; *and the rust*
Of week-day toil with earthly things
Stained and yet glorified his wings.

This superior angel maintains that man, though not capable of instantaneous acts or intuitive perceptions, equal to those of the higher orders of beings, is yet not the mere hopeless castaway the two other spirits would make him. Give him but time, and with pain and toil he will work out results worthy even of an angel's regard. An angel, by direct intuition, may see at once in a shapeless lump of matter all the forms of beauty of which it is capable. Yet man, in process of time, slowly but surely, can bring forth those same wonderful forms. The illustration of this point in the celestial argument leads to the main story.

I, in thought,
Have seen the capability
Which lies within yon ivory:
This rough, black husk, charred by long age,
Unmarked by man since, in his rage,
A warring mammoth shed it: Lo!
Whiter than heaven-sifted snow
Enclosed within its ugly mask
Lies a world's wonder: and the task
Of slow development shall be
Man's labor and man's glory. See!
His foot-tip touched it; the rude bone
Glowed through translucent, widely shone
A morning lustre on the palm
Which arched above it.

The angel then summons an attendant, and bids him bear this shapeless tusk to some mortal capable of bringing from it by slow pain and toil the glorious beauty which had shone forth instantaneously at the angelic touch.

Spirit, bear

This ivory to the soul that dare
Work out, through joy, and care, and pain,
The thought which lies within the grain,
Hid like a dim and clouded sun.

The prologue, which thus introduces us to the studio of the “Ivory Carver,” may be deemed by some far-fetched and metaphysical. To us it seems a most beautiful preparation for what follows. It attunes the mind to a just appreciation of that self-sacrificing devotion with which the artist, year by year, in silence, in want, toils away to work out of the solid ivory the divine thought which haunts him. The moral of the prologue, as we understand it, is to connect the inspirations of genius with their true source. It prepares us to look at the toiling “ivory carver,” not as he appeared to his family and neighbors, a madman or a fool, but as he might have appeared to some celestial visitant, who knew the secrets of his heaven-touched soul.

Silently sat the artist alone,
Carving a Christ from the ivory bone.
Little by little, with toil and pain,
He won his way through the sightless grain,
That held and yet hid the thing he sought,
Till the work stood up, a growing thought.
And all around him, unseen yet felt,
A mystic presence forever dwelt,
A formless spirit of subtle flame,
The light of whose being went and came
As the artist paused from work, or bent
His whole heart to it with firm intent.

.

Husband, why sit you ever alone,
Carving your Christ from the ivory bone?
O, carve, I pray you, some fairy ships,
Or rings for the weaning infant’s lips,
Or toys for yon princely boy who stands
Knee-deep in the bloom of his father’s lands.
And waits for his idle thoughts to come;

Or carve the sword hilt, or merry drum,
Or the flaring edge of a curious can,
Fit for the lips of a bearded man:
With vines and grapes in a cunning wreath,
Where the peering satyrs wink beneath,
And catch around quaintly knotted stems
At flying nymphs by their garment hems.

.
O carve you something of solid worth—
Leave heaven to heaven, come, earth to earth.
Carve that thy hearth-stone may glimmer bright,
And thy children laugh in dancing light.

Steadily answered the carver's lips,
As he brushed from his brow the ivory chips;
While the presence grew with the rising sound,
Spurning in grandeur the hollow ground,
As if the breath on the carver's tongue
Were fumes from some precious censer swung,
That lifted the spirit's winged soul
To the heights where crystal planets roll
Their choral anthems, and heaven's wide arch
Is thrilled with the music of their march;
And the faithless shades flew backward, dim
From the wondrous light that lived in him—
Thus spake the carver—his words were few,
Simple and meek, but he felt them true—
“I labor by day, I labor by night,
The Master ordered, the work is right:
Pray that He strengthen my feeble good;
For much must be conquered, much withstood.”
The artist labored, the labor sped,
But a corpse lay in his bridal bed.

But we must have done with quotations. Indeed, our limits warn us that we must abruptly close the volume. We have read every poem in it with the most lively pleasure. It has been in the belief that we could not otherwise

minister so well to the gratification of our readers that we have quoted so freely and said so little. We will only add in conclusion, that every fresh production of Mr. Boker's that we see furnishes additional evidence of his true calling as a poet. Should he never write another line, he has already, in the brief space of three years, done enough to make his name classical.

Margaret: A Tale of the Real and the Ideal, Blight and Bloom. By the author of "Philo," etc. Boston: Phillips, Sampson & Co. 2 vols. 12mo.

This is a revised edition of a book which attracted, at the time it originally appeared, a great deal of attention from an intelligent but limited class of readers. We trust that it will have a more extended circulation now that it is in the hands of an enterprising publishing house, and is issued in a readable shape. It is the first and best of Mr. Judd's works, and though it exhibits the ingrained defects of the author's genius, it has freshness, originality and raciness enough to more than compensate for its occasional provoking defiance of taste and obedience to whim. The sketches of character are bold, true, powerful and life-like; the descriptions of New England scenery eminently vivid and clear; and an exquisite sense of moral beauty is accompanied by a sense no less genial and subtle for the humorous in life, character and manners. It is perhaps as thoroughly American as any romance in our literature.

Nicaragua; Its People, Scenery, Monuments, and the proposed Interoceanic Canal. With Numerous Original Maps and Illustrations. By E. G. Squier, late Chargé D'Affaires of the United States to the Republics of Central America. New York: D. Appleton & Co. 2 vols. 8vo.

This is perhaps the most valuable book of travels which any American has contributed to literature since Stephens relinquished his pen; and, if we may believe Mr. Squier, his subject-matter is of the greatest importance to every patriot. According to him, the future eminence of our country depends

on the policy which the United States now adopts in regard to the affairs of Central America; and his visions of the material prosperity which will result from the bold, firm and intelligent action of our government in the matter, are gorgeous as Sir Epicure Mammon's. And it must be admitted that he sustains his positions by facts and arguments which every American should be familiar with, and which cannot be obtained any where in a more compact form than in Mr. Squier's own work, which contains a complete geographical and topographical account of Nicaragua, and of the other States of Central America, with observations on their climate, agriculture and mineral productions and general resources; a narrative of his own residence in Nicaragua, giving the results of his personal explorations of its aboriginal monuments, and his observations on its scenery and people; notes on the aborigines of the country, with such full information regarding "their geographical distributions and relations, languages, institutions, customs and religion, as shall serve to define their ethnical position in respect to the other semi-civilized aboriginal nations of this continent;" an outline of the political history of Central America since it threw off the dominion of Spain, and above all, a very elaborate view of the geography and topography of Nicaragua, as connected with the proposed interoceanic canal. Mr. Squier writes on all these subjects from personal knowledge and investigation, and with the freshness and power of a man who has got all his information at first hand. The work is profusely illustrated with appropriate engravings from drawings made on the spot, and is also well supplied with accurate maps. Bating some redundancies of style proceeding from a mania for fine writing, these volumes are, from their intrinsic and permanent value, worthy of more general attention than almost any work of the season.

Wesley and Methodism. By Isaac Taylor. New York: Harper & Brothers. 1 vol. 12 mo.

The author of this valuable and thoughtful volume is extensively known both in England and the United States as a philosophic writer on the great themes and great exponents of Christian faith. As in a former volume he considered Jesuitism in Loyola, its founder, so in this he views Methodism in Wesley. His penetrative and meditative mind, equally acute and

sympathetic, readily discovers the connection between opinions and character, principles and persons; and by viewing sects and systems psychologically and historically in the characters and lives of their founders, he gives the interest of biography to the discussion of the most metaphysical questions of theology. His present work is eminently original and suggestive, evincing on every page the movement of a deep and earnest nature, and an intellect at once critical and interpretative. His own religious nature is too profound to allow his indulgence in any of those phrases of sarcasm, contempt, or pity, which it used to be fashionable to speak of Methodism and Methodists; but though he considers the religious movement which he analyses and represents as a genuine development of the principal elements of Christianity, and as second only to the Reformation in importance among the providential modes of vitalizing and diffusing the faith, he is still calm, reasonable and austere just in his judgments. His criticism of the prominent Methodists is an example. He sees clearly that they were not great men mentally. "Let it be confessed," he says, "that this company does not include one mind of that amplitude and grandeur, the contemplation of which, as a natural object—a sample of humanity—excites a pleasurable awe, and swells the bosom with a vague ambition, or with a noble emulation. Not one of the founders of Methodism can claim to stand on any such high level; nor was one of them gifted with the philosophic faculty—the abstractive and analytic power. More than one was a shrewd and exact logician, but none a master of the higher reason. Not one was erudite in more than an ordinary degree; not one was an accomplished scholar; yet while several were fairly learned, few were illiterate, and none showed themselves to be imbued with the fanaticism of ignorance." In his sketches of Charles Wesley, Whitfield, Fletcher, Coke, and Lady Huntingdon, we have the truth given of those remarkable persons, unmingled with the exaggeration either of admiration or contempt. The volume as a whole, is the most comprehensive and accurate work on Methodism which we have ever seen.

*Young Americans Abroad; or Vacation in Europe. Travels in
England, France, Holland, Belgium, Prussia, and*

Switzerland. With Illustrations. Boston: Gould & Lincoln. 1 vol. 16mo.

This volume is a truly original book of travels, not so much because it describes new scenes, but because it describes them from a different point of view. It consists of letters written by three boys, whose respective ages are twelve, fourteen and sixteen, traveling in Europe under the care of their instructor, the Rev. Dr. Choules. Quick to see and eager to enjoy, fresh in mind and heart, these boys seem to write because they have much to say, and because their heads are so full of enchanting objects that a discharge of ink is absolutely necessary to preserve them from mental apoplexy. And we must admit that they have made a book which in interest, raciness and in the power of communicating their own delight to the reader, fairly excels many a volume of more pretension. The presiding spirit of the whole correspondence is, of course, the kindly and accomplished editor, a person who combines in an extraordinary degree, the joyous and elastic soul of youth with the large knowledge and experience of manhood. His own letters in the volume are very characteristic epistles, and add much to its value.

Adrian; or the Clouds of the Mind. By G. P. R. James and Mansell B. Field. New York: D. Appleton & Co. 1 vol. 12 mo.

The authors of this American romance have produced a literary curiosity—a volume, every page of which is the product of two minds, without any apparent jarring of style or sentiment. In the conduct of the story, it is true, a little uncertainty is visible, but that appears to arise as much from the nature of the plot as from the presence of two hands in moving it forward. It is well written, has some capital descriptions of scenery and some very exciting incidents, and, in idea and sentiment, is a combination of English and American modes of thought and feeling. The scene in the Medical College is the most powerful in the volume.

Memoirs of the Life and Writings of Thomas Chalmers, D. D., LL. D. By his Son-in-Law, the Rev. William Hanna, LL. D. New

York: Harper & Brothers. Vol. 3.

The present volume does not, as was contemplated, bring this interesting biography to a close. The Doctor is left at the end of it, full of energy and combativeness, instead of reposing in his coffin. The volume is full of attractive matter, being devoted to that portion of Chalmers' life, between 1824 and 1835, when some of his most important works were written, and when his communications with men eminent in politics and letters were most frequent. Brougham, Peel, Melbourne, Mackintosh, Irving, Coleridge, and many other celebrities, appear in these pages. Among the letters in the volume, we should select those to his daughter as the most pleasing.

Home and Social Philosophy. From Household Words. Edited by Charles Dickens, First Series. New York: Geo. P. Putnam. 1 vol. 16mo.

The indefatigable publisher whose name is on this title-page, commences with this delightful collection of essays, a new "Semi-Monthly Library, for Travelers and the Fireside." The present volume contains some two hundred And fifty well printed pages, and is placed at the low price of twenty-five cents. It is to be followed by a series of works, combining entertainment with usefulness, and intended in the end, to form one of the cheapest and most elegant "libraries" that an intelligent reading public could desire.

Essays on Life, Sleep, Pain, etc. By Samuel Henry Dickson, M. D., Philadelphia: Blanchard & Lea. 1 vol. 12mo.

These essays, a specimen of which we furnish our readers in the present number, are the production of a mind singularly acute and tenacious, and are marked as the productions of a scholar and a profound thinker.

*United States Monthly Law Magazine and Examiner. New York:
John Livingston, 157 Broadway.*

We have received this creditable periodical, and examined it with great interest. We are happy to say that it is still conducted with ability and learning. The editor deserves high praise for his industry and liberality. He provides the profession with well selected cases from the English law journals and reports, as well as from our own adjudicatories. We are well pleased to see the manly independence with which he adopts and advocates the reform of law and equity so urgently called for in this country and England. The periodical prospers—and it merits prosperity.

THE HISTORICAL SOCIETY.—We have received a copy of the address delivered before the Historical Society of this State, at Chester, in November last, and have barely room to say that it is marked by the fine finish and lucid reasoning which distinguish all the efforts of Mr. Armstrong, whether as a writer or speaker. We shall refer to it again.

GRAHAM'S SMALL-TALK.

Held in his idle moments, with his Readers, Correspondents and Exchanges.

EMINENT YOUNG MEN.—We purpose, occasionally, to give to our readers, in our own off-hand way, sketches of such of the young men of our acquaintance as have risen to position and distinction by the force of their own indomitable purpose and efforts. These papers will be plain, unpretending, and without any effort at literary display—but if such examples as have passed under our own observation, fairly *put*, shall awaken even one young man among our readers from inglorious sloth, to energetic endeavors to accomplish something for himself and his generation, we shall think our time has been most profitably spent.

America has but one recognizable stamp of nobility. No line of descent in the blood of kings, can ennoble here. The stagnant pool which has lost its vitality for ages in the veins of a scurvy nobility, reflects no honor—enriches no name. That which makes Manhood GREAT—is *Energy—Will*—nobly directed—that quality which Kossuth proclaims to be the conqueror of impossibilities. It is this quality, largely possessed by the Anglo-Saxon, and the free field open for its exercise in America, that have made her what she is—

“The day-star among the nations.”

It is the noble hopes and manly aspirations in the breast of her sons—the far-reaching, the attainable grasp of future fortune, the birth-right of the humblest—the unconquerable purpose to do, to achieve, to conquer, that exalt us to “giants in these days.” We have the highest manifestation of manhood, in a fair field, with *all* the favor that God grants to mortals to carve out their own destinies. He who sinks here, goes down with supineness, slothfulness, idleness, and their attendant vices clinging to his neck with more than mill-stone weight. With high health and a perfect use of his faculties, no man *here* has a right to be ignoble. “The longer I live,” says Goethe, “the more certain I am that the great difference between men,

the great and significant, is energy—invincible determination—an honest purpose once fixed and then, victory. That quality will do anything that can be done in the world; and no talents, no circumstances, no opportunity will make a man without it.”

BENJAMIN H. BREWSTER, ESQ., an eminent young lawyer of Philadelphia, the author of the very excellent paper on Milton, in this number, will be the subject of our first sketch, in the next issue; and we shall take the privilege of an intimate acquaintanceship, and a friendship endured by a thousand ties, to use a free pencil *upon him*, and if Mr. Brewster does not like it, he has his action for such damages as the liberal jury who read “Graham” may think he deserves.

COST OF GLORY.—We have received from a Naval Officer a tart assault upon Upham’s figures in relation to the expenses of the Army and Navy of the United States, which we shall publish and reply to. He makes the cost “*about* twenty-five per cent. of the whole revenue.” We shall see! The article is by some very *young* Middy, who thinks that “navy blue” means getting tipsy on shore, and that *figures* are symbolical *only* of important gentlemen, buttoned up to the throat, who walk the Quarter-Deck of Uncle Sam’s 74’s.

READER—“Graham” makes his best bow to you in this number, and stands, cap in hand, waiting a friendly return to his salutation. He has prepared himself with some care for this call, and if you do not like his rig, don’t turn up your nose disdainfully, but suggest any proper alteration in his costume, and when he comes again you may like him better. The critics! Well! who cares for the critics? Not Graham! He is a critic himself, and can carve you a poet to a nicety—slicing off his wings with one sweep of his steel. But Graham is tender to poets—for they are a good-hearted race, albeit a little irritable—apt to be dealt unjustly with, too, considering that each one is imbued with more than a Shaksperian genius, and people wont believe it. It is enough to make anybody mad—and a mad poet is of all enraged animals the most vehemently disposed to slaughter somebody. So,

having disposed in brief of critics and poets, and of lawyers and briefs in the body of the work, we feel heavenly-minded toward the rest of creation—and in this mood we turn to “*the gentlemen of the press.*”

If our exchanges believe *all* that is told them by some of the Magazine publishers, they will soon begin to fancy that “the moon is a green cheese,” and will wake up some fine night finding themselves cutting slices for an imaginary breakfast.

One chap has the audacity to set himself up as the *sole* patron of American arts and letters, and has spent *unheard* of amounts on artists and writers. We fear to inquire into this business *too* closely, lest it should turn out like the charity of the lady who was “collecting for a poor woman.” It *was* charity—for it “began at home,” and *ended there!*

Now “Graham” you may rely upon—there is a certain don’t care for anybody air about *him* that you can understand. If any fellow wishes to blow up his Magazine, Graham asks him—nay, commands him to “blaze away”—if he don’t like the painted fashions, which cost \$945, lo! Graham goes to the enormous expense of \$2 and gives him his “own peculiar” in wood—Bloomer and all, fresh from the newspapers, and not credited to Paris either—if the small-talk don’t suit—Graham suggests something else, and invites him to read some of the other Magazines, where the editor “talks big,” and swells in imaginary dignity until a turkey is rather cast into the shade by overblown dignity—if he don’t like the stories he may read the essays—if neither, the poetry is before him—and if literature has no charms for him, he may admire Art in the engravings: “if none of these things move him,” let him admire Nature by looking at himself in a mirror, and imagine his ears wonderfully grown, and his voice a lion’s. Graham is as easily pleased as a young girl at her first ball, and thinks the world is moving round to the timing of music—and though he is as poor as Job’s—ah! that reminds us of *the turkeys* we sent to editors.

THE TURKEY OVATION.—Never, we suppose, since the day the Romans overran the world, has there been such terrible bloodshed and sanguinary goings on, as was consequent upon Graham’s royal edict about Turkey. The crimson dye was streaming about all the editorial sanctums on Christmas Eve. Graham had issued orders to bring up the culprits for execution, and at about ten o’clock, at *a given* signal, twelve hundred of the inhabitants of

Turkeydom were marched out, and had their throats cut without mercy. The bloody-minded issuer of this sanguinary decree still lives and glories in the deed; and strange to say—his men back him up with fixed bayonets. If these things are allowed to proceed, people will not be able to sleep quietly in their beds, but a terror will go forth over the land, and neighbors will have to keep watch and ward over each other—turkeys will be, *nowhere*—editors will grow fat, on the fat of the land, and will soon have the hardihood to ask their subscribers to pay for the papers they read, with the same promptitude with which they expect them delivered.

This sort of thing will go on. A revolution in newspaper presses will be the consequence, and quiet, sedate people, who read over the paper, and complain of the type—of the quality of the paper—of the long editorials—of the short editorials—of the light reading—of the heavy reading—of the political matter—of the want of political news and facts—of the poetry—of the advertisements—of the mails—of the carrier—of the publisher, the editor, and the “devil”—will be shocked at having a *bill* to pay. Turkey must be paid for, as well as slaughtered. There is no community of goods in Turkey. Every landholder expects the pay for corn that feeds and fattens turkey—and subscribers must expect to—“PAY UP.” Graham will get the blame—but the revolution *will* go on! People who grumble—and, some of them—swear! about their papers, must *pay for the luxury*. No man has a right to *be stupid*—nor can expect editors to eat turkeys and publish newspapers on air.

“Mr. —, do *you* know that your subscription is *overdue* to The —?”

“No?”

“We thought so. Well, take Graham’s advice, and take \$2, ‘pay up,’ and take a receipt at once. You have no idea how it will clear your conscience, and your eye-sight, too, as to the *merits* of the paper.”

SNOW-BALLING IN THE SOUTH.—Our Southern friends seem to have been taken by surprise by Jack Frost, and to have had some difficulty in acknowledging his acquaintance. At New Orleans we see, that Sambo was out early in the morning, and came rushing back to his master exclaiming —“*Oh, Monsieur! regardez donc! la cour est pleine de sucre blanc!*” “Oh,

sir, look: the yard is full of *white sugar*!” “The oldest inhabitants,” says the Delta, “stared with amazement. It snowed all night, and in the morning the earth was entirely invisible; a white carpet, to the depth of eight inches, covered its entire surface. Our population were all agog, and snow-balls flew as thick and as fast as bullets at Buena Vista. The hats of peaceable citizens were knocked into corners; eyes and mouths were filled with conglomerated masses of snow, and ears were stopped.” In Florida, according to the News, “There was no record nor tradition of such an event in the history of East Florida. Some of the oldest inhabitants recollect, on one or two occasions, having seen a slight sprinkle of snow, but not enough to whiten the ground, and it passed off like a dream. But on this occasion we had an opportunity of enjoying the delightful amusement of “snow-balling;” and ladies, as fair as the snow itself, joined heartily in an amusement, the opportunity for which presents itself only once in a century.” Mrs. Neal, in her very sprightly and delightful letters from Charleston, S. C., gives an animated picture of the scene in Palmettodom: “Even in Philadelphia, where snow is by no means an every day affair, you cannot credit the excitement it gave rise to. The children, many of whom had never seen ‘the white rain,’ clapped their hands as the roofs and the ground were covered with the pure mantle—and when evening came, and the strange visitor seemed to like its Southern quarters, and resolved to settle for the night, men and boys went forth to the novel enjoyment of snow-balling, and some even attempted a sleigh-ride. Grave, grown up men were startled into an involuntary participation of the sport, and I was told, and it is *too good a story not to be true*, that one gentleman was seen indulging in the unusual pastime accompanied by a negro carrying his ‘spare balls’—all ready moulded in a box! Snow-balling under circumstances of ‘elegant leisure.’

“The next morning’s sun seemed to have little effect upon it, the cold still continuing intense; and about the middle of the day a party, a regular duel it seemed, ascended to the top of the Charleston hotel and the Hague street stores, pelting each other with great vigor, the piazza upon which we stood affording a fine view of the sport. The children were for the first time indulged with snow-building, and many a youthful Powers made his first effort at sculpture on the frozen countenance of a ‘snow-man.’ It was more curious still that they considered it in the light of a confection, and ate it with salt, as they would a hard boiled egg, esteeming it much nicer than any

candy. ‘It was fun to them—but death to the servants’—to borrow from the fable of the boys and the frogs. The poor negroes, wilted and shriveled up into ‘dumb waiters’—burning over the fire, with a deprecating glance at the snow covered ground that was really piteous, but every consideration was paid to them, and as little out-door work as possible assigned.”

We cannot refrain from adding the following delicious little bit of character-painting, from the same pen, though not *germaine* to the theme: “If there is one thing that distinguishes the Southern negro above all others, it is *deliberation*. We had a fair example of this the morning of our arrival. There was not a soul on the wharf to take the rope of the steamer which some thoughtful person had thrown on shore without looking to see what was to be done with it. There were the passengers with eager, expectant faces, grouped upon the deck, baggage already looked over, and piled up for the carriages—every thing ready to land, and we just so far from the shore that a plank could not be thrown across. Presently a negro appeared on the next wharf, walking toward us with the utmost calmness. In vain were the calls of the Northern gentlemen in tartan shawls, or the impatient gestures of one of the officers of the boat. A New York wharf loungeur would have had the rope secured in the time this venerable Ned took to put one foot before the other. And when he finally arrived amid the cheers of the passengers, who by this time thought it as well to laugh as fret, one of them called out as he bent over to the rope thrown once more—‘Uncle—I say—hadn’t you better *wipe* it first?’—a finale which could not have been more deliberate than his previous movements.”

SMALL.—There *is* something smaller in the world than Graham’s small-talk, and that is, a soul in a pill-box. We know several that are just in that way imprisoned—and they belong to fellows who are afraid to notice a rival publication, for *fear* people will believe them.

CABLE, the editor of the Ohio Picayune, is a man to hold on. Here is what he says—

“We would not do without this Magazine for treble its price; and as we consider ourself as having some taste in this matter, we warmly recommend Graham to the lovers of chaste and classical literature.”

Our friend of the Picayune will be glad to know that there are 30,000 people of his mind, who cling to Graham always. Then, there is a “floating population” of 20,000 more, who don’t know their own minds, but shift about to all points of the compass and come back again to Graham, grumbling at others, when the fault is their own for having left Graham at all. These wanderers are coming in, in flocks, for ’52, but we don’t *count* on them, any more than upon a roost of wild pigeons—they will go to Godey—to Harper, to somebody in a year or two, and then come back again mad at every body. These folks are *nobodies*.

The very beautiful poem, “Bless the Homestead Law,” from the pen of our correspondent, L. Virginia Smith, adds another laurel to the wreath which clusters already around the young brow of that child of genius. *Memphis* may well be proud of her, as the *Inquirer* of that city is. The editor says of this poem, which was written for him—

“We have the satisfaction of presenting to-day one of the most eloquent appeals in behalf of the *Homestead Exemption Law*, which it has been our fortune to meet with. It is from the pen of the gifted one our city is proud to call its own poetess. We commend this appeal to the *hearts* of the members of the Legislature, upon whose votes hangs the fate of this most just and beneficent measure.”

A LEAP YEAR LOVE LETTER.—We have received a very delightful leap year love letter from a *very* beautiful young lady living in Maine—we won’t tell in what post-town—but we know she is beautiful from the very elegant epistle she writes, and that she is a lady of discernment from the very handsome things she says of “Graham”—and that she is *smart* from the very way she edges in her proposal to be our second in case we are married already.

We are happy to say that we are a Benedict, and as Kossuth has prudently introduced no Turkish notions into his addresses to the ladies, we have great doubts about indulging in any dreams as to “pluralities.” But still, we may safely say, as we do “by permission,” that the young lady who sends “Graham” the largest club for 1852, shall receive the favor of our most distinguished consideration.

“Graham” may now be considered in the market for “proposals,” and if all the handsome things the press say of him are read and pondered over—as they ought to be—he will receive a perfect shower of adoration in the agreeable form of attached and worshiping subscribers. “Graham” holds the King of *clubs* and Knave of *hearts*, now—so every young lady knows the lead.

ADVERTISING.—Business is business and must be *pressed* home. Now we have a business secret for your ear, reader! one which we charge you nothing for; but which comes charged with weighty and important meaning. *Do you ever advertise?* No! Why there is nothing like advertising to make a fortune! Nearly all the men about here, who never advertised, have *taken in* their signs, shut up shop, been taken in themselves and have gone to California—the dupes of the very advertising in the newspapers, which they scorned while fortune was all around them. You must take hold of this lever that moves the business world. Advertise in *your local papers*—if your business is local—let your neighbors know that you have something to *sell*—that you wish to *buy* something—or, that you are ready to *trade*. Wake up! and wake up your neighbors! We should never be able to publish Graham with 112 pages per month, if we did not let the world *know* that we are wide awake, and ready to supply any quantity of numbers for 1852, *having stereotyped the book purposely*. Now, drowsy head! do you suppose that if you are a storekeeper you would not sell more goods by advertising? Or if a mechanic, that it will do you any harm to be known far and near as an active, enterprising business man ready for customers? Or, if a farmer, with a lot of *extra* corn or potatoes to sell, that you could not *make* a market? Do you suppose, that you can put your hands into your pockets and whistle a fortune into them, too? If you do, advertise *that*, and be immortal.

OUR STORIES.—We have adopted the plan of giving our readers one long story complete, in each number—say from twelve to twenty pages. In the January number we gave “The Rich Man’s Whims,” which was universally praised by the press and by the readers of this Magazine. “Anna Temple,” which appeared in the February number, we think, was a better story, and so say many critics competent to judge. “The Democrat,” at Ballston, N. Y.,

says, in noticing the last number—"Graham now contains, and will continue to contain, during this year, more reading matter monthly than any similar work published in the country. The story, "Anna Temple," in the February number, is one of the finest tales we have ever read, and is alone worth more than the year's subscription to the Magazine." And this is but one, of scores of such notices.

In the present number our readers will find a *gem* called "The Miser and His Daughter," written by a gentleman of New Orleans—the author of the story of "The Little Family," which appeared in the November number of "Graham"—a tale which was more widely read and praised than any article in the last volume. We have received the first part of an article by this writer, which we shall give in future numbers, and we do not hesitate to say, for the benefit of those who worship British ability *only*, that no article *equal* to it has appeared in Blackwood or Frazer for years. It is called "The First Age."

CAUTION.—"My goodness," says a cautious and gouty old gentleman, who is one of Graham's friends, "aint you afraid to talk at your subscribers and exchanges the way you do?" *No!* not a bit of it—Graham will tell "the truth, the whole truth, and nothing but the truth," to every body who reads his editorial chit-chat. If people don't like it, they need not read it. In 112 pages there is room and verge enough to dodge around sharp corners and escape the dilemma of reading the few pages in which Graham, kicking off his boots, goes at people with his slippers on. Every body, in 1852, will get *more* than a full return for what is paid for the book, without counting "The Small-Talk"—and if any editor don't like it, let him let it alone. "The whole boundless continent is *not* ours," but the small-talk *is*—and being monarch sole and absolute in these dominions, we shall submit to no impertinence, but *will* have our own will and way—and the way is straight and plain. We do not expect to get a decent notice from the Saturday Evening Post, for all this—and we don't care if we don't—nor if we do.

GRAHAM ON DREAMS.—Did you ever dream you were rich? Is it not delightful!—while it lasts. A prize in the lottery—dreaming of numbers innumerable, is one of the tricks of Morpheus—and of people wide awake,

too, sometimes. Then the visions of defunct grand-uncles, beyond the seas, who hearing of our great worth and deservings, die on purpose to make us happy, and bequeath vast estates and lots of three per cents. in the *funds*. It is glorious! And then, too, ponderous mails coming to you, in which each subscriber, who is in debt, sends you the money—and dozens—dozens?—hats full, of letters inclosing the long delayed \$3, come like blessings in troops—the notes all new, too, and 6's instead of 3's sent by the overjoyed subscriber—not in a mistake either—for he says “the work is worth double the money, and being an honest man, I intend to pay the fair value.” Ah! this is grand! We like to do business with people who know something.

“*John*, JOHN!—Call Mr. Graham, and tell him the printer wants copy—and paper too!” Pshaw!

Look here! We hate to be deceived. Somebody make our “dream come true.”

FINE INK.—We take pleasure in calling the attention of printers to the very superior quality of the ink used in the printing of our wood-cut forms. It is from the establishment of Messrs. Romig, Lay & Co., 51 South Fourth street, Philadelphia. They are prepared to furnish different qualities at various prices to the trade. Letters addressed to them will be promptly attended to.

THE DOLLAR NEWSPAPER, which is edited by a Sailor, who has been to Egypt—you see—and a long Lane—who has denied the proverb, and done us a good “turn,” has sent us a spanking club by Hudley, its ever attentive and active clerk. The Dollar is a great paper—worth any day more than its silver namesake—which *goes* now at about 102½—but where it goes *to*, puzzles the bankers. The Newspaper has the advantage in this, for nobody knows where it *don't* go. In all of the 17,000 post-towns in which Graham is loved and cherished, we find our young and vigorous brother. Graham and the lively Dollar, are the pride of good printers and pretty girls. Intellect, and Beauty, and Dollars and Graham's!—what a consummation!

The truth is, Graham's modesty is sorely tried just now, when a shout is going up from every town and hamlet of the country on his behalf; and were it not that the subscriptions usually keep pace with the praise, he would not be able to exist at all.

SAUCY AND TRUE.—We shall exchange next year with no fellow who notices “Graham” in the same line with another work and says, he “*don’t know which is the best.*” If a man has not courage enough to say that Graham is the worst, or the best, or the equal of any other magazine, as the *fact* may be, we don’t want his company. So boys, if you like the conditions, observe them. We *ask* no man to publish our prospectus—but we do ask that “Graham” shall not be bundled in with any body who happens to be traveling the same road at the same time—as there are a good many shabby looking fellows about whose room is better than their company—at any rate their room shan’t be ours—that’s plump.

The Saturday Courier has been—or is, at this writing—publishing a most powerful story called *Marcus Warland*, from the pen of its old and valued correspondent, Caroline Lee Hentz. The stories purchased and selected by Mr. McMakin evince a fine taste and just discrimination, and we often wonder where he lays his hands upon them. The secret is partly disclosed by an announcement in his paper that “Mrs. Hentz refused the sum of \$400 offered her by a New York bookseller,” for the story of Marcus Warland. The new volume of the *Courier* commences in March; and looking over the storehouse of good things McMakin has, for his readers, we say they are to be envied for ’52.

WINCHESTER (TENN.) INDEPENDENT of the 16th January, comes to us with its head all topsy turvy, as if the editor had been on a batter. *Wigg’s* is the publisher, and of course has a right to ship his scalp occasionally—but we don’t believe that the name of his town is spelt as follows:

“Wouihester;”

though an *independent* fellow, in this free country, may take a spell in that way, if he likes.

THE ESSEX FREEMAN is a good paper, but has in its advertising columns some “shocking bad” wood-cuts. The editor says “American wood-engravings are apt to be bad,” but admits an exception in favor of Devereux’s fine pictures in our February number. Porter and Streeter are funny dogs, but can’t *take* a joke. Wonder what *ails* Porter!

THE CENTRAL NEW YORKER, came to us with a new year’s address with the “pictur” of the *editor* at the head. He is a *rising* man—but he had better let the girls alone. The following appears in the *address*:

THE BLOOMER COSTUME.

Bloomer Costumes rule the day,
Ladies wear the new apparel,
Corsets now are thrown away,
Hour-glass changes to a barrel.

Ladies now may street yarn spin,
As they have to take less stitches,
Now they put their fair forms in
Sack coats and big Turkey breeches.

We hope Mr. Editor Rising has no allusion, in this, to Graham’s Christmas Turkeys—that would be a breach of decorum.

THE KNICKERBOCKER.—Our *old* friend Clark, the very prince of genial natures and royal good fellows, disdains to talk any longer, solely, to the dull and heavy folks of “Upper Tendom;” so, showing no quarters, he comes down to “a quarter,” and pitches his tent in the field of the many—throwing his banner to the gale, without getting upon one himself. If Clark does not print and *sell* 50,000 copies “the fools are *not* all dead,” but maintain a very decided majority among the “peoples.” If any body wishes “Old Knick” and young Graham together, they can accomplish their benevolent desire by sending us \$5. “The Old Gentleman” and the Young

'un are celebrities of "this enlightened nineteenth century," and cannot be *had* for less.

"THE OLD COLONY MEMORIAL," published at Plymouth, Mass., says Graham for February, was "the best looking number of this popular monthly we have ever seen. Of the literary contents we can speak highly." Its editor, who does not like fun of any kind, has the following satisfactory

CONUNDRUM.—Why is Church-membership like Charity? Guess once all round. Answer next week.

Our friend of "the olden time," Samuel C. Atkinson, is making a capital paper of The Burlington N. J. Gazette, and shows that years do not impair his energy, nor extinguish his genial appreciation of all things beautiful and true.

EXPLODED PROVERB.—"Figures cannot lie," says the proverb. Graham says—it depends upon *who makes 'em*.

PLAIN PREACHING.—We have upon our books a list of names, the owners of which are ALL well to do, and the most of whom go to church every Sunday and say their prayers—as Christians ought to do—and yet these same men will pass our office day after day, and never think of stopping to pay up, and if called upon, think it a hard case; haint got the change handy; aint used to being dunned.—*Plaindealer, Roslyn, N. Y.*

Why, Mr. Plaindealer, the sooner you get rid of these chaps the better—they *intend* to cheat you anyhow—even if it be but out of the interest of your money, and your peace of mind—which last is worth more than dollars.

If publishers would only form a "Mutual Protection Society," and *placard* all such fellows as a warning, we should *all* do better. We have about fifty that we intend to *cut*—giving them the Kentucky benediction. A fellow, who will neither notice your letter nor your bill, is a rogue in grain—rely upon it. It is a good rule to go by.



TIPSY MYNHEER.

“Moon, ’tis a very queer figure you cut;
One eye is staring while t’other is shut.
Topsy, I see; and you’re greatly to blame;
Old as you are ’tis a terrible shame.”

SOUTHERN LITERARY PAPERS.—Godman writes us that his new Southern Literary Journal, “The Family Friend,” is “going off like hot cakes.” We are heartily glad of this for two reasons; First, because we like Godman for his energy of character and his splendid genius, which blazes out in every line he writes, pure as a vestal lamp amid the surrounding debasement of the minds of many writers of romance. Secondly, because the South *ought* to maintain one or *more* first rate literary papers, and the North should help her do it with cordial good-will. She has been liberal, to us of the North, in her support, for years of *our* literary magazines and gazettes—let us *now* return the compliment with earnestness and kindness.

Some of Godman's best articles have enriched and will continue to enrich *our* pages, and as he has started manfully, in competition with Northern periodicals, Graham says—to his friends—*Stand by your banner, boys!*—let there be a brotherhood in letters at least, and let us leave the quarreling to ambitious politicians. So, Godman! Graham wishes you “God speed,” and 100,000 subscribers! Any fellow who cannot respond to the sentiment—whether he lives north or south of the Potomac—had better button his soul in his vest pocket carefully, or he will not be able to find it, when it is called for.



AN EXPERIENCED SHOT.—You're a pretty dog!—now aint you? See what you've gun-un done?

MR. THOS. BRISTOW, the Writing-Master, has finished and intends to present a very fine *fac simile* letter of Washington's Farewell Address to the United States Government. The whole design and execution is such as to reflect the highest credit upon Mr. Bristow as a teacher of “the Chirographic art.”



FASHIONS.—“*Three full-length Figures.*”

Determined not to be outdone in generosity, and to meet the views of the critics fully, we *present* “the latest styles” as reported by Mrs. Bloomer “expressly” for her own paper—and give you Dodworth’s “dancing style” as we find them reported in “The Clerk’s Journal.”

Our Paris Fashions cost us \$945 per month, for designing, engraving, printing and coloring the edition of Graham’s Magazine, and many sage and sapient critics said they liked “the wood-cut style.” Well, now you have got them—how do you like them? They cost the almost unmentionable sum of \$2, but are as good as the biggest. It may be as well to mention, by way of *description*, that the Bloomer is going to church—as soon as she can get off from this dancing-party.

“Oh Share My Cottage.”

COMPOSED BY R. C. SHRIVAL.



Published by permission of F. D. BENTEEN & Co., No. 181 Baltimore Street, Baltimore.

Andante.

PIANO. *f*

Oh,

cres. rallen.

share my cot-tage, gen-tle maid, It on-ly waits for thee, To

Oh, share my cottage, gentle maid,
 It only waits for thee,
 To

cres.
give a sweet-ness to its shade, And hap- pi- ness, hap- pi- ness to me, Here

cres. colla voce. f

from the spien-did gay pa-rade, Of noise and fol- ly free, No

cres.

rall.
sor-rows can my peace in- vade, If on- ly blest with thee. Then

rall.

share my cot- tage, gen- tle maid, It on- ly waits for thee, To

f

cres.

give a sweet-ness to its shade, And hap- pi- ness, hap- pi- ness to me.

colla voce. f

give a sweetness to its shade,
And happiness, happiness to me,
Here from the splendid gay parade,
Of noise and folly free,
No sorrows can my peace invade,
If only blest with thee.
Then share my cottage, gentle maid,
It only waits for thee,
To give a sweetness to its shade,
And happiness, happiness to me.

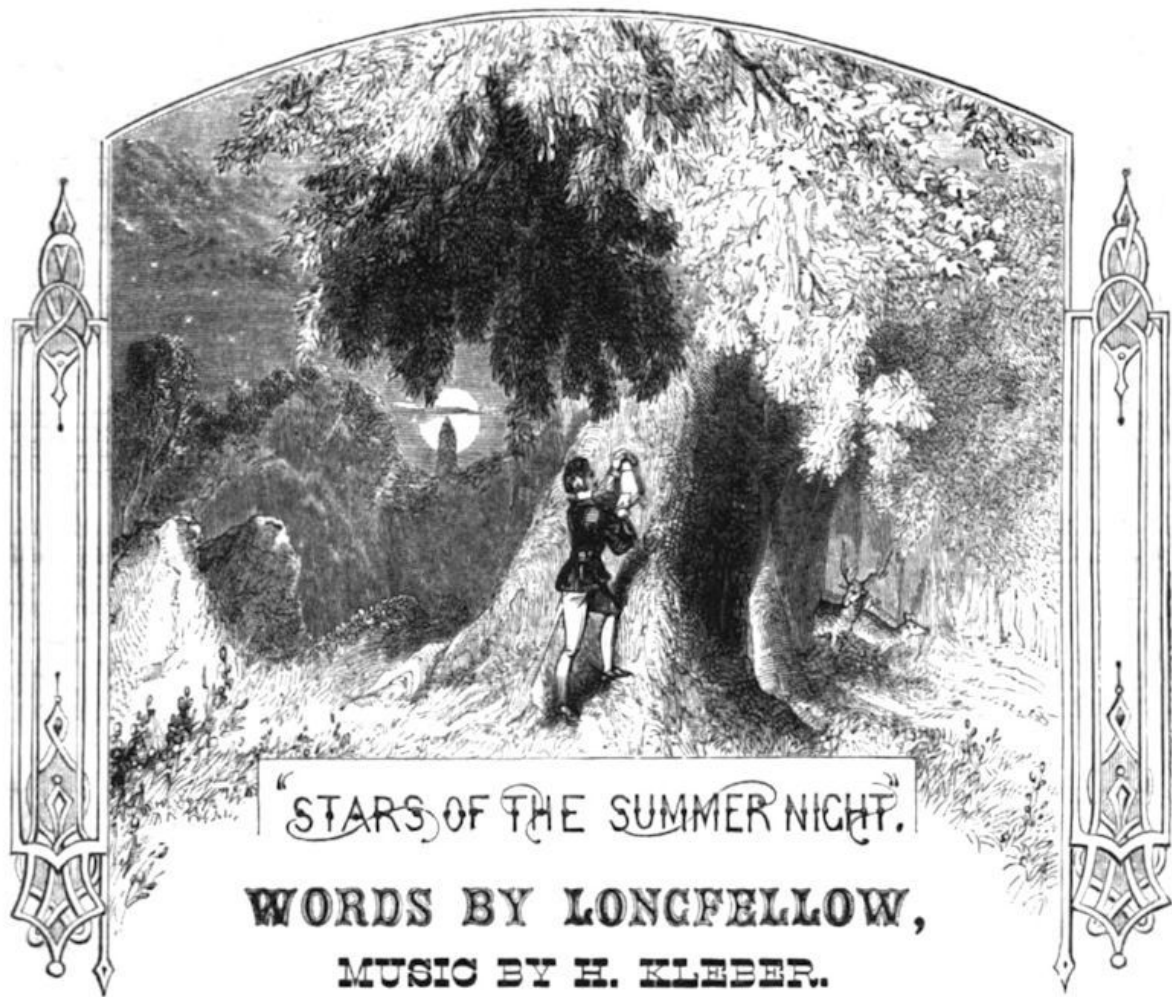
SECOND VERSE.

The hawthorn with the woodbine 'twin'd
Presents their sweets to thee,
And every balmy breath of wind
Is filled with harmony:
A truly fond and faithful heart
Is all I offer thee,
And must I from your face depart,
A prey to misery.
Then share my cottage, gentle maid,
It only waits for thee,
To add fresh sweetness to its shade,
And happiness to me.

“STARS OF THE SUMMER NIGHT.”

WORDS BY LONGFELLOW,

MUSIC BY H. KLEBER.



Published by permission of LEE & WALKER, 188 Chestnut Street,
Philadelphia,
Publishers and Importers of Music and Musical Instruments.

MODERATO.

Legato.

Stars of the summer night, Far, far in your a - zure

Stars of the summer night,
Far, far in your azure

deeps; Hide, hide your gold - en light, She

sleeps, my la - dy sleeps. Moon of the

summer night, Far, down yon wes - tern steeps,

Sink, sink in sil - ver light, She sleeps, my la - dy

sleeps, my la - decrea. dy sleeps.

deeps;
Hide, hide your golden light,
She sleeps, my lady sleeps.

Moon of the summer night,
Far, down yon western steeps,
Sink, sink in silver light,
She sleeps, my lady sleeps, my lady sleeps.

SECOND VERSE.

Wind of the summer night,
Where yonder woodbine creeps,
Fold, fold thy pinions light,
She sleeps, my lady sleeps.

Dreams of the summer night,
Tell her, her lover keeps watch,
While in slumbers bright
She sleeps, my lady sleeps.

Transcriber's Notes:

Table of Contents has been added for reader convenience. Archaic spellings and hyphenation have been retained. Obvious typesetting and punctuation errors have been corrected without note. Other errors have been corrected as noted below. For illustrations, some caption text may be missing or incomplete due to condition of the originals available for preparation of the eBook. Brief descriptions of illustrations without caption have been provided in the plain text version of this ebook.

page 232, hearts the poets tale ==> hearts the [poet's](#) tale

page 239, there were the mole ==> there [where](#) the mole

page 250, If your are willing to ==> If [you](#) are willing to

page 273, Valenciennes and Condè ==> Valenciennes and [Condé](#)

page 273, defection of Dumuoriez ==> defection of [Dumouriez](#)
page 273, skill of Dumuoriez ==> skill of [Dumouriez](#)
page 273, Dumuoriez's more generous ==> [Dumouriez's](#) more generous
page 282, wrote his Eikonoklases ==> wrote his [Eikonoklastes](#)
page 282, books, the Eikonoklases ==> books, the [Eikonoklastes](#)
page 285, his Eikonoklases, and ==> his [Eikonoklastes](#), and
page 286, "Telemachus" of Fenelon ==> "Telemachus" of [Fénelon](#)
page 311, Arabian die to set ==> Arabian [dye](#) to set
page 312, the invading the ==> the invading [of the](#)
page 312, on that side the ==> on that side [of the](#)
page 317, the lines were beauty ==> the lines [where](#) beauty
page 332, The crimson die was ==> The crimson [dye](#) was

[End of Graham's Magazine, Vol. XL, No. 3, March 1852]

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MAGAZINE, VOL. XL, NO. 3, MARCH 1852 ***

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